

THE HISTORY
OF THE
CONFEDERATE
WAR

Volume I

George Cary Eggleston

1910

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THE HISTORY OF THE CONFEDERATE WAR

THE HISTORY OF THE
CONFEDERATE
WAR

ITS CAUSES AND ITS CONDUCT

A NARRATIVE AND CRITICAL HISTORY

BY
GEORGE CARY EGGLESTON

Volume I

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1910

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PART I
THE CAUSES OF THE WAR

INTRODUCTION

THE MAGNITUDE OF THE CONFEDERATE WAR

During the years from 1861 to 1865, one of the greatest wars in all history was fought in this country.

There were in all three million three hundred and seventy-eight thousand men engaged in the fighting of it.

There are not that many men in all the regular standing armies of Europe combined, even if we include the unpaid hordes of Turkey and the military myriads of the armed camp known to geography as Russia.

The actual fighting field of this war of ours was larger than the whole of western Europe, and all of it was trampled over and fought over by great armies.

The men killed or mortally wounded in our war numbered on the Northern side alone 110,000. The total number of deaths resulting from military operations on the Northern side alone was 350,000. The figures for the Southern side are not accessible, owing to the loss of records. But as the fighting was equally determined on both sides, and as other conditions were substantially equal, it is certain that the losses of life were relatively about the same on both sides. It is well within the facts, therefore, to say that this war of ours directly caused the death of more than half a million men. No other war in modern history has cost so many lives or half so many.

We hear much of our recent war with Spain. Let us take it as a basis of comparison. The total number of men even nominally called into the field in that war was less by nearly two to one than the deaths alone during the Confederate war. The number of men who were actually engaged in the Spanish war numbered only about one tenth as many as those who were buried as victims of the Confederate war's battle fields.

Again, the total number of men killed and wounded during the Spanish war—including every man who was touched by a bullet or scratched by a sword or bayonet thrust or hurt by a splinter at sea—was only two hundred sixty-eight. That is fewer than the number who were stricken in each of many before-breakfast skirmishes of the Confederate war, some of which were deemed too insignificant to be reported to headquarters with precision.

Looking for higher standards of comparison, we find that 43,449 men fell killed or wounded at Gettysburg alone. That is almost double the loss of the allied forces at Waterloo and probably equal to the total losses on both sides at that greatest and most decisive of European battles.

There were more than a dozen other battles of the Confederate war which in slaughter fairly deserved comparison with Waterloo. These included the Seven Days' battle before Richmond, and the battles of Fredericksburg, Chancellorsville, Antietam, Shiloh, Chickamauga, the Wilderness, Spottsylvania, Cold Harbor, the Second Manassas (or Bull Run), Stone River, Petersburg, Franklin, Lookout Mountain, Nashville and several others.

Still another measure of the magnitude of a war is its duration. It is duration indeed that chiefly determines the amount of human suffering caused by a war, especially to the women and children who are war's chief victims.

Measured by this test of duration the Confederate war exceeded all other recent conflicts in the magnitude of the suffering it inflicted.

Its first gun was fired at Fort Sumter in April, 1861: its last armed conflict did not occur until May, 1865. Thus for four years and a month the war endured. The Crimean war—one of the longest of nineteenth century conflicts—endured for less than half that length of time and the actual fighting of it lasted less than one fourth as long. The duration of the Confederate war was seven times as great as that of the stupendous Franco-Prussian conflict of 1870, which overthrew the second Napoleonic empire, consolidated Germany and made the republic an enduring fact in France. It was twenty-four times as long as that of the French-Austrian war, which set Italy free, or as the War of 1866 between Austria and Prussia which laid the foundations of the present German empire.

Measured by its enduring consequences the superior magnitude of our war in its influence upon national and human destinies is still more conspicuous.

It made an end of human slavery in the last civilized country on earth in which slavery was permitted.

It freed the nation from a reproach that sorely afflicted its citizens.

It ended a political conflict which had threatened the very foundations of the Republic from the hour of its institution.

It freed the Southern States of the Union from an incubus that their statesmen and their best citizens had for generations desired to be rid of, an incubus that had restricted their development and retarded their growth in wealth and population as no other evil influence had ever done in any part of our country.

Still more important so far as human history is concerned, this war of ours settled at once and forever, the vexed and vexatious questions of constitutional interpretation that had beset the Republic from the hour of its formation.

It revised the constitution upon new lines and reconstructed the Republic in ways that promise permanence.

As an exhibition of national military capacity and a revelation of our prodigious possibilities of armed resistance, it taught the world the advisability and indeed the absolute necessity of letting the United States alone, as the one unassailable and defensively irresistible nation on earth.

Finally it gave to the American people a realizing sense of their own limitless power, which has both strengthened and sobered the popular mind, revealing to it the nation's limitless ability to work iniquity, and awakening it to the Republic's nobler capacity—to work righteousness instead.

The conflict so far exalted and emphasized the power of the Republic as to inspire us with a new generosity of forbearance in our dealings with all other nations. It made it easy for us to follow General Grant's rule of right to "deal with other nations as enlightened law requires individuals to deal with each other."

Incidentally this war exhausted and impoverished the South as no other war ever exhausted and impoverished any fruitful land. It utterly destroyed the labor system of those states. It put out the light of their prosperity for a time and left their people blindly groping for sustenance. It destroyed a social fabric of exquisite poise and picturesqueness which had endured from the beginning of American colonization. It set society upon its head in the South and replaced historic order with inexpressible chaos. For a time it substituted for a traditional government by the best, an actual and very lawless government by the worst elements of society, exalting ignorance above culture, vice over virtue, and setting a horde of half-savage and suddenly emancipated slaves to direct the destinies of a region to which the country had always reverently looked for exalted patriotism and the wisest statesmanship—the region which had produced Washington and Jefferson and Madison and Monroe; the region that had given to the Republic that greatest and wisest of the jurists of the modern world, John Marshall; the birthplace of Patrick Henry, and George Wythe and George Mason and Henry Clay.

Anarchy and chaos and an era of unspeakable disorder succeeded the war as its inevitable consequence and when at last a new order was wrought out of these disturbed conditions, all that was characteristic of the old South had completely passed away. A new era had dawned, coming as a posthumous birth of the conflict of arms.

A revolution had been wrought in the social, industrial and economic conditions of a fair land. It brought with it a new material prosperity greater than any that had ever been dreamed of in that region before. It led to the development of resources that had lain dormant for generations. In agriculture alone, the South produces now many times the wealth each year that had been dug out of her fields under the old system. The very greatest cotton crop that was ever grown before the war amounted to 4,669,770 bales; since 1877 no crop so small has been grown in any year, while in recent years the crops have reached the stupendous total of more than 12,000,000 bales in each year.

Thus the old staple industry has doubled and trebled its productiveness under the influence of the new industrial conditions created by the war and by the social and economic revolution which the war wrought.

But this is a small part of the matter. Greatly as the yield of cotton has been multiplied under the new conditions, cotton has ceased to be king even in the land over which it once exercised undisputed sway. Other and humbler agricultural products—never thought of in the old planting days as money crops—have come, in their value to rival cotton itself as a source of enrichment to Southern agriculture.

More important still, the new conditions that were created in the South as a result of the war have led to the development there of resources of inestimable value which were wholly neglected under the old system. The little, local, loitering railroad lines of the older time have been combined and extended and upbuilt into great arteries of travel and traffic. Prairies that were scratched over for the sake of meager cotton crops of half a bale to the acre have been delved under for coal and iron. Industrial cities of importance have arisen where cabins remotely stood. Blast furnaces have replaced the breezes that once alone disturbed the broom-straw grass. Iron foundries, steel mills, machine shops, coke ovens, rolling mills and the like employ men by tens of thousands where before only a few hundreds compelled the reluctant soil to yield them a precarious living. The still unsubdued pine lands are dotted all over with cotton mills which give work and wages to a multitude and the magnitude of their dividends strongly tempts capital to a like investment elsewhere in the country that was once abundantly content to produce a raw material and to buy back the finished products of it from factories hundreds or thousands of miles away.

The harbors of the South, once mere ports of call or refuge for a shipping that belonged elsewhere, have become the seats of great shipbuilding and ship-owning enterprises the productiveness of which is loosely reckoned by imperfectly counted millions.

Still again, under the new conditions resulting from the war, great industries have sprung up in the South which find both their profit and their reason for being in the utilization of things that were sheer waste under the old system. The manufacture of cotton seed oil and its rich by-products is the best illustrative example of this. It employs thousands of well paid workmen and millions of well remunerated capital in converting into very valuable products the cotton seed that was once utilized only as a fertilizer for half-exhausted soils.

In brief, the political and social revolution wrought by the war is matched and over-matched by the stupendous economic revolution produced, a revolution whose rewards to industry, to capital and to enterprise are such as the wildest visionary would have laughed at as a futile dream when the South lay stripped and stricken and staggering under its burden of perplexities at the end of a struggle which had taxed its material resources to the point of exhaustion and which had well-nigh exterminated its vigorous young manhood.

It is to tell the story of a war thus stupendous in its causes, its events and its consequences that this book is written. There is nowhere in history a story more dramatic, more heroic or more intimately inspired by those emotions that control human conduct and work out the events of human life. The endeavor in these volumes will be to relate that story with absolute loyalty to truth.

The writer of these pages is persuaded that the time has fully come when this may be acceptably done; that the time has passed away when any American of well ordered mind desires the perversion or the suppression of truth with respect to our war history. There is certainly nothing in that history of which any part of the American people need be ashamed.

The great actors in the drama have all passed away. The passions of the war are completely gone. Even in politics, war prejudices no longer play a part worth considering. The time seems fully come when one may write truth with regard to the war with the certainty of a waiting welcome for his words. The time has come which General Grant foresaw in 1865, when he predicted that the superb strategy and unconquerable endurance of Lee and the brilliant military play of Sherman, the splendid prowess of Stonewall Jackson and the picturesque achievements of Phil Sheridan, the extraordinary dash and enterprise of J. E. B. Stuart on the one side and of Custer on the other, would all be reckoned a common possession in the storehouse of American memory, a subject of pride and satisfaction wherever there might be an American to glory in the deeds of his countrymen.

The time has come when the prowess of the American soldier, equally on the one side and upon the other, his measureless courage, his exhaustless endurance, his all-defiant devotion to duty, his extraordinary steadiness

under a fire such as few soldiers on earth have ever been called upon to face, his patience under long marchings, starvation and every circumstance of suffering, are subjects of justly indiscriminate admiration on both sides of a geographical line long since obliterated.

The story of Pickett's charge at Gettysburg may now be told to Northern ears as surely sympathetic with the heroism shown in that world-famous action as are any ears at the South. The heroic tale of the Federal assaults upon Marye's Heights at Fredericksburg where brave men, knowing the futility of their endeavors, obeyed orders and went to their deaths by thousands because it was their duty to do so may now be told to listening Southern ears with as absolute certainty of applause as if the story were related only to veterans of the Army of the Potomac.

"East is East, and West is West" writes Kipling in one of his finest ballads in celebration of generous personal courage. Paraphrasing, we may say: "North is North and South is South," but courage, heroism, devotion and a generous chivalry belong to no time and no country exclusively. They are the common possessions of all worthy manhood. Like the gold beneath the guinea's stamp they pass current wherever coined because their value is inherent.

CHAPTER I

A PUBLIC, NOT A CIVIL, WAR

The war of 1861–65 was in fact a revolution. Had the South succeeded in the purposes with which that war was undertaken it would have divided the American Republic into two separate and independent confederations of states, the Union and the Southern Confederacy. The North having succeeded, no such division was accomplished, but none the less was a revolution wrought as has been suggested in the introductory chapter of this work.

Familiarly, and by way of convenience, we are accustomed to call this "The Civil war," in contra-distinction from those other wars in which the American power has been arrayed against that of foreign nations. But the term "Civil war," as thus applied, is neither accurate nor justly descriptive. In all that is essential to definition this was a public and not a civil war and it is necessary to a just understanding of the struggle and its outcome to bear this fact in mind. Otherwise the entire attitude and conduct of the Federal government toward its antagonist must be inexplicable, inconsistent and wanting in dignity.

The Southern States asserted and undertook to maintain by a resolute appeal to arms, their right to an independent place among the nations of the earth. In the end they failed in that endeavor. But while the conflict lasted they so far maintained their contention as to win from their adversary a sufficient recognition of their attitude to serve all the purposes of public rather than civil war.

They instituted and maintained a government, with a legislature, an executive, a judiciary, a department of state, an army, a navy, a treasury, and

all the rest of the things that independent nations set up as the official equipment of their national housekeeping.

Not only did foreign powers recognize their right to make war, not as rebels but as legitimate belligerents entitled to all the consideration that the laws of civilized war guarantee to nations, but the United States government itself made similar recognition of the South's status as a power possessed of the right to make war.

At the outset there was quibbling of course, and a deal of playing for position. But in view of the obvious facts all this quickly gave way to a perfectly frank recognition on both sides of the truth that there was legitimate public war between the North in the name of the Union and the South organized as the Southern Confederacy; that the struggle involved the question of the independence of the South on the one hand and the indissolubility of the Federal Union on the other; that the conflict was the result of an entirely legitimate appeal to arms for the decision of questions which no other arbitrament could decide; and that the contest must be fought out not as a struggle between constituted authority on the one hand and insurrection on the other but as a controversy between two powers, each of which was legitimately entitled to assert its contentions and to maintain its attitude by every means known to civilized war.

All this was reflected, while the war lasted, in the treatment of men captured on either side as prisoners of war; in negotiations for the exchange of prisoners with full recognition of military rank on either side; in the issue, the observance and the enforcement of paroles; in safe conducts frequently granted and always honorably respected; in agreements for the immunity from arrest of medical officers and other non-combatants; in the humane and civilized arrangements made between opposing generals for the equal care of the wounded of either army by the surgeons of both, and in a score or a hundred other ways.

And when the war was over both sides fully recognized and emphasized its character as a legitimate public war and not in any respect as an insurrection. When the broken fragments of the organized armies of the South surrendered, there was an end of the controversy. The Southern people made no effort to prolong the struggle in irregular ways, as they easily might have done. They set their faces against all attempts to

inaugurate a guerilla warfare, a thing which would have been easy to them. Under the advice of General Lee and their other great leaders the soldiers of the Confederacy accepted the surrender of the Confederate armies as a sovereign act that made an end not only of the war but of their right to make war. By their immediate return to ways of peace and by their sincere acceptance of the terms offered in Mr. Lincoln's promptly issued amnesty proclamation they marked and emphasized their view that they had been engaged, not in a disorderly insurrection, but in a legitimate, public war, the military end of which marked the end of their right to carry on hostilities of any kind or character.

Equally on the other side, the public character of the war was recognized by every act of the government. There was not even one prosecution for treason. Congress imposed upon the Southern States definite legislative duties as a condition precedent to the readmission of those states to the Union, thus emphatically recognizing the fact that during the progress of the war they had actually been out of the Union, and could be readmitted to it only upon terms prescribed by a congress representing those states which had remained in it. In these and a hundred other ways—and especially by means of that long military occupation of the South which ended only under the Hayes administration—the national government recognized the fact that there had been a legitimate public war between the two sections and not merely an insurrection with the military operations necessary to its suppression.

A failure to recognize these things would have been absurd and ridiculous in an extreme degree. It would have been to ignore the most obvious facts in modern history and to substitute a lot of lawyers' quibbling prevarications for the modern world's greatest wonder story of war. It would have been to regard a dozen or twenty of the greatest battles ever fought on earth as the conflicts of a sheriff's posse with turbulent gangs of rioters. It would have been to treat as merely disorderly outbreaks and operations for their suppression, the great military campaigns which have passed into history as superbly illustrative, on the one side and upon the other, of all that is most brilliant in strategy and all that is most heroic in endeavor and in endurance. It would have been to discredit the national defense by belittling the occasion for it. It would have been to rub off the tablets of human memory equally the achievements of Grant and Meade and Sherman

and Thomas and Farragut and the rest, and the record of what Lee and Jackson and Beauregard and the two Johnstons and Stuart and Early and Longstreet had done. It would have been to rob the nation of the credit it had won in the most strenuous conflict in which it had ever been engaged and of the glory of the genius and the heroism manifested by Americans upon either side. It would have been a perversion of history, a degradation of great deeds, a reckless wasting of the Nation's accumulated store of cherished memories of heroism.

We must bear these truths in mind if we are rightly to understand the great struggle which for convenience and quite incorrectly we call the Civil war. We must remember that it was a struggle of giants; that it was a conflict between two powers, each of which was possessed of a tremendous fighting capacity; that it called forth the most brilliant strategy of modern times; that it was inspired on both sides by a heroism worthy of celebration in song by the most gifted of ballad-makers; that it involved the very vitals of republican self-government among men; that it wrought a revolution more stupendous, more far-reaching and more lasting in its effects than any other in recorded history; that it overthrew old institutions and created new ones in their stead; that it reversed the history of a hundred years; that it wrote anew the fundamental law of the greatest nation of all time; that it created a new epoch and made a new national power the dominant force and influence in the ordering of human affairs.

Only by such appreciation of the nature, the magnitude and the significance of our war, shall we justly estimate its place in the record of human affairs or properly understand the meaning it is destined to carry with it into history.

It is with an abiding conviction that the story of this war is the most precious memory of all the American people, the record of their highest achievements, the supreme demonstration of their right to a foremost place among the peoples of the earth that this telling of that story is undertaken.

CHAPTER II

THE GROWTH OF THE NATIONAL IDEA

The causes of the war of 1861–65 were deeply imbedded in the history of the country, in the peculiar manner of its development, in the complex interests of men, and in those primary instincts of human nature which account for everything but which are themselves often unaccountable.

It is difficult, indeed it is impossible to trace and unravel to the full the influences which in 1861 brought the North and South into armed conflict and created a war of stupendous proportions between men who had for generations rejoiced in a common heritage of liberty; men who had cherished alike the memory of Bunker Hill and Yorktown; men who had worshiped the same household gods and honored the same heroes as their national demigods; men to whom the history of the Republic was, to all alike on both sides, the story of their fathers' and grandfathers' heroic deeds.

Yet if the historical event of 1861 is to be at all adequately understood or interpreted, the historian must in some degree at least discover the conditions, near and remote, that gave occasion for the strange catastrophe.

There is a short and easy method of dealing with the matter as there always is a short and easy method of solving historical puzzles by referring them to some complex cause and treating that cause as a matter of the utmost simplicity. It is easy to say that the war of 1861–65 grew out of slavery; that slavery existed and was defended at the South while it was antagonized at the North, and that the conflict arose out of that. But no reader of intelligence is satisfied with such a reference as a substitute for explanation. Every such reader knows not only that the great and overwhelming majority of Northern people in 1861 would have angrily rejected a proposal that the nation should wage a war for the extermination

of slavery in the states in which it legally existed. Every reader who is in the least instructed in the history of that time knows that Mr. Lincoln himself was at the utmost pains to avoid even the appearance of such a purpose and that during nearly half the period of the war's duration he resolutely refused to commit the government to that cause by issuing a proclamation of emancipation, even as a measure helpful to the national arms.

Instead of this short and easy catechism of causes which has satisfied so many, especially those foreigners who have more or less ignorantly written as historians or critics of our war, it is necessary to go back to the early history of the country, to study there the conditions that laid the foundations of discord, to find in the fundamental characteristics of human nature and in the varying self-interests of men the explanation of events that are otherwise inexplicable.

The American colonies were separately founded. Their settlers were persons of very diverse mind and often of hostile interest but they were all inspired by an abiding sense of the main chance. The minutely studious historians who have written in our later time have differed in many things but they are all agreed that the early settlers upon these shores, whether in Virginia first or in New York a little later or in New England still later, were not heroes of romance blown hither by adverse winds of fate or by the buffeting of the gods, but plain, ordinary and very commonplace men, ignorant for the most part, narrow-mindedly selfish, and altogether intent upon the bettering of their own fortunes as the chief end of human life. The higher inspirations which we are accustomed to attribute to them in our American Aeneid did not exist. Those things were born later of admiring imagination as higher aspirations usually are in the discussion of national beginnings.

The colonies were far more remote from each other than we can easily conceive. From Boston to Williamsburg in the seventeenth century was a journey more difficult, more toilsome and more dangerous than a circling of the globe is in our time. And even in the eighteenth century Charleston in South Carolina was farther removed from Charlestown in Massachusetts than either is to-day from Yokahama or Hong Kong.

This element of remoteness cannot be too much insisted upon as a cause of estrangement between the widely separated colonies. The means of communication between the several settlements of English-speaking people were few and meager and painfully uncertain. There were no railroads, no steamships, no telegraphs, and in effect no mails. For not until Franklin near the revolutionary epoch laid the rude foundations of our postal system, was there any tolerably trustworthy post in this land. We find in old letters Abigail Adams in Boston apologizing to her statesman husband in Philadelphia for having allowed three weeks to elapse without a letter and offering as a sufficient excuse the fact that during those weeks she had "found no opportunity" to send a letter, no "trustworthy hand going from these parts to yours." And she and other correspondents of that time whose letters have been preserved as precious historical material, refer frequently to the public post as a means of communication to which no rational person would think of entrusting letters of any consequence.

In the same way Eliza Lucas, afterwards Eliza Pinckney and the mother of distinguished revolutionary personages, excuses her neglect to send letters from James island to her intimates on the Cooper river—twenty-five miles away—on the plea that she had no trustworthy opportunity and that the post was not to be thought of.

In still further illustration is the fact recorded by Franklin in his autobiography, that when his rival in the business of newspaper publishing had control of the posts, he seriously embarrassed Franklin by refusing to deliver his newspaper to its subscribers. And it was a source of pride to Franklin that when he, himself, became Postmaster General he generously refused to retaliate upon his rival by denying him in his turn the privileges of the mails.

In these conditions it is not difficult to understand that even as the revolutionary times approached, the interchange of thought, opinion and sentiment among the people of the several colonies was infrequent and very meager and that during the previous, formative century it had scarcely at all existed.

It is true that the immigrants who founded the several colonies were mainly Englishmen. But during a century and a half of remotely separate development, they had had ample time for estrangement of mind and for the

breeding of very radical differences of interest, aspirations and opinions. The really astonishing thing about their history is that after a hundred and fifty years or more of this diversely conditioned development there was left enough community of thought and interest among the colonists to make possible their alliance for revolutionary purposes.

That alliance was of the loosest possible character, marked in every detail of its terms by a jealousy almost phenomenal. The first agreement of the colonies to act together for the common defense was as loose as the hurrah of a mob bound together only by a temporary purpose in common. It was not until the Revolutionary war was well advanced that even the articles of confederation were agreed upon, and they were about the flimsiest, most inadequate and most inefficient bond of union that ever served to ally states for a common purpose. Those articles of confederation set out with a formal and emphatic reservation to each state of its absolute, individual sovereignty and independence—that being at the time the one thing which each of the revolted states cherished with the most sleepless jealousy. They left to each of the states the unrestricted right to do as it pleased in all matters of sovereign concern.

The avowed purpose of the confederation was to create a national government but the articles of confederation distinctly denied to the central power every right and function necessary to governmental activity and independence. The so-called general government could not levy any tax, enforce any impost, or in any other way provide for the raising of money, the payment of national debts, the organization of armies, the enforcement of treaties or even the uniform validity of statutory enactments.

Even in the act of creating a central power for the sake of the common safety, the several states were so jealous of their separate independence that they resolutely refused to give to their general government any power whatever to control the individual states or the people thereof, even to the meager extent of enforcing the national agreements with other powers.

The Congress—there being no executive possessed of any power—was authorized to call upon the several states for contributions of men and money for the common defense. But it was a case parallel with Owen Glendower's ability to "call spirits from the vasty deep." The question remained "will they come?" And that question each state decided for itself.

If we would at all understand the history of our country we must bear in mind this intense, this resolute, this utterly uncompromising insistence of the several states at the beginning upon their separate sovereignty.

It was in this spirit that independence was achieved and the independence thus won was not the independence of a federated republic, but that of thirteen individual and widely separated states, no one of which owed any sort of allegiance to any other or to all the others combined; no one of which was ready upon any consideration to yield one jot or tittle of its independent sovereignty to the will of any other or of all the others.

The states, indeed, were as jealous of trespass by each other as of trespass by Great Britain herself.

We are accustomed to think of them as closely united commonwealths, engaged in a long and painful struggle for the independence of the American Federal Republic. They were nothing of the kind. They were separate and diversely interested states each fighting for its own emancipation from a foreign yoke. They were allied in a common cause, but their alliance had no bond more obligatory upon themselves than is that which unites a mass meeting whose constituent members are possessed temporarily of a common purpose.

When the states had achieved their independence, they undertook to live together in the loosely formed union thus provided. They quickly found it impossible to do so. Not only was their central government powerless to fulfil its obligations to other countries, or to pay its debts at home, or to enforce its authority, or to levy and collect taxes, or to provide securely and properly for the maintenance of an army, a navy, a postal service or anything else of a national character or to do with certainty and authority any other of the things which a nation that expects respect may and must do, but it could not in any effective way regulate trade either with foreign countries or between the states. Each state had the reserved right to interfere with the transit of goods across its borders in ways that threatened presently to render trade among the states impossible.

It was in view of these distressing conditions that the statesmen of Virginia appealed to those of the other states for a conference looking to the devising of a better way, "a more perfect Union." The conference thus called at Annapolis was attended by representatives from only five of the

states. But it led to the calling of that Philadelphia Convention which, under Washington's presidency, and with the united wisdom of the most sagacious statesman in all the commonwealths, framed the Federal Constitution.

The task was one of extraordinary difficulty. The old jealousies of the states remained in scarcely abated force. Each feared to surrender any part of its sovereignty. Each dreaded the possible interference of the others with its domestic concerns. Each feared and dreaded a national power that might some day control a state's actions and coerce it into an obedience derogatory to its sovereignty. The less populous states feared the possible dominance of the more populous, and all of them alike feared the possibly oppressive power of a national executive.

After months of such labor as statesmen have rarely given to the framing of a fundamental law, all these differences were adjusted and in a considerable degree, though not wholly, the individual apprehensions of the several states were allayed.

The equal representation of states as such, without reference to the numbers of their population, was provided for in the peculiar constitution of the Senate, in the organization of the electoral college which chooses the president and still again in the provision of the Constitution that in case of no election to the presidency the choice shall be left to the popular house of Congress, but with the express condition that each state's representatives in that body, however numerous or however few, shall have one and only one vote.

Again the Constitution reflected the jealousy of the several states for their sovereignty by providing specifically that all powers not delegated by the states to the general government by the terms of that instrument should be reserved to the states or to the people thereof.

Notwithstanding all these precautionary measures and notwithstanding all the reservations made, two of the states withheld their assent to the Constitution for a year or two after it was accepted by the rest, and in other states the vote by which it was ratified showed a very narrow margin in its favor. Even in Virginia, the state which had originally suggested the union under the Constitution, whose Washington had presided over the convention that framed it, whose Jefferson and Madison and other statesmen had strenuously advocated it, the influence of the most potential statesmen of

that period was barely sufficient to secure an affirmative vote by a slender majority in favor of the adoption of that Constitution which made the United States a nation and gave to their government a recognized place among world powers.

In brief the people of the original thirteen states very reluctantly surrendered a narrowly restricted part of the functions of sovereignty to the Federal Government. They very jealously reserved to themselves as individual states all the other functions of sovereignty and independence. And even with such restrictions and such reservations they gravely hesitated before making a grant of power which threatened the possible use of the Federal Authority in control of a state's action or in restraint of a state's sovereign independence.

This was the spirit in which the National Government was formed. It was intended to be a government for external and communal purposes only. By every provision which the ingenuity of statesmanship could devise the General Government was restrained from trespassing upon the sovereign right of each state to regulate in its own way and by its own devices all matters not distinctly delegated to the General Government by the express terms of the Constitution.

For half a century after the adoption of the Constitution, this view everywhere prevailed and was everywhere recognized as authoritative. When, during the War of 1812–15, New England found that the course of the General Government antagonized the local interests of that region, the states in that quarter of the country opposed the national policy even to the extent of threatening a withdrawal from the Union—secession in other words, and nullification. It was Daniel Webster—afterwards the apostle of "Liberty and Union, now and forever, one and inseparable"—who drew and championed the Rockingham Memorial in 1812, in which his New England constituency formally protested against the war then existing with England and by unmistakable implication threatened secession and a separate peace with England on the part of the maritime states in the northeastern part of the country. And immediately afterwards Webster was elected to Congress where, with the approval of that part of the country, he opposed all measures designed to encourage enlistments at a time when the country was engaged in foreign war. He even went so far as to vote against the appropriations for the national military defense against the country's ancient

foe, at that time engaged in an effort to undo and reverse the results of the Revolutionary war itself.

Senator Henry Cabot Lodge, writing of this incident, expresses the opinion that it was an extreme stretch of the liberty of legislative opposition to the administration in a time of war and public danger and that it carried the right of opposition to the utmost limit to which it could go without treason.

Yet at the time nothing very serious was thought of the matter for the reason that at that time the individual state and not the National Government was regarded as the primary and ultimate object of men's allegiance.

The states felt themselves to be still only conditionally and tentatively members of the Union. They were still intensely jealous of their individual sovereignty, and they were still indisposed to make serious sacrifice of their own interests in behalf of the common weal of a union which they regarded doubtfully as an experiment. They still felt themselves entitled to reject the experiment and withdraw from the Union if at any time they should see fit to do so.

It would be easy to multiply historical illustrations of this attitude of mind, extending, though with diminishing frequency and force, to that time just before the outbreak of the Confederate war when N. P. Banks's cry of "Let the Union slide" was accepted as the slogan of the anti-slavery party. But the multiplication of such illustrations is unnecessary. Every instructed mind is aware of the fact that at the first the Union was regarded as a doubtful experiment into which the states had entered with misgiving and from which each state felt itself at liberty to withdraw whenever it should find the yoke of the Union a galling one.

Writing of Webster's replies to Hayne, Senator Lodge frankly admits that the historical argument was all against Webster; that there is no room for doubt that at the first the Union was held to be an experiment and withdrawal from it was everywhere regarded as a reserved right of the states.

And even the right of a state while remaining in the Union to nullify a national statute obnoxious to its prosperity or to its moral sense was as

directly asserted in the personal liberty bills with which, just before the war, many states sought to render the National Fugitive Slave Law inoperative, as it had been asserted by South Carolina in that state's attempt a generation earlier to annul and resist a law imposing tariff restrictions upon trade.

But there are some other historical facts that must be borne in mind if we would justly understand the war catastrophe of 1861.

It must be remembered that before the beginning of that year twenty new states had been created out of territories that at the time of the Union's formation were wildernesses. These new states had none of that jealousy of their sovereignty which gave pause to the original thirteen. They had entered the Union not reluctantly, as states hesitatingly surrendering a previously cherished independence, but eagerly as communities upon which the dignity of statehood and all the sovereignty that statehood implies had been conferred by gracious gift of the Union. Those communities had been suppliants for the favor of admission to the Union and not, as the original states were, the creators of the Union, surrendering to it with more or less reluctance some share of an absolute sovereignty previously enjoyed by themselves. These new states were not benefactors of the Union but its beneficiaries. They had surrendered no rights of self-government to it, but on the contrary had received from it as a gracious gift all the rights and dignities of states, where before they had had no rights and dignities whatsoever.

These new states had grown populous and prosperous under that Union to which they had surrendered nothing of independence and from which they had received all they had of statehood and sovereignty. Very naturally, then, their attitude toward the Union was quite different from that of the older states. That Union which the older states had always regarded as their creature, owing its very existence to their grace, the new states looked upon as their creator to whom they owed all that they enjoyed of liberty-giving autonomy.

In the newer states particularly, but in the older states also, there had grown up a new conception of the dignity and permanence of the National Union. That which had been originally regarded as a doubtful venture had little by little come to be looked upon as a thing established and glorious. The national idea had taken a new and deeper hold upon men's minds and

affections. Vast material and moral interests had grown into sturdy self-consciousness under its beneficent rule. That Union which had been entered upon with so much doubt and hesitation and with so many precautionary stipulations had become one of the great nations of the earth, strong at home and everywhere respected abroad. It had a history in war and peace which was a precious possession of all the people alike.

Proud, loving memories clustered about the story of its career. The victories of New Orleans, and Buena Vista, and Chapultepec, the sea conquests of Porter and Perry and the rest, had been added to the stories of Lexington, Concord, Bunker Hill, Trenton, Camden and Yorktown, as fireside tales with which the grandfathers made the eyes of a younger generation of Americans glisten with patriotism. And achievements of peace equally notable—stories of what Morse, Henry, Fulton, Peter Cooper, Daniel Boone, Bowie, Kit Carson, Fremont, Sam Houston, General Gaines and a multitude of others had accomplished—were equally stimulating to the pride and patriotism of the youth of the thirty-three states.

And there were heroic tales told of Indian wars in which Andrew Jackson and William Henry Harrison, Sam Dale, the Mississippi Yagers, Col. Dick Johnson, and other veritable heroes of romantic daring had figured. All these and scores and hundreds of other tales of patriotic heroism were then familiars of the fireside as illustrations of American pluck and American achievement.

There was the country's expansion, too, to glory in. The Louisiana purchase had added an empire of vast extent and of inestimable productive possibilities to the national domain, the development of which, even before 1861, was a romantic wonder story of history. The Mexican war had brought with it another accession of incalculably rich territory such as no nation in all history except our own had ever added at a single stroke to its domain.

Where the Spanish gold-seekers had galloped for centuries in search of the precious metal, finding it not, an American had quickly discovered a new Golconda, an Ophir, an Eldorado so rich in its productiveness as for a time to threaten the stability of gold as an accepted measure of values among men. Vast regions that had remained for generations the haunt of savages and wild beasts, with only here and there a mission station of adobe

huts to offer hope of better things in some far distant future time, became, within a brief while populous territories ready to take their place in the Union as important American states. Better still, a new and matchless fruitfulness had been discovered in vast valleys and upon far-reaching mountain sides that had been previously typical of hopeless sterility and desolation.

All these things had mightily stimulated the American imagination and all of them had contributed incalculably to the strengthening of the national spirit and to the upbuilding of a new and controlling sentiment of loyalty to the Union under which all this actual greatness had been achieved and all this potential greatness was confidently promised.

In still other ways the sentiment of nationality had been strengthened. The orators of the land had for generations mightily exalted the horn of the Nation in eloquent speeches which all the schoolboys in all the states grew enthusiastic in declaiming. All the literary men of the land had celebrated the country's glories in prose and verse that filled the school books and set juvenile patriotism aflame with ardor.

All this patriotic awakening had for its object of worship the glories of the Nation, and not at all the narrower achievements of particular states or sections. All of it referred itself to the Union as the commonwealth. Neither literature, nor eloquence, nor familiar household narrative concerned itself in the least with any of those jealousies which had prompted the original states to hesitate to enter the Union. None of them recognized even in the remotest way, those questions of conflicting powers and dignities, those anticipations of encroachment on the part of the central power, or those jealous guardings of the rights of individual states which had played so large a part in the settlement of the original problem of a Federal Union.

In brief, the people had outgrown and forgotten the doubts and fears of the earlier formative time. In the main they knew nothing about such things and cared nothing for them. They knew only that they were citizens of the greatest, freest and strongest nation on earth, and that its history was a heritage of glory to all of them alike.

Lawyers' quibblings, logic chopping, and all arguments drawn from history meant nothing to the great majority of a people who had been born and bred under the Union and had imbibed with their mothers' milk a

sentiment of undying loyalty, not to any state or any doctrine or any theory, but to the Nation in whose history they regarded themselves as entitled to feel personal and ancestral pride and affection.

Thus while the historical argument was clearly with those who maintained the right of the states to assert their authority as superior to that of the Union, that argument was addressed in large part to ears that had been rendered deaf to it by the echoes of the national glory. While the Union had indeed been at the first a hesitating experiment, it had become by time and by national achievement a nationality for the maintenance of which vast populations were ready and willing and even eager to risk their lives.

If we would understand the war and the conditions in which it came about, we must first clearly realize the change that had occurred in popular sentiment, and especially the growth of that national feeling which had slowly but surely replaced the old hesitation and jealousy of the states. Only the circumstance that slavery existed and was defended in one part of the Union and that it was antagonized in the other part on grounds of policy, conviction, and morality, kept alive the old sentiment of state sovereignty and made the war possible. That sentiment of the dominant right of the states was strongly asserted on both sides and insisted upon both in behalf of slavery and in antagonism to it until war resulted. The history of that controversy must be the subject of a separate chapter, in which its irritating character as well as the difficulties that statesmanship encountered in dealing with it, may be set forth without undue elaboration but with sufficient detail to render the result easily enough understood.

CHAPTER III

THE "IRREPRESSIBLE CONFLICT"

There is no possibility of doubt that, but for the slavery controversy, that growth of an intense national feeling which has been mentioned would have rendered the war of 1861–65 impossible.

That intensely patriotic feeling of nationality was all pervasive, except in so far as the slavery controversy impaired it as it did, both North and South. If that one cause of disagreement had not existed, if there had been no negro slaves in the United States, the sentiment of union and nationality which had grown with the Nation's growth and strengthened with its strength, would unquestionably have overborne all the quibbles and all the logical refinements of the earlier time. The decisions of the Supreme Court, especially those of John Marshall, which in effect rewrote the Constitution and successfully claimed for the courts the right to annul any and all acts of Congress that were not in accordance with the Constitution, had created a new and effective barrier against possible aggression by the Federal power upon the autonomy of the states and had at the same time established the Federal authority securely. When Marshall decided in *Marbury vs. Madison*, that an act of Congress assuming to do by national authority anything reserved to the states in the constitutional grant of power to the General Government, is no law at all but an act null and void, which the courts will on no account enforce, there was an end of all danger of wanton Federal encroachment upon the reserved rights of the states. And, as we have seen, that fear died out of men's minds, except in so far as questions relating to slavery from time to time revived it. But for those questions it need never again have arisen to vex the Republic and set its people by the ears.

But slavery involved questions of prejudice, questions of passion, questions of morality, questions of labor, questions of principle, and questions of pride, of sentiment, of conscience, of religion, of conviction. It stirred the passions of men, excited their prejudices, and appealed to their interests as no other question of policy has done in our modern times. Incidentally it revived, as no other issue could have done, all the old jealousies between the Union and the several states which the progress of the Republic had so strongly tended to allay. It set the history of the formation of the Union against the history of the Union itself as implacably antagonistic historical arguments in behalf of conflicting contentions.

Let us see how all this came about.

When the colonies achieved their independence, slavery existed, in greater or less degree, in all of them. The negro was then nowhere regarded as a man, so far at least as the generalizations of the Declaration of Independence and other formal settings forth of human rights were concerned. There was a strong desire to be rid of slavery, a deep seated conviction of the impolity of that institution, but, except among the Quakers and a very few others, there seems to have been no thought anywhere that the holding of negroes in bondage was a violation of that fundamental doctrine of human rights upon which the Republic had been established.

Indeed the desire to be rid of slavery seems at that time, and for a long time afterwards, to have been stronger at the South, where the institution was general, than at the North where it existed only in a scant and inconsequent way. As early as 1760, the South Carolina colony had sought to limit the extension of the system by passing an act forbidding the further importation of slaves, but the British Government had vetoed the measure. Twelve years later Virginia sought to protect her people against the black danger of slavery by imposing a prohibitory tariff duty upon imported slaves. Again the home government in London forbade the act to have any force or effect.

When Thomas Jefferson, a Virginian, wrote the first draft of the Declaration of Independence, one of the strongest counts in his splendid indictment of the British King was the charge that in these and other cases he had forbidden the people of the colonies to put any legal check upon the growth of this stupendous evil.

But when the Declaration was adopted by Congress and signed as the young Republic's explanation of its revolutionary action, rendered in obedience to "a decent respect for the opinions of mankind," the great Virginian's arraignment of the King for having thus fostered slavery in colonies that desired to be rid of it, did not appear in that supreme document of state. We have Jefferson's own testimony that it had been stricken out in deference to the will of those New England merchants and capitalists whose ships and money found astonishingly profitable employment in the slave trade between the coast of Africa and the southern part of our country.

Thus while the holding of slaves in the more northerly colonies had proved to be unprofitable and had to a great extent ceased at the time of the Revolution, the traffic in slaves from Africa to the southern parts of this country was so profitable an industry that even the Declaration of Independence must be emasculated of one of its most virile features in deference to the greed of gain.

And this dominance of interest over principle continued for long years afterward. When the great convention that framed the Constitution was in session, it was at first proposed to put an end to the slave trade from Africa in the year 1800. An amendment was offered, extending the license of that infamous traffic to the year 1808, and this eight years' extension was adopted by a vote which included in the affirmative every New England state represented in the convention, Virginia voting steadfastly against it.

Those votes for the extension of the slave trade were given undoubtedly in behalf of the mercantile interest of the maritime states of the northeast, and they reflected no moral conviction whatsoever. For there was at that time no moral conviction of the wrongfulness of slavery anywhere in the country. The thought that the negro was a man, endowed by his Creator with an unalienable right to "life, liberty, and the pursuit of happiness," had not yet been born in America.

And even after thirty odd years, and a dozen years after the constitutional prohibition of the African slave trade had gone into effect, that unlawful traffic in human beings was still so gainful an occupation to merchants and shipmasters, that Mr. Justice Joseph Story, himself a New Englander and a judge of the Supreme Court of the United States, was bitterly denounced by the New England press and public as a judge who

deserved to be "hurled from the bench," because he had instructed grand juries that it was their sworn duty to indict the men who were still engaged in the nefarious business of transporting slaves, under conditions of unspeakable cruelty, from Africa to these shores. The offense of that great jurist lay in the fact that he regarded the demands of the constitution and the law as more binding upon his character and conscience than the demands of the New England slave traders whose very profitable business his insistence upon the rigid enforcement of the law threatened to embarrass and destroy.

As there are now no advocates of slavery in our free land; as all of us, North and South alike, are agreed that the institution was a curse the maledictions of which endure to the present day in vexatious "race problems;" it is possible and proper now to record all facts respecting it with impartiality and without controversial intent. It is of supreme importance to any clear understanding of this matter to bear in mind the fact that our modern conceptions of human rights did not exist in the earlier times; that the recognition of the negro as "a man and a brother" is the birth of comparatively recent thought; that the traffic in black human beings, captured in Africa and brought hither for sale as laborers, excited no impulse of antagonism, offended no moral sentiment, and seemed to nobody in the earlier times a violation of those fundamental doctrines of human right upon which this Republic is based. All that has been a glorious after-thought, and it is solely with an expository purpose and not at all as a *tu quoque* that these facts of history are here set forth.

Surely the time is fully ripe in which men of the North and men of the South may sit together in an impartial study of the causes of a quarrel that brought them into armed conflict more than a generation ago and may calmly consider without offense the sins of their forefathers on either side, making due allowance for the lack of modern light and leading as a guide to those forefathers. We must do this in this spirit, if we would be fair. Still more imperatively must we do it if history is ever to be written.

The period of controversy is past. The time of reckoning has come. The time has come when the advocate holding a brief for the one or the other party to the controversy should give place to the historian intent only upon the task of discovering and recording fact. The circumstance that there was grievous wrong on both sides does not rob either of the credit due for the right that it supported.

After the revolution the great statesmen of our land manifested a determined eagerness to free the country from slavery. John Adams and Alexander Hamilton were not more energetic in this cause than were Jefferson and other Southerners. When Virginia ceded to the Federal Government all her claims to the territory northwest of the Ohio river, it was Thomas Jefferson, the Virginian slaveholder, who insisted upon writing into the deed of cession a provision that slavery should never be permitted in any part of that fair land which now constitutes the states of Ohio, Indiana, Illinois, Michigan and Wisconsin.

George Wythe, under whose tuition Henry Clay studied law, was by all odds the greatest jurist that Virginia ever produced, with the single exception of John Marshall. George Wythe was one of those whom Mr. Carl Schurz has in our own times characterized as "the Revolutionary abolitionists." They were the men of the South who regarded slavery as an imposed and hereditary curse to be got rid of by any means that did not threaten the social fabric with destruction and the country itself with chaos and black night. George Wythe absolutely impoverished himself—born to vast wealth as he was—in setting free the negroes whom he had inherited as slaves and in providing them with the means of establishing themselves in bread-winning ways. For, as he expressed it, "I have no right to set these people free to starve."

He gave them their liberty and with it a piece of land for each, on which with ordinary industry and thrift they could surely make a living for themselves and their families. Then he set to work, a man stripped of all his ancestral possessions and impoverished by his own act of justice, to earn a living as a Virginian lawyer. So far from having offended his fellow Virginians by his act of emancipation, he had won their esteem and their reverence. He became their chancellor and the most honored judge upon their bench.

Thousands of other Virginians of lesser note than George Wythe did substantially the same thing, though less conspicuously. Under the law after a time they could not set their slaves free without sending them beyond the borders of the state. Many of them found this condition a paralyzing one. They must pay off the hereditary debts of their estates and they must buy in the West little but sufficient farms for their inherited negro slaves to live upon if they would set those slaves free. These things many of them did at

cost of personal impoverishment, while many others, like-minded, found conditions beyond their control. If the whole story of that Virginian effort to be rid of slavery by individual and grandly self-sacrificing effort could be told here or elsewhere, the angels of justice and mercy would rejoice to read the page on which the wonder tale was written. But the heroes who did these deeds of self-sacrifice for principle were mainly obscure men of whose names there remains no record. Only here and there a great name like that of George Wythe appears. Among these is the name of John Randolph of Roanoke,—most insistently cantankerous of Southerners—who left a will freeing all his slaves on grounds of human right. And though that will was defeated of its purpose by a legal technicality, it is immeasurably valuable as a fact in history which reflects the sentiment of that time among those who had inherited and who held slaves and even among those who, like Randolph, are commonly regarded as the special champions of slavery.

And this desire of Southern men to be rid of slavery did not cease until the very end. Very many Southerners whose consciences dominated their lives, deliberately and painstakingly educated their negroes for freedom in the hope and assurance that sooner or later, by one means or by another, freedom would come to them. There were planters not a few who used their authority as the masters of slaves to compel their negroes to cultivate little fields of their own and to put aside the proceeds thereof, as a fund with which to meet the surely coming freedom face to face, with no fear of starvation as a circumstance of embarrassment.

Henry Clay studied law under Virginia's great chancellor, George Wythe. From his distinguished Virginian teacher he learned the lesson that slavery—forced upon an unwilling people in the Southern part of this country by kingly and corporate greed, and still further forced upon those regions by the greed of merchants and shipmasters, even after the traffic that fed it had been prohibited by the Constitution and by the law—was an evil and a curse, a wrong to the black man and a demoralizing influence to the white. He saw clearly that it was the task of all good men to exterminate that evil root and branch, by such means as might be found available, without the destruction of society as a necessary incident or consequence. In the young state of Kentucky Henry Clay began his political career as an advocate of rational and gradual emancipation, and to his dying day—

involved as he was in all the strenuous controversies to which the slavery issue gave rise in national politics—he never lost his interest in this behalf or abated his efforts to secure its accomplishment. A plea for the extermination of slavery was the first plea he ever presented to the people whom he asked to support him for public office. A plea for the extirpation of slavery was well-nigh the last that he ever urged upon the people of his state after all that was possible of honor had been conferred upon him by their approving will.

So enduring was this sentiment at the South that John Letcher, the Democratic war governor of Virginia, the man who set Lee to organize the state's forces for the Confederate war, the man who created the Army of Northern Virginia and made possible all its splendid achievements, was in fact elected governor because of his abolitionist sentiments.

Mr. Letcher was strongly imbued with that conviction which had dominated the best minds of Virginia from colonial days, that slavery was a curse to be got rid of and not at all an institution to be defended upon its merits. He had publicly urged the necessity of getting rid of it. He had explained to his fellow Virginians, in public utterances, its demoralizing influence upon the young white men of that commonwealth. Finally, so eager was he to rid his native state of the incubus that he deliberately proposed the one thing most offensive to the Virginian mind, namely, the division of the "Old Dominion" into two states in order that the western half of it at least might be free from slavery. When he stood as a candidate for governor in the last election before the war, all these facts were used against him to the utmost by the advocates of slavery and they undoubtedly deprived him of many thousands of votes east of the Alleghenies. The first returns indicated the election of his adversary, William L. Goggin, by an overwhelming majority. But when the figures came in from the western part of the state, where slavery scarcely at all survived, John Letcher was elected. Thus the anti-slavery sentiment gave to the foremost state of the Southern Confederacy its singularly earnest and efficient war governor.

But side by side with this anti-slavery sentiment in the South, there grew up a pro-slavery sentiment which was buttressed by every impulse of gain that it is possible for the human mind to conceive.

Near the end of the eighteenth century, Eli Whitney made slavery enormously profitable by his invention of the cotton-gin. Before that time slavery had been of more than doubtful profit to the people of the states that permitted it. It was not at all an economical labor system. It required the master to give to the laborer, in lieu of wages, such food, habitation, clothing, nursing in illness and care in infancy and old age, as no laboring population in the world has ever before or since received in return for its labor. It involved pension as well as payment. It imposed upon the employer obligations such as no employer in all the world, before or since, has been willing to assume.

But Eli Whitney's invention of the cotton-gin made the payment of such wages possible and profitable. It made it possible for a plantation owner to grow rich while feeding, housing, clothing and caring for his negroes as no other employer has fed, housed, clothed and cared for his working people since the foundations of the world were laid.

Eli Whitney's invention made illimitable cotton a substitute for costly and narrowly limited linen and in a great degree for good. It made it possible for every man in all the world to put a shirt on his back, a pair of sheets on his bed, a case on his pillow, and to clothe his wife in calico and his children in cottonade where before all these luxuries were denied to him and his by inexorable laws of economics. But incidentally that invention made slavery enormously profitable, where before it had been doubtfully profitable. Eliza Lucas of South Carolina, afterwards Eliza Pinckney, had sought to find profitable employment for her slaves by cultivating indigo. Other enterprising experimenters had explored other avenues of earning, but not one of them had found a way of making profitable the ownership of slaves until Eli Whitney devised a machine by the use of which any ignorant negro could remove the seed from three thousand pounds of cotton in a single day, where before one negro man or woman could remove the seed from only one pound or at the most a few pounds. From that hour forward, negro slavery became profitable in the South, and from that hour forth it stood as a "vested interest" with its influence as such in politics.

Let us not misunderstand. The cultivation of cotton by free labor has exceeded in its productiveness by more than two to one, that cultivation under the slave system. As has already been set forth in these pages, the greatest cotton crop ever grown before the war with which we here have to

deal amounted only to 4,669,770 bales, while under free labor the annual production rose to an average of more than 11,000,000 bales in the closing years of the century which saw the extinction of slavery.

Yet there is no doubt or possibility of doubt that Eli Whitney's invention of the cotton-gin near the end of the eighteenth century made negro slavery profitable as it had never been before in this country. It enabled the planter to grow rich upon the proceeds of the labor of negro slaves whose industry had before produced scarcely more than enough to support themselves. It created a new era. It inaugurated a new epoch. It instigated a new sentiment in favor of slavery, where before the sentiment had been tending the other way.

In considering human affairs historically it is very necessary to bear in mind that men ordinarily have no opinions. If by "opinions" we mean well considered judgments, founded upon an orderly reasoning from accepted premises, then opinions are the very rarest of human possessions. If we are told that a particular person was born and bred in Spain, we know without further inquiry what his religious convictions are. If we learn that he is a Turk we perfectly know his so-called opinions upon the subject of matrimony. We take for granted the views of the Puritans' sons and daughters concerning religion. We know, without asking, what the "opinions" of any American are with respect to the Declaration of Independence. We know that, with the exception of a very few men, all the people of the South were firmly convinced that the cause of the South in the Confederate war was a just one; that the National Government had no conceivable right to coerce recalcitrant states; that secession was an absolute right of the states, and all the rest of it. On the other hand we know that the Northern boy who had declaimed Webster's reply to Hayne was fully imbued with the conviction that "Liberty and Union" were "now and forever, one and inseparable."

In other words, with here and there an exception, men's opinions are determined by geography, tradition, circumstance, self-interest and the like.

Thus when New England's chief interest was maritime and commercial, Daniel Webster was the most radical of free-traders. He held up to ridicule and contumely Henry Clay's protective "American system" and showed conclusively that nothing in the world could be more utterly un-American.

But a few years later, when New England's interests were centered in manufactures, Daniel Webster's opinions became those of an extreme protectionist. In the same way he opposed a national bank so long as New England disliked that institution and favored it the moment New England desired its continuance. In like manner John C. Calhoun began by clamoring for the tariff protection of Southern industries and developed into the chief apostle of nullification as a means of escaping protective tariffs. Similarly Clay began by making so absolutely conclusive an argument against a national bank that Andrew Jackson afterwards quoted it as the best possible plea he could offer in support of his warfare upon that institution after Clay had become its chief apostle.

Men ordinarily have no opinions except so far as self-interest, geography, and circumstance determine them and in considering matters of history it is of the utmost importance to recognize that truth.

In the last analysis, therefore, Southern opinion was determined in behalf of slavery by the cotton-gin. And yet the greater number of Southern men were not slaveholders and so had no personal interest in the institution. Their opinions were merely a reflection of the sentiment that surrounded them. That sentiment was born of self-interest on the part of a small but dominant class and it drew to itself the sentiment of that much more numerous class—the white man who owned no negroes. Of the white men in the Confederate army, who made so unmatched a fight for Southern independence, not one in five had ever owned a slave or expected to own one.

And there was another influence at work all this while to create a sentiment at the South in favor of slavery as an institution right in itself, where before it had been almost uniformly regarded as an entail of evil. The circumstances of the national life forced this question into politics and made of it an incalculably exasperating issue.

The Nation having acquired the vast Louisiana territory, invitingly fruitful as it was, the question arose "What shall we do with it?" Men from all quarters of the country wanted to go in and "possess the land." Those of them who came from the South very naturally desired to take their negro servants with them into the new territories, and at first they did so without let or hindrance. Even the Indians of Mississippi, Georgia, Tennessee, South

Carolina, and Alabama, when removed, practically by compulsion, to the Indian Territory west of the Mississippi years later were freely permitted to take their negro slaves with them, nobody gainsaying their right. In like manner Southern men emigrating to Missouri took their slaves with them without so much as a question of their right to do so. And when Missouri, in 1819, became sufficiently populous to justify an application for statehood, a majority of the settlers in that region desired that African slavery should be permitted there.

In the meantime, the Northern states, now completely emancipated from slavery within their own borders, had more and more learned to detest the system. There had grown up in the North an intense moral sentiment in antagonism to the further extension of slavery. There had grown up also an intense economic opposition to the system. It was felt that the very existence of slavery in any region tended to degrade free labor and to make of the laborer an inferior person not entitled to respect, a person not quite a slave but still not quite a freeman.

It was, nevertheless, not deemed reputable to advocate the abolition of slavery. The term "Abolitionist" was then, and for a generation afterwards continued to be, the most opprobrious epithet that one man could apply to another.

Nevertheless when Missouri sought admission to the Union as a slave state, the opposition was intense, determined, angry.

Then came Henry Clay with a compromise. Earnestly desiring the extinction of the slave system, it was that statesman's fate to do more than any other man of his era in behalf of the perpetuation and extension of the institution which he regarded as a curse and an incubus. There was one other thing for which he cared far more than he did for the extinction of slavery. In common with Webster and most others of the statesmen of that time he was more deeply concerned for the preservation and perpetuation of the Union than for any other matter that appealed to his mind. His attitude was identical with that of Mr. Lincoln while the war was on, when he declared his sole purpose to be the restoration of the Union and proclaimed his conviction that the question of slavery and all other questions were in his mind subordinate to that.

Clay saw grave danger to the Union in this Missouri controversy. In order to avert that danger, and regardless of everything else, he brought forward his compromise and succeeded in securing its enactment into law.

Under that compromise Missouri was admitted to the Union as a slave state; but it was stipulated that no other slave state should be carved out of territory north of 36° 30′ north latitude, that being the southern boundary line of Missouri.

In practical effect this compromise excluded slavery from all future states to be created out of the vast region embraced in the Louisiana Purchase, except the territory of Arkansas. Louisiana was already a state. Missouri was permitted by the compromise itself to become a state. The Indian Territory was forever set apart for a special purpose and, it was then held, could never become a state. There was no other acre of the Louisiana Purchase lying south of the line fixed by the compromise as the extreme northern limit to which the institution might extend. Texas, New Mexico, Utah, Arizona, California, Nevada, Colorado and the rest were still Mexican possessions which the great Republic had not then the remotest thought of acquiring. On the other hand there were all the vast, fruitful regions now known as Iowa, Kansas, Nebraska, Minnesota, the Dakotas and the states lying to the west of them into which by this agreement slavery might never go, from which it was supposedly as effectually excluded as it had been from Ohio, Indiana, Illinois, Michigan and Wisconsin by that clause which Thomas Jefferson—in his eagerness to make an end of the system—had written into the deed of cession by which the Northwest Territory became a national possession.

Clay fondly believed that this Missouri Compromise of his devising had finally laid to rest the entire controversy with regard to slavery. Thirty odd years later he was still laboring to induce his own state, Kentucky, to adopt a system of gradual emancipation, but in the meanwhile history had written itself in another way and in direct antagonism to his views.

There had grown up at the North an intolerance of slavery which freely expressed itself in denunciation of those who supported or countenanced the institution. There had grown up at the South a sentiment in advocacy of slavery such as did not exist in that region in the earlier years of the Republic. Men whose fathers and grandfathers had diligently sought means

by which to free their native land of a curse, had little by little come to regard that curse as a blessing. Men whose forefathers had regarded slavery as an inherited misfortune, came to regard the institution as right in itself and to defend it as the best, most generous, and most humane labor system in the world. In support of this contention they could point to the factory system of old England, and New England and argue with some truth that nowhere in the world was labor so generously rewarded as at the South.

Moreover, the antagonism to the system which had developed at the North had its very natural reflex effect. The offensive terms in which slave owners were habitually spoken of in Northern prints were well calculated to impel Southern men to the angry and intemperate defense of their system. Still more effective in breeding a "thick and thin" pro-slavery sentiment at the South were the aggressive measures taken at the North for the annoyance of those who held slaves.

The laws for the rendition of fugitive slaves—not at that time so strict as they were afterwards made—were habitually set at naught. There existed a fairly well organized system called "the underground railroad" by which slaves were induced to run away and by means of which their flight was facilitated. All this was dictated by a profound conviction on the part of those who engaged in it that slavery was an institution so utterly wrong that any means by which its hold could be impaired were right in morals, no matter what the law might say.

All this was done in defiance of law, in violation of the statutes and in flagrant disregard of that compact of reciprocity upon which the Union was founded. We are not concerned in the twentieth century to discuss the question of the right or wrong of men's conduct in the first half of the nineteenth. But if we would understand the irritations that bred the war between the North and the South, we must recognize not only all the facts but equally all the refinements by which they were judged in their time.

For a time at least the Missouri Compromise took the sting out of the slavery issue as a cause of controversy between the North and the South. By that compromise the South had given up all claim further to extend its institutions into any part of the vast and immeasurably rich territory included in the Louisiana Purchase, with the single exception of Arkansas. All the region that now constitutes Iowa, Kansas, Nebraska, Minnesota, the

two Dakotas—and all the vast territories west of those states,—were foreordained by that agreement to be erected into free states. South of the dead line established by the agreement there remained the territory of Arkansas and nothing else. Arkansas was admitted to the Union as a slave state in 1836 and in the next year the balance of power in the Senate and the electoral college was restored by the admission of Michigan as a free state. There remained within the limits of our national domain no other acre of territory except in Florida, into which under the terms of the Missouri Compromise the southern emigrant could take his slave property with him, while to the northern emigrant there was opened a possession rivaling the greatest empires of earth in area and in prospective productiveness.

But for twenty-five years the compromise served in a great degree to allay the asperities of the slavery controversy. The anti-slavery sentiment at the North was for the time satisfied with the assurance that with the exceptions of Louisiana, Missouri and Arkansas, all the great domain embraced in the Louisiana Purchase was by that compromise forever devoted to the system of free labor; that perhaps a dozen prospective free states of inestimable wealth and incalculable population were destined in the near future to be added to the Union, while with the exceptions of Florida and Arkansas, no further slave states could be created. The South in its turn was satisfied with the recognition which the compromise gave to slave property as entitled to equal protection in national law at least with other property.

CHAPTER IV

THE ANNEXATION OF TEXAS

If matters had remained as they were, there is little room for doubt that the settlement reached in the Missouri Compromise would have endured for another generation at the least. It is true that, once raised, the issue between free labor and slavery was, as Mr. Seward afterwards said, "an irrepressible conflict." It is morally certain that sooner or later, in one way or in another, it was bound to lead to a decisive struggle either of war or of diplomacy between the North and the South. But we are dealing now with facts and not with probabilities; with events and not with conjectures; and the facts and events strongly suggest that if no new condition had intervened to disturb the settlement made by the Missouri Compromise, that adjustment of the vexed and vexing slavery question would have endured for at least a generation longer than in fact it did.

The new circumstance that intervened was the annexation of Texas. Texas was a vast territory, undefined as to its limits at that time, but covering an area eight or ten times greater than that of the largest state then in the Union. It included the present state of Texas, New Mexico, and a large area besides. It had been a part of Mexico, peopled chiefly by emigrants from the United States under whose inspiration it had revolted and achieved its independence as a republic.

Its desire for annexation to the Union was quite natural and inevitable and but for slavery that desire would have been reciprocated throughout the United States. It was easily foreseen, however, that the annexation of this vast territory, lying as it did south of the line that set the limit to slavery, would open to that institution an opportunity of expansion scarcely less than that opened to free labor by the Missouri Compromise.

The policy of annexation was bitterly opposed on this ground and additionally because of the practical certainty that annexation would involve a war with Mexico.

Years before that time, Henry Clay had severely criticized the administration for having failed to insist upon our right to Texas as a part of the Louisiana Purchase, but now, in his anxiety to keep the slavery question out of politics because of the danger it involved to the Union, he was strongly opposed to the annexation policy.

When, in 1844, it was deemed certain that Clay and Van Buren would be the rival candidates for president, those statesmen, being personal friends, met at Clay's residence at Ashland, and together planned to keep the Texan question out of the coming campaign. Their agreement was that each should publish a letter—at about the same time—opposing the annexation of Texas and the ratification of the treaty, which was then pending, to accomplish that purpose.

The letters were published, but their effect was precisely the reverse of that which was intended. The Whigs nominated Clay by acclamation, but the Democrats of the South took offense at Van Buren's letter and nominated in his stead James K. Polk, an uncompromising advocate of annexation. Thus the painstaking effort that had been made by Clay and Van Buren to eliminate this annexation question from the presidential campaign had for its actual effect the making of that question the paramount issue of the contest.

Thus the slavery question became again dominant in national politics with a greater disturbing force than ever. For the agitation in politics of a question concerning which men's consciences or self-interests are strongly enlisted—and this question involved both—must always and everywhere intensify feeling, arouse passion and consolidate partisan activity.

The result in this case was to intensify the sentiment of hostility to slavery at the North and to break down the sentiment in behalf of emancipation which had previously been strong though decreasing at the South. The agitation of those years continued to the end, and in its course it slowly but surely changed the conditions of the problem. At the North it made anti-slavery endeavor respectable, where before it had been looked upon with frowning as an activity which threatened that Union which was

the chief object of American adoration. At the South, by putting men on the defensive and filling them with a feeling that they were menaced in their homes, it slowly but surely broke down the old conviction that slavery was an evil to be cured and ultimate emancipation a national good to be sought by every safe means that human ingenuity could devise.

At the North it gave birth to a party willing to sacrifice the Union itself, in behalf of the cause of anti-slavery. At the South it gave birth to a new party ready to defend and perpetuate slavery at all hazards and at the cost of a dissolution of the Union if that should become necessary.

In addition to this, as the years went on this new agitation of the slavery question revived with added intensity the old jealousy which the states had felt toward the national power. Of that we shall speak later. Let us first outline the course of events.

Texas was annexed. The Mexican war followed, ending in the additional annexation of an imperial domain including all that we now know as California, Utah, Colorado, Nevada and the neighboring states and territories. The question at once arose, What shall we do with these new lands? A large part of them lay south of the slavery dead line. Should that part be open to slavery? Texas, itself a slave state, was authorized by the terms of the contract of annexation to form itself into four states with eight senators and at least twelve electoral votes which a rapid immigration might increase to twenty or forty within a brief while. Arizona and New Mexico, claimed by Texas as a part of its domain, seemed practically certain to become independent states. California,—even now extending from the latitude of Boston to the latitude of Savannah and reaching inland half as far as from the Atlantic to the Mississippi—had at least one-half its area and the better half, lying south of the Missouri Compromise line. Moreover the terms of the compromise did not forbid the extension of slavery even into the whole of the California country, a region that might easily be carved into ten or a dozen states, for the restrictions of the compromise applied only to territory acquired by the Louisiana Purchase.

Here surely was cause enough for controversy. And a new reason had arisen for intense obstinacy in controversy. Let us consider this a little carefully. The anti-slavery agitation at the North was growing more and more aggressively hostile. In common with the pro-slavery sentiment at the

South it had begun to appeal to the old and dying sentiment of states' rights for the justification of its attitude, thus reviving a controversy between the national sovereignty and the independence of the states, which had been largely allayed by the progress of time.

Northern states refused to make themselves parties to slavery even at command of the Federal Government. They refused to lend their courts and jails and sheriffs to the work of returning to slavery negroes who had run away from bondage at the South. They enacted laws in assertion of their State sovereignty which in effect nullified the laws of the Nation and effectually obstructed their execution. We are writing now of the period from 1845 to 1860, and not of a particular year.

Here was that revival of the old states' rights controversy with the Federal authority, of which mention has been made before.

It was met on the other side by an equally determined assertion of states' rights. There was nowhere any question that every state in the Union—except as forbidden by the cession of the Northwest Territory or by the Missouri Compromise—had full authority to sanction or forbid the institution of slavery within its own borders at its own free will. But there was a party at the North which contended that slavery was a wrong so enormous that it ought to be exterminated by the high hand of Federal force; that the disruption of the Union as an incident to such extermination of the system would be a small price to pay for an end so beneficent. The abolitionists denounced the Constitution itself as "a covenant with hell," because it permitted the several states to decide for themselves whether or not they would permit African slavery within their borders, and because it authorized laws compelling the rendition of fugitive slaves.

On the other hand there was growing up at the South a party that preferred the disruption of the Union to a longer continuance of existing conditions, a party weary of struggling for what it held to be the rights of the states under the Constitution and disposed instead to resort to the ultimate right of withdrawal from the Union which the South claimed then, as New England had claimed it during the war of 1812, as a reserved privilege of the states.

The slavery question had not only entered again into national politics, but had become well-nigh the only question of politics, state and national.

Congress was flooded with daily petitions for the abolition of slavery in the District of Columbia and for the prohibition of the sale of slaves from one state to another. Southern and some Northern members opposed the reception of these petitions and endeavored to secure rules to lay them on the table without debate and without reference to any committee. This policy was stoutly opposed on the ground that it was in derogation of that "right to petition" which in all free lands is held to be inherent in the citizen. Debate ran high on this and like questions, and became intensely acrimonious.

When the peace settlement with Mexico was pending, a bill to authorize the rectification of boundaries by the purchase of a large territory from Mexico was presented in Congress. Mr. Wilmot of Pennsylvania, in 1846, moved as an amendment a proviso—known in history as "The Wilmot Proviso"—stipulating that slavery should never be permitted in any of the territory to be thus acquired.

This additionally intensified the controversy, and while the Wilmot Proviso, though adopted by the House of Representatives, was rejected by the Senate and never became law, its suggestion and the House's adoption of it were accepted by the South as an additional evidence of the uncompromising hostility of the anti-slavery party, and of a determination at the North to use the Federal power for the limitation, the restriction and the ultimate extermination of slavery.

In the meantime a sentiment against abolitionism had grown up at the North which was implacably intolerant of opinion. Owen Lovejoy was put to death by an Illinois mob for his offense in publishing an aggressively abolitionist newspaper. Other men suffered persecution upon similar account. Newspaper offices were wrecked and their proprietors sorely dealt with by mobs in states which by their organic law forbade slavery and the people of which had no interest in the institution. They regarded all abolitionist movements as agitations seriously threatening the Union and recklessly risking the public peace. They were ready to resort to mob violence by way of repressing activities which they regarded as destructive of public order and seriously menacing to the Union, which had come to be an object of adoration to the great majority of Americans.

Thus the controversy involved violence and lawlessness at the North even more than at the South.

Again the anti-slavery propagandists at the North were men of shrewd intelligence as well as men of profound convictions as to the absolute righteousness of their cause. They believed without doubt or question that anything which might help to destroy slavery was right. To that end they were ready to violate law, to commit acts which the law—improperly as they thought—denounced as criminal, and even to destroy the American Republic if by that means they could extirpate the system of human bondage. They were devotees of a cause that admitted of no compromise or qualification. They were crusaders at war who regarded all means as righteous that might lead to what they believed to be a righteous end. This is not the place in which to question the correctness of their belief or to criticize their conduct. Our concern is merely to record the facts and trace the consequences of them.

The mails offered an easy and convenient means by which these propagandists could address themselves to other minds than their own, or those in known sympathy with them. Accordingly they freely used the mails as a means of impressing their anti-slavery convictions upon black men or white at the South.

To them the literature which they sought thus to circulate in the South was nothing more than an appeal to reason and the sense of right. But to the Southerner, whose family was at the mercy of a multitude of slaves, it seemed a very different thing and one immeasurably more menacing. To him it seemed an incitement to servile insurrection in a region where such an insurrection could not fail to result in unspeakable horrors and calamities.

It is a fact imperfectly understood outside of the South that the average negro there was not at all such as the planter usually carried about with him in the capacity of body servant to himself or maid to his wife or daughter; not at all the "intelligent contraband" so dear to the newsgatherers of the war time; not at all a Booker T. Washington or a Frederick Douglass, or a Blanche K. Bruce or a Montgomery, but a hopelessly ignorant, passion-impregnated, half-savage, held to good behavior only by fear of the white man's superior power. On the coast of South Carolina and in other regions

the negro was in many cases even a whole savage—recently imported, clad in breech clout and ebonized nakedness and unable to speak or understand any language except the Congo gibberish to which he had been born.

Of course literature made no direct appeal to creatures of such sort. But there were many educated or at least literate negroes at the South—some of them slaves and some of them "free men of color" as the law phrase at that time ran. If incited thereto, these intelligent blacks might very easily have organized the physical force of the multitude of more ignorant negroes for an insurrection which would have involved the wholesale slaughter of white women and children and a servile war more horrible in its incidents and consequences than any that the world has known since time itself began.

It was altogether natural that the anti-slavery agitators who had made up their minds to destroy slavery at all hazards and at all costs and who held all other considerations to be but as dust in the balance in comparison with that one supreme desire of their souls, should seek by means of the mails to propagate their ideas in the South and among the slaves themselves. But it was equally natural that the white men of the South, whose wives and children as well as themselves and their property were menaced by such a possibility, should seek to avert it by any means within their grasp. Their impulse was dictated by the primal human instinct of self-preservation—an instinct that listens to no argument and stops at no act which may be necessary to avert the impending danger.

These people saw their hearthstones menaced by this use of the mails. They saw in the mails a certain socialistic use of the people's power for a common purpose. They paid taxes for the maintenance of those mails, and they could not see why a mail system which represented and was supported by all the people of all the states should be used for the destruction and desecration of the homes of a part of those people—for the instigation of a servile revolt which could not fail to result in horrors so unspeakable that we may not even suggest them, except vaguely, in this place.

Since that time it has become a commonplace of law to forbid the use of the mails to those who would use them for any purpose inimical to the public welfare; but at that time this thought had gained no place in postal administration, and the desire of the Southerners to purge the mails of incendiary literature which threatened to create a servile insurrection with

all its necessarily horrible accompaniments, was put aside as an effort to "tamper with the mail." Contrary to all modern conceptions as to the mails it was held that they were sacred alike to good and to evil purposes and that any matter deposited in them must be delivered to the person to whom it was addressed in utter disregard of any question of public polity and in absolute indifference to the use which the person addressed might be disposed to make of the printed or written matter sent to him.

In our time, where the post office refuses even to rent a box to any man who cannot demonstrate to the postmaster his need of it for legitimate business purposes, and when the delivery of men's mail is deliberately and quite unquestioningly stopped by the postal authorities upon the mere suspicion that their business may be in some way detrimental to the public welfare, we find it difficult to understand why the Southern objection to the distribution of dangerously incendiary matter through the mails—matter which threatened those American citizens with massacre for themselves and something immeasurably worse than massacre for their womankind—should not have received respectful attention.

In the light of our modern postal practice it is difficult to understand the anger and resentment with which the demand of the Southerners was received for the exclusion from the mails of matter the circulation of which threatened themselves, their homes and their families with calamities too horrible to be contemplated with complacency.

But it must be remembered that on the other hand the extirpation of slavery was confidently believed to be an end so righteous as to justify any means that might be employed for its accomplishment; that the holding of men in bondage, whether willingly or unwillingly, whether by virtue of an inheritance that carried other and controlling obligations with it, or by the speculative purchase of men's labor, was a crime deserving of any calamity that might fall upon those who participated in it in the process of its extinction.

In other words there was intolerance on both sides; misunderstanding on both; an utter failure on each side to grasp the considerations that controlled the acts of men on the other side; a fanatical dogmatism on the one side and upon the other that was open to no argument, no consideration of fact or circumstance, no reasoning of any kind.

Thus came about the "irrepressible conflict." These were the influences that created it and forced it to an issue of politics. How it resulted in the most stupendous war of modern times must be related in other chapters.



CHAPTER V

THE COMPROMISE OF 1850

The Mexican war and the subsequent negotiations added a vast territory to the national domain. Much of it lay south of the Missouri Compromise line, and into that part of it at least the advocates of slavery confidently expected to extend their labor system.

The introduction of the Wilmot Proviso and its passage by the House did not indeed result in the exclusion of slavery from those territories, for the reason that the proviso, failing in the Senate, did not become law.

But it alarmed the South. By the Southerners of the more radical pro-slavery school it was accepted as a notice to quit; a notification that so far as Northern anti-slavery sentiment could control the matter, there was to be no further addition of a single acre to the slave territory of the Union; that so far as that sentiment could influence national politics, the power of the Federal Government was thenceforth and forever to be exercised to prevent the extension of slavery into any new territory acquired or to be acquired by the Union north or south of the Missouri Compromise line, and in the end to abolish the system altogether.

Let us clearly understand this situation. The Wilmot Proviso and all the attempted legislation, by which it was sought to confine slavery within the boundaries prescribed for it by existing conditions, seemed to the opponents of slavery merely a legitimate effort to emphasize the fact that free labor was national, while slavery was a permitted evil within prescribed limits permitted solely because within those limits the national power was not authorized to exert itself for the extermination of the system. On the other hand, all these things seemed to the Southern mind to be an utterly unjust discrimination against a part of the people. The territories involved in the

controversy had become national possessions, they contended, largely through the activities of Southern men and Southern statesmanship. It was felt to be a grievous wrong that Southern men should be forbidden to emigrate to those territories on equal terms with other citizens of the Union or that thus emigrating they should be forbidden to take with them their slave property, which represented in part their industrial system but in far greater part their domestic life.

The very proposal thus to exclude them from an equal participation in the opportunities and the privileges opened to other citizens of the Republic by the acquisition of these new territories seemed to them a threat, a notification that henceforth they were to be treated not as citizens of the Union entitled to the same protection and the same privileges that were extended to other citizens, but as inferior and offending persons, persons graciously permitted to exist, but persons to be excluded, because of their offenses, from an equal participation in the conquests and land purchases of the Nation and from the enjoyment of a share of the benefits resulting from the addition of a great and immeasurably rich territory to the national domain.

It is true that the proposal of their exclusion had failed to become law. But it had failed by a margin so narrow that its success might easily be anticipated as an event of the near future. It is true that neither the Wilmot Proviso nor any other legislation suggested at that time sought to forbid Southerners to migrate into the new territories. But it was proposed that they should be forbidden by law to take with them into those territories the slaves upon whose services they relied not only for agricultural work, but even more for that domestic service to which they had been accustomed all their lives to look for comfort. To tell them that they might remove their households into the new territories, but at the same time to say to them that they must leave behind all that had before contributed to their prosperity and to the comfort of their domestic arrangements, seemed to them something worse than a mockery.

Out of the agitation of these questions arose very important events.

The old sentiment at the South in favor of a gradual emancipation of the slaves, though it survived in some degree to the end, gave place, in large

measure, to a new sentiment in behalf of slavery as a thing right in itself, a sentiment born of the instinct of self-preservation.

The manifest disposition to exclude slavery from the newly acquired Southern possessions prompted the men of the South to question the Missouri Compromise itself. The spirit of that compromise had been that slave property might be taken into territories south of 36° 30' north latitude, with the assurance that such territories might become slave states, in return for the stipulation of the South that all territory lying north of that line should be forever exempted from slavery. When the new territory was acquired from Mexico, a large part of it lying south of that line, it was naturally expected that in those regions the people of the slave states were to find an outlet for emigration as freely as those of the Northern states found a like outlet north of that line. When a determined effort was made, with every prospect of success, to deny even this to them, they began seriously to question a compromise by which they had surrendered so much and seemed now destined to gain so little. They had secured Arkansas and Missouri as outlets for their superfluous, discontented, unfortunate or specially enterprising population; they had surrendered all claim to an equal opportunity in Iowa, Kansas, Nebraska, Minnesota, the Dakotas and all the rest of the rich regions embraced in the Louisiana Purchase. Obviously, it seemed to them, they had made a bad bargain, and now that they were threatened with a denial of their share in the benefits of it, so far as the territory acquired from Mexico was concerned, they were disposed to repent them of it or at the very least to question the extent to which its terms were binding on themselves.

The compromise, they reflected, was merely a matter of statutory law. It had no constitutional obligation back of it. It had been enacted by one congress. It could be repealed by another. In answer to the threat to disregard its spirit in dealing with the new territories, the Southerners made the counter-threat to repeal the compromise itself. It was all very natural, very human, but to the Republic it was very dangerous.

The lands that lay north of the dead line were still territories and still for the most part unoccupied. Nothing more binding than an easily repealable statute forbade Southerners to migrate into those territories with their negroes and in due time, by out-voting Northern immigrants, to make slave states of them. The essence of the compromise they held to be, that in

return for the prohibition of slavery north of 36° 30′ north latitude, slavery should be freely permitted in all regions lying south of that line if the people settling there should so decide. If the contract was to be repudiated on the one hand, why, they asked, should it not be equally repudiated on the other? If the Missouri Compromise was to carry with it none of the benefits it conferred on the South why should it be held binding upon the South for the benefit of the North?

This seems to have been the thought and attitude of the South at that time, and it soon found expression in legislation and in attempted legislation.

The discovery of gold in California quickly resulted in such a peopling of that region as made its admission to the Union as a state a necessity. The settlers there were mainly from the North and they naturally had no desire to make a slave state out of the territory. Without waiting for an enabling act they adopted a constitution in 1849 and knocked at the doors of the Union for admission as a free state.

Instantly the South took alarm. Quite half of California lay south of 36° 30′ north latitude. Apart from its gold, the region promised harvests of grain and fruit of incalculably greater value even than all the output of all its mines. There was nothing in the Missouri Compromise or in any other legislation to forbid the whole of California to become a slave state. There was only the decision of the people in that part of the country that they wanted the state to be free and that decision was not by any means unanimous. On the contrary it was believed to be at least possible that if the territory were divided into two substantially equal parts the southern half of it would elect to become a slave state.

This added enormously to the acrimony of the slavery controversy. There had from the beginning been accepted in the country a half formulated theory of the necessity of maintaining a "balance of power" between the opposing systems of slavery and free labor so far at least as the Senate, representing the states as such without regard to population, was concerned. From the beginning slave and free states had been admitted to the Union in effect in couples. Thus Vermont, admitted in 1791, was balanced by Kentucky, admitted in 1792. Tennessee came in in 1796 with no free state comrade till 1803, when Ohio was admitted. Louisiana,

admitted in 1812, was offset by Indiana which became a state in 1816. Mississippi was admitted in 1817 and Illinois in the following year. Alabama, admitted in 1819, was balanced by Maine in 1820. Missouri came in in 1821 by a compromise that more than offset the omission to create a corresponding and compensatory free state. But when Arkansas was admitted in 1836, Michigan was thrown into the other scale in 1837. Florida and Texas, annexed in 1845, were balanced by Iowa in 1846 and Wisconsin in 1848. But for California as a free state there was no peopled region that could be carved into a compensatory slave state and for that reason, as well as because of the rise of the anti-slavery agitation to fever heat, the controversy about 1850 took on an angrier tone than ever, and one more seriously threatening to the Union.

The people of the country at that time might justly have been divided into three classes, viz:

1. Those extreme opponents of slavery who were ready and eager to sacrifice the Union itself and the Constitution to the accomplishment of their emancipating purpose;
2. Those extreme pro-slavery men who were equally ready to wreck the Union in order to perpetuate and extend the system of slave labor;
3. Those intense lovers of the Union, North and South, who were ready to put aside and sacrifice their convictions for or against slavery in order to save the Nation from disruption with all its horrible consequences of civil war.

This last class was at that time a dominant majority and for long afterwards it exercised a controlling and restraining influence over all the rest. It included men at the South who earnestly desired the extinction of slavery, and other men at the South who were sincerely convinced that the slave system was absolutely necessary to the cultivation of Southern fields and that its perpetuation was justified by the incurable inferiority of the black race, and the hopeless incapacity of the negro for freedom and self-government. At the North the class of those who cared more for the perpetuity of the Union than for either the extinction or the perpetuation of slavery included men of every shade of belief as regarded slavery itself, except the extreme opponents of the system. It included such men as Abraham Lincoln who, even after the war was on, persisted in holding to

his heart as his supreme desire the perpetuity of the Union in order, as he splendidly phrased it in his Gettysburg speech, that "Government of the people by the people and for the people might not perish from the earth."

It was a magnificent conflict of human forces. Incidentally it brought into play passion, prejudice, malice, groveling self-interest and brutal disregard of others' rights and feelings. But in large part it was dominated, on the one side and upon the other, by a love of liberty, an instinct of justice and an exalted patriotism that did honor to those who were so inspired.

All these sentiments and aspirations were variously directed, giving rise sometimes to contradictory courses of action. But he who would understand and interpret the events of that time must fully conceive the fact that the inspiring impulses of the great majority were essentially and fundamentally the same on both sides, however variously they may have been interpreted into conduct. Only thus shall we understand how it was that men on opposite sides of a geographical line, men equally loving liberty and equally holding in reverence the traditions of the American Union, fell a-fighting in 1861 and for four years waged the bloodiest and most devastating war of which modern history anywhere makes record.

The controversy with respect to California and the territories was only a part of the disturbing influences of the middle of the nineteenth century.

The Constitution of the United States, in Section 3 of Article IV, distinctly imposed upon the states and upon the people thereof the duty of returning to their masters all fugitive slaves who might escape from one state to another. That provision of the Constitution was resented, even to the point of violence by the antagonists of slavery; it was insisted upon by the advocates of slavery—in the North as well as in the South—to the borderland of crime. It was defeated of its purpose, not only by the acts of individuals banded together with express intent to nullify it in practice, but still more by laws enacted in many states at the North to facilitate its nullifications. The law officers of many states either refused to exercise their authority for the enforcement of this law or going further, employed their authority to prevent its enforcement.

Let us frankly recognize the fact that these men were in effect disunionists, and the further fact that they were such upon conscientious conviction. All this was done in full faith that it was right and in response to

the requirements of conscience. But it was done in flagrant violation of the constitutional compact. We may sympathize with the impulses of the sheriff or other officer who refused to aid in the return of an escaping negro to slavery, and still more easily we may sympathize with those unofficial persons who fed and housed and expedited escaping slaves, in their refusal to aid a system of human bondage of which they were conscientiously intolerant, but on the other hand we may not justly blink the fact that all this was in disobedience of the fundamental law of the land, in violation of that compact on which alone the Union rested, and in derogation of property rights which the compact of union pledged all the states to enforce and all the people to respect.

The whole trouble lay in the fact that there was an "irrepressible conflict" between the ideas that were dominant North and South and that laws and constitutions, and compacts, and agreements were powerless to enforce themselves or to get themselves enforced in opposition to intense conviction and strongly felt sentiment.

The feeling on both sides ran high and was intensely intolerant. It was heedless of reason or argument. It scoffed at compacts and agreements. It made of legal obligations a mockery and of constitutional requirements a laughing stock.

It entered also into every relation of life and mischievously disturbed every such relation. It divided families. It disrupted churches, producing divisions in them, some of which—most of which indeed—have not been healed even in our present time when the war and slavery and all things pertaining to them are matters of history.

Along the line of the Ohio river, where one brother had gone across the narrow stream to Indiana in search of fortune while another had remained behind in Kentucky, the specter of this implacable controversy wrought an estrangement that was at once cruel and unnatural. Skiffs lined the opposing shores. Intercourse was easy and the waterway between was of trifling width; but the skiffs were not used, and the intervening waterway was left uncrossed, because between those who dwelt upon the one side of the stream and those who lived upon the other there arose the black shadow of the irrepressible conflict. They were friends and near relatives. Their homes confronted each other with only a placid stream between. Their shores were

far less than a mile apart, and their old loves for each other were uncooled, so far as they realized. But they gradually ceased to visit each other. Those courtships and marriages which had been the frequent occasions of rejoicing among them became of the very rarest occurrence and finally ceased to occur at all. And all this in spite of the fact that in northern Kentucky slavery was scarcely more than a name while the people on the other side of the river had, for the major part, been emigrants from Kentucky, accustomed in their childhood to such mild mannered slavery as still survived beyond the stream.

Here was the line of cleavage. Here was the barrier between men's minds and hearts and lives. On the one side slavery was permitted and, in self-preservation chiefly, was defended. On the other side there were softening memories of slavery as an institution that had surrounded the childhood of those concerned with the loving care and the affectionate coddling of negro mammies and negro uncles. But the issue between slavery and antagonism to it had become so sharply accentuated that even family affection and memories of childhood and the influences of near neighborhood and the ties of close kinship could not break down the barrier.

Still further, there had begun to grow up at the North a political party whose sole bond of union was antipathy to slavery. It was not at all respectable, for even yet it was not deemed respectable in many parts of the North to be an Abolitionist, and this was distinctly an Abolitionist party. Its sole reason for being was its purpose to abolish slavery in the United States. It was still a feeble party, so far as the number of votes it could command was concerned, but it was prepared to ally itself with any others whose purposes might tend even in the smallest degree in the direction in which it wished the Republic to go. It was ready to join in any effort that might help toward the extirpation of slavery, but its avowed purpose was not to assail slavery where that institution legally existed, but to prevent its extension to any new lands.

In that purpose many thousands sympathized who would scornfully have resented the imputation that they were Abolitionists.

This new "Free-soil" party had no less a personage than Ex-president Martin Van Buren as its candidate for the presidency in 1848 and while its following and its poll of votes were small its menace seemed to men of the

South very great, a seeming that was destined to be confirmed ere long. In 1840 the Anti-slavery candidate, Birney, had received only 7,059 votes in the whole country, scarcely enough to be recorded in the election returns. In 1844 the same candidate received 62,300 votes—a great increase, but still not enough to be reckoned seriously. In 1848 Martin Van Buren, as the candidate of this Free-soil party, received 291,263 votes, thus greatly more than quadrupling the highest directly Anti-slavery vote previously polled. In 1856 the Free-soil party under the name of the Republican party, was in effect the only serious antagonist of the Democracy, the only party that seriously disputed with it the control of the National Government. In that election the new party polled 1,341,264 votes, against 1,838,169 for the Democratic candidate. It carried no less than 114 electoral votes out of a total of 296, its successful antagonist carrying 174.

All this occurred after the time which we are now considering, but the facts are presented here because their coming was anticipated in 1850 and because they serve to illustrate the rapidity with which the "irrepressible conflict" grew in intensity and fervor.

In 1850 the country was on the verge of a revolution.

The Southerners were exasperated to the point of armed revolt by the proposal to deny to them what they deemed their fair participation in the fruits of the Mexican War; by the increasingly active antagonism of the North; by the aggressive opposition there to the enforcement of property rights in fugitive slaves; by the condemnatory tone of the Northern press, pulpit and platform; by the insistent use of the mails for the circulation of literature which the South deemed dangerously incendiary; by the continual inflow of petitions to Congress for the abolition of slavery in the District of Columbia; and by a score of other annoyances which were ceaseless in their aggression.

The feeling grew in the South that there was no longer any place in the Union for those states that permitted slavery; that there was no longer any tolerance for their people; that a war upon them had begun which would stop at nothing short of the forcible abolition of their institutions, with all of chaos and insurrection and servile revolt which they believed to be the necessary sequences of such abolition.

They were affronted, offended and alarmed. States' rights had been freely invoked against them as a means of evading and defeating such laws as then existed for the rendition of fugitive slaves. They, in their turn, looked to states' rights as perhaps affording to them a way of escape from their difficulties and tribulations.

"If the Union can no longer protect us," they asked themselves, "why should we remain parties to that compact? If we are to have no share in its benefits or even in its territorial conquests and purchases, why should we go on bearing our share of its burdens and obligations? If it cannot or will not fulfil those duties which it has assumed towards us, why should we not repudiate those obligations which we have assumed in return for its pledges of protection? If we cannot be members of the Union upon equal terms with other members of the Union, why should we continue to be members of the Union at all?"

There was nowhere in the South the slightest doubt of the right of any state in the Union to withdraw from the compact and resume those attributes of sovereignty which, in creating the Federal Government, the several states had delegated to it. Indeed up to that time there had been scarcely any doubt anywhere, North or South, of the existence of this right of the states, as a right reserved in the formation of the Federal Union.

Accordingly there grew up in the South a distinctly "disunion" party, a party which favored the withdrawal of the slave states from a confederacy which, they contended, had failed to render them the protection or secure to them the equality of rights and privileges which it had been instituted to render and secure.

This impulse of withdrawal was very strong, but like the radical impulse of disunion at the North for the sake of abolition at all costs or hazards, it was for a long time overborne by the dominant sentiment of devotion to the Union and loyalty to the traditions of the Republic. The majority at the South were unwilling to give up the memory of Bunker Hill, Lexington, Concord, Saratoga and Trenton, as a national heritage of glory and likewise the majority at the North were reluctant to forget the victories of Marion and Sumter, or to relinquish the glorious memory of Yorktown.

Thus in 1850 there was a party at the North eager to sacrifice everything, including the Republic itself with all its traditions, in order to

secure the extinction of slavery; and there was also a similarly radical party at the South ready and willing to destroy the Union in order to be rid of what it regarded as the unreasonable and intemperate hostility to the South within the Union.

Both these radical parties were in an apparently hopeless minority each in its own section, but each manifested a tendency to growth which boded ill for the future. Nevertheless the overwhelming majority of men on the one side and upon the other intensely detested and bitterly resented every suggestion to sacrifice the Union for any imaginable cause or upon any conceivable occasion.

It was to this great majority, North and South, that Henry Clay at that critical time appealed. The dominant passion of that statesman's soul was his love of the Union and his desire that it might endure during all time. To that one god of his adoration he had made sacrifices from the beginning. In its behalf he had put aside his lifelong desire for the gradual emancipation of the slaves. In its behalf he had sacrificed the supreme ambition of his life—the ambition to be president. In behalf of the Union he had made himself *anathema maranatha*—at the North as a slaveholder and at the South as an abolitionist. He was in fact both at once. He held slaves under a system of which he could not rid himself without arming them, in Jefferson's phrase, "with freedom and a dagger." He wanted them emancipated and was ready to make sacrifice in that behalf, but on the other hand he desired beyond all other things the preservation of that Union, to the perpetuity of which his whole life had been devoted, and to the perpetuity of which he looked for the enduring memory of whatever was worthy of remembrance in American history.

In an extraordinary degree Clay rose above the passions of the hour, as did Webster and certain other statesmen of that time,—though certain other statesmen of the time did not.

He saw the situation clearly. The Union had been formed in candid recognition of the fact that slavery existed in full force and effect in certain of the states, while in certain other states, chiefly by reason of its unprofitableness, it was slowly passing away at the time of the Constitution's framing. He perfectly understood that the Constitution was a compact between states that could ratify or reject it at will, and that but for

concessions made on the one side and on the other, the Constitution could never have become the fundamental law of the Republic. He clearly understood that the dealings of the Constitution with this question of slavery constituted a compromise to which the moral sentiments and the material interests of both sides were parties.

But as has been explained, there had grown up at the North and at the South two parties of extremists who cared little or nothing for the Union and everything for their opposing purposes: the Northern party for the abolition of slavery at all costs, even at cost of the destruction of the Union itself; and the Southern party organized for the perpetuation and extension of slavery regardless of everything else, regardless of the Union and of all that it signified of human liberty and of the practical realization of the doctrine of self-government among men.

Neither party represented the people in whose behalf it professed to speak. The abolitionists, whose petition for the dissolution of the Union we shall hereafter present, certainly did not represent the thought or desire of the great majority of the Northern people. In the same way the Southern disunionists who sought the disruption of the Union in order that slavery might "have free course to run and be glorified," did not represent the great body of Southern citizens, many of whom deprecated slavery and longed for its extinction by some safe process of gradual emancipation. But in both cases the extremists were accepted on the opposing side as representatives of the general thought; the extravagant opinions and demands of fanatical persons on the one side or the other were interpreted as the settled convictions of the great body of the people on the side thus misrepresented to its hurt.

Among the extremists on both sides the disruption of the Union was jauntily contemplated as a ready remedy for ills complained of.

As early as 1844 the Legislature of Massachusetts had resolved "That the project of the annexation of Texas, unless arrested on the threshold, *may tend to drive these states into a dissolution of the Union.*" Again, in 1845, the Legislature of Massachusetts passed and the governor of that state approved, a resolution asserting a right of nullification and declaring that the admission of Texas as a state in the Union "would have no binding force whatever on the people of Massachusetts." That resolution could mean

nothing less than that Massachusetts would withdraw from the Union in the event of the admission of Texas, for otherwise laws enacted by virtue of the vote of Texas senators must have "binding force" upon the people of Massachusetts as upon those of all the other states.

There were other resolutions of similar purport adopted by the Legislature of Massachusetts that it is not necessary to set forth in a history which is not an indictment but merely an expository setting forth of facts by way of accounting for events.

On both sides disunion was constantly and freely threatened if either side could not have its way. A convention of Southerners held at Nashville, Tennessee, distinctly recommended the secession of the South and called for a Southern congress to consider and adopt that policy. About the same time Mr. Hale of New Hampshire introduced in the Senate (Feb. 1, 1850) a petition deliberately calling upon the national legislative body to adopt measures for the dissolution of the Union.

The petitioners were citizens of Pennsylvania and Delaware, but they constituted only a small fraction of the people of those states and unquestionably their proposal, if put to a vote in Pennsylvania and Delaware, would have been buried under a mountainous majority of adverse ballots. Yet the petitioners deliberately assumed to be and to speak for "the inhabitants" of those states, and their petition was undoubtedly accepted at the South as representing popular opinion in the region whence it came, if not indeed in the entire North. It was the mischief of such things that, while they were the work of a fanatical few, they managed to pass themselves off as utterances representative of public sentiment in the quarter from which they emanated.

The petition was as follows:

We, the undersigned, inhabitants of Pennsylvania and Delaware, believing that the Federal Constitution, in pledging the strength of the whole nation to support slavery, violates the Divine Law, makes war upon human rights, and is grossly inconsistent with republican principles; that its attempt to unite freedom and slavery in our body politic has brought upon the country great and manifold evils, and has fully proved that no such union can exist but by the

sacrifice of freedom and the supremacy of slavery, respectfully ask you to *devise and propose, without delay, some plan for the immediate, peaceful dissolution of the American Union.*

Daniel Webster fitly exposed the character and significance of this petition by moving that it be prefaced with a preamble as follows:

Whereas, at the commencement of the session, you and each of you took your solemn oaths, in the presence of God and on the Holy Evangelists, that you would support the Constitution of the United States; now, therefore, we pray you to take immediate steps to break up the Union, and overthrow the Constitution of the United States as soon as you can.

So repulsive was this proposal of disunion that only three senators voted even to receive the petition embodying it and in the House a like refusal was made. But those three senators were Mr. Seward, of New York, Mr. Chase of Ohio, and Mr. Hale of New Hampshire—three great leaders of Northern thought who were destined soon to become three men of dominant influence in the new party of Free-soil and leaders in antagonism to the Southern claim to a share in the new territories.

There might have been a score of other votes for the petition which would have had far less significance. The votes of these three senators meant clearly that the Free-soil party looked upon disunion just as the extreme pro-slavery men of the South did, as a legitimate and always available remedy for existing ills or a prophylactic against evils anticipated.

As early as 1847 Mr. Calhoun had set forth the Southern contention with regard to the territories in a series of carefully worded resolutions which read as follows:

Resolved, that the territories of the United States belong to the several States composing this Union, and are held by them as their joint and common property.

Resolved, that Congress, as the joint agent and representative of the States of this Union, has no right to make any law, or do any act

whatever, that shall directly, or by its effects, make any discrimination between the States of this Union, by which any of them shall be deprived of its full and equal right in any territory of the United States, acquired or to be acquired.

Resolved, that the enactment of any law which should, directly or by its effects, deprive the citizens of any of the States of this Union from emigrating, with their property, into any of the territories of the United States, would make such discrimination, and would, therefore, be a violation of the Constitution and the rights of the States from which such citizens emigrated, and in derogation of that perfect equality which belongs to them as members of this Union, and would tend directly to subvert the Union itself.

Resolved, that it is a fundamental principle of our political creed, that a people, in forming a Constitution, have the unconditional right to form and adopt the government which they may think best calculated to secure their liberty, prosperity, and happiness; and that, in conformity thereto, no other condition is imposed by the Federal Constitution on a State, in order to be admitted into this Union, except that its constitution shall be republican; and that the imposition of any other by Congress would be not only in violation of the Constitution, but in direct conflict with the principle on which our political system rests.

Here we have from the South a threat of disunion, a trifle more disguised, perhaps, than the threats that had come from the North, but not less positive. The resolutions were intended especially to cover the new territories which the country was then acquiring from Mexico by conquest and treaty, but they covered with equal effect all of that territory which had been added to the Union by the Louisiana Purchase, and the greater part of which had been set apart by the Missouri Compromise to be formed into free states. They were a challenge to the Missouri Compromise, and the assertion of a doctrine which afterwards greatly vexed the country and contributed in an important way to the bringing about of war. They constituted a plea for that repeal of the Missouri Compromise which was to come a very few years later.

This was the condition of things which Congress had to confront on its assembling in December, 1849. Disunion was everywhere in the air and on each side there was a party openly advocating it as the only remedy for existing and threatened ills. Both in the North and the South this party of disunion was in a hopeless minority, but by reason of its ceaseless and aggressive activity it had managed to make itself seem the authorized exponent of public opinion for each side.

The questions before the country were many, but they all related, directly or indirectly, to slavery. Should California be admitted to the Union as a free state? If so with what boundaries? for California then included Utah, Nevada and adjacent territory. Or should California, limited to the present boundaries of that state, be divided into two commonwealths, so that the Southern half might come in as a slave state to offset the Northern half in the Senate and the electoral college? Texas had already been admitted as a slave state, but its boundaries were still vague and undefined. It claimed jurisdiction over all that we now know as New Mexico and Arizona. Should that vast region—the sterility of which was at that time wholly unappreciated—be added to the domain of slavery, or should it be set apart in the hope that it might be erected presently into two or three or possibly half a dozen free states?

There were also two complaints of arrogant aggression from the opposing sides. At the North there was complaint that the "slave power," as it was called, sought and threatened to make itself dominant and supreme in the Union by its demands for the rendition of fugitive slaves. At the South there was complaint that the homes and firesides of the Southern people were menaced with servile insurrection by the activities of those who sought to breed discontent among the negroes and spread among them sentiments dangerous to public peace and order. There was complaint at the North that the constitutional and statutory provisions for the rendition of fugitive slaves exacted of Northern people an obligation which many of them could not conscientiously fulfil, making them unwilling parties to a system which their consciences abhorred, or, if they refused obedience, condemning them to the condition of lawbreakers and denouncing them as criminals because of their refusal to do that against which their very souls revolted. On the other hand the people of the South complained that their Northern brethren, or many of them, not only assisted runaway slaves to

escape but deliberately incited them to that course and that the constitutional compact upon that subject was not enforced by any adequate statutory law.

On both sides discontent was rampant and threatening. On both sides dissatisfaction had begun to look to the dissolution of the Republic as the readiest remedy available.

There were statesmen like Senator Benton who laughed to scorn the idea that any considerable part of the people could ever seriously contemplate an assault upon the integrity of the Federal Union, but that the Union was truly and very gravely in danger subsequent events conclusively demonstrated.

It was to save the Union from disruption at the hands of Northern or Southern fanatics—all of whom were threatening that disaster—that Clay framed, Webster supported, Congress adopted, and the President approved the compromise measures of 1850.

Those measures covered substantially all the points in controversy. The bills were five in number.

The first provided for the separation of New Mexico from Texas, with compensation to Texas, and for the admission of that territory to the Union as a state when it should become populous enough, with or without slavery as its own people should at such time determine.

The second set off Utah from California and provided in a precisely similar manner for its ultimate admission to the Union as a state.

Neither of these two measures ever resulted in anything practical. Even unto this day New Mexico has remained too sparsely populated for statehood and Utah was not admitted to the Union until long after the Constitution of the United States had been so amended as to prohibit slavery in any part of the Republic.

The third of Clay's compromise bills provided for the admission of California to the Union as a state under the Constitution which it had adopted, which made no provision for the existence of slavery within its borders.

The fourth of the bills was a new and more strenuous fugitive slave law than any that had ever before existed. It was intended to carry out the provision of the Constitution of the United States on that subject and it was supposed to be offset to Northern sentiment by the fifth of the compromise measures which forbade the slave trade within the strictly national domain of the District of Columbia.

It had long been a grievance to Northern minds that this peculiarly national territory, governed as it was exclusively by a Congress representative of all the states in the Senate and of all their people in the House, and wholly without any expression of the will of its inhabitants, was made a slave mart, into which the slave-trader from Maryland or Virginia could take his chattels for sale on the auction block to other slave-traders who were there to buy speculatively that they might sell again to the owners of cotton and rice fields at the South.

In the North and South there had always been a radical distinction in men's minds and consciences, between slavery and the slave-trade; between the holding of men in hereditary bondage under a system essentially patriarchal and kindly, and the deliberate traffic in human beings for purposes of speculative profit.

There were two distinct questions with respect to slavery in the District of Columbia. To have abolished the institution there root and branch, as multitudes of petitioners prayed, would have been to menace the two states, Virginia and Maryland, which had given the District to the Union.¹ It would have been to establish within their borders and by national authority a little Canada into which fugitive slaves from either of those states might escape with the certainty of thereby achieving freedom; for in the temper of that time no fugitive slave law could by any possibility have been enforced there after once Congress had decreed the abolition of slavery within the District.

¹ Virginia's portion had been receded to that State in 1846.

But the abolition of the *slave-trade* within this peculiarly national domain was quite another matter. It left to all Southerners summoned thither on one or other sort of governmental business, or removing thither to reside, the right freely to bring then domestic servants with them without fear of molestation; but it made an end of that traffic in negroes as mere merchandise which was even more offensive to the better people of the South than to those of the North—which was socially as severely frowned upon in the one part of the country as in the other and concern with which made the slave-trader as completely a social outcast in Virginia as it might have done in Massachusetts.

Mr. Clay's five bills were framed and introduced in pursuit of his dominant purpose to preserve the American Union at whatever sacrifice of principle or of interest, and in like spirit they were enacted by both houses of Congress. They had the strong support of Daniel Webster in one of the ablest orations he ever delivered in behalf of the Union; a speech made, as Webster's biographers contend, in full knowledge of the fact that its delivery must cost him his very last hope of election to the presidency; a speech which brought upon him the odious accusation of having "sold out to the slave power."² They had the support also of men on both sides of the danger line of cleavage who strongly disapproved of some of them but who voted for all in the firm conviction that together they constituted a compromise necessary to the preservation of the Union.

² Unhappily for his reputation Mr. Webster gave color to this charge by accepting a large sum of money from Mr. Corcoran as a scarcely disguised reward for the speech.

That object was still supreme in the minds of the great majority, North and South alike. It was felt on both sides—in spite of personal convictions, personal interests, and the irritating friction of political agitation—that after

all, the cause of human liberty, human progress, and the system of self-government among men was dependent upon the perpetuity of the union of these states. It was felt that the enslavement of the negro, now that the Constitution, the statute law, and the public sentiment of the country had robbed it of its most repugnant feature—the African slave-trade—was a matter of minor consequence in comparison with the perpetuity of the only government on God's earth which had ever rested its right to be upon the twin theories of unalienable rights and the consent of the governed.

To the two disunion parties, the one aggressively active at the North in behalf of abolition and the other equally aggressive at the South in behalf of slavery, these compromise measures were intensely offensive. But to the great majority of the American people their passage seemed imperatively necessary to the preservation of the Republic, and this sentiment found expression in the action of both houses of Congress upon them.

All of them were enacted by decisive majorities and all by the votes of statesmen from North and South, acting together and putting aside their sectional prejudices in behalf of the Union.

The bill for the admission of California as a free state, against which the strongest opposition was made from the South, had thirty-four senators in its favor against only eighteen in opposition, four of the votes in behalf of it being cast by the four great Southern leaders, Bell of Tennessee, Houston of Texas, Benton of Missouri, and Underwood of Kentucky—a list to which Mr. Clay, as the author and sponsor of the bill must be added as a king of men. In the House,—more directly representative of popular sentiment—the vote in favor of the bill was no less than one hundred and fifty, with only fifty-six against it. This was the bill most offensive to the South and so the vote upon it reflected the strength of the Southern desire for the perpetuity of the Union.

On the other hand the Northern desire for the accomplishment of that end was reflected in the vote upon the Fugitive Slave Law which constituted a part of Clay's compromise scheme,—a part of it intended to offset to the South the admission of the whole of the present state of California as a free state.

This Fugitive Slave Act was passed by a vote of twenty-seven to twelve in the Senate, and by a vote of one hundred nine to seventy-six in the

House. Three Northern senators voted for it and one other, Mr. Dickinson of New York—who wished to vote for it, was paired with his colleague Mr. Seward. In the House thirty-two members from Northern states voted in favor of the Fugitive Slave Law.

But the discussion of these compromise measures lasted for eight months, and it was by no means confined to the halls of Congress. There was the fourth estate—the newspaper press—to be reckoned with, and behind that were the people. The people themselves and the newspaper representatives of popular opinion took a free part in the discussion, and both were unrestrained by parliamentary etiquette or by any of those considerations of polity and statecraft to which members of either house of Congress made obeisance. There was a great devotion to the Union it is true among press and people, but it did not take statesmanlike form or consider those nice questions that statesmen were bound to take into account.

On either side the popular desire for the preservation of the Union was complicated with the conviction that only the iniquities and injustices of the other side imperiled the Republic. On each side there was a profound conviction that if the other side would behave itself as it should, there would be no shadow of danger to the Union. Again on either side there was an intemperate press, representing an utterly intolerant party of extremists, and, shut their eyes as they might to facts, the statesmen of that time were aware that these extremists on the one side and upon the other, were daily adding to their numbers and daily becoming more and more nearly representative of popular sentiment.

The matter was complicated with partisanship, also, and with personal ambitions. There was the question of supremacy in the Nation, between the Whigs, who were then in power by virtue of Taylor's election in 1848, and the Democrats who, with one other brief interval, had been dominant in national affairs during the entire preceding half century. At the South the two parties, laying aside the questions of polity that had previously separated them, vied with each other in such support of slavery as should win the good will of the extreme pro-slavery party. At the North they were rivals as suitors for the favor of the new Free-soil faction—for at that time it was only a faction which Know-Nothingism was destined presently to relegate temporarily to the background.

But at the North the new Free-soil party drew more heavily on the Whigs than on the Democrats for its support, although its early leaders and presidential candidates, John P. Hale and Martin Van Buren, were distinguished Democratic statesmen.

Accordingly there arose in the country a contest between the two old parties for the favor of the two new ones. It became in fact a scrambling auction, in which each party in each section and each state and each district bid its convictions and its principles, without scruple, for votes. Each party sought to be more intensely pro-slavery than the other in those states and districts in which the pro-slavery sentiment was strong, while in those states and districts in which the anti-slavery sentiment was manifestly dominant, each party rivaled the other in its courtship of the prevailing dogma and its representative voters.

Quite naturally, men ambitious of political preferment trimmed their sails to catch these varying winds, and for the first time in the history of the country political conviction and principle very generally gave way to questions of self-interest. If the politician of that time was not quite "all things to all men," he was at any rate all things to the men who could cast the larger number of votes for his elevation to office.

The accusation of such selfish sacrifice of principle and conviction for the sake of personal aggrandizement was openly made against the foremost statesmen of the time, including Clay and Webster, and the President himself. Whatever any one of these did that was displeasing to one part of the country, was freely attributed to a desire to "curry favor," as the phrase went, with "the slave power" in the one case, or with "the abolitionist sentiment," in the other.

Without questioning the motives of the greater men, who offered their dominant devotion to the Union as the only and amply sufficient explanation of their actions and their votes, it is safe to say that the attitude and course and eloquence of a multitude of minor men possessed of ambition for political preferment were determined, on the one side or the other, chiefly by a consideration of votes.

Mr. Clay, Mr. Webster and the statesmen who aided them in adopting the Compromise of 1850, confidently believed that by their action in that matter they had laid the slavery question to rest for at least a generation to

come. They had in fact, as the event proved, succeeded only in opening it anew and adding virulence to its discussion. Their very debates, preparatory to the passage of the compromise bills, had stirred the country to a discussion of the question, angrier than any other that had been known since the Constitution was framed. The measures themselves, so far from allaying excitement and controversy, intensified both. The South felt that it had been cheated in a bargain which gave one free state certainly and two, three or four prospectively, to the North, with absolutely no certainty and little probability of the admission of any slave state in compensation—for from the first the people of Texas resented and resisted the proposal to divide their great domain into the four states provided for at the beginning. On the other hand the Northern States felt that the new Fugitive Slave Law was an enactment with which they could not comply without such a sacrifice of conscience and conviction as could in no wise be made by honest and sincere men.

From the very first many of the Northern States set their legislative machinery at work to defeat the operation of this Fugitive Slave Law by the most effective counter legislation that legal ingenuity could devise. In so far as these devices succeeded in preventing the execution of that law they in effect nullified a national statute which the National Government was entirely competent to enact.

More important still from the point of view of history, is the fact that the compromise which was intended to allay all sectional feeling and work a pacification in behalf of the Union, directly and immediately wrought an opposite result. It additionally inflamed passion in all parts of the country. It strongly accentuated those differences of opinion which alone threatened the Union with dissolution and the country with devastating war.

The North set itself to nullify the Fugitive Slave Law. The South set itself to undo the Missouri Compromise.

On the one hand it was contended that the Fugitive Slave Law made slavery a national instead of a state institution—a thing to which Northern sentiment and Northern conscience could in no wise consent. On the other hand it was stoutly insisted that the equality of the states under the Constitution was openly violated, not only by the personal liberty laws enacted by Northern States in order to nullify the national statute on the

subject of fugitive slaves, but still more aggressively by the practical exclusion of slaveholders from the territories, so far at least as their slave property was concerned; and further by the decree of the Missouri Compromise that, whatever the will of the settlers in new regions might be, there should be no new slave states carved out of that portion of the Louisiana Purchase which lay north of the southern line of Missouri. This prohibition—taken in connection with the admission of California as a free state—amounted in effect to a provision that there should be no more slave states created anywhere; for, as Mr. Webster had clearly pointed out, there was no other part of the territory conquered or purchased from Mexico, into which slavery could be practically or profitably extended.

The attempts made to enforce the Fugitive Slave Law at the North, whether successful or baffled, served only to inflame passion on both sides and to intensify the very controversy which it had been the purpose of the act—as a part of a compromise—to allay. On the other hand the Southern conviction grew that by the two compromises the South had been cheated of its equal rights in the public domain, and out of that contention was destined almost immediately to grow a bloody war in Kansas and a still more acrimonious state of feeling between the North and the South.

The story of that matter is reserved for another chapter of this history. In the meanwhile, if the facts have been adequately set forth, it must be clear to the reader that the Compromise of 1850 not only failed of its purpose of pacification, but resulted immediately in the very marked increase of hostility between the sections, the intensifying of the irritation and the accentuation of the acrimony that pervaded and inspired the dispute.

The fundamental trouble was that the statesmen who fondly thought to settle the matter by a compromise, did not grasp the truth of the situation with which they were called upon to deal. They did not appreciate the fact that there was indeed an "irrepressible conflict," between the two systems, a conflict which no compromise could end, no arrangement could mollify, no agreement could by any possibility adjust.

War was already on between abolitionism and slavery. It was idle to seek for grounds of reconciliation between convictions so utterly antagonistic and so necessarily irreconcilable. The compromisers were men crying "Peace" where there was no peace and no possibility of peace. They

were visionaries seeking to reconcile sentiments that were as opposite as the poles. In opinion and sentiment as well as in physics, there are affinities that may not be resisted and antagonisms that no power can overcome. There was no flux of political agreement that could fuse Northern and Southern sentiment on the subject of slavery into one homogeneous whole—no *vehiculum* in which the two antagonistic principles could mingle in harmony.

The key to the situation, as every sincere historian must recognize, if he would interpret the events of that time aright, was the fact that this conflict was indeed "irrepressible," and that it could end only with the extinction of slavery on the one hand, or with the universal and constitutional recognition of slavery as a national institution on the other.

The Compromise of 1850 was futile and a failure because it was founded upon the ignoring of this fundamental truth.

CHAPTER VI

UNCLE TOM'S CABIN

The failure of the Compromise of 1850 to accomplish its purpose did not at first appear in the national election returns. In fact the new Free-soil party polled fewer votes in 1852 than it had cast four years before, but in the elections of the several states of the North it was steadily gaining ground precisely as in the South the extreme disunion pro-slavery party was likewise doing.

Little by little the more conservative men on either side were being drawn into the radical propaganda.

In 1852 there appeared in print a novel which was destined to affect the history of the Union as no other novel ever did before or since. Every historian of that epoch must reckon with "Uncle Tom's Cabin" as one of the vital forces affecting the history of the time.

The novel was written by Mrs. Harriet Beecher Stowe, who personally knew very little about slavery except by hearsay. Of necessity it abounded in inconsistencies, mistakes of facts, and impossibilities so far as its social depictions were concerned. All these things have been pointed out by criticism and need not now be recapitulated, the more because they have no historical importance whatever. But the novel made a tremendous appeal to the sentiment of humanity in antagonism to slavery. It argued no question, it offered no statistics, it presented no thesis. It simply appealed to the sentiments of men, and women, and children, for the abolition of slavery and its influence was immediate and well-nigh limitless.

As there are no fixed canons of criticism by which to determine the artistic merit or the dramatic value of any work of the imagination it is of course open to those who choose to contend, as many have done, that Mrs.

Stowe's work was not at all great as a creation in fiction but that its immediate and stupendous success and influence were due solely to the adventitious circumstances of its publication. But those adventitious circumstances did not exist in the remote European countries into whose languages the novel was presently translated and among whose people it continues to be a classic to this day. These people knew nothing whatever of American slavery and cared little if at all about it. They were in no degree influenced in their judgment of Mrs. Stowe's romance by any of the considerations that vexed the politics of this Republic. They read the novel because of its intrinsic and intensely human interest and because of nothing else whatever.

The better judgment would seem to be that "Uncle Tom's Cabin" was a work of extraordinary dramatic power and phenomenal fitness to appeal to the sympathies of men. It had for its subject one of the most picturesque states of society that has ever been known among men and one so unusual among modern nations that its very rarity added to its charm as a theme for the romance writer.

There is another important fact which must be taken into consideration in estimating the influence of that work of fiction. At that time all the churches frowned upon novel-reading as a sin. A few of T. S. Arthur's temperance tales were cautiously permitted to the elect, but as a rule the reading of novels was rigidly forbidden to those who constituted the congregations of the churches. Even Dickens, who was then in the midst of his extraordinary popularity, was read only secretly and with shamefacedness by those who submitted themselves to the instruction of the clergy. The Methodists in particular—and Methodism was, as it still is, a very great power in the land—frowned upon all works of fiction as the devil's agencies for the perversion of the human mind and the destruction of the human soul. Novel-reading was classed by all the pulpits of the time with such sins as Sabbath-breaking, whiskey-drinking, dancing, and other devices of Satan. The great majority of men and women of that generation were effectually forbidden to read even the great masterpieces of their mother tongue, from Shakespeare onward. But here in Mrs. Stowe's work was a novel approved of all the clergy, a novel which anybody might virtuously read, and a generation hungry for creative literature of a date later than the "Pilgrim's Progress" eagerly welcomed the opportunity to read

a novel, full of flesh-and-blood interest, that appealed strongly to the kindlier and better sentiments of human nature. The preachers read the book and recommended it to their parishioners and as a consequence everybody read it—men, women and children.

Very naturally this universal reading of such a romance greatly inflamed the sentiment of antagonism to slavery and incidentally aroused something like hatred of the slaveholder though Mrs. Stowe had probably not intended that to be the effect of her written words.

There were a dozen or a score of more or less inane novels put forward in answer to "Uncle Tom's Cabin" but their only effect was to intensify the interest in that work.

Coming as it did upon the heels of the new and peculiarly offensive Fugitive Slave Law Mrs. Stowe's romance converted pretty nearly all the people of the North to the anti-slavery cause and hastened the growth of the anti-slavery party into formidable proportions. It awakened sentiment, and sentiment is always an immeasurably more potent factor in human affairs than mere intellectual conviction is. It enlisted in the anti-slavery cause every gentle and every rampant impulse of the people of the North. It rubbed out of multitudes of men's minds every consideration of constitutional restriction, every thought of states' rights, every dogma of the law and every decree of the courts. It quickly bred a new crusade against slavery. It everywhere stimulated the thought that slavery was a wrong for which the whole Nation was responsible and the extermination of which, at all costs, the Union was bound to accomplish as its first and highest duty. In brief, this novel bred a spirit of abolitionism such as the country had never before known.

The time had not yet come when any political party could plant itself, with the smallest hope of success, upon a platform of openly avowed abolitionism. Those who were ready to advocate an aggressive political warfare upon the system of slavery where it legally existed and to insist upon its abolition by force of Federal enactment in contravention of the Constitution were still in a hopeless minority. They were opportunists in politics, however, and they saw and seized their opportunity. If they could not gain all that they desired they were ready to accept whatever might be accomplished in the direction of the end they sought. The Free-soil party

presented itself to their minds as an easily available instrumentality. It is true that that party had expressly and with extreme circumspection disclaimed all purpose and all constitutional right to interfere with slavery in the states in which it legally existed. But the avowed antagonism of the party to the system of slavery rendered it a conveniently available agency for the execution of the will of those who desired that slavery should cease to be at all costs. All the abolitionists joined the party at once, in spite of its voluntary and to them offensive limitation of its activity to the purpose of preventing the extension of the slave system into new territories. On the other hand men by scores and hundreds of thousands throughout the North who would have bitterly resented the still opprobrious epithet of "abolitionists" eagerly joined the new party in the undefined but warmly cherished hope that it might somehow find means of ridding the Republic of the curse and the scandal of slavery.

CHAPTER VII

THE REPEAL OF THE MISSOURI COMPROMISE, THE KANSAS-NEBRASKA BILL AND SQUATTER SOVEREIGNTY

The Missouri Compromise was in effect repealed by the compromise measures of 1850 but there was as yet no formal repeal. The effect of the compromise measures of 1850 was presently to stir up a greater strife than ever on the subject of slavery and even to raise new questions with regard to it. The ultra Southern men began to see that the Compromise of 1850 had given them practically nothing whatever in the way of territory out of which to create future slave states.

It had admitted California as a free state. It had opened Utah, which lay mostly to the north of the dead line, to the possible introduction of slavery if its future settlers should so decree upon coming into the Union, as no sane man in any quarter of the country imagined that they ever would. It had also separated New Mexico which lay mostly south of the dead line, from the slave state of Texas with a like license to its future settlers if there should ever be any such, to choose for themselves whether or not they would permit slavery in their domain.

Neither of these territories promised, at that time, to become a state within the life of the generation then in being, and in point of fact neither did. Utah was not admitted to the Union until 1896, long after the utter abolition of slavery had been accomplished by constitutional amendment, and New Mexico, at the beginning of the twentieth century is still a territory of vast area and very small population.

The passage of the Fugitive Slave Law was in fact the only return the Compromise of 1850 had made to the South for what the South regarded as

a practical surrender of territory that might otherwise have been molded into slave states. At the North this compensatory enactment was everywhere regarded as an excessive return for such concessions as had been made. The great body of the Northern people would not and could not lend themselves to the execution of a law which offended their consciences as no other law had ever done. They could not make themselves, as that law required them to do, participants in a system which they held to be utterly wrong and iniquitous.

Thus the South felt itself wronged and cheated in the compromise and the North felt that its conscience had been outraged and its integrity of mind assailed.

It was altogether inevitable that the calmer consideration and the discussion of this matter should bring up new questions and create new situations. The Missouri Compromise had not yet been formally repealed. That Compromise forbade the creation of slave states out of any part of the Louisiana territory lying north of the southern line of Missouri, and by implication it forbade the carrying of slaves into any such territory prior to its admission as a state. Under the Compromise Missouri and Arkansas had been admitted to the Union as slave states and for thirty years the Compromise had stood as a bulwark against disunion.

But now there appeared a tendency on the part of the territories lying north of the Missouri Compromise line to become populous. Emigration seemed to be setting in that direction and the fertility of the region promised presently to tempt great multitudes of men to settle there. That part of the territory which now constitutes Kansas was especially tempting to emigration. The eastern half of Kansas was a part of the Louisiana Purchase. Its western half was a part of the region acquired from Mexico. The eastern half of it, therefore, was subject to the Missouri Compromise's prohibition of slavery while the western half by virtue of the compromise measures of 1850 was free from that restriction.

Out of all the conditions here briefly noted there arose at the South a clamor for the repeal of the Missouri Compromise. Men argued that as it was only a statute repealable at any session of Congress, and as, in their contention, it robbed and wronged the slave-holding half of the Union, it ought to be repealed. At the North it was felt that repeal would in effect

make of slavery a national institution, and rob the anti-slavery sentiment of the benefit it had secured by consenting to the admission of Missouri and Arkansas as slave states.

There was a very strong man in the Senate at that time, Stephen A. Douglas of Illinois. He was a born leader of men, a man of great ability and courage, and he had ambition to become president of the United States. He was a master of statecraft and an opportunist in politics. He had sought some years before to settle the question with regard to the new territories once for all by enacting a law to extend the Missouri Compromise line to the Pacific, thus excluding slavery north of that line from all the new as well as from all the older possessions of the Republic and by implication permitting it south of that line.

As his proposal was rejected it is not worth while now to speculate upon what effect its acceptance might have had. In lieu of it the compromise measures of 1850 were enacted. Their effect was almost immediately to increase and intensify an inflammation of the popular mind which it is difficult in our time even to conceive. Senator Douglas voted for these measures and advocated them strongly in the Senate. When he returned to his own state at the end of the session he found himself an object of public hatred and condemnation. The City Council of Chicago greeted his coming with a set of resolutions in denunciation of him. The resolutions declared him to be a traitor and pronounced the compromise measures a violation of the law of God. The City Council instructed the police, and advised all citizens to disregard the new laws. A mass meeting was called and by resolution it declared it to be the duty of all good citizens "to defy death, the dungeon and the grave" in resisting the Fugitive Slave Law, but so uncertain was the popular mind, even in its fury, that Douglas promptly challenged it and met it in a great mass meeting before which he delivered an impassioned speech explaining his views. By this single speech he secured an immediate and well-nigh unanimous rescinding of the resolutions of censure and a little later he was again elected to represent the state in the Senate.

Three years later, in 1853, on his return from Washington to Illinois and after he had made himself sponsor for that Kansas-Nebraska Bill of which an account will presently be given, he picturesquely said that he had traveled all the way from Washington to Chicago "by the light of his own

burning effigies." Nevertheless when his term expired a few years later he was again elected to the Senate after a conspicuous canvass of the state in which his reëlection was practically the only question at issue and in which Abraham Lincoln was his opponent on the stump.

It must not be supposed that Northern sentiment on the questions then dividing the country was uniform. It was on the contrary as sharply divided as ever, with a distinct preponderance of it in favor of letting the slavery question rest, so far as legislation was concerned, where it had been placed by the compromise measures of 1850. But the sentiment in antagonism to slavery was everywhere growing even among those who deprecated the agitation of the subject.

The extreme opponents of slavery had taken more advanced ground than ever before. They denounced the Fugitive Slave Law as a statute which Congress had no right to enact and which no citizen should obey. They pointed out that it was in violation of that very doctrine of state sovereignty to which the advocates of slavery had appealed. The ultra ones among them planted themselves upon the doctrine first enunciated by Mr. Seward of New York, that there is a "higher law" than the statutes or the Constitution, and that men of enlightened consciences were bound to obey that higher law even to the extent of violating the statutes, and setting the Constitution at naught.

The time had obviously come when there was no longer any use in the adoption of compromises or the passage of conciliatory laws by statesmen whose first concern was for the preservation of the Union. Compromises were no longer binding upon men's consciences or conduct. Political parties refused to regard them and even states in their organized capacity legislated for their nullification, asserting their right of sovereignty to that extent.

It is obvious that peace could not long continue in a country thus violently divided against itself in opinion and sentiment. Sooner or later by one means or another, but with the same certainty that governs the rising and the setting of the sun, such a condition meant *war*. In this case it meant that within the Union so afflicted there was an "irrepressible conflict" of opinion, a conflict that would yield to no argument, submit itself to no law, accommodate itself to no circumstance and would stoutly insist upon irreconcilable contentions on the one side and the other until the matter

should be decided by that last brutal arbitrament of man, a conflict of cannon, musketry, and mortars.

Precisely that condition of affairs had been reached in the United States when the compromise measures of 1850 were repudiated, defied and nullified by both popular and legislative authority. Logically the war between North and South should have occurred then, and undoubtedly it would have occurred at that time but for the persistence of that sentiment of devotion to the Union which still dominated the minds of a majority of men both at the North and at the South.

It was in obedience to that sentiment that statesmen refused to see the hopelessness of the situation and went on endeavoring to find some way out of the difficulty that should bring peace where there was no peace, and save the Union from disruption.

The trouble with all such efforts was that everything proposed by way of placating those on one side of the controversy additionally inflamed those on the other.

The most notable legislative outcome of this vexed situation was the Kansas-Nebraska Bill, for which Senator Douglas made himself sponsor. That bill provided for the erection of the two territories, Kansas and Nebraska, leaving it to those who should settle within that domain to permit or exclude slavery as they might please when the time should come for them to apply for admission to the Union as states. By direct implication at least slaves might freely be taken into those territories during the period of their territorial existence if the settlers there so desired.

In justice to the memory of a patriotic statesman who served his country to the best of his ability, it is only fair that his doctrine and his opinions shall be presented in his own words.

In the speech by which, in 1850, he placated the animosity that had greeted him at Chicago, he set forth his thought as follows:

These measures [the compromise measures of 1850] are predicated upon the great fundamental principle that every people ought to possess the right of framing and regulating their own internal concerns and domestic institutions in their own way....

These things are all confided by the constitution to each state to decide for itself, and I know of no reason why the same principle should not be extended to the territories.

Three years later Mr. Douglas carefully set forth his doctrine again in the Kansas-Nebraska Bill itself. Referring to the Missouri Compromise, with its prohibition of slavery in the states to be erected out of Louisiana territory north of 36° 30', the bill said:

Which being inconsistent with the principle of non-intervention by Congress with slavery in the states and territories, as recognized by the legislation of 1850 ... is hereby declared inoperative and void; it being the true intent and meaning of this act not to legislate slavery into any territory or state, nor to exclude it therefrom, but to leave the people thereof perfectly free to form and regulate their domestic institutions in their own way, subject only to the Constitution of the United States.

Mr. Douglas's doctrine, popularly known as "Squatter Sovereignty," was open to criticism on very obvious constitutional and historical grounds.

The original conception of the Union had undoubtedly been that it was a confederacy of states, each sovereign within itself except in so far as it had surrendered to the National Government a part of its sovereignty by accepting the Federal Constitution and entering the Union. It was deemed an axiom that each state was free by the will of its own citizens to regulate its domestic affairs in its own way, permitting or forbidding slavery at its own free will. After the great slavery controversy arose the South contended still for this doctrine of states' rights, and by the Kansas-Nebraska Bill, this sovereignty of the states was extended to the territories also.

The student of history must observe however that that doctrine had been very greatly impaired if not indeed set aside by the act of Virginia in ceding her claims in the Northwest Territory and the acceptance of that cession by the general government. In that cession it had been stipulated that slavery should never be permitted in any of the territory thus made a part of the national domain. The cession was made with the direct intent

that the region concerned should presently be divided and admitted into the Union as a number of states. But those states were thus forbidden in advance to permit the existence of slavery within their borders. So far as they were concerned, therefore, the supposed right of a state to legislate at will on that subject was taken away from them even before their birth.

Here it would seem there was an abrogation or at least an important modification of the doctrine of the right of each state to determine this question for itself, and that modification had been made by Virginia and everywhere accepted.

The Missouri Compromise in precisely the same manner had taken away that right of determination from all the states that might be formed out of the Louisiana territory lying north of the southern line of Missouri. If the prohibition thus laid upon yet unborn states was permissible as regards the cession of the Northwest Territory it would seem to have been equally so with regard to the new domain west of the Mississippi.

Further than this the sovereign right of a state to determine this question for itself did not extend at any time to the territories. Under the Constitution as uniformly interpreted by the Supreme Court of the United States, Congress is supreme in the territories and may make any law that it pleases for their governance. In other words the people of the territories have absolutely no rights of self-government except such as Congress may from time to time see fit to confer upon them.

This statement is not made speculatively or as an opinion of the historian. It is a well settled doctrine of constitutional law, affirmed by every court to which the question has at any time been submitted.

Senator Douglas's Kansas-Nebraska Bill was based upon an assumption precisely the reverse of this. It extended to the territories a sovereignty which under the Constitution belonged only to states, and which, as has been suggested, the states themselves had in a large degree surrendered by the acceptance of the cession of the Northwest Territory.

CHAPTER VIII

THE KANSAS WAR—THE DRED SCOTT DECISION— JOHN BROWN'S EXPLOIT AT HARPER'S FERRY

With the aid of a considerable Northern vote in Congress the South succeeded in passing the Kansas-Nebraska Bill, repealing the Missouri Compromise, and under the doctrine of "Squatter Sovereignty" throwing all the territories open to slavery at least as a possibility.

The North at once took alarm and the Free-soil party, newly named the Republican party, grew in numbers and enthusiasm as no other party had ever done before.

Events mightily aided this growth, driving into the Free-soil or Republican party many thousands of men who had before held aloof from a movement which they thought to be dangerous to the perpetuity of the Union and to peace within its borders.

First of these events was the outbreak of civil war in Kansas. The repeal of the Missouri Compromise opened that territory at once to settlement by men from both sections and at the same time opened the question whether it should become a free or a slave state. Incidentally a contest of factions began which raged hotly to the end.

Whether Kansas should be a slave state or a free state depended upon the will of the settlers alone. The land was in many respects a tempting one to emigrants in spite of the aridity of its western part, so that even without any incentive of politics its speedy settlement was quite a matter of course. But politics North and South enormously aided in that behalf. There was a rush from both sections to fill up and occupy the land in order to control it. From the Missouri border and from farther south slaveholders and the

representatives of slavery poured into the territory in great numbers with the purpose of voting it into the Union as a slave state. In the slang of the period these were called "border ruffians." On the other hand there was an "assisted emigration" from the North, the emigration of men whose way was paid in consideration of their votes and their rifle practice against slavery in Kansas. These called themselves "Free State Men" but they were called by their adversaries "Jayhawkers."

In order to promote the emigration of these men to Kansas societies were formed in Massachusetts and other states which not only paid their way but furnished them with rifles of an improved pattern and ammunition in plenty, with the distinct understanding that it was their duty to ply both the bullet and the ballot in aid of the cause they represented.

These two groups of men quickly fell by the ears, as it was intended that they should, and civil war in the strictest sense of that term ensued.

John Brown—an able, adventurous, and fanatical man—took command of the free state forces and between him and his adversaries there was a contest for supremacy which involved every outrage to which civil war, waged by uncivilized man, can give birth. Small battles were fought. Men on either side were shot or hanged without mercy. Homes were desolated. Women and children were driven forth to suffer all the agonies of starvation, of cold, and of homelessness—all in aid of the voting one way or the other.

In our time such a situation in a territory subject to national control would be instantly ended by the sending of troops to the disturbed region with instructions to preserve order, to suppress all manner of lawlessness, and to protect all citizens equally in the enjoyment of the peaceful possession of the land. But in the fifties the government of the United States was still unused to such exercise of its authority—parties were too evenly divided, political feeling was too hot and voters were far too sensitive, to admit of such a treatment of the situation as would in our time seem quite a matter of course. Troops were sent to Kansas, it is true, but in quite insufficient numbers and under inadequate instructions. So the war in Kansas went on and otherwise peaceful citizens of the Union actively aided it upon the one side or the other quite as if it had not been a civil war within

the Union and in a territory in which the authority of Congress was supreme beyond even the possibility of question.

At the South companies of armed men were organized, equipped, and sent into Kansas nominally to settle there and vote to make a slave state of the territory, but really, if possible, to drive out every "Free State" man or to overawe or overcome them all, so that the voting might be all one way. At the North similar companies of men were organized and armed and aided to emigrate for the purpose of doing very much the same thing to the representatives of slavery and achieving a contrary result at the ballot box.

Many of the men on both sides were not genuine settlers at all but merely armed bandits engaged in a mission of violence. Yet on both sides they were supported, encouraged, and defended in their lawlessness by the pulpit, the press, and every other agency of civilization.

Elections were held in the territory in which both sides voted their men without question as to their age, the length of their residence within the territory or any other qualification for voting which the loose laws of the time provided. Every devilish device of fraud and swindling that had up to that time been invented by ingeniously unscrupulous politicians was employed on the one side or the other without so much as a qualm of conscience or a scruple of conventionality.

It was *war* that these men were engaged in and elections were a mere pretense. War habitually has no scruples as to the means it uses for the overcoming of an adversary. On each side men voted who had arrived within the territory just in time for the election, cheerfully perjuring themselves in order to do so, an incident which nobody seemed to regard as a serious matter. Each side voted its men as often as it could under the loose election laws of the time and in some cases that was very often. Ballot boxes were stuffed with fraudulent votes by one side and were seized and destroyed by the other.

Conventions fraudulently chosen by such practices as these framed constitutions which were one after another rejected by Congress.

The story need not be told here in further detail. The struggle continued until the end of the decade and it was not until after the Confederate War had begun that the territory was admitted to the Union as a state. In the

meanwhile the eyes and minds of all the people in the country were concentrated upon that center of disturbance and the situation there enormously increased the intensity of that acrimony which already characterized the relations of men North and South.

Another event which tended to increase the acrimony between the two sections of the country and ultimately to bring about war was the rendering of the "Dred Scott" decision, which alarmed and intensely angered the North.

Dred Scott was a negro slave in Missouri, owned by an army surgeon who, about twenty years before, had taken him as a servant to an army post in Illinois. Under the laws of Illinois any slave taken by his master into that state was by that act set free.

Dred Scott remained however in the position of a slave and after a time he was taken back to Missouri. There he was sold to a new master whom he presently sued for assault on the ground that his former master had in effect set him free by voluntarily taking him into a free state, and that therefore he was not liable to sale or to a chastisement at the hands of a master.

The negro won in the lower courts but was defeated upon appeal. Later, circumstances enabled him to bring suit in the United States Court, and finally the case went on appeal to the Supreme Court of the United States. The questions directly and indirectly involved in it were of so great national and political interest that four of the greatest constitutional lawyers in all the land volunteered to argue it—two of them on the one side and two upon the other. The argument was a contest of intellectual giants with the whole country looking on and listening. At the end of it the judgment of the court was rendered by Chief Justice Taney in March, 1857. The decision negated all of Dred Scott's contentions and it affirmed principles that were even more offensive to Northern sentiment than its negations were. It amounted in fact to a judgment that state laws setting free such slaves as might be brought into the states concerned by voluntary act of their masters were null and void. It expressly declared unconstitutional that part of the Missouri Compromise which forbade slavery in territories north of 36° 30' north latitude.

So completely did the court decide upon the slavery side of the question that Thomas H. Benton, the great Democratic senator from

Missouri, characterized this deliberate and very carefully considered judgment of the Supreme Court as one which made slavery the organic law of the land with freedom as a casual exception.

The victory of the pro-slavery radicals was here complete. The decision gave them the definite judgment of that Supreme Court whose decisions rise above congressional enactment and set aside statutes,—that court from whose judgments there is nowhere any appeal to any other authority on earth—in behalf of their most extreme contentions.

If that decision had been accepted by the people, as the decisions of the Supreme Court usually are, it would indeed have made slavery a national institution subject only to such limitations as the individual states might impose upon it within their own borders and without interference with slaveholders who might choose to take their slaves into free states and hold them there.

But the victory of the slave advocates—complete as it was—gave them no practical advantage. Such a doctrine as that laid down by the court simply could not find acceptance in the minds of men at the North. Logically it ought not to have found acceptance with the ultra pro-slavery men of the South for the reason that it distinctly negated that contention for states' rights and state sovereignty upon which they relied in their contest with their adversaries.

Unfortunately for them, in the course of his decision Chief Justice Taney used one unhappy phrase which gave even greater offense perhaps than the decision itself did. That phrase was in fact no part of the decision but was what the lawyers call an *obiter dictum*—a saying apart. It was a mere statement of what the Chief Justice believed to be a fact of history. It was not at all a ruling of the court. As an illustration of his meaning he made the perfectly true statement that before the time of the American Revolution—and he might have included a much later date—the negroes "*had been regarded* as beings of an inferior order and altogether unfit to associate with the white race either in social or political relations; and so far inferior that they had *no rights which the white man was bound to respect*; and that the negro might justly and lawfully be reduced to slavery for his benefit."

This statement of fact as to the attitude of the public mind toward the negro before the Revolution was entirely correct, as every educated reader knows, and as the history of the African slave-trade—carried on not only before the adoption of the Constitution but for a dozen years after 1808 when the constitutional prohibition of that nefarious traffic went into effect—perfectly and completely shows.

But Chief Justice Taney's simple statement of this historical fact was everywhere interpreted to be a part of his legal decision. This was natural enough under the circumstances for the reason that slavery itself, in behalf of which the decision seemed to have been rendered, rested solely upon the doctrine that a negro has no rights which the white man is bound to respect.

Even if this unfortunate phrase had not been used and even if it had not been misinterpreted as it was, the decision itself must of necessity have wrought something like a revolution in the thought of the Northern people. The most conservative among them had reconciled themselves to the existence of slavery in certain of the states upon the ground that each state had a right to legislate for itself upon that question and therefore that each state was alone responsible for its own legislation. They were startled now by the challenge of a Supreme Court decision which denied to them even this relief of conscience and even this liberty of individual state action. They were asked to accept the doctrine that slavery was a national institution against which state laws were futile except in a very limited way.

This extreme decision in favor of slavery, coming as it did at the very time when civil war was on in Kansas, not only inflamed public sentiment at the North but alarmed it. Already the political party opposed to the extension of slavery had mightily grown in numbers and in enthusiasm. In 1852 it had cast less than 157,000 votes. In 1856 its vote amounted to 1,341,264, carrying with it 114 electoral votes as against 174 secured by its chief antagonist and eight thrown away on a third candidate.

During that four years the Anti-slavery party had drawn to itself through force of circumstance all of the Free-soil Democracy and the greater part of the Northern Whigs.

In 1856 for the first time in the Republic's history the election of a president was contested by a party strictly sectional in its composition and the fact was alarming not only at the South but almost equally so at the

North. The conviction was general that such a contest meant mischief for the country. It was the first sure foreboding of that war which was destined to come a little later between the sections.

The Republican party existed exclusively at the North. It made no pretense of existing in the Southern half of the Republic. It did not even go through the empty form of nominating electors in the Southern states either in 1856 or four years later in 1860. It did not hope in either of those years for a single electoral vote from any state lying south of the Potomac or the Ohio. Its purpose was to carry the election and to control the country by a strictly sectional and geographical vote—a thing that had never before been attempted or thought of by any party, and a thing the very suggestion of which caused great alarm throughout the country. For, men anxiously asked, if one section of the Union is thus to dominate the other how shall we be able to maintain the Union in its present disturbed and distracted condition? Hitherto, they reflected, majorities have been drawn from all the states in contests that were purely national in their inspiration and in their significance, and all men have held themselves bound to submit to the will of such majorities, as representing the ultimate judgment of all the states and all the people; but, they anxiously asked themselves, how long will the states or the people of one part of the country consent to be governed by the elected candidates of a party which exists solely in the other part of the country; a party which does not even ask for votes except in that other part, in support of its candidates; a party whose platform is one of avowed hostility to the industrial, social and domestic labor system of the southern half of the Republic; a party which has no existence or recognition or representation in that part of the Union, and which includes among its most active and aggressive members those who openly declare their purpose to overthrow the domestic institutions of the South, in defiance of all constitutional guarantees, and by any means that may be available, even including servile war in states where the negroes outnumber the whites by two or three to one?

Considerations of this kind undoubtedly restrained many voters at the North in the election of 1856, and for a time after that election there seemed to be a promise of peace in the influence of conservatism on the one side and on the other in spite of what was going on in Kansas.

At the same time the state of feeling throughout the country was well-nigh indistinguishable from that which prevails during the existence of actual civil war. Only the old devotion to the Union which existed in both the Northern and Southern mind prevented men from flying at each other's throats.

Then, as if to emphasize the inevitableness of war and to hasten its coming, there occurred the raid of John Brown at Harper's Ferry, Virginia, in the autumn of 1859—only a year before a presidential election must occur.

John Brown had been the chief leader of the Free State men in the warlike operations in Kansas. He was a man of extraordinary fanaticism, limitless daring, large capacity, and relentless determination. His hostility to slavery knew absolutely no bounds. With a courage which had no balance wheel of discretion to regulate it, he had no hesitation in undertaking great enterprises with ridiculously inadequate means, and in the end he showed that he had no flinching from the personal consequences of his acts.

In June, 1859, he went secretly to the neighborhood of Harper's Ferry, with a band so small that even after its reinforcement it was manifestly inadequate to be trusted by any but a madman to accomplish the work that Brown had laid out for it to do. He was both morally and materially supported by men of wealth and influence at the North who blindly entrusted him with arms, ammunition, and money, not knowing or inquiring whither he was going or what his purposes might be.

By the end of June, 1859, he had established himself near Harper's Ferry with a band of devoted followers about him. One by one the men who had enlisted in his service joined him until the company numbered twenty-two. Still his purpose was wholly unsuspected by his Virginian neighbors.

In the meanwhile the two hundred rifles contributed by George L. Stearns of Medford, Mass., in aid of the Kansas controversy, were delivered to John Brown who had, besides, a war chest of five hundred dollars in gold given to him by Boston enthusiasts in aid of an enterprise concerning which they had no definite information whatsoever.

His purpose was to establish in the mountain fastnesses near Harper's Ferry a fugitive slave camp which a few men could easily defend while the

rest of those coming into it could be run off to Canada and freedom with ease and certainty. In effect he contemplated a general insurrection of the slaves, their concentration in easily defensible mountain camps and their removal to Canada from these military posts as rapidly as that end could be accomplished.

This program if successful could have resulted in nothing less than a slave insurrection and a bloody servile war.

But John Brown's program failed of its accomplishment for two reasons. There was far less of active discontent among the negroes of northern Virginia than John Brown had supposed. Most of those negroes in fact were entirely satisfied with their condition and treatment and so they refused to flee to him for rescue from an oppression which they did not feel.

It is noteworthy that Frederick Douglass, the ablest representative of the negro race and by all odds the ablest negro representative of abolitionism, disapproved and discouraged John Brown's enterprise. Especially Frederick Douglass advised against John Brown's policy of making war upon the United States. That was the second and the controlling cause of his failure. It seems to have been his thought that with the country in the tempestuous condition it was then in he might hopefully assail the National Government itself and that in such an assault he would have behind him the entire Northern people. How badly he misunderstood the signs of the times the events clearly show.

On the 16th of October, 1859, he marched with eighteen men upon the undefended United States arsenal at Harper's Ferry, broke down its doors and took forcible possession of the premises.

This in itself was an easy thing to do for the reason that the Government, seeing no occasion to apprehend violence of such sort, had made no adequate provision for the defense of its arsenal. But John Brown's act was a direct, open, and flagrant levying of war against the United States and it was promptly treated as such by the Government at Washington. A force of marines was sent to Harper's Ferry to eject the intruder and to repossess the national arsenal.

There was a little skirmish. Many of John Brown's men were killed and he and his surviving companions were promptly made prisoners, tried for

treason, convicted and hanged.

In the number of men engaged, in the amount of damage done, and in its immediate consequences this raid of John Brown's was a matter of no moment whatever. It was conspicuously a failure so far as its ulterior purpose of inducing slaves to flee from bondage and engage in insurrection was concerned. It was still more conspicuously a failure in so far as it meant war upon the United States. A single company of marines brought it to an end without the necessity of calling in any larger force. But the raid had a very important influence nevertheless, upon the future history of the country.

It illustrated and emphasized as no previous event had done, the implacability of the sentiment hostile to slavery. It demonstrated, as the fact had never been demonstrated before, the hopelessly irrepressible character of the controversy concerning slavery. It alarmed and angered the South as it had never been alarmed and angered before. It indicated to the Southern people the fact that there were agencies active at the North which would stop at nothing that might help to the abolition of slavery; that even a servile war, with all the brutality and bloodthirstiness that servile war must mean to the South, was lightly contemplated by a certain and rapidly growing Northern opinion, as a legitimate means for the accomplishment of abolition. It indicated an implacability of sentiment against which there seemed to be no defense except in that dissolution of the Union which the extremists on both sides had so long and so freely invoked as a remedy for the hopeless division of the Republic into two antagonistic camps.

John Brown's invasion would have counted for little if it had stood alone. But the rifles that he had in possession, with which to arm fugitive slaves, had been contributed by a citizen of Massachusetts under urgency of conspicuous representatives of the political party that sought the abolition of slavery. The five hundred dollars that Brown carried with him as a part of the equipment with which he hoped to create a servile war, was contributed by Boston citizens and represented a hostility as unkind as it was unlawful. The sanction given to John Brown's insane and treasonable raid by many newspapers and a certain part of the public at the North served to convince even the most moderate and conservative men at the South that there was no longer any hope or prospect of reconciliation between the two sections upon any basis of reasonable and mutual concession.

It was in this mood that the country approached the presidential election of 1860. On either side there was a strongly surviving love for the Federal Union, an abiding conviction that it alone could guarantee the perpetuity of the American idea of local self-government and personal liberty. But on either side there was an aggressive party of disunion which must be reckoned with in politics. On the side of the North the disunionist party desired and insisted upon the utter and immediate and unconditional abolition of slavery as the sole condition of the Union's further existence. On the Southern side the extremists demanded that slavery should be recognized and protected as a national institution, with local and state freedom from it as a casual incident which should in no way be permitted to interfere with the right of the slaveholder to hold his slaves in bondage even when his convenience led him to carry them into any free state; and still further that the people of every territory should be free to decide for themselves whether or not slavery should be permitted within the domain controlled by them. Between these two opposing parties stood the overwhelming but rapidly weakening majority of the people, insisting that the perpetuity of the Union was of greater importance to liberty than either the maintenance or the extinction of slavery.

How these forces fought the matter out must be the subject of another chapter.

CHAPTER IX

THE ELECTION OF 1860

When the time came to nominate candidates for the presidential election of 1860, something akin to despair had seized upon the minds of men—a despair that discouraged hopeful conservatism and prompted many to courses that could promise nothing other than disaster to the Union.

In the event, the election of that year showed that there was a majority of nearly a million votes against the Republican party, in a total vote of about four and a half millions. There was still an overwhelming majority of the people, therefore, who regarded the preservation and perpetuity of the Republic as the paramount concern. There is every reason to believe that if circumstances had so shaped themselves as to put that matter immediately in issue, and if the contest could have been fairly fought out between the two opposing sentiments the majority of nearly a million votes cast against what was regarded as a sectional party, representing a purely geographical sentiment, would have been swelled to two millions or more. For in all parts of the country the Union was still an object of adoration and the Constitution remained a text-book of patriotic study.

But the battle was not destined to be fought out on those lines. Those whose supreme concern was for the preservation of the Republic, with all that it signified of self-government among men, were divided in council and were in consequence defeated. It sounds like a paradox, but it is a simple statement of fact to say that the disruption of the Union was brought about by the disunion of the Union forces.

The story is an interesting bit of history and a most significant one. But in order to understand it clearly the reader should bear in mind the

excessively strained state of feeling in the country which has already been set forth in these pages. In aid of that let us briefly recapitulate.

The events of the recently preceding years had gone far to unseat conservatism, to breed a hopeless discouragement, and to induce a very general despair. The civil war in Kansas had been lawless, criminal and murderous on both sides.

It is impossible for any honest mind to approve the doings of the men on either side in that struggle, or to regard them otherwise than as criminal attempts to substitute force for law and fraud for freedom of the ballot.

Yet on each side the *tu quoque* argument was freely and justly used; on either side the criminal doings of the partisans of that side were regarded as a necessary offset to the criminal doings of the partisans of the other side. At the North the "free state men" were encouraged and supported by a large part of the press and pulpit. Great preachers pleaded from their sacred desks for contributions of money with which to arm the Northern men for this conflict. Great leaders of radical opinion employed the press and platform in the like behalf.

On the other hand, at the South, with a far less orderly organization of the forces that control popular opinion and action, there was an equally strong disposition manifested to support and encourage those Southern youths who had gone into Kansas to struggle for the establishment of slavery there. And on each side there was a manifest willingness to shut eyes to such lawlessness and such crime as the partisans of that side might find it necessary and convenient to commit in behalf of the "cause" they were set to serve.

Then had followed John Brown's attempt at Harper's Ferry to bring about that most terrible of all catastrophes, a slave insurrection. The attempt itself was so absurd in its lack of means conceivably adequate to the end proposed, and so clearly the work of a madman in that it involved a direct assault upon a national arsenal, making itself thus the insane challenge of a mere handful of men to the whole power of the United States, that it might have been dismissed from men's minds as men are accustomed to dismiss the vagaries of demented persons, but for one fact. The John Brown raid was seriously and earnestly approved by so many persons and pulpits and prints at the North, as was shown by funeral services and otherwise, that it

was regarded at the South as a preliminary, typical, and threateningly suggestive manifestation of what Northern sentiment intended to do to the South whenever it should have the necessary power. How largely it was thus sanctioned was later shown by the fact that during the succeeding war the song that celebrated John Brown's raid made itself a national anthem declaring that in the advance of the national armies his "soul was marching on."

To the Southern people John Brown's attempt to stir up servile insurrection meant all of horror, all of slaughter, all of outrage to women and children that it is possible to conceive. It meant to them the overturning of society. It meant the dominance of a subject and inferior race outnumbering the whites in many states, a race ignorant and passionate in Virginia and Kentucky, and well-nigh savage in the cotton states. It meant rapine and murder—rape, outrage and burning.

There were still many at the South who desired and earnestly advocated the extirpation of slavery by any means that could be adopted with tolerable safety to Southern homes, but John Brown's program of abolition by servile war—a program which seemed to them to be accepted by Northern public sentiment—offered them a threat of desolation against which, if they were men, they were bound to revolt with all the force they could command. It called into instant and aggressive activity that fundamental impulse of humanity, the all-controlling instinct of self-preservation.

On the other side the increasingly insistent demand of the Southern extremists for the nationalization of slavery and their apparent ability to force such nationalization, through fugitive slave laws against which the consciences even of the most devoted lovers of the Union at the North revolted, and through the decisions of the Supreme Court, bred in that quarter a similar despair of lasting union. Hundreds of thousands who did not sympathize with the purpose to stir up servile war despairingly felt that the time had come when the demands of what was called "the slave power" must be resisted at any and all risks, and resigned themselves to the employment of any means that might be found necessary to that end. They felt that all compromises had failed, that all efforts to enable this Nation, as Mr. Lincoln phrased it, "permanently to endure half slave and half free," had been defeated and shown to be futile.

In brief, on both sides of the line of cleavage, a spirit of despairing readiness for any remedy, however drastic it might be, had been created by the inexorable circumstances of the "irrepressible conflict."

There is no doubt whatever that if the situation had been clearly understood, nine in ten of all Northern people would have shrunk with horror from such a program of destruction as that which John Brown's raid implied and intended—namely the overthrow of the United States Government and the inauguration of a servile insurrection at the South.

But the conditions were not clearly understood upon either side. Upon neither side did the people really know precisely how the facts of the situation presented themselves to the people on the other side. On neither side was there enough of calm, impartial deliberation to distinguish between the excesses of sentiment and conduct and provoking self-assertion on the part of extremists on the other side and the settled purposes of the great majority. Still worse, on neither side was there enough resolute calmness to relegate the small body of extremists to their proper place as a minority, and to take matters out of their hands.

The thought of secession rapidly gained ground at the South. The "slangy" slogan of N. P. Banks—"Let the Union slide"—was accepted as a policy by increasing multitudes at the North.

It was in such conditions that political parties made their preparations for the presidential campaign of 1860.

The Democratic party represented the only opposition to Republicanism which had any hope or possibility of success. It was in a clear and commanding majority in the Nation. The old Whig party had dwindled to a remnant, and the greater part of that remnant would have voted for the Democratic candidate in an election directly presenting the issue of Democracy and nationalism against Republicanism and a geographical division of the people into parties.

But the Democratic party was itself hopelessly divided. The radical pro-slavery men at the South had made up their minds to disunion as a thing desirable and necessary. They did not want the Democratic or any other national party to win unless they could themselves dominate and control it.

The extreme men among them wanted the Republicans to succeed in the election in order that there might be an excuse for secession.

The Democratic nominating convention met at Charleston, S. C., on April 23, 1860. Senator Stephen A. Douglas from the beginning was the first choice of a majority of the delegates as the party's candidate, but he could not command that two-thirds' vote which the party had always insisted upon as a condition precedent to nomination. In his Illinois campaign against Lincoln in 1858, Douglas had been logically forced to make certain admissions as to the right of the people in a territory to exclude slavery from it before it became a state, which deeply offended the extremists of the South. There was also in effective play the active desire of these extremists to disrupt the party and secure its defeat as a pretext for secession. To have nominated Douglas at that time would have been to elect him with absolute certainty, and to have elected him in 1860 would have been to postpone the program of secession for at least four years.

So from the beginning to the end the radical pro-slavery men held out against Douglas's nomination. They in the end seceded from the convention and after ten days of fruitless wrangling that body adjourned without making a nomination or adopting a platform, to meet again at Baltimore on the eighteenth of June.

This second meeting of the convention was the signal for still further and bitterer wrangling. The Southerners again withdrew and in the end two candidates were nominated—Douglas by that part of the convention which claimed to be national and Breckinridge by the Southern wing.

This was a direct invitation to defeat. It not only compelled such a division of the Democratic vote as to render the success of either Democratic candidate impossible, but it was accompanied by the still further division of the forces opposed to the strictly sectional and geographical Republican party. The old Whigs and those in sympathy with their desire to preserve the Union if possible, had met in convention in Baltimore on the ninth of May, adopted, as their platform, resolutions pledging devotion to "the Union, the Constitution and the enforcement of the laws," and under the name of "the Constitutional Union party" nominated John Bell of Tennessee for president and Edward Everett of Massachusetts for vice-president.

Their purpose was to bring to bear for the preservation of the Union the votes of a large body of men who would not vote for the Republican candidate on the one hand or for either of the Democratic candidates—presently to be nominated—on the other. Their hope was that among four candidates there would be no election, and that in an election by states in the House of Representatives their candidate might be chosen as one upon whom lovers of the Union could unite without regard to party.

When the election came they polled no less than 589,581 votes and carried thirty-nine electoral votes against Douglas's twelve and Breckinridge's seventy-two. But their hope of throwing the election into the House of Representatives was doomed to disappointment.

The Republican convention met at Chicago on May 16, and after some contest nominated Mr. Lincoln. When all the nominations were made, presenting three candidates in opposition to him, Mr. Lincoln's election was practically certain, with only the remote chance that the choice might be thrown into the House of Representatives, as a possible doubt of that result. In fact he was elected, though the majority against him on the popular vote was nearly a million.

In the meantime the canvass had mightily tended to additional embitterment. It had drawn the line more sharply than ever between the sections. It had completely disrupted and scattered into three warring groups all those forces that stood out against a party which had no being except in one section of the Union. It had familiarized men's minds with the idea of disunion. It had been a campaign of threats and defiances. It had well-nigh made an end of conservatism as a sentiment influential on either side. It had intensified distrust, accentuated hatred, embittered the relations of men, and prepared the minds of the people North and South for disunion and war.

The time had come which statesmen had so long foreboded when threats of disunion—oft repeated on both sides and usually received scoffingly as mere vaporings—took on a seriously menacing character. The time had come when the warring sectional interests, prejudices and principles were ready to make final appeal to the brutal arbitrament of steel and gunpowder. The situation had been strained to the breaking point, and

the fact that it did not break at once was due to conditions and inspirations which need another chapter for their explanation.



CHAPTER X

THE BIRTH OF WAR

The election of Mr. Lincoln filled the whole country with alarmed apprehension. At the North no less than at the South men anxiously asked of themselves and of their neighbors "What is going to happen?"

What had already happened was something unprecedented in the history of the country. On its face it was merely the election of a president by a majority of the electoral college vote, against whose election there had been a heavy popular majority.

The like had happened several times before and the occurrence had never before excited the least apprehension or created the least alarm or suggested the smallest protest. It had been accepted in every case as a natural result of our complex electoral system, which combines representation of population with representation of the states as such without regard to population, and which gives to each state the right to cast the whole of its electoral vote in accordance with the will of a majority of its people. It was a recognized fact that under this system a president might easily be chosen by a minority vote of the people, provided that minority vote was so distributed among the states as to secure an electoral majority in his behalf. There was no ground of complaint, therefore, and in fact no complaint was anywhere made, that Mr. Lincoln was elected in the face of an adverse majority of about 950,000 popular votes.

But there was a much more significant, and, as it seemed to many minds, a much more alarming fact behind his election. That election was purely and exclusively sectional. Of the one hundred eighty electoral votes cast for him, not one had come from any state lying south of the Potomac or the Ohio nor had his candidacy been supported in the popular vote by even

a handful in that half of the country. Both on the popular and on the electoral vote his support had been purely geographical, and even on geographical lines it had been little more than a majority. In the slave states he had had no support at all, while in the free states taken by themselves his popular majority was only 186,964, the vote of the free states standing 1,731,182 for him and 1,544,218 against him.

In other words, Mr. Lincoln was elected in face of an adverse popular majority of about 950,000 in the whole country, by a narrow popular majority of less than 200,000 in one section of the country. He was the candidate of a party which had absolutely no existence in the southern part of the Republic, and which existed avowedly only in antagonism to the institutions of that part of the country.

For the first time in the history of the Republic there had occurred a purely geographical election. For the first time, as the South interpreted the matter, one section of the country had assumed the right to govern another. For the first time a party dominating one section by a narrow majority and having no shadow of existence in the other section had come into power with authority to rule both, so far at least as executive and administrative power was concerned. For the first time that geographical division of the country had occurred in fear and dread of which as a possibility so many of the original states had hesitated to ratify the Constitution itself.

Worse still, so far as the future of the Republic was concerned, this purely geographical election had been sought and secured upon a purely geographical and sectional question. Refine the matter as the platform-makers might, and qualify and explain policies as the party did, the fact was as apparent then as it is now that the sole reason for the Republican party's existence was hostility to slavery and an earnest desire to abolish that institution in this land by whatever means there might be available to that end. That purpose alone held together in political union the otherwise discordant elements of which the party was composed. In other words a party founded exclusively upon hostility to the domestic institutions of the Southern States had elected a president by means of a purely sectional and geographical vote, against the expressed will of the people as reflected in a popular majority of nearly a million ballots.

These facts of history are here set forth not by way of condemnation and not at all with any intent to criticise them or the authors of them adversely, but solely in aid of understanding. They are set forth in order that the reader who was not born early enough in the nineteenth century to remember them may understand the conditions and circumstances that gave birth to the war.

The election of Mr. Lincoln under these circumstances and in this way was accepted by the extreme pro-slavery men at the South as a challenge to them to dissolve the Union if they dared. They proceeded to accept the challenge, but their influence was not dominant in Virginia or in those states which looked to Virginia for guidance in this crisis and the lack of such dominance was an embarrassment to them. South Carolina, in which state the extremists were most influential, adopted an ordinance of secession on the twentieth of December, 1860. The other cotton states followed South Carolina's lead until seven of them were counted as seceding states. But Virginia resolutely held aloof, and North Carolina, Kentucky, Tennessee, Arkansas, and Missouri awaited Virginia's leadership, while Maryland and Delaware stood firmly by the Union.

Without these states the attempt to disrupt the Union would of course have been an absurdity from the beginning. But unless Virginia could be drawn into the movement the other border states were resolute to withhold themselves from it, for the double reason that Virginia's influence as the mother of the states concerned was paramount, and that Virginia's geographical position, the numbers of her population, her importance in American history and her productiveness of those supplies upon which military operations must depend, rendered that state an absolutely indispensable member of the new Confederacy if its war of independence was to be in the least degree hopeful of success.

The seceding states sent delegates to a convention at Montgomery, Alabama, in early February, 1861, and there set themselves up as a new and independent republic under the name of "The Confederate States of America." But neither Virginia nor the other border states were represented in that convention.

Virginia, on the fourth of February, elected a constitutional convention to consider the question of secession. The result of that election was

altogether hostile to the purposes of the secessionists. An overwhelming majority of the convention elected on that date consisted of men resolutely opposed to the policy of secession.

Here a nice distinction must be made. The Virginians generally, and their accredited representatives in the constitutional convention, believed absolutely and without a shadow of questioning in the constitutional right of any state to secede from the Union at will. They agreed also in the conviction that the National Government had no constitutional right or power to use force of any kind in order to prevent the secession of any state or in order to compel its return to the Union.

But while they held these doctrines to be absolutely indisputable, the Virginians resolutely rejected secession as a policy. They saw nothing in Mr. Lincoln's election to justify a resort to so extreme a remedy, and they refused their assent to that method of procedure. It is important to bear in mind the distinction between the Virginian conception of states' rights and the Virginian conception of policy in the conditions created by Mr. Lincoln's election, because upon that distinction hung the issue of peace or war in the Republic. For nothing could be more certain than that without Virginia's pith and substance, and without the assistance of the states that waited for Virginia's decision before rendering their own, the cotton states would not have undertaken, seriously, a war of independence, or if they had done so, would not have been able to maintain their struggle against the Federal power for any considerable time.

Everything hinged upon Virginia's course and Virginia resolutely repudiated the policy of secession, denying that Mr. Lincoln's election afforded any just occasion or any sufficient excuse for a resort to that extreme remedy.

Accordingly all the forces of secession were brought to bear upon Virginia. All the hotheads in the state and many from other states, were set to make speeches. Most of the newspapers were purchased and placed in control of intemperate radicals who could be depended upon to make life not worth living for any man who hesitated to precipitate war. John M. Daniel, a gifted man of extreme views and highly intemperate prejudices, came home from his consular mission abroad and resumed control of his newspaper, the Richmond *Examiner*, only to make of its columns a daily

terror to every man in the convention or out of it who ventured to hope for peace and the perpetuity of the Union, through the efforts of John J. Crittenden's peace conference or through any other conceivable agency of compromise or reconciliation. Commodore, and afterwards Admiral, Farragut—himself a Southerner, and a resident at that time of Virginia,—said that Virginia was "dragooned out of the Union." The phrase is not quite accurately descriptive of what happened, but at any rate it correctly describes the attempts made to compel Virginia's secession and to secure with it the addition of all the strength of all the border states to the newly formed Confederacy.

The dragooning was attempted, but Virginia refused to yield. Her convention, undoubtedly representing with accuracy the will of her people, held out in opposition to every suggestion of the state's withdrawal from the Union.

Virginia stood thus as a bulwark against civil war for more than two moons, and there is little doubt that her influence and her attitude would have been effectual in preventing the war if only a technicality had been put aside in order that Virginia might not be forced to array herself against that Union of which she was largely the author and to which she still clung with loyal allegiance.

When in the middle of April, 1861, after the bombardment of Fort Sumter, Mr. Lincoln issued a call for 75,000 men to form an army with which to coerce the seceding states into submission, and included Virginia in that call, the Virginians felt themselves bound to choose between a secession for which they saw no possible occasion, on the one hand, and the lending of Virginia's power on the other to a program of coercion for which they recognized no constitutional warrant and no moral right. In making such a choice they saw but one honorable course open to them. A convention which had stood out against secession in face of vituperation, contumely and every other force that could be brought to bear in that behalf, voted for secession at the last as an alternative to injustice and dishonor.

This act—which the wisely diplomatic omission of Virginia from the call for troops would have averted—made the war not only possible but a fact.

But this is getting well ahead of the story. Let us go back.

Mr. Lincoln was elected on the sixth of November, 1860. He could not take his seat until the fourth of March, 1861. In the meantime the Government must remain in the hands of the peculiarly irresolute administration of James Buchanan, whose sole concern seemed to be to postpone the outbreak of actual hostilities until the expiration of his own term of office.

Commissioners were sent to him from the seceding states to arrange for the peaceful dissolution of the Union. He had no constitutional power to negotiate with them and he very properly refused to receive them in their official capacity. But on the other hand he did absolutely nothing to prevent or to check or in any way to interfere with the organization of the seceding states as a power in open resistance to the Union. It is a fact now apparent to all students of history that but for Virginia's refusal to join the secession movement, carrying with it as it did the refusal of the other border states, there would have been an organized power ready, upon Mr. Lincoln's accession to office, to assert and maintain the independence of the Southern states against any force that the North could have brought to bear against them.

The regular United States army at that time was ridiculously inadequate in numbers to undertake any enterprise of consequence. Its feeble forces were scattered from Maine to Texas, from Florida to Oregon. Its hands were more than full with the task of holding the Indians in subjection and protecting the borders against the ravages of savage war. The Buchanan administration called no volunteers into the field, while in every Southern state there were musterings at every county seat and military organizations of a formidable character.

In the meantime the newly elected president and those who supported him had no opportunity to make preparation for meeting these conditions. They were not even privileged to advise.

The administration that still remained in power was rapidly disintegrating. Four of the cabinet officers resigned their places, thus still further paralyzing the hands of the President. At the North there was a fixed conviction that secession was merely a bit of political play which would never be pushed to the point of actual war and consequently there was very

little of military preparation, while all the able-bodied young men of the South, and even of Virginia, which so emphatically refused to secede, were organizing and drilling and holding themselves in readiness for whatever might happen.

But everywhere there was apprehension. From the hour of the election returns in November until the incoming of Mr. Lincoln's administration on the fourth of March, conservative men at the North and at the South anxiously busied themselves in an endeavor to find a way out of the difficulty, to save the Union from disruption and the country from civil war.

On the second day of December the *Albany Evening Journal*, a newspaper edited by Thurlow Weed and the personal organ of Mr. Seward, appealed strongly and even passionately to patriotism throughout the country for "such moderation, and forbearance as will draw out, combine and strengthen the Union sentiment of the whole country."

But this and like appeals made by Union-loving, patriotic men North and South fell, not so much upon deaf ears as upon the ears of those who had lost control of their respective parties. Had the conservative men of the Nation been able to act together, they must undoubtedly have prevailed for peace in virtue of their majority of a million, but on both sides the radicals had seized upon the reins. At the South the secessionists were rejoicing in Mr. Lincoln's election under circumstances that gave excuse for the dissolution of the Union. At the North the radical abolitionists saw and welcomed in that event an opportunity to use the whole power of the Federal Government for the final extirpation of African slavery. At the North and at the South the extremists were in control, chiefly by virtue of their intensity and their clamor.

On neither side did the radicals desire the preservation of the Union; on neither side did they seek any amicable adjustment of the controversy. On the contrary they invoked controversy, invited disunion and courted war.

In Congress many efforts were made to find a plan and a basis of adjustment. By a vote of 145 to 38 the House of Representatives created a committee of one member from each state to consider the state of the Union and to report measures of pacification. The Senate adopted measures of like purport.

In that body Andrew Johnson of Tennessee—afterwards president—deliberately proposed a constitutional amendment to the effect that thereafter the president and vice-president should be chosen the one from the North and the other from the South and that the two sections should alternately enjoy the advantage of furnishing the incumbent of the higher office.

Even at that excited and unreasoning time there was probably no more insane proposal made than this. It would have put sectionalism into the Constitution itself. It would have limited both parties in their choice of candidates to men resident in one section or in the other; it would have made of the so-called Mason and Dixon's line a divisional boundary over which no political power, no popular preference, no vote, however overwhelming, could step; it would have changed the United States from the condition of a single, federal republic in which all the states and all citizens were possessed of equal rights into a bifurcated alliance between two antagonistic groups of states, the chief bond of union between which would have been an agreement that they should alternately govern each other.

Surely nothing more senseless, more absurd or more impracticable than this was ever proposed in any country by anybody pretending to be a statesman. But the fact that it was seriously proposed and earnestly urged by a senator who at the next election was nominated and elected vice-president and who became president by virtue of Mr. Lincoln's assassination, is suggestive at least and illustrative of the intensity with which the country and its statesmen were at that time longing for a way out of the difficulty and endeavoring to find it.

In the meanwhile the radicals and extremists on both sides laughed and jeered at all such endeavors to save a Union which they had doomed to destruction by their common fiat, though in nothing else were they agreed. They found means of thwarting every effort of conservatism, and, by intemperate and incessant vituperation, they succeeded in driving many thousands out of the ranks of patriotic conservatism on the one side or the other, and into support of their demand for disunion, chaos and black night.

It was frankly recognized by many leaders of public opinion at the North, that the Southerners were somewhat justified in their attitude by

their misconception of the Republican party's purposes and views, a misconception to which the intemperate utterances of extreme anti-slavery men, very naturally ministered. It was in recognition of this natural misunderstanding that Senator Benjamin F. Wade, himself an earnest and even extreme anti-slavery man, said in the Senate, two days before South Carolina seceded:

"I do not so much blame the people of the South, because I think they have been led to believe that we, to-day the dominant party, who are about to take the reins of government, are their mortal foes, and stand ready to trample their institutions under foot."

That was precisely what the Southern people believed. They were firmly convinced that the success of the Republican party meant a merciless, relentless, implacable war upon their labor and social system and upon themselves as the supporters and beneficiaries of that system.

Nevertheless they clung to the Union and labored for its preservation. Virginia supported by the other border states made every effort to secure a pacification.

Chief among these efforts was that made in Congress by John J. Crittenden of Kentucky. On the nineteenth of December, the day before South Carolina's adoption of the ordinance of secession, Mr. Crittenden offered a series of resolutions in the Senate which were designed to compose the troubles of the time and to furnish a basis of peaceful settlement.

Mr. Crittenden proposed amendments to the Constitution providing:

1. That slavery should be prohibited in all territories north of the Missouri Compromise line while they remained territories and freely permitted in all territories south of that line, but with the provision that every state to be formed out of such territory, whether lying north or south of that line, should be free to decide for itself whether or not as a state it would permit slavery.
2. That Congress should have no power to abolish slavery in any place subject to the exclusive jurisdiction of the United States—meaning, of course, the District of Columbia, the public reservations and the territories. It was especially provided that Congress should at no time abolish slavery

in the District of Columbia without the consent of the state of Maryland and of the owners of slaves within the District.

3. That Congress should not in any way forbid the traffic in slaves from one slave state to another.

4. That the United States should be liable for the value of any fugitive slave whose recapture should be prevented by force or by intimidation and that the county in which the force or intimidation had been used should be liable to the United States for the mulct.

There were other details which need not here be considered in view of the general absurdity of the proposal. Not even Andrew Johnson's plan, already set forth, embodied more conspicuous elements of impossibility. The Northern States would never have consented to these constitutional provisions. The Southern States would never have been satisfied with them, because they carried with them no effectual provision for their own enforcement. It was folly and futility, from beginning to end, but at any rate it was patriotic folly and country-loving futility. It represented the dominant desire of the people to find some basis of reconciliation upon which the crumbling foundations of the Union might be rebuilt and securely buttressed.

The proposal—absurd and impossible as it was—was strongly supported both in Congress and in the country. Mr. Pugh of Ohio expressed in the Senate the opinion that it would command the support of nearly every state in the Union, and he pointed out the fact that no other proposal ever submitted to Congress had been supported by the petitions of so great a multitude of citizens. The conservative newspaper press passionately urged its adoption, declaring it to be a measure which would completely disarm the disunion sentiment on both sides, and suggesting to Mr. Seward that one word from him in its behalf would make a final end of the fearful threat of war which overshadowed the country.

But all these urgings were founded upon neglect to consider the all-controlling fact that the conflict between slavery and anti-slavery had become actually irrepressible, with the added element of what Charles Sumner called a "sacred animosity."

There was an active, aggressive, anti-slavery minority at the North whose members cared not one pin-point's worth for the Union except in so far as they hoped to use its power for the abolition of slavery in any way and upon any terms that might be available. They had already declared their hostility to the Constitution, and the insertion of Mr. Crittenden's amendments into that document would have served only to intensify their hatred of it and to stimulate their purpose to be rid of it. On the other hand there was an active and ceaselessly aggressive pro-slavery party at the South whose members were resolutely bent upon the destruction of the Union in order that a new Republic might be founded with African slavery as its corner stone.

Between these two radical parties there could be no peace and no neutral ground upon which to negotiate a peace. Each held the Union in contempt—the one because the Constitution protected slavery, the other because it did not adequately protect that institution. Each was ready to sacrifice the Union if by such sacrifice it might achieve its cherished purposes. The one had decried the Union and its Constitution as "a league with death and a covenant with hell" but now clung to it as a power that might be conveniently used for the accomplishment of cherished purposes. The other had despaired of its hope of using the Federal power further for its own ends. The Southern extremists wished to destroy the Union in order that its power might not be used for the extirpation of slavery; the Northern extremists, who had formerly been equally willing to "let the Union slide," were now eager for its preservation in order that its tremendous potentialities of force and compulsion might be employed in behalf of that extirpation of slavery for which alone they cared.

Neither of these extreme parties in the least degree sympathized with any effort to preserve the Union for its own sake by measures of compromise and reconciliation. The Northern radicals wanted the South to secede in order that military force might be employed for the compulsory abolition of slavery. The Southern radicals wanted the Union dissolved in order that slavery might be no further interfered with.

Neither at the North nor at the South were the radicals even yet in a majority. But in both sections they held a sort of balance of power and in both they were in effect dominant.

Under such conditions, with a conflict so truly and hopelessly irrepressible confronting the country, what conceivable hope was there of a peaceful adjustment by means of Mr. Crittenden's resolutions, or by any other means that patriotic ingenuity might devise?

The first gun had not yet been fired, but there was war on, nevertheless, and no paper resolutions however plausibly phrased could stop its progress to the cannon and musket stage.

Mr. Crittenden's proposal of Amendments to the Constitution did not and could not command the two-thirds majority in Congress necessary to their submission to the several states for ratification. The cry of the Northern extremists was "No backing down! No inch of concession to the slave power! No surrender of the fruits of the victory we have won!" The cry of the Southern radicals was: "There is no use in paper guarantees! We cannot trust them! Our enemies have not kept faith in the past and will not keep faith in the future. Let us abandon the hopeless effort for compromises that cannot be enforced! Let us secede and set up a new republic of our own!"

Then came Virginia into the breach, as she had so often come before. Standing as she did for conservatism and for that Union which her legislature had been the first to suggest and which her statesmen had done so much to bring into beneficent being, she appealed to the sentiment of Union and patriotism throughout the land. Her legislature asked that all the states should appoint delegates to a great peace conference at Washington, whose statesmanlike duty it should be to devise and agree upon some plan of adjustment by which the danger that overshadowed the Republic might be averted. This appeal for peace was made on the nineteenth day of January, 1861,—more than a fortnight before the date appointed for the election of a constitutional convention in Virginia to consider the crisis.

It is idle to speculate upon the "might have been." What actually happened was that many of the states appointed to that peace conference delegates of radical views and intemperate minds, whose endeavors from first to last were ceaselessly devoted not to the task of finding a way out, but to the preconceived purpose of defeating the objects of the peace conference.

In the end a committee of that body did indeed recommend a policy practically identical with that outlined in Mr. Crittenden's proposed amendments to the Constitution. But the extremists on both sides and especially the politicians on both sides who sniffed preferment in the air of radicalism, were by that time so far dominant that the proposal came to nothing. It failed of acceptance in either house of Congress when put to a vote within a brief time before the end of the session.

Nevertheless Virginia still resolutely held out against secession and five other border states stood by her in that patriotic attitude for a month and a half more.

Mr. Lincoln was inaugurated on the fourth of March, and straightway there set in a rivalry among the Republican leaders for the control of his administration. Even those who had most actively aided in his election gravely misunderstood and seriously underestimated the character of the man they had chosen to be president. They assumed from the beginning that somebody, other than himself, must direct his administration, and there was eager rivalry among them to usurp that function.

They did not know Abraham Lincoln or realize his intellectual or moral power. The extreme abolitionists beset him with plans to make war upon the seceding states with the avowed purpose of abolishing slavery in all the states by the high hand and without regard to that Constitution which they had declared to be a "league with death and a covenant with hell." To these Mr. Lincoln replied that while they were free to advocate any policy they pleased, he at least, was bound by his official oath to support and maintain the Constitution of the United States. In the end, of course, and when strenuous war was on he did indeed take a different view. As a "war measure" he in the end proclaimed emancipation, without even a pretense of constitutional authority to do so, and indeed in direct defiance of the Constitution. But at least he hesitated to do this, and waited before doing it until the exigencies of an uncertain war seemed to force that extreme measure upon him as one of national self-defense.

At the first he decided as his fixed policy to assert the authority of the National Government in the seceding states, to insist upon the enforcement of the laws there, to recover such government property as those states had seized upon and to use such force as might be required for these ends. He

clearly understood that there were men by hundreds of thousands in the North who would stand by him in an endeavor thus to restore and maintain the Union, but who would instantly and angrily desert him should he proclaim a war for the extirpation of slavery within the states in which that institution constitutionally existed.

Accordingly he addressed all his endeavors solely to the task of asserting and maintaining the national authority in the seceding states.

Had all the Southern states seceded before he assumed office his problem would have been an easy one. He would simply have had to call upon the Northern states for military forces sufficient to carry out this program of law enforcement. But Virginia had not seceded, and five other Southern states had submitted their course to Virginia's decision. Virginia was anxiously busying herself to find some ground of reconciliation, some means of accomplishing that preservation of the Union which Mr. Lincoln had declared to be his own and only object of endeavor.

But if Mr. Lincoln was to enforce the laws in the seceding states, and thus to maintain the Union, he must have troops. The little regular army could not furnish them. Either the militia must be called out or volunteers must be summoned for the purpose.

Mr. Lincoln called upon all the states that had not yet seceded for their several quotas required to make up an army of 75,000 men, with which in effect to coerce the seceding states into submission. He demanded that Virginia should furnish her quota of troops for this purpose, and Virginia, deeming the purpose to be an unlawful and iniquitous one, decided to secede—as she had thitherto resolutely refused to do—rather than aid in a coercion which all her Union-loving and peace-loving people regarded as a wrong, an injustice, an unconstitutional and unlawful aggression upon the rights of sovereign states.

Virginia seceded unwillingly and not at all because her people regarded Mr. Lincoln's election as affording any just ground for the withdrawal of any state from the Union, but solely because the mother state was forced to choose between secession on the one hand and the lending of active assistance on the other to what all Virginians regarded as a wicked and wanton warfare by the Federal Government upon sovereign states for having exercised what all Virginians held—as most Americans had

previously and sometimes aggressively held—to be their reserved rights under the Constitution.

It was on the fifteenth day of April, 1861, that Mr. Lincoln called upon Virginia for her quota of troops with which to coerce the seceding states into submission. It was on the sixteenth day of April that Virginia's constitutional convention, bravely resolute in its love for the Union and in its antagonism to the policy of secession, was confronted with the choice of furnishing troops to aid in what its members almost unanimously regarded as a political crime or the alternative of joining that secession movement from which the sober and conservative thought of Virginia had so long and so courageously held aloof in defiance of criticism and in face of contempt and contumely.

To men of high minds, holding these views, there could be but one choice in such a case. They decreed that Virginia should prefer a secession which that state overwhelmingly disapproved, to a dishonor which no Virginian could contemplate with a satisfied mind. Accordingly Virginia's strongly pro-Union convention reluctantly adopted an ordinance of secession, on the seventeenth day of April, 1861, not of choice but upon a conviction of necessity. The other border states that had waited for Virginia's decision to determine their own, became at once members of the new Southern Confederacy and the question of war or peace was finally decided in behalf of war—war to the limit of possibility, war to the utmost end of endurance, war to the point of exhaustion on the one side or the other.

A wise prophet, basing his prophecies upon the patent facts of the situation, could not have failed to foretell the outcome of such a war with precision and certainty. The utmost that the South could do—even by "robbing the cradle and the grave" as was wittily and sadly said at the time, was to put 600,000 men into the field, first and last. The North was able to enlist an aggregate of 2,778,304, or, if we reduce this to a basis of three years' service for each man, the Union enlistments for three full years numbered no less than 2,326,168—or nearly four times the total enlistments in the Confederate army from beginning to end of the war. Yet the Confederate armies included practically every white man in the South who was able to bear arms. There was in effect a levy *en masse*, including the entire white male population from early boyhood to extreme old age.

Again the Federal Government had a navy and the Confederates none. It was certain from the beginning that the Federal authorities would completely shut the South in by blockading and closely sealing every southern port. Thus the Federals—as was apparent in advance—were destined to have the whole world to draw upon for soldiers, for supplies, for ammunition, for improved arms and for everything else that contributes to military strength, while the South must rely absolutely upon itself—ill armed, and unequipped with anything except courage, devotion and heroic fortitude.

There were no facilities at the South for the manufacture of arms. There was not an armory in all that land that could turn out a musket of the pattern then in use, not a machine shop that could convert a muzzle-loading rifle into a breech-loader or give to any gun so much as a choke bore. There were foundries that could cast iron cannon of an antique pattern, but not one that could make a modern gun. There were machine shops—a very few—in which the Northern-made locomotives then in use on Southern railroads could be repaired in a small way, but there was not in all the South a shop in which a useful locomotive could be built. Nor were there any car builders who had had experience in the making of rolling stock fit for service.

In brief the South was an agricultural region accustomed to depend upon the North and upon Europe for its mechanical devices and the outbreak of war was clearly destined to be the signal for the shutting off of both Northern and European supplies. Even in the matter of medicines—and greatly more soldiers die of disease than of wounds—the South had no adequate supply and no assured means of creating one for itself. Quinine, calomel and opium were scarcely less necessary than gunpowder and bullets to the conduct of military operations. Yet there was nowhere in the South a "plant" that could produce any one of those drugs. Nor was there anywhere a mercury supply from which calomel might be made. Early in the war it became impossible to procure so much as a Seidlitz powder in the South. There was nowhere a factory that could make a scalpel, to say nothing of more ingeniously contrived surgical implements. The materials for making gunpowder were so wanting that citizens were urged a little later to dig up the earthen floors of their smoke-houses and their tobacco barns and were instructed in the art of extracting the niter from them. In the towns women were officially solicited to save their chamber lye and deliver it to

the authorities in order that its chemicals might be utilized in the creation of explosives. Farmers were by law forbidden to burn corn cobs in their fire places and required to turn them over instead to the authorities in order that their sodas and potashes might be utilized in the manufacture of gunpowder. Women were urged to grow poppies and instructed in the art of so scarring the plants as to secure the precious gum from which opium could be made for the relief of suffering in the hospitals. They were taught also how to harvest and stew dog-fennel in order to secure a substitute for quinine. The negro boys were set at work to dig up the roots of the dogwood, and women were taught to extract from the bark of such roots a bitters which served as a substitute for the unobtainable quinine.

In short, at every point the South was lamentably lacking in supplies, and the blockade, established early in the war, forbade the incoming of such things as were needed except at serious risk of capture and confiscation.

Even food supplies were from the first to the last meager. The South produced very little corn, pork, wheat, and the like, in comparison with the production of the great northwestern states or in comparison with the need that was created by the enlistment of all the able-bodied white men of that region in the Confederate army.

Thus the South was at a fearful disadvantage from the first; the wiser men of the South knew the fact in advance. They had courage and they had little else. Their achievement in maintaining a strenuous war for four years in face of such disparities of force and resources, must always be accounted to their credit as brave and resourceful men.

It was certain from the first that the South must be beaten in its struggle—unless by dash and daring it should win at once, or unless, by some remote chance, assistance should come from without. The chance of that was very small but it existed as a factor in the problem. The chief hope the Southern people had of winning the war upon which they entered with courage and enthusiasm was born of the delusive belief that the god of battles awards victory, not to the strong but to the righteous. They devoutly believed that their cause was righteous, and, in spite of all the teachings of history, they expected God to interpose in some fashion to give them the victory. They believed themselves to be battling for the same right of self-government among men that their revolutionary ancestors had fought for,

and they refused to recognize any disparity of resources between the contending forces as a sufficient reason for their failure under the rule of a just God in whose reign over human affairs they devoutly believed.

They were sentimentalists. They believed that ideas rather than facts ruled the world and its affairs. They had been nurtured upon the Bible and Scott's novels, and they believed in both.

Had any prophet arisen among them who should have measured their resources against those of their adversary, they would have refused to listen to his prophesyings. They would have gone on believing that they were entirely certain of success and victory by reason of what seemed to them the indisputable righteousness of their cause.

There were men among them who rightly recognized the enormous disparity between the resources of the North and those that the South could command. But such men were few and their counsel counted for nothing.

As for the extremists, they anticipated military commissions and political preferment for themselves, and they cared for little else than to occupy a conspicuous place in public attention for a little while. They were in spirit gamblers, ready to stake everything upon uncertain chance. They wanted war for the sake of what war might bring to them of advantage, and they were ready to stake everything upon the hazard of their own fortune.

It was in Virginia mainly that there were men of soberer minds, as had been demonstrated in the Virginians' choice of men to represent them in their constitutional convention. But even in Virginia there were hotheads and fools a plenty, who believed that a war was to be won by hurrahs, and that enthusiasm was an effective substitute for ammunition.

The secession of Virginia made the war a fact and a necessity. So long as that had been delayed there had remained a hope of reconciliation and adjustment by peaceful devices. When that event occurred it was certain that the question at issue must be fought out upon bloody battlefields.

The final stage of the controversy had been reached. The case had been appealed to the arbitrament of steel and gunpowder. Argument was at an end and brute force had come in as umpire. It was a melancholy spectacle over which the gods might well have wept. But men on both sides greeted it joyously as if it had been a holiday occasion.

BOOK II
THE CONDUCT OF THE WAR

CHAPTER XI

THE REDUCTION OF FORT SUMTER

The events that brought about the Confederate War, the conditions and circumstances under which it occurred, and the passions and prejudices which inspired that bloody and most lamentable conflict have been sufficiently and quite truthfully set forth, the author believes, in the preceding chapters of this work. He has sought to show them forth without prejudice, and in a spirit of the utmost candor and fairness. It is the function of the historian to record facts, not to complain of them; to describe conditions, not to criticize them.

After nearly half a century of study it is the firm conviction of the present historian that the Confederate war was a necessary and unescapable result of historic conditions; that nobody in particular was to blame for it, because there was nobody who could have prevented or averted it. History and circumstance had combined to compel its occurrence, and for its occurrence no person and no party was in any accountable way responsible. It occurred because the logic of circumstance compelled it, and it was fought out with conscience upon both sides.

Incidentally there were wrongs done in its conduct, quite as a matter of course. He must be a stupid reader of history who does not understand that the doing of wrong is inevitable in every great historical event. But he must also be a very stupid and prejudiced reader of history who can contemplate the story of the Confederate war without realizing that on the one side and on the other conscience was the inspiring motive of it. He must be dull indeed who fails to see that devotion had its part to play on both sides and that on both sides it played it well, to the everlasting glory of the American name.

The story of the war on the one side, and on the other, is a story of American heroism in courage and in endurance, in battle and in camp, in action and in the patient submission to hardship, in dash and in defeat, in assault and in retreat. The purpose of the succeeding chapters is to tell that story without passion or prejudice, without fear or favor, and with no flinching from the truth, whithersoever it may lead.

So far as actual fighting was concerned, the war began with the bombardment of Fort Sumter, in Charleston Harbor on the morning of April 12, 1861.

When President Lincoln was inaugurated, the total military force at command of the Government amounted to a mere handful of men, and these were mainly occupied with the duty of garrisoning frontier posts and maintaining the subjection of the Indians. So far as eastern positions were concerned there were scarcely enough men in the forts to take care of the government property there and perform a perfunctory guard duty.

The total force in Charleston Harbor consisted of seventy men under command of Major Robert Anderson. This force occupied Fort Moultrie, at that time an indefensible position by reason of the unfinished character of its fortifications and the ease of approach to it from the land side.

As a matter of military prudence and under a threat of war, Major Anderson decided to transfer his little force to the far more defensible and, to Charleston, the far more threatening work, Fort Sumter. This he did in the early morning of December 26, 1860.

This military transfer of force from an indefensible to a defensible work, was construed by the Confederates to be a distinct violation of the agreement which had been made by the Buchanan administration, to the general effect that, pending final negotiations, there should be no change made in the military situation at any point in the South.

Major Anderson's transfer of his little force from Fort Moultrie, where it might easily have been captured from the land side to the sea-girt fortress in the middle of the harbor, was held to be a violation of this compact. Without going into the lawyers' quibbles concerning that question, let us recognize the situation and relate the events that grew out of it.

The Confederates, under the skilled direction of General Beauregard, a little later began the construction of works and the emplacement of guns that should completely command Fort Sumter. There was in all this a good deal of the "fuss and feathers" that plays so large a part in the beginning of every war made by a people wholly unused to military operations. With a field battery and one columbiad or one Dahlgren gun, General Beauregard could easily have reduced Fort Sumter on any one of the long days of waiting and preparation. Or, with a single battalion of determined men he could have taken it by assault in spite of such resistance as its feeble defending force could have offered. But those were the days of spectacular effects. The "pomp and circumstance of glorious war" were necessary agents in the work of so exciting the southern mind as to overcome the reluctance of Virginia, North Carolina, Tennessee, Arkansas, Kentucky and Missouri to join the seceding column. So pomp and circumstance were freely invoked.

General Beauregard's preparations for the reduction of a brick fort which must quickly crumble under an efficient artillery fire, defended as it was by less than a single company of men, were such as might have been made for the reduction of some fortress like that at Gibraltar, or the elaborate works in the Bermuda Islands.

But it was not the purpose of either side to bring on the inevitable war as yet. The quibbling lawyers and phrase-mongering diplomatists were busy at work in wordy fence, each trying to force upon the other the technical responsibility of beginning the war by some act of forcible aggression.

On both sides every nerve was strained to make military preparations, precisely as if the coming of war had been recognized as certain—as in fact it was—while on both sides there was a jealously maintained pretense of entirely peaceful purposes. The organization of military forces on either side was easily explainable and excusable upon the plea of prudence and of a necessary preparation for conceivably possible emergencies, and on both sides these preparations for war served to arouse the fighting instincts of the populace and thus to make war more and more obviously inevitable.

During the first forty days or so of Mr. Lincoln's administration there was nothing done that was not in consonance with the Buchanan program of peace and waiting. Nothing was undertaken of a more positive character

than the acts of the Buchanan rule. So far as proclamations and professions and pledges of peaceful purpose were concerned there was no change either for better or for worse.

In his inaugural address Mr. Lincoln outlined his policy by saying of the administration that it aimed only at the preservation of the Union. He said, "It will constitutionally maintain and defend itself. In doing this there need be no bloodshed or violence, and there shall be none unless it is forced upon the national authority. The power confided to me will be used to hold, occupy, and possess the property and places belonging to the Government, and collect the duties and imposts; but beyond what may be necessary for these objects, there will be no invasion, no using of force against or among people anywhere. In your hands, my dissatisfied fellow countrymen, and not in mine, is the momentous issue of civil war. The Government will not assail you. You can have no conflict without being yourselves the aggressors."

All this was very specious and to the Northern mind convincing, but it ignored the fundamental fact that the seceding states claimed a constitutional right to secede and that having exercised that asserted right, they denied the right of the United States Government to "hold, occupy and possess," forts, arsenals or custom houses within their territory, or within that territory to "collect duties and imposts." The very vitals of the question at issue were involved in that assumption of right on the part of the Federal Government to impose and enforce laws and imposts, and to assert and maintain rights of property possession within the territories of states that had, as they resolutely contended, taken themselves out of the Union by rigidly constitutional methods.

It is not purposed here idly and uselessly to discuss this constitutional question. It is only intended to show how it presented itself to the minds of men on the one side and upon the other. To the Northern mind, which had forgotten its own pleas for disunion and its own claims of the right of any state to secede, Mr. Lincoln's declared purpose seemed an altogether righteous and reasonable proposal of governmental activity and necessary national self-assertion. To the Southern mind, in which the traditional doctrine survived of the right of any state to secede at will, it seemed a proposal of intolerable aggression.

If the seceding states had acted within their constitutional right in seceding, then they were no longer within the dominion or in any remotest way subject to the jurisdiction of the United States. Any attempt on the part of that government to exercise jurisdiction or to "collect duties and imposts" within their borders was a trespass upon their independence, an affront to their dignity, an invasion of their sovereignty, in brief an act of direct war upon them.

Mr. Lincoln's inaugural address, as the Southerners held, begged the whole question at issue. It assumed that secession was an unconstitutional nullity and that the seceding states were still in the Union and still subject to its laws, its imposts and its duties. That was the whole matter in dispute. If that assumption was correct then it was permitted to him to use any force he might see fit to employ with which to compel them to obedience. But if the assumption was incorrect—if those seceding states had in fact constitutionally withdrawn from the Union, as they contended that they had done—then he had no more right to exercise authority, to enforce laws, to possess "places and property" or to "collect duties and imposts" within their boundaries than he had to do the same within the domains of Britain, France or Germany. This was the very marrow of the question at issue.

Mr. Lincoln's words spoken in his inaugural address were meant to be placative to Southern sentiment and to minister to that reconciliation which from beginning to end was the sincerest desire of his soul. But they were based upon a seemingly total misconception. They constituted a refusal to recognize what the South held to be a fundamental fact. Mr. Lincoln's placative words did not placate for the reason that they completely ignored the Southern contention. They became instead, directly offensive as an assertion of the wrongfulness of secession, and its utter lack of constitutional authority.

His words, the men of the South thought, claimed either too much or greatly too little.

All this was only a part and a small part of the fencing by which the men in high place on either side sought in that troubled time to shift, each to the others' shoulders, responsibility for the actual and brutal beginning of a war which was clearly inevitable, and the occurrence of which had been

made steadily more and more a necessity by the events of history during generations past.

In the meanwhile both sides were making every possible preparation for a war that had not been declared, a war that both professed to regard as unnecessary, a war for the outbreak of which each was determined that the other and not itself should bear all the blame.

The Congress at Washington had adjourned at the beginning of March without making any warlike appropriations whatsoever. Forty days of Mr. Lincoln's administration had passed without the calling of a regiment or a company or even a soldier into the field. Congress had indeed passed a resolution declaring its purpose to avoid war and its conviction that every possible concession should be made by Northern sentiment in avoidance of that terrible catastrophe.

It had resolved:

"That the existing discontents among the Southern people, and the growing hostility to the Federal Government among them, are greatly to be regretted; and that whether such discontents and hostility are without just cause or not, any reasonable proper and constitutional remedies and additional and more specific guarantees of their peculiar rights and interests, as recognized by the Constitution, necessary to preserve the peace of the country and the perpetuity of the Union, should be promptly and cheerfully granted."

But how much did this resolution signify? It was passed by more than a two-thirds majority of a rump House of Representatives after the Southern members of that body had withdrawn from it. It therefore seemed to represent Northern and Republican sentiment. But the Senate rejected it and it came to nothing. It was a resolve that concessions should be made and that new guarantees should be given in the interest of the Union's preservation. But, the Southerners pointed out, the concessions were not made and the new guarantees were not given.

It was impossible, in fact, that these things should be done. It was easy for Congress to resolve that "any reasonable, proper and constitutional remedies and additional and more specific guarantees" should be given, but quite another thing to secure the execution of such a program. One house of

Congress vetoed the action of the other on every such resolution and both refused to put the guarantees into legal form. Northern sentiment saw and resented in every such proposition a suggestion of still further concession to that slave power which Northern sentiment had come to abhor with all the loathing that is possible to the human mind, and Northern sentiment would have no part or lot in concession to a system which under compulsion of the Constitution it might tolerate but to the perpetuation of which it would on no account lend a hand.

On the other side the extremists of the South asked for no further guarantees and trusted none that might be offered. They contended that the guarantees of the Constitution itself had been nullified by the laws of the Northern States; that every compromise had been broken; that, as they insisted, Northern sentiment had openly and distinctly approved of servile insurrection, with all the horror that it must imply, as a means of abolishing slavery; and that there was no further hope of reconciliation by virtue of paper guarantees which the Federal Government had no adequate power to enforce.

The issue had, in fact, been made up and all attempts at compromise were futile folly. The war to which the country's history and politics for half a century past had been leading had at last come and the only real question that remained to be settled was that of who should begin the actual fighting. That detail was of no real importance.

The South bore its part in all this by-play and coquetry of endeavors at reconciliation. It sent distinguished men as delegates to plead for peace at Washington, either, as some of them urged, upon some basis of compromise or, as others insisted, upon a governmental recognition of secession as a right and a fact, the recognition of which would indeed have furnished a peaceful remedy for ills otherwise irremediable, an easy and peaceful way out of a controversy that otherwise threatened a savage, brutal and peculiarly devastating war. But that remedy was obviously and absurdly impossible of adoption in the circumstances then existing.

Neither side was in the least degree disposed to accept or even seriously to consider the peace proposals of the other. Neither being willing to yield a single item of its contention, there was no ground or chance of

compromise. It was clearly understood upon both sides that war was presently to come.

On both sides there was an active sharpening of swords and a diligent rubbing up of guns that might prove serviceable in war.

At the South practically all the able-bodied young men were enlisted in what were then called "volunteer companies," though it did not yet appear in what cause they were supposed to be volunteering. They were drilled and disciplined and made into something at least remotely resembling soldiers. Their familiarity with firearms and their habits of strenuous outdoor life fitted them for comparatively easy transformation into troops.

At the North there was an equally active preparation for war. Among other warlike initiatives a fleet was preparing for the relief of Fort Sumter or at the least for a threatening manifestation off Charleston harbor. It had every equipment—even to surf boats for use in enforced landings—that such a fleet could require, and it presently sailed. Neither mail nor telegraphic communication between the North and the South had as yet been interfered with, and so every detail of preparation made upon either side was instantly reported to the other.

These were the conditions in which the actual struggle approached. When on the night after Christmas Major Anderson transferred his little handful of men under cover of darkness from the hopelessly indefensible works of Fort Moultrie to the seemingly much stronger position at Fort Sumter, the Confederates clamorously contended that the change was a violation of the Buchanan administration's promise to maintain the military *status quo*. They seized upon the occurrence as an excuse for that erection of batteries around the harbor which has already been spoken of. In the meanwhile they courteously extended the hospitalities of the city of Charleston to Major Anderson, freely permitting him to send men ashore and to supply himself in the Charleston markets with fresh vegetables, butter, eggs, milk and whatever else he needed for the comfort of his command.

But when an attempt was made during the Buchanan administration to provision Fort Sumter for a siege, the steamer *Star of the West*, which carried the supplies, was forbidden to approach the fort and compelled to put again to sea.

Then followed negotiations which were marked by all that suave and gentle courtesy which characterizes the preliminary communications between duelists who intend presently to shoot one another.

The state of South Carolina, claiming to be an independent sovereignty and a member of a new and sovereign confederacy, courteously asked the United States Government to withdraw its military force from Charleston Harbor. The state represented that the military occupation of a fortress within its domain by another sovereign power was derogatory to the dignity and independence of the state. It courteously offered adequate compensation to the United States for any property that might be involved in the change but politely insisted that the United States Government should cease to trespass upon the dignity of a sister nation.

To all this the Buchanan administration with equal courtesy replied, declining to recognize in South Carolina the status it claimed as an independent state, but seemingly at least promising the early evacuation of Fort Sumter.

All this was "play for position" on both sides and it produced the desired effect. It put South Carolina and the seceding states "right upon the record." That is to say, it enabled them to avoid even the appearance of recognizing the existence of Federal authority within their borders and on the other hand it gave to the more or less friendly administration of Mr. Buchanan the opportunity it desired to finish its term without armed conflict and without the necessity of assuming any positive and pronounced attitude toward secession.

But even after Mr. Lincoln came into office the clash of arms was postponed. Neither side was as yet ready for it, and each earnestly desired to throw upon the other the responsibility of precipitating a conflict which was clearly inevitable and for which each must account as best it could to that "opinion of mankind" to which the American Declaration of Independence had been reverently addressed as an act of "decent respect."

So for forty days or so after Mr. Lincoln assumed office there was nothing done, except in the way of preparation for emergencies. In the meanwhile Virginia still held aloof from the secession movement and five other border states—the chief sources of that military strength which resides in a food supply—were waiting for the word from the mother state.

It began to be understood in South Carolina that something must be done to compel Virginia to take her stand one way or the other. There was little if any doubt that upon the abstract right of any state to secede, Virginia stood firmly with the South. But her protest was resolute against the contention that secession was at that time either necessary or politic. It was necessary, therefore, to "force Virginia's hand," as whist players say, to do something which might leave to that state no choice but that between secession on her own part and consent, on the other hand, to the doctrine that the National Government was possessed of a right to coerce, and by military force to subdue, states that had assumed to act upon what they claimed to be and what Virginia freely recognized as the right of each state to withdraw from the Union at its own good pleasure. It was plain that the war must be hurried into being if the new Confederacy, composed exclusively of the cotton states, was to ally Virginia and the other food-producing states of the South with itself and thus secure any hope or even any chance of success in its effort to maintain itself.

Accordingly General Beauregard, who was in command at Charleston, was ordered to demand the surrender of Fort Sumter, and upon refusal to reduce that work. This was a ridiculously easy task. But its execution was a thing of momentous consequence.

Major Anderson, who commanded the fort with its mere handful of men, was himself a man of Southern extraction, as were Farragut, George H. Thomas, Winfield Scott and even Lincoln himself. But Anderson was a soldier in the United States Army and while he freely declared that his heart was not in a war against the South, he had no thought of failing in his soldierly duty.

When on the eleventh of April, 1861, he was summoned to surrender, he refused, as it became a brave officer to do. He knew perfectly well that Beauregard had force enough and cannon enough and ammunition enough to reduce a dozen such forts as that which he commanded, but in that spirit which throughout the war animated every good soldier of whatever rank in both armies, he refused to yield until such time as physical force should overcome his powers of resistance and compel his surrender. There was a relieving fleet in the offing, but, though it drew near enough during the action for Major Anderson to salute it, it rendered him no assistance and indeed made no attempt to do so.

Beauregard opened fire upon the fort at 4:20 A.M. on the twelfth of April, from batteries located at every available range point. The unfitness of the antiquated masonry work to endure a bombardment was quickly and, to Major Anderson, disastrously demonstrated, but in spite of all he heroically held out until on the next day his men were literally driven from their guns by the smoke of the burning quarters within the fortification. Unable to make further resistance and obviously hopeless of assistance even from that fleet in the offing which had been elaborately equipped and sent to effect his reinforcement and rescue, he at last capitulated.

He was permitted to salute his flag before lowering it, to march his command out of the fort with military honors, and to sail North with his men.

Those were the mild-mannered, courteous, drawing-room days of war. The butchery and brutality were to come later. Nobody had been killed by the fire of either side, and nobody wounded. The courtesy which had marked all relations between Major Anderson and the Carolinians was maintained to the end. Major Anderson left Charleston as any honored guest might have left a hospitable mansion in Charleston Neck after entertainment, with the good wishes, the friendship, and the godspeed of his hosts. Nothing could have been pleasanter or more exquisitely courteous than this encounter and this parting. But it was the preface to a war which sent brave men by scores of thousands to their graves, desolated thousands of homes, North and South, made widows of loving wives and orphans of unoffending children.

So far as the direct effect of the spectacular but bloodless bombardment of Fort Sumter was concerned it failed of its purpose. Even such an event did not prompt the Virginia convention, as had been hoped and confidently anticipated, to adopt an ordinance of secession. On the day after news of it was received in Richmond the representatives of the mother state stood as resolutely as ever in opposition to a secession program, which they deemed at once impolitic and unjustified by anything in the situation of affairs.

But the bombardment accomplished its intended effect by indirection. It gave Mr. Lincoln occasion to call for a volunteer army with which to meet what had thus assumed the character of a war upon the United States. As has been already related he called for seventy-five thousand men and

demanding of Virginia that she should furnish her proportional part of that force. After many weeks of resolute resistance to what the Virginians regarded as a policy of quixotic folly and certain destruction, the Virginia convention on the seventeenth of April, 1861, adopted an ordinance of secession. From that hour war was on in earnest, as both sides quite clearly understood.

CHAPTER XII

THE ATTITUDE OF THE BORDER STATES

With the secession of Virginia on the seventeenth of April, 1861, there came a final end to all hope of finding a way out. The active border states did not immediately declare their secession indeed, but that was a foregone conclusion so far as Arkansas, North Carolina and Tennessee were concerned, and military proceedings did not wait for the formal act. That came on the sixth of May, in Arkansas, on the twentieth of May in North Carolina, and on the eighth of June in Tennessee. Kentucky and Missouri were so divided in sentiment that no united action for or against the Union could be secured.

Kentucky officially assumed an attitude of neutrality to which neither side paid the smallest attention then or later. That indeed was the most impossible of all conceivable attitudes. It assumed to the state all the independent right of action that secession itself implied, without asserting a claim to the right of secession. It proclaimed Kentucky to be so far out of the Union as to demand respect for its neutrality and so far in the Union as to exercise its full voice in Congress. It warned the armies of both sides to avoid trespass upon Kentucky's territory, a warning which, if Kentucky had undertaken to enforce, it would have involved that state in immediate war with both the combatants at one and the same time. The thing was ridiculous from the beginning, absurd in conception and a ludicrous failure in execution. There was later a pretense of secession by a so-called convention in that state, but it was not taken seriously on either side, and in the end the state furnished volunteers to both the contending armies in substantially equal numbers.

Tennessee did much the same thing but in a different fashion. That state's adoption of an ordinance of secession was quite regular in form. It

had all the validity that the like ordinance adopted by any other state had or could have. But it did not and could not command the obedience of Tennessee's people in anything like the degree in which secession ordinances in other states had commanded the obedience of the people of those states. The advocates of secession had secured a majority vote in Tennessee, but it was not a very pronounced majority. Still more important, the division of sentiment there was mainly geographical. In the mountainous eastern part of the state and in the adjacent mountains of North Carolina where slavery scarcely at all existed and where little mountain farms and hunters' log cabins stood in the place of plantations and stately mansions, the sentiment was overwhelmingly in favor of the Union. This was perhaps scarcely more largely due to a feeling of loyalty to the Union, though that was strong, than to a still more active sentiment of hostility and antagonism to the wealth and social pretensions of the cotton and tobacco planters whose more fruitful fields lay farther to the west.

The often illiterate but shrewdly intelligent mountaineers, to whom education had offered few and very meager advantages and with whom fortune had dealt rather harshly, were very naturally jealous of their better educated, better fed, and altogether more prosperous neighbors. It is hard for the man who trudges afoot or rides astride an underfed mule for which his forage supply is scant, to entertain kindly feelings toward the man who goes about in his carriage drawn by sleek and negro-groomed horses. It is not easy for the man who houses his family in a mud-daubed log hut and feeds his half-clad wife and children upon corn pone and an often uncertain ration of bacon or salt pork, to avoid sentiments of discontent when he realizes how much easier and more luxurious is the lot of those who "wear purple and fine linen and fare sumptuously every day."

So, in the mountain regions of Tennessee, among the stalwart six-footers who were inured to hardship, and who knew all there was to know about using a rifle with effect, there was a very general impulse to join the Union armies and fight against the slave-holding class, whom they regarded as hereditary enemies.

In the region a little farther west this class antagonism was intensified by a closer contact and one often more exasperating. Between these two classes there was instinctive and implacable war already; and when the time came for the poorer Tennesseans to choose on which side they would fight,

they very generally elected to fight against and not for an institution which they believed to be the source and origin and ultimate cause of that social inferiority which so galled and irritated and angered them.

Let us not misunderstand. These people had no theories on the subject of slavery. The few of them who could in any wise come into the ownership of a negro held to that property possession as resolutely as they would have held to the ownership of a mule or an ox. They were not troubled by any scruples of conscience concerning the ownership of human beings or beset in their minds by any abstractions as to human rights. They no more regarded the negro as the equal of the white man than did their plantation owning neighbors. A negro was in their eyes a "nigger," to be worked to his utmost capacity and mercilessly lashed when guilty of any insolence. They were even less ready than their wealthier neighbors to tolerate any assumption of equality on the part of a negro. They were quicker even than the planters to see and resent such assumptions because their own social status as the superiors of black men was less marked and less secure than that of the planters. A very small concession on that point would have obliterated the only social distinction that these poor cabin dwellers enjoyed.³

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The author had occasion closely to note a like attitude of mind on the part of the cabin dwellers of the Virginia mountains, with whom he was brought into close and constant contact during the war. No rich planter in all the land could have been more insistent than they were upon the social distinction between a white man and a negro or readier than they to resent negro assumption.

But these mountain dwellers—these children of poverty and hardship—saw no reason why they should fight for a system which they resented with every impulse of their minds; a system which somehow—they could not reason out how—created the disparity of fortune and social status and personal comfort which existed between themselves and their plantation-owning neighbors.

In Missouri the situation was different. There too the population was divided in sentiment but not upon strictly geographical lines, in any pronounced way at least. In Missouri more than anywhere else, the war took on the character of a true civil war. There was a pretense of secession there also, but it represented only a part of the population and amounted only to a declaration in favor of the South by what may or may not have been a majority of the people. It led instantly to war, but it did not distinctly place Missouri either in the list of seceding states or in that of states that adhered to the Union.

Thus the issue was made up. Eleven states, namely, Virginia, North Carolina, South Carolina, Georgia, Alabama, Mississippi, Louisiana, Texas, Arkansas, Tennessee and Florida, had formally seceded. Kentucky had absurdly and futilely declared an impossible neutrality, Missouri had entered upon a program of civil war within her own borders. Maryland adhered to the Union but sent the flower of her young manhood into the rival camps with an almost equal hand. Delaware, though nominally a slave state, was so situated as to be out of the reckoning of secession. The rest of the states adhered to the Union and were prepared to support its cause with unnumbered men and unstinted means.

It is true nevertheless that in most of the Northern States there was a strongly hostile and pro-Southern sentiment that must be reckoned with, and in New York and some other states the reckoning was a difficult one, but in no state did that sentiment at any time during the war so far secure control of affairs as to produce disastrous results to the Federal arms or cause.

Yet how dangerously and threateningly strong that sentiment was, is easily illustrated by statistics. In the presidential election of November, 1864, after the war had been in active and very bloody progress for more than three years and a half, and after the power of the Confederates to resist had been enormously reduced by battle, by blockade and by the wearing lapse of time, there was a comparatively narrow majority of votes cast in the Northern States in behalf of the Union cause.

McClellan was the Democratic candidate for president. He was running upon a platform the dominant note of which was a declaration that the war for the restoration of the Union had proved itself a failure and should be brought to an end. This could mean only that the United States Government should recognize the Confederate Government as a separate, independent and equal power, and make peace with it on such terms as could be secured. There is no other construction possible that would be accepted anywhere outside the pages of *Alice in Wonderland*. It was a distinct and definite proposal that the United States Government should give up all its contentions, withdraw its armies from the South, raise its blockade, admit that its efforts had failed, recognize the independent sovereignty of the Confederate States, and make the best peace it could with that Republic as a conquering power. Yet so strong was the anti-war sentiment at the North that, with only the people of the Northern States voting, the Democratic candidate received no less than 1,808,795 votes against 2,216,067 for his adversary. In other words the proposal to abandon the struggle, recognize Confederate independence and acknowledge the United States beaten after three and a half years of strenuous, costly and very bloody war, was defeated by only 407,349 votes in the Northern States, in a total vote in those states of no less than 4,024,865.

This is a fact of the utmost historical significance which may perhaps be better appreciated if put in another form. This was an election in which only the Northern States participated. The Union cause was supported by all

of Mr. Lincoln's personal popularity; by all the influence of an administration in possession and with the whole patronage of the Government at its disposal; by all the sentiment of the army and the fathers and brothers of the men in the army; by every influence in short—personal, political and patriotic—that could be brought to bear. Yet the declaration that the war for the Union was a failure and the proposal to abandon all that had been fought for, was defeated by a majority of scarcely more than ten per cent. of the total vote cast in the states that remained professedly loyal to the Union cause.

The interpretation of this fact is unescapable. It means that from beginning to end of the war the Federal Government had not one but two enemies to fight—the Confederacy with its splendidly robust and enterprising armies, in the front, and the hostility of very nearly one-half the population of the Northern States as an enemy in the rear.

In estimating the comparative resources and the relative opportunities of the contending forces it is only fair that the student of history should reckon this as some offset to the fact that the North enlisted 2,700,000 soldiers against the South's 600,000; that it had a navy with which to shut the South off from the outer world while itself drawing freely upon every land for supplies and men and money; and that its resources in the matters of food, machinery, arms, equipments, medicines and all sanitary supplies and equipments were immeasurably superior to those of the South. How far the one fact really offsets the other is a matter of which each reader must judge for himself. But it is a fact worthy of observation that if the Southern States had been permitted to participate in that election of 1864 there would have been a stupendously overwhelming majority of the people in behalf of the proposition that the war had been a failure and in favor of the proposal to end it by the recognition of Confederate independence. Of course the Confederates, in the attitude they had deliberately chosen to assume, were in no remotest way entitled to cast their votes in that election—nor did they think of claiming that privilege—but the arithmetical calculation serves to show how easily the conservatives of the two sections might have controlled the situation and saved the country from a devastating war had they resolutely acted together at the beginning against the intemperate radicals on both sides, the self-regardful politicians and the seekers after shoulder straps and gold-laced uniforms. It serves also to show something

of the difficulties with which those were beset who had charge of the Union cause.

These things are perhaps tedious to the reader. But their just consideration is absolutely necessary to any really impartial inquiry into the history of the war, such as this work is intended to be.



CHAPTER XIII

"PEPPER BOX" STRATEGY

The moment Virginia adopted an ordinance of secession the authorities on both sides recognized the fact that that state was destined to be the chief battle ground of the war, and especially that the first and perhaps the decisive actions of the struggle were likely to occur there. Accordingly both sides began at once to hurry troops to that borderland—the South sending them to such vantage points in Virginia as might most seriously threaten Washington, the North sending them to the capital city for its defense and for that march upon Richmond which, it was hoped at the North, might be quickly decisive of the war in favor of the Federal arms.

The Confederate General Forrest is reported to have defined "strategy" as the art of "getting there first with the most men." This was what each side at that time was endeavoring to do.

Richmond was not yet selected as the Confederate capital, but its choice as such was already foreshadowed as a necessary requirement alike of geography and politics, and within a brief while the foreshadowing became a fact. In the meanwhile it was accepted in advance as a certainty, and the two capitals confronted each other at a distance of scarcely more than a hundred miles, as the crow flies.

The Southern States poured troops into Richmond as rapidly as they could. The Northern States poured troops into Washington for the defense of that capital with all possible energy and enterprise. Neither upon the one side nor upon the other were the men soldiers in any proper acceptance of the term. They were raw levies. From the North they were mainly men who had passed their young lives in commerce, in study or in other peaceful pursuits. From the South they were mainly the sons of planters or the sons

of overseers, accustomed in either case from their youth up to the use of gunpowder, and to the employment of those arms in the use of which gunpowder is a prime factor. The Southern youths were accustomed to outdoor life, to camp fare, to self-dependence, to self-sacrifice, if need be. The Northern youth in the main were accustomed to nothing of the sort.

Thus at the beginning the Southern troops had an advantage. This was peculiarly obvious when the cavalry of the two sections met each other in battle. The Southern horsemen had been "rough riders" from infancy. Many of the Northern men of that arm of the service had never ridden at all except perhaps by way of conducting a gentle and docile farm horse to a watering trough. In the matter of horses, too, the Southerners, and especially the Virginians, had a distinct advantage. Ever since the first settlement of Virginia it had been the custom of men in that nearly roadless state to go everywhere upon horseback. They had consequently given special attention to the breeding of horses fit for strenuous work under the saddle, while in the North horse-breeding had been conducted mainly with a view to harness use. The wiry Virginian thoroughbreds, or half-breds, were far fitter for cavalry service, far more enduring, far quicker of action, far more alert and responsive than the Conestogas or Percherons or handsome and fast trotting Morgans of Pennsylvania, from which state came the first cavalry regiments encountered by Stuart and his born and bred cavaliers, mounted as they were upon "Red Eye" colts or "Revenue" fillies.

The Southern troops also had the advantage of fighting defensively in their own country to whose climate they were inured and to the diseases of which they were in the main immune.

But apart from these small differences the two armies that confronted each other on the Potomac were composed of substantially the same materials. Later in the war the large enlistment of immigrants gave to the Union army an element that did not at any time exist in the armies of the South. But at the outset there was no important difference. Each army was made up of American youths, full of patriotic fervor, brave, heroic upon occasion, but utterly untrained in the profession of arms.

On the Northern side in the early contests of the war there was the advantage of small bodies of regulars, trained to obey orders at all hazards and to stand firm in every moment of danger. These regulars proved

themselves of inestimable value in the early actions of the war; but their numbers were so small that their service scarcely counts in the historical reckoning.

For the rest, both armies were made up of volunteers, men wholly unused to military discipline and wholly untrained in that subjection of their own minds and wills to superior authority which constitutes the distinction between the soldier and the raw recruit—between an army and an armed mob. They were brave fellows, all of them. They were devoted to the causes they severally served, but they were not yet soldiers. They retained the unsoldierly habit of thinking and judging for themselves, where they should instead have let their officers think and judge for them. Under the discipline of service and of fighting they presently reduced themselves to the ranks, as it were, and became soldiers equal and even superior to the best regulars that any army on earth has ever brought into the field. Their deeds at Cold Harbor, at Fredericksburg, at Chancellorsville, in the Wilderness, at Petersburg, at Antietam, at Gettysburg, and on a score of other desperately contested battlefields leave no possible room for doubt that the men who composed the Federal and Confederate armies were the peers and even the superiors of any other men who ever fought anywhere. But at the first they were not such. They were undisciplined and subject to such panics as that sort of individual thinking in which they indulged is inevitably bound to produce. It is important to bear these facts in mind if we would read the early history of the war understandingly.

The first blood shed in the war, however, was not shed in formal military action. On the nineteenth of April, two days after Virginia's secession, a Baltimore mob assailed a Massachusetts regiment on its passage through the Maryland city to Washington, and several persons were killed in the *melée*. It is not historically recorded that any of the men who constituted the mob and made the assault ever afterwards served in the Confederate army. On the contrary there is every reason to believe that these men, so ready for mob violence, very carefully avoided a service in which legitimate fighting was to be the daily routine of life. That, however, is a detail—illustrative, perhaps, but not otherwise important to history.

The secession of Virginia carried with it one event of vital and even of supreme importance, namely, the secession of Robert E. Lee, without

whose genius the Confederate War would almost certainly have ended in McClellan's capture of Richmond in the summer of 1862.

General Winfield Scott had called Lee "the flower of the American Army." He had earnestly recommended Lee as his own fittest successor in supreme command of the United States Army and such command had been definitely offered to Lee. The secession of half a dozen Northern or border states could not have been of greater consequence either to the North or to the South than the decision of Robert E. Lee to resign his commission and go with his native state Virginia into a war of secession for which he saw no occasion or justification. His problem, like that of Farragut and George H. Thomas and other officers of Southern birth in the United States Army and Navy, was a very perplexing one, involving a divided duty such as few men are ever called upon to confront in the course of their lives. He himself set forth the considerations that finally determined his course, in a letter to his sister, the wife of a Union officer, which it is proper to quote here in explanation. To this sister he wrote on the twentieth of April, 1861: "We are now in a state of war which will yield to nothing. The whole South is in a state of revolution, into which Virginia after a long struggle has been drawn, and though I recognize no necessity for this state of things, and would have foreborne and pleaded to the end for the redress of grievances real or supposed, yet in my own person I had to meet the question whether I should take part against my native state. With all my devotion to the Union and the feeling of loyalty and duty of an American citizen, I have not been able to make up my mind to raise my hand against my relatives, my children, my home. I have therefore resigned my commission in the army, and, save in defense of my native state, with the sincere hope that my poor services may never be needed, I hope I may never be called upon to draw my sword."

Surely no more tragic, no more pathetic letter than that was ever written. Yet it represented and reflected the struggle which at that time was going on in the soul of every army or navy officer of Southern birth and kindred. It was a part of the tragedy of a war which divided families and set brother against brother in a strife that knew neither mercy nor relenting for four, long, terrible years.

Lee went at once to Richmond and was promptly appointed to the task of organizing first the Virginian and afterwards all the Southern armies for effective service. For such work of organization he had a peculiar genius

which General Scott recognized, at the same time congratulating the Union cause upon the fact that it had some weeks the start of Lee in the task of creating an army out of untrained and undisciplined volunteers.

Lee was not yet placed in any active military command, but at every step he was the supreme military adviser of the Southern authorities. When Beauregard, with all the laurels of popular praise upon him, reached Richmond he and not Lee was the idol of the hour. His spectacular and rather theatrical reduction of Fort Sumter had advertised him to the popular attention as nothing had advertised Lee. But Lee was his superior in rank as in genius and everything else, and it was he who directed Beauregard to establish himself at Manassas and along Bull Run as the fittest vantage ground from which to repel the first serious advance of the Federal Army which was then assembling at Washington.

At that period of the war there prevailed at Washington what a military wit and critic afterwards called "the pepper box policy." That is to say, the policy was to send forces into all quarters at once, to defend large and small positions equally, and thus to scatter an army which if concentrated upon a single point might have achieved decisive results. Thus if the whole force available for eastern service had been brought at once to Washington and pushed thence toward Richmond it seemingly might have enveloped its adversary in superior numbers, and except for the uncertainty due to the untrained character of its men it might have been reckoned upon to achieve decisive results.

But under the "pepper box policy," a part of this force was sent under McClellan to West Virginia; a part of it to the Valley of Virginia under Patterson; a part of it to Fortress Monroe, and the main body to Washington and its neighborhood, to protect the capital and presently to advance for the overthrow of Beauregard at Manassas and for a determined advance upon Richmond.

This policy invited defeat and met it. On the tenth of June the small force at Fortress Monroe advanced and assailed the Confederates at Big Bethel. It was defeated with some loss, having inflicted no corresponding or compensatory injury upon the Confederates. Even had the expedition succeeded in driving the Confederates from Big Bethel, it could not possibly have accomplished anything of value to the Federal arms or cause.

It was supported by no force at Fortress Monroe or elsewhere which was conceivably adequate to undertake an advance by that route upon Richmond. In default of such support the expedition was a foolish and futile one, and it must have been so reckoned even if it had succeeded in capturing the wholly unimportant works at Big Bethel.

In the same way, early in July, McClellan gained some notable advantages at Rich Mountain and elsewhere in West Virginia. He had distinctly the best of it in the fighting; he dislodged his adversaries from their chosen positions; and he made prisoners of a considerable number of men. But his expedition led nowhither. His position and the positions which he captured from the Confederates were alike strategically unimportant from the point of view of an aggressive campaign. His victories commanded no strategic points and opened no road to any desirable objective.

In the Valley of Virginia the Confederates abandoned Harper's Ferry—carrying off everything there that had military value, and General Patterson occupied the place. This made good dispatches for the newspapers and justified startling headlines of victory. But in very truth it meant nothing whatever except that the wily Fabian, Joseph E. Johnston, in command of the Confederate forces in that quarter, was wisely determined to keep himself and his army within reinforcing distance of Beauregard at Manassas, where the first great battle of the war was obviously destined to occur. Harper's Ferry and Martinsburg were clearly of no value whatsoever to General Johnston. By abandoning them and retiring to Winchester he placed his army twenty-five or thirty miles nearer to Manassas than it had been and drew Patterson by so much farther from the fighting points. For in order to reach and reinforce McDowell for the impending Manassas fight Patterson must march north, recross the Potomac, move thence eastward to Washington and then move southwest again to McDowell's assistance. Johnston meanwhile secured to himself a short line of march which gave him a very great advantage.

When the time came for the first great battle of the war to be fought, it was hoped at Washington that Patterson with his strong force, numbering about twenty-two thousand men, might be able to reinforce McDowell, while real or pretended operations might detain Johnston in the valley and prevent him from reinforcing Beauregard with his much smaller force. But

by retiring to Winchester Johnston had secured for himself the certainty of joining Beauregard in time for the battle. When Patterson threw forward a cloud of skirmishers as if intending to offer battle at Winchester and secure the mountain passes into eastern Virginia, it did not take the ceaselessly active cavalry leader J. E. B. Stuart many hours of continuous skirmishing within his enemy's lines to discover that the movement was a feint and that Patterson was in fact hurrying the main body of his army toward Manassas, by way of Harper's Ferry and Washington.

Even before Stuart definitely reported this fact, Johnston had so far penetrated Patterson's purpose that he began his own movement toward Manassas, sending first the heavier and more slowly moving corps across the mountains to a point where railroad transportation was to meet them, and thus clearing the way for the cavalry and the lighter infantry and the well-horsed field batteries to proceed over country roads without the assistance of railroad cars.

Thus the "pepper box" system of strategy which prevailed at Washington met its first defeat. If Patterson had been sent at the outset to strengthen McDowell the result of the battle of Manassas might or might not have been different from what it was. But at any rate that arrangement would have given to McDowell a much greater preponderance of strength than he actually had on that battlefield. If Patterson had not gone to the valley of course Johnston would not have gone thither to meet him, and the bulk of Johnston's force would have been added to Beauregard's. But Patterson's army very largely outnumbered the force that Johnston had at Winchester within striking distance of Manassas, so that the total result of the plan of concentration would have been to strengthen McDowell.

More important still is the fact that while Johnston actually got a large part of his army to Manassas in time to decide the battle, Patterson never got there at all. So in considering the policy that sent Patterson to the valley instead of sending him to the line of Bull Run, we are entitled to reckon it as the cause of Patterson's complete absence from a field on which his valley adversary was present with timely and sorely needed strength.

In the meantime and throughout the summer there was a civil war going on in Missouri with varying fortunes. It occupied many thousands of men who might perhaps have been more wisely and effectively employed in

aid of the one great movement upon Richmond, which if it had been thus made conspicuously successful, would pretty certainly have made an end of the war before it had had time to develop its strength. Those operations in Missouri had a dramatic interest of their own. But they in no way bore upon the problems of grand strategy which were meanwhile the proper and legitimate objects of supreme concern and consideration by the two stalwart contestants.

CHAPTER XIV

MANASSAS

At midsummer, 1861, there occurred near Manassas Junction in Virginia a battle which must always be regarded as one of the most remarkable of conflicts whether we consider its unusual event or its extraordinary sequences.

The battle was utterly untimely in its happening. It was a contest of the unready with the unready. It was brought about by influences peculiarly unmilitary and in defiance of the judgment of all the military men who had aught to do with it. We shall see hereafter in how strange a way it produced effects precisely the opposite of those that were legitimately to be expected of it; how to the victors in it it brought a paralysis of enterprise far greater than disaster itself could have wrought.

The Confederates lay at Manassas Junction thirty miles or so southwest of Washington, with a force numbering by official report 21,833 men and twenty-nine guns. The Federals had in front of Washington a total available force of 34,000 men. On both sides the men were volunteers, unused to the ways of war and unfit to enter upon a great battle. In this respect, as has been already said, the Confederates had somewhat the advantage in the fact that their volunteers were accustomed to outdoor life and to the use of firearms, while those on the Federal side were largely drawn from the counter, the bookkeeper's desk, the factory, the farm, and the village. But on both sides they were untrained, undisciplined, unlearned in the arts of war, and so loosely organized that their organization could scarcely at all be considered as an element of strength.

To offset this small Confederate advantage the Federals had behind them supply departments almost perfect, while the Confederates were very

nearly starved to death by official incompetency in those departments even at that early period of the war.

At Manassas they were perilously short not only of provisions and forage, but even of water, all by reason of an extraordinary incapacity on the part of supply departments that began their careers by strangling themselves and their armies with red tape.

The facts of this matter have been set forth in detail in General Beauregard's official reports, and in other authoritative publications. Only a synopsis of them is necessary in this history. The Confederate army lay at Manassas in the midst of a country abounding in supplies, but its quartermasters and commissaries were not permitted to draw upon that source of supply even in the smallest way. For months, before and after the battle of Manassas, an entirely unused railroad—the Manassas Gap line—lay idle. It penetrated a country to the west of the army whose granaries were full, whose smoke-houses were rich in food, and whose fields were laden with ripening corn. A country similarly rich in food lay to the north, between the Federal and Confederate lines. Its supplies were sure to fall into Federal hands presently if not seized upon by the Confederates while they had opportunity. But the Confederate supply departments at Richmond absolutely forbade their own lieutenants at Manassas to feed and forage the army from such easily available sources. They forbade any food or forage purchases to be made in that region except by purchasing agents of their own, and they required that all food and forage so purchased in the immediate neighborhood of the army should be shipped to Richmond over the already overburdened, single track Virginia Central railroad, and shipped back again in such meager doles as the broken-down railroad could carry.

This peculiar imbecility of management continued till very nearly the end of the war to keep the Confederate armies half starved or wholly starved even when their camps lay in the midst of available plenty. The difference between the admirable management of the supply departments at the North and the phenomenally stupid management of the like departments at the South was, from beginning to end, the full equivalent of an army corps' difference in the number of fighting men.

Besides Beauregard's army there was a small force at Fredericksburg from which Beauregard was able to draw 1,355 men and six guns in time for the battle. In the last preceding chapter it has been shown how Johnston succeeded in transferring a large part of his army—6,000 men and twenty guns—to Manassas in time for the battle, while none of Patterson's regiments or batteries succeeded even in placing themselves within supporting distance of the Federal army there engaged.

Thus, according to the official reports, the Confederates had in all 29,188 men and fifty-five guns with which, in a strong position of their own selection, to meet the advance of McDowell's force estimated by the best Northern authorities at about 34,000 men.

If Patterson had not been sent to the valley at all, but to Washington instead, the Federal force would have been swelled to 55,000 or 60,000 men, while Beauregard's strength could not have been increased by more than a few thousands at most. In that case the result of the first great battle of the war might or might not have been different from what it was—for with wholly untrained troops strength is not always to be accurately measured by numbers. But in any case the probability would have been greatly increased that the first battle of the war should be the last and that the country by quick and complete victory should be spared four years of desolating war that threw homes by scores of thousands into the shadow.

The battle was brought about not in answer to any consideration of military propriety but solely in response to ignorant but irresistible popular clamor. The people of this country knew nothing of modern war or of the conditions that govern success or failure in it. The latest national recollection of war was of the unequal conflict with Mexico nearly a decade and a half before. The American people had never seen assembled in their name and behalf an army half so great as that with which their patriotism had now responded to the country's call. In front of Washington and in the near-by valley of Virginia they had between fifty and sixty thousand men, while their adversaries could muster there only a little more than half as many.

Knowing little of the difference between uniformed men with arms in their hands and seasoned soldiers, the people at the North grew violently impatient of the delay. They had furnished their Government twice as many

armed men as the enemy could count, and they could not understand why the double force thus created should not go on at once to make an end of what they regarded as the "nonsense down there in Virginia."

So confident had been the conviction at the North that this was a petty outbreak to be suppressed easily and quickly, that a large part of the enlistments were for no more than three months. That period seemed to them more than adequate to the task in hand, and it had been deemed needless to take young men away from their homes and their employments for a greater length of time.

It is plain enough that the administration at Washington at first shared this conception of the case. Otherwise it would neither have called for nor accepted three months volunteers.

But the three months were now nearly expired, and nothing had been done to make an end of the "nonsense." The terms of service of many regiments were soon to expire and there seemed to be no general disposition on the part of the men composing them to enter into new enlistments. It was obvious that unless the "army" at and near Washington should go forward at once, crush Beauregard's greatly inferior force, march on to Richmond and make an end of the difficulty, new levies must be called for and a new strain put upon the endurance and the patience of the people.

All this impatience found daily and often intemperate expression in the newspapers, whose rivalry in clamor fanned the flame of discontent among the people. Desk strategists who knew nothing of war's conditions had an easy task in figuring out with their blue pencils an absolutely certain victory for the Federal arms, if only the Federal generals could be persuaded or compelled by public opinion to avail themselves of their matchless opportunity. "Are not two more than one? And have not we the two to our enemy's one? What dullards and laggards our generals must be to delay for a day or an hour!" So ran the editorial argument, and that argument seemed to the people conclusive and convincing, for the reason that the people generally were as ignorant as the strategists of the editorial rooms themselves concerning the conditions that govern battle and the training necessary to convert civilian volunteers into soldiers fit to face a fire of musketry and cannon.

The military men knew better, of course. Except the superannuated commander-in-chief, General Scott, not one of them had ever commanded so much as a brigade in battle, but at least they had been taught in a military school and many of them had seen fighting. They knew the peril of hurling ill-organized regiments of utterly untrained and undisciplined civilians upon the chosen positions of an armed foe, even when that foe's forces were in a like condition of undisciplined inefficiency. The arithmetical argument in no degree deceived them. They knew that with such men as they had under their command strength could not be safely reckoned by a mere numerical count, that under certain easily imagined conditions, indeed, strength must often be in inverse ratio to numbers. They perfectly knew that for them to advance against the Confederates with an army in such condition as theirs was at that time was to take a fearful risk of defeat, disastrous and demoralizing to the army and dangerously discouraging to the country behind the army.

But the demand on the part of press, pulpit and people for an immediate advance was too insistent, too clamorous, and was rapidly becoming too angry to be longer resisted. It was reinforced by an almost equally insistent demand on the part of the civilian authorities at Washington, whose ignorance of military conditions was scarcely less pronounced than that of the excited editors and orators of the country.

It was decided therefore to advance the army and bring on the hazardous battle against the better judgment of every trained military man at Washington.

General Scott was still in supreme command of the army, but he was much too old and too feeble to conduct the perilous enterprise in person. General Irwin McDowell was chosen to plan the battle and fight it. He had never commanded an army before or conducted a campaign, but neither had any other officer then available, and his technical knowledge of strategy was thorough. On this occasion his plan of battle was admirable, one of the best, General Sherman has said, that was formed at any time during the war. It was essentially identical with that afterwards adopted by General Lee at the Seven Days' Battles and again at Chancellorsville.

A reconnoissance in force was made against the Confederate lines along Bull Run on Thursday, the eighteenth of July, which disclosed the fact

that the Confederates were fully entrenched in a strong position which commanded the crossings of the stream and the plateau over which it must be approached.

Having found out all this, General McDowell decided to bring on a battle on Sunday, July the twenty-first.

It is not the purpose of the present writer to tell the story of Manassas or that of any other battle in military detail. That has been done too often already, to the hopeless confusion of the civilian reader's mind. Only an intelligible outline is attempted here, with no effort to locate this or that division or brigade or regiment or battery upon the field or to follow out the details of any movement made by any of them.

Beauregard held his line along the stream known as Bull Run, over a space of several miles. This line had been established in defense of the railroad "junction" at Manassas where the line of the Orange and Alexandria railroad joined that of the Manassas Gap railroad. This position was suggested by the artificial geography of railroad construction. It was defended by the natural physical geography of Bull Run, which furnished the Confederates a comparatively good, though by no means a strategically satisfactory, line of defensive fighting.

McDowell's purpose was to assail the Confederates on their extreme right, there making a feint as if to force a crossing of Bull Run at that point which he did not at all intend; to march his stronger battalions to his own right along roads substantially parallel with Bull Run; here and there to divert a force to the Bull Run line and make fighting there by way of preventing Confederate concentration at any point and finally to hurl all his force with irresistible fury upon the extreme left of the Confederate line, which he intended and confidently expected to turn and overwhelm with his superior numbers.

It was McDowell's plan to deceive the Confederates as to his point of decisive attack, to keep them busy all along the Bull Run line and, late in the day, to envelop their left wing, crush it by superior force, capture the railroad and perhaps compel Beauregard's surrender for lack of a line of retreat.

The plan worked well for a time. The attacks of McDowell's divisions upon the Confederate right and center were stoutly and successfully resisted at every point, but they were made with determination and they served their purpose of deceiving the Southern commander or at least of preventing him from withdrawing heavy forces from that part of the field for the defense of his left against the final and crushing assault which McDowell intended to make there, and in preparation for which he was all day moving his heaviest columns in that direction along roads not visible from the Confederate lines.

When at last that assault was made, it found Beauregard inadequately prepared for it; but, with the determination and energy which were the dominant traits of his character, the Confederate general held his ground obstinately and hurriedly moved troops from the right to the left of his line.

The fighting raged furiously at this critical point and for a considerable time its result was in doubt, with the chances strongly in favor of the Federals. Three times the tide of battle ebbed and flowed across the disputed field, both sides fighting with a courage and obstinacy that were scarcely to have been expected of troops so little inured to the work of war.

When the struggle was at its fiercest, and at the moment when the promise of it seemed to be that the Federals would overwhelm and crush their sorely outnumbered adversaries, a strong detachment of Johnston's troops from the Valley, long delayed on their railroad journey, reached the field. Their orders were of the vaguest, but they plainly saw an overmastering Federal force pressing the Confederates very hard in their immediate presence. So, following the Napoleonic instruction to go to the point of heaviest firing the officers commanding the arriving Confederates went at once into the thick of the fight.

It was the work of a brief time for these fresh men to envelop the advancing Federal right wing and crush it to pulp.

In the meanwhile the sorely beset left wing of the Confederates had been enabled to hold its ground and save itself for a time from complete disaster, only by the obstinate courage of a brigade of Virginians under General Thomas Jonathan Jackson—a West Pointer who had long ago resigned from the old army to become a professor in the Virginia Military Institute, and who had now become a brigadier-general of Virginia volunteers. He had already so completely won the hearts and dominated the

minds of his men that—raw volunteers as they were—they had no thought of faltering or flinching in the presence of any danger, so long as their chieftain bade them stand fast. One after another the battalions with which they had touched elbows were beaten back before a leaden hailstorm, or torn to shreds by cannon fire at murderously short range, or fairly forced to the rear by bayonet-armed phalanxes, while their own brigade line was steadily withering under the destructive fire. But they were under inspiration of a leader whom they loved and whose courage was inspired by a religious faith as unfaltering as that of any Mussulman fanatic, and so they stood steadfast in spite of all. They looked for their orders only to that great, calm, passionless leader, and from him alone they took their impulse. Scarcely at any time during a war that abounded in illustrations of heroism, was there, on either side, a more conspicuous example of the courage that endures, than that which was afforded by Jackson and his Virginians at that most critical moment of the first great battle. It excited admiration and inspired others with courage even in that hour of seemingly hopeless defeat. General Bee, who was destined a few minutes later to become a martyr to his own courage, seeing it, cried out to his wavering men: "There stands Jackson like a stone wall," and appealed to them to emulate the example of their comrades and "rally on the Virginians." From that hour to this the title "Stonewall" has clung to the fame and memory of Jackson more closely than his own proper name has done.

Under the fierce onset of Johnston's fresh men, supported by rallying brigades that had for a time faltered and yielded ground, and reinforced from the Confederate right, the Federal assailing column was quickly crushed and forced to retire, the Confederates pressing hotly upon their heels.

Then occurred that insane panic in the Federal army which has never been explained or accounted for except upon the insufficient ground that its victims were men without discipline and wholly unused to war. The explanation leaves much to be desired. The men who yielded to that panic impulse had already on that day proved themselves brave fellows, quite capable of doing soldiers' work right gallantly. They had fought with vigor, determination and high courage through long and bloody hours. They had been the assailants where assault required a greater courage than defense and they had done their soldierly work altogether well. They had been

baffled of victory in the crowning hour of the battle, but they perfectly knew that their columns still outnumbered those of their adversary, and they must have known that in an orderly withdrawal from the scene of the conflict they were not in the least degree likely to be destructively assailed in their turn. Nothing was more unlikely indeed, than that the Confederates, having exhausted their freshness of vigor in the battle and having achieved their immediate purpose by repelling their enemy's assault, would in their turn advance upon that enemy, still outnumbering them, if he had withdrawn in good order and taken up a strong defensive position at Centreville, only a few miles away. Had the Federal Army done that, preserving its cohesion and presenting a determined front, it is indeed certain that the Confederates would not have cared to convert their successful defense into a more than doubtful offense; and even had that happened through Confederate over-confidence, the opportunity of the Federals to convert their own defeat into a conspicuous victory would have been as tempting as any that an army could desire.

Later in the war after the two armies had been molded into effectiveness by the stern discipline of service, some such course as this would undoubtedly have been pursued. But at Manassas the event was startlingly different. No sooner did the Federal troops that had fought so gallantly on the right of their line find their assault repelled and themselves forced back than all cohesion, all discipline, all soldierly qualities went out of them. They broke ranks and fled in a positively demented panic, which unfortunately proved to be instantly and universally contagious. The whole army fell into confusion. Even those parts of it which had successfully held their own in severe conflicts throughout the battle hours broke ranks and ran as an unorganized mob might at the advance of a force of regulars armed with bayonets.

The Confederates, flushed with unexpected victory achieved in the moment of defeat, pursued them with all the quick-moving forces available, chief among these being Stuart's small body of Virginia cavalry.

There was a report current in the Federal army that J. E. B. Stuart had under his command thirty thousand of the finest and most desperately daring horsemen that had been known in the world since the days of the Mamelukes. As a matter of fact, he had under his orders five or six hundred young Virginians. They knew how to ride their horses, they knew how to

use their revolvers, and they knew in some degree at least how to handle their sabers. They had been trained to all that all their lives and perfected in it at the camp of instruction at Ashland. But beyond that they had no skill and no superiority and it was their constant wonder after the battle of Manassas, that during the chase they almost nowhere met the cavalry of the other side. They met and quickly dispersed artillery and infantry, but nowhere did they encounter men of their own arm of the service. They had met and fought horsemen in the Valley of Virginia—for Stuart had been with Johnston there—but they encountered none such now.

The simple fact is that the Union army was in an insane panic and utterly disorganized. The sole thought of every man in it was to escape with a whole skin if that should be in any way possible. The cavalry men having horses under them put spurs to their steeds and led instead of protectingly following a confused and confusing retreat upon Washington. Artillery men cut their horses out of their gun carriages and caissons, mounted them, and fled bareback at such speed as the horses could make.

At a little stream a caisson in mad flight was presently overturned, obstructing a bridge. A great cloud of panic-stricken soldiers and citizens seeking an avenue of flight was collected there almost in an instant. Then up came Kemper of the cannon, powder-grimed and weary but flushed with the victory. Using two guns he opened fire upon the confused crowd at short range, with an effect like that produced upon a flock of partridges when a charge of shot is fired into its midst. Then a little squad of Stuart's cavalry men—ten or a dozen in number—drew sabers and charged, and a minute later the creek was full of struggling and drowning men, but no organized force remained to be charged except a body of eighty infantry men fully armed, with bayonets fixed, who stood away on the left. Upon these the insignificant squad of cavalry men made a dashing charge, calling out as they galloped: "Throw down your arms or we'll put you to the sword!" And so completely demoralizing had the panic become that these eighty who could instantly have swept the little band of cavalry men off the face of the earth, not only dashed their arms to the ground but broke ranks and ran, every individual man seeking such escape as might be possible to him.

The men who were so panic-stricken on that fateful Sunday were not cowards. Many of them fought valiantly and stalwartly later in the war.

They were simply victims of an insensate and highly contagious panic. They were not yet soldiers. They had not yet learned the first lesson of the soldier, namely, the imperative necessity of preserving organization, fighting every force encountered, and waiting for orders that must be obeyed at all costs, especially before giving way to the enemy. Their imaginations had been inflamed by the stories related at their camp fires respecting Stuart's mythical Mamelukes and their terrible skill in horsemanship.

In brief all courage, all cohesion, and all soldierly quality had completely gone out of the Federal army. Men who had fought courageously an hour before had become as hares fleeing from pursuing hounds, and their flight knew no halting until they had passed the long bridge into the streets of Washington, where they paused only to gather breath for a still further flight if such should become necessary.

In all this the confusion was increased and multiplied by the presence among the fugitives of a multitude of panic-stricken picnickers—Congressmen, civilians of every sort, and lavishly dressed women—who had gone out in carriages and carryalls to see the spectacle of a Federal army walking over the Confederates, and to follow the fleeing rebels all the way to Richmond, feasting meanwhile upon the champagne, the boned turkey, the sandwiches and the truffled game with which they had so lavishly supplied themselves that the Confederates fed fat for days afterwards upon the provisions that the picnickers abandoned in their flight.

The presence of these people within the lines of a fighting army was in itself a conspicuous illustration of the utterly unmilitary and undisciplined condition of that army. Imagine, if it be possible to imagine, such a horde of sightseers attempting to follow Grant into the Wilderness, or Sherman on his march to the Sea! But the war was very young when the battle of Manassas was fought, and so these people were permitted to be there, to add to the completeness of a rout that could never have been equaled in its insanity at any later period of the conflict.

As to the total number of men engaged on either side at Manassas, the statistics are varying and untrustworthy. It is certain that there was no very great or decisive disparity of numbers. The Federal army outnumbered that of the Confederates by only three or four thousand men. General

Beauregard has estimated his total force, including the necessary garrison of the works, which of course was not actually engaged, at a total of 29,188 men. According to Dr. Rossiter Johnson, an unusually accurate and conscientious historian on the Northern side whose means of information are of the very best, McDowell's total force, including those detached to guard the line of retreat upon Washington, was about 34,000 men.

Exact statistics in such a case are of no moment. Where armed mobs, undisciplined, ill-organized, and unused to the strenuous work of war, meet in battle quite other things than numbers are apt to be decisive.

The Federal commanders reported a loss of 470 killed, 1,071 wounded and 1,793 missing—a total loss of 3,334 men. The Confederate loss was officially reported at 387 killed, 1,582 wounded and 13 missing, making a total of 1,982.

If greater attention is here given to this first important battle than to others of larger magnitude to be treated in future pages of this work, it is because of the extraordinary effect the battle had, as will be set forth in the next chapter, and because of the peculiar danger to which the Confederate victory for a time subjected the Federal cause.

CHAPTER XV

THE PARALYSIS OF VICTORY

On the evening of the twenty-first day of July, 1861, the Confederate army at Manassas rested upon one of the completest and most spectacular victories that had ever been won by any army over any adversary. The assailing army had not only been repelled—all possibility of resistance was gone from it. Not only had it been driven pell-mell from the field with every circumstance of demoralization that could add picturesqueness to its flight, but the uttermost link of cohesion that could hold its battalions together for any purpose of resistance was completely broken up and destroyed. Divisions were dissipated, brigades were broken into bits, regiments no longer existed and even companies were scattered to the winds. Only demoralized and panic-stricken fugitives, each madly seeking safety, remained. That which had been a most gallant "army with banners" at sunrise had become before nightfall a panic-stricken mob without possibility of cohesion or stamina and utterly without a sense of soldierly duty.

Then followed the strangest event of the war. This victory, the completest, the most picturesque, the most absolute that could be imagined, had the effect of paralyzing the winners of it to an extent to which even defeat could not have done.

The story is too strange and historically of too much import to be told otherwise than in its fulness.

Let us first consider the character and composition of the two armies that fought at Manassas. The Confederate volunteers were enlisted for twelve months. The term might have been made longer without the loss of a volunteer. For these young men, whatever their contract with the

Government might stipulate, fully intended to remain in the service so long as the war should last. They felt it to be their own personal war and most of them had nothing else to do than fight it out to the end, however long it might endure. Indeed it was certain that so long as it lasted no young man of the South could long remain out of the army without incurring damning disgrace at home.

As a consequence, the organization of the Confederates when the battle of Manassas occurred was far more perfect and had far more of permanency in it than was the case with that of McDowell's forces. These consisted largely of men who had volunteered for no more than a three months' service, and the terms of many regiments were expiring or about to expire when the call to battle was issued. Many of those whose terms were at an end turned back on the very eve of battle—*four thousand of them quitting on the day of battle itself*. They refused to participate in the conflict because their time was up.

This was a manifestation of indifference to all patriotic and manly considerations such as was nowhere witnessed on the Southern side at any time during the war.

But let us not judge too harshly. These young men were civilians, not soldiers. They had enlisted only for a period of three months. They were callow youths unaccustomed to war. They had regarded a three months' service in the volunteers as a sort of exciting picnic excursion to the South. They had done their duty during the term for which they had agreed to serve, with very tolerable faithfulness. They had had their outing. Their frolic was over. Their contract was fulfilled. They very naturally wanted to return to their homes. When under such circumstances a fierce battle confronted them, with the enemy very manifestly in no "excursion" mood but bent upon all that was possible of slaughter, is it any wonder that these young men faltered and failed?

They were scathingly assailed in patriotically inspired prose and verse, and certainly a similar turning back on the part of Southern youths on the very eve of battle would have been punished with an enduring and all-embracing social ostracism harder to bear than death. But there were differences between Northern and Southern sentiment that must be taken into the reckoning. At the North there was a party more or less openly

opposing the war. At the South there was none such. At the North the military impulse did not inspire all minds as it did at the South. At the North personal courage was not held to be the one supreme test of manhood, as it was at the South. At the North a man might fail in that and have laughter for his portion, while at the South the punishment for a like fault was the eternal damnation of scorn and contempt, with universal social outlawry as an accompaniment. If any man in Beauregard's army had gone home because his enlistment had expired while the battle was pending he could never more have visited any neighbor or aspired to any woman's hand; he would have been everywhere treated with contempt and measureless scorn. His neighbors would not have sat on the same bench with him in church. He would have been instantly rejected as a juryman by both sides in every case. No other crime that he might commit could have added in the least degree to the depth of his degradation.

At the North very different standards prevailed. The poets and the newspaper writers might lavish opprobrious epithets upon these young men in a collective capacity without mentioning their individual names, but their neighbors, their sweethearts, their daily associates were not apt to take so quixotic a view of their duty or so severely to judge their conduct. It must always be borne in mind that men's standards of duty and obligation are apt to conform in a general way at least to those of their neighbors. In passing upon human conduct we must be attentive to this fact if we would justly judge.

As for the men who went into the fight on the Union side we must remember that at the end of it the companies and regiments and brigades of which they had formed a part in the morning had been dissipated into the thinnest of thin air at three o'clock in the afternoon by the lightning-like stroke of panic. There were no longer any companies left or any regiments or any brigades or any organizations of any other sort. There was no longer any such thing as cohesion among them. There was nobody authorized to give orders—nobody capable of enforcing obedience. The multitude of men who in the morning had seemed to constitute an army had been resolved before nightfall into a wild-eyed and uncontrollable mob of irresponsible fugitives, intent only upon seeking safety, without any regard whatever to any obligation or impulse, of honor or duty or shame—any impulse except the instinct of self-preservation.

There were many such panic-stricken fugitives on the Confederate side also—so many that when Jefferson Davis met a mob of them on his approach to the battlefield, he was convinced that the Southern army had been defeated and broken. But these were individuals merely, and while their aggregate was large, it embraced no command, no entire body of troops, whether company, regiment or brigade. The Confederate commands remained intact. They preserved their organizations perfectly and remained absolutely obedient to orders. At the end of the battle theirs was not only still an army; it was an army flushed with victory, illimitably confident both in itself and in its leaders, eager for further action, clamorous for advance and ready to do and dare anything and everything that might promise further glory.

That army eagerly wanted to march at once upon Washington, and there was absolutely no military reason why it should not have done so. There was no fighting force to resist it on the march. There was no force at Washington which could have seriously disputed its entry into the city. It could easily have trampled to earth the feeble resistance it must have encountered at the gateways of the capital. Stuart, almost with tears on his cheeks, besought permission to lead such an advance with his handful of cavalry men, pledging his honor and reputation as a soldier and all that he hoped for of a future career, in bail of his promise to clear away every obstacle and open an unobstructed road to the columns of Beauregard and Johnston in their victorious march across the Long Bridge and into the streets of the Federal capital.

Stuart was accustomed to boast that he never used profane language. But his impatient cavaliers heard and heartily echoed some strong words from his lips when finally the paralyzing prohibition of an immediate advance came to him in the shape of an order to encamp his men in a muddy cornfield on that rainy night, when in his judgment they should have been gaily galloping on march for Washington as the advance guard of a victory-inspired army, intent upon making the most of its success and crowning its achievements with historic consequences.

Stuart at least anticipated no difficulty in galloping into Washington and Stuart's stalwart cavaliers were ready for any enterprise to which that born leader of men might invite them.

Those Virginia horsemen had been for ten consecutive days and nights forbidden to remove a saddle. For ten consecutive days and nights they had stood at the heads of their horses at feeding time and held the temporarily removed bridle bit in one hand and the ear of corn from which the horse was feeding in the other. For ten consecutive days and nights those men had been ceaselessly in the saddle, their only sleep being snatched in brief fragments, while their horses were tethered to their wrists. Yet so eager were they to follow up this victory that every man of them "swore like a trooper" on that Sunday evening when the pursuit was senselessly called off, and every man of them ejaculated a hearty "amen" to their leader's vituperation of that superior authority which forbade him and his devoted cavalry men to ride into Washington close upon the heels of the broken, panic-stricken and utterly demoralized Federal fugitives from the battlefield.

There is now not the slightest doubt that he could have done this. There is not the smallest question that if he had been permitted to do it, with a supporting column of infantry and artillery following as closely as it could upon his horses' heels, Washington would have become a Confederate possession on that Sunday night, and—who knows what else might have happened? Perhaps four years of the bloodiest of modern wars might have been spared to the American people.

However that may be, the historian of the Confederate War is bound to regard the failure of the Confederates to follow up their victory and pursue their broken, fleeing and utterly disintegrated enemy into Washington during that night and the next morning as one of the most stupendous blunders recorded anywhere in history.

It was perfectly well known to the two Confederate commanders, that Washington was not defended on the South by any fortifications which a determined assailing column could not easily have run over. There was only one earthwork, and that an incomplete one, in the way, and it was so little in the way that a column moving upon the Federal capital could easily have passed on toward the city by thoroughfares that lay quite out of the effective range of its guns.

In brief there was absolutely no conceivable reason for the failure of the Confederate generals to follow up their phenomenal success on the

battlefield by an instant and dramatic march upon their enemy's capital over a road which was obstructed by nothing more menacing or embarrassing than huge piles of abandoned food supplies.

General Beauregard and General Johnston have courageously and manfully assumed all responsibility for that failure to advance at the right and critical moment. For a time that failure was attributed to the paralyzing hand of Jefferson Davis, who came upon the field near the end of the battle. But that accusation was unjust. Mr. Davis has been exonerated from all responsibility for the failure by the deliberately recorded testimony of his lieutenants. Mr. Davis was in fact eager for an immediate advance which might crown the victory with its legitimate consequences. He even dictated and had written out a peremptory order to that effect, which Johnston and Beauregard persuaded him to withhold.

Their reasons for doing so have been fully set forth by themselves. In spite of the facts that lay before their eyes, they could not believe in the completeness of the victory they had achieved. Neither had they confidence in the army that had won that victory. They were sure that it was tired. They thought it needed rest. They doubted its trustworthiness. They had no adequate conception of its enthusiasm for the enterprise for which it was clamorously eager. It is one of the embarrassments of war that a commanding general has sometimes no means of knowing what the men under his command are thinking and feeling.

So far were the two Confederate commanders from appreciating the magnitude and the completeness of their victory, that after it was all over, and after events of every kind had demonstrated the extremity of Federal demoralization, they were by their own confession, frightened half out of their wits by the movement of certain Confederate forces which they believed to be a new and determined advance by the hopelessly demoralized enemy.

They ought to have known better, of course; but they did not, and they would not let Stuart teach them better, though he, with his preternatural activity, had followed the panic-stricken fugitives far enough to know what their moral condition was.

Let us frankly recognize facts and take account of them in the reckoning of history. Johnston and Beauregard were accomplished officers,

familiar with every detail of technical military duty. But neither of them was as yet experienced in the command of armies or the conduct of campaigns. Until a few months before that battle was fought they had been mere captains of engineers. Neither had ever commanded any force greater than a company. Neither had ever seen an army of proportions half so large as those of the force that fought at Manassas. Neither had ever had even the smallest experience in grand strategy. They were mere apprentices still in the art of war. They had not yet fully learned their trade. They utterly failed to understand what their victory meant. They had no conception of the disorganizing, disintegrating effects of that victory upon their adversaries. They were utterly incapable of understanding their opportunity or of taking advantage of it. Because of their inexperience they let slip the finest opportunity that was at any time afforded to commanders on either side to achieve a quick and decisive result.

With no purpose or willingness to undervalue the ability or the devotion of two officers who afterwards achieved well-deserved distinction as the commanders of armies, it may fairly be pointed out that they were in command at Manassas not because of known and demonstrated fitness for command, but solely because of their technical rank in the old, peace-time army of the United States, where promotion was exclusively by seniority—perhaps the unsafest ground of promotion that was ever devised by the evil ingenuity of officialism and professional self-regard. Whatever capacity these two officers afterwards developed, it is very manifest that at the time of the Manassas battle they both showed themselves incapable of seizing upon the opportunity that victory offered them in any such masterful way as that in which Lee afterwards seized upon far less obvious opportunities at the end of the Seven Days' Battles and again after Chancellorsville.

Having won the completest and most conspicuous victory of modern times, they set to work to fortify themselves for defense against the enemy they had so disastrously overthrown, precisely as if they had been beaten in the fight and were called upon to defend themselves against further aggression at the hands of an enemy to be feared. Having everything of opportunity their own way, they threw it all into the adversary's hands. Having reduced their enemy's army to pulp they deliberately gave him time and opportunity to reconstruct it, to reinforce it, to reorganize and discipline

it, as he presently did, into a superb fighting machine instead of pushing forward and fighting it vigorously while it possessed no fighting force at all.

Both sides in this war suffered for a time from this paralysis of officialism and routine which set inferior men to command their superiors and balked conclusions by incapacity. It will be related later in this history, how Grant—the most masterful man in the Federal army—was long denied his opportunity by the arbitrary will of the immeasurably inferior Halleck, to whom a false system and an old man's favor gave control in despite of fact and achievement.

At present we deal only with the facts of a single case. On the night of July 21, 1861, and on the following morning, there was open to the Confederate commanders at Manassas an opportunity which hopefully promised to bring the war to an immediate end. They utterly failed to embrace that opportunity and the price paid for their neglect was four years of bloody conflict, involving the loss of lives by scores of thousands and the infliction of incalculable suffering upon the American people. At several other points in the history of the struggle like opportunities presented themselves, less conspicuously indeed but none the less positively, to one side or the other. In many cases they were similarly neglected, and the war went on with all its horrors.

But if we wonder at the failure of the Confederates to follow up their victory on the evening of its achievement and on the days immediately following, how much greater must be our astonishment at their failure to take the initiative during the long months of inaction that followed it, or to make any effort to direct the further progress of a war upon the success of which their very existence depended!

The singularly complete victory at Manassas was won on the twenty-first of July, 1861. That was almost at the beginning of the season favorable to military operations in Virginia. Yet after that battle was over there was no effort made on either side to utilize the time in military movements of any kind. The Confederates advanced to Fairfax Court House and threw their pickets as far forward as Mason's and Munson's Hills, within a few miles of Washington, but they undertook no military operations of importance. They inaugurated no campaigns. They made no advance upon Washington, which was the one thing that ordinary intelligence was entitled to expect at their

hands. They did not at all behave like victors. They nowhere assailed their enemy. They made no effort of any kind to strengthen themselves, either by the occupation of strategic positions or by giving battle where battle promised every chance of victory. They simply sat still, and their sitting still was one of the most inexplicable things that ever happened during the Confederate or any other war. There were several other pauses of like kind during the gigantic struggle, but there was none so completely without an explanation, as was this utter throwing away of half a year of superb campaigning weather.

On the Northern side the inaction was not only explained but justified by the utter demoralization of the army which had been so terribly beaten, and so utterly disintegrated at Manassas. But nobody has ever yet offered so much as a plausible suggestion of a reason for the more astonishing inaction of the Confederates during all that summer and autumn, when the very causes of inaction on the other side afforded the utmost inducement to tireless activity on the Southern side. At a time when all that could be desired of achievement was freely open to them, they sat still, doing nothing except to aid their adversaries in undoing what had been accomplished by hard fighting.⁴

⁴ Gen. Beauregard insists that he did indeed submit a plan of aggressive campaign a little while after the battle but it involved so much of preparation that it was rejected at Richmond. As it led to no activity it has no historic significance.

McClellan succeeded McDowell in command of the Federal army during the month of August. His difficult problem was to organize that army anew; to create it out of chaotic elements and in the face of the difficulties that were thrown in his way by its experience in battle. He must give it morale. He must teach his soldiers the very primer lessons of military service; he must overcome their phenomenal demoralization and gradually mold them into a shape fit to take the field.

An alert enemy, under such circumstances, would have insisted upon interfering, morning, noon and night, with the exercises of the adversary's

military kindergarten. A commander on the Confederate side, possessed of large capacity and energy, would have interrupted the work of McClellan by daily and disturbing incursions in force; or more probably still he would have crossed the Potomac, and forced McClellan to accept battle in Maryland or Pennsylvania with his utterly untrained and badly demoralized volunteers. All of this was so obvious that dulness itself must have seen it. Yet the two Confederate generals at Manassas and Centreville seem never to have opened their eyes to the opportunity, and so nothing in this way was done.

In the meanwhile, McClellan was diligently strengthening himself. He was daily adding to his forces those new levies of volunteers which came freely from the North in spite of the disaster at Manassas. He was also strengthening the fortifications at Washington in a way that made their conquest forever afterwards a hopeless enterprise. He sent out many columns to one point and another, not to bring on battle, but to practice his men in the school of the soldier, and to use them to "standing fire" without flinching.

Incidentally, these operations brought on only one action of considerable moment, that which occurred at Leesburg or Ball's Bluff on the Potomac, on the twenty-first of October. It was an action involving rather heavy losses particularly to the Federal troops, but it had no strategic significance whatever. Military critics have not been able to conjecture why the action was brought on at all.

Under orders of General C. P. Stone, Colonel Baker crossed the Potomac near Leesburg to reconnoiter at a point where no reconnoissance was needed, and where no action could by any possibility have aught of significance or consequence. Colonel Baker was disastrously defeated and killed. The Union troops were driven into the river, and large numbers of them were drowned. The effect of the action was to increase rather than diminish the demoralization that the Manassas battle had wrought in the Union army, and to increase in like proportion the self-confidence of the Confederates—all but their generals. Even after this second victory they did not push their columns across the Potomac.

To the like result all the minor actions of that time contributed. McClellan sent out forces to Drainesville, to Falls Church, to Vienna, and to

other points, with the distinct purpose, as he himself afterwards explained, of accustoming his demoralized battalions and his newly enlisted men to the idea of fighting. In every instance Stuart assailed them promptly and vigorously, and in every instance except at Drainesville, where they stood their ground well, they ran to cover with a precipitancy which convinced the Confederates that there was no stability in them, no nerve, no soldierly quality whatever. How great a mistake this was, the subsequent actions of the war served to demonstrate—actions in which these same men, properly organized and disciplined, grandly and gallantly played the part of soldiers.

Apart from these insignificant contests, the war in Virginia went to sleep after the battle of Manassas, and to an expectant world was presented the spectacle of a phenomenally victorious army taking a siesta upon its arms, while its adversaries recruited and drilled and fortified, and in every other conceivable way strengthened themselves for the future. In brief the victor—the most complete and conspicuous victor in all the history of the war—having utterly crushed his adversary, and having for the time being destroyed in that adversary all capacity for resistance, meekly adopted the attitude of the vanquished. An army flushed with victory, an army that had completely destroyed the fighting force of its enemy, sat down behind earthworks and waited for more than half a year for that enemy to recuperate and choose at its leisure the next date and place of its fighting.

It is not necessary to characterize all this inactivity in harsh terms. Its stupidity needs no emphasis of rhetoric. The only excuse that history can find for the phenomenal failure to compel results either in July or later, is the fact that Beauregard and Johnston were merely two ex-captains, who had had no experience in the command of armies or in the conduct of great campaigns.

CHAPTER XVI

THE EUROPEAN MENACE

While the Southern army indulged in its siesta after its victory, and seemed to wait for the war to come to an end of its own accord, the North was stirred by that event into more strenuous activity. Fresh levies were called for, and volunteers by scores of thousands eagerly responded to the call. New energy was brought to bear upon the fortification of Washington, so that the capital city might never again be in such danger of hostile conquest as it had been on that fateful twenty-first day of July, and for a dangerously considerable time afterwards.

Multitudes of the fugitives from the Manassas battle never returned to their duty. In many cases their term of service expired about that time, so that they could not be brought back by virtue of any law, civil or military. In other cases it was not thought worth while to drag back into the service men whose demoralization was too complete to admit of the hope that they might ever again be made effective soldiers. But their places were promptly taken by eager, patriotic young men, and General McClellan, with that rare capacity for organizing which was the distinguishing characteristic of his genius, molded the raw levies with almost incredible rapidity into effective regiments and brigades, a task in which, as has already been shown, the Confederates mightily aided him.

But in the meanwhile, the victory of the Confederates very seriously threatened the Federal cause with a new and terrible danger—namely, the danger of the recognition of the Southern Confederacy as an independent power. Great European nations under the lead of France and England had already recognized the claim of the Southern armies to belligerent rights. That was a measure of humanity and civilization so obviously proper and necessary that while it temporarily angered the North, and was construed

there as an unfriendly act, it was presently and of necessity accepted by the Federal Government which, in its turn, made an informal but none the less effective recognition of belligerent rights on the part of the Southern armies. Without such recognition it would have been impossible to carry on the war upon anything like civilized lines. Without it no prisoner could have been exchanged, no flag of truce could have been recognized, no cartels could have been agreed upon, no safe-conducts could have been respected—in short, without such Federal recognition of belligerent rights on the part of the Southerners the struggle must have speedily degenerated into a savage contest. All prisoners in that case would have been at the mercy of their captors to do with as they pleased. There would have been no possible opportunity for negotiation or for the interchange of any of those amenities, by means of which the horrors of war are so greatly mitigated to individuals. There could have been no paroles. On both sides the prisoners would have been in the position of captives to a savage foe, responsible in no way to civilization.

The recognition of Southern belligerency was so obviously a necessity of civilization that the Federal commanders had already assumed it, quite as a matter of course, from the beginning, and they had daily acted upon it. But the people, uninstructed as they were in military law, deeply resented England's act in recognizing it. They regarded that act as scarcely less hostile than would have been the formal recognition of the Southern Confederacy as an independent nation.

After the battle of Manassas there was very serious danger of even such a recognition as that. The South eagerly hoped for it and the North greatly feared its coming.

At that time England, France and Germany were looking with very jealous suspicion upon the rising glory of the American Republic. Their monarchs feared the influence of Democratic doctrines supported by such an object lesson as the prosperity and phenomenal growth of the American nation afforded. The tradesmen and manufacturers of those countries, equally with their statesmen, dimly but apprehensively foresaw what has since in our later time come to pass. They foresaw the conquest of the world's markets by American industry. To break up this American Union meant for them a release from these dangers, political, commercial and industrial.

Moreover, the United States Government was at that time just entering upon a new and extreme policy of protective tariff exclusion which threatened very serious detriment to the trade of the manufacturing countries of Europe. The South, being an agricultural country with scarcely any manufacturing interests, stood for the utmost possible freedom of trade. Very naturally, the manufacturing and commercial nations of Europe looked with more or less favor upon a revolution in this country, which promised to give them not only an equal commercial chance but a sentimental advantage also in the Southern markets in competition with the New England fabricators of goods, wares and merchandise.

From the very beginning, the South had looked to such impulses and interests as these as an offset to Northern superiority in numbers and resources. The South hoped from the beginning for foreign intervention. It was confidently believed that if any European nation should formally recognize the Southern Confederacy's independence, the United States would treat that recognition as equivalent to an open declaration of war. In such an event the recognizing nation must of course send its fleets to raise the blockade of Southern ports, and possibly also its battalions to stand shoulder to shoulder with the Virginians and Carolinians and Mississippians on hard fought battle fields.

The Confederate victory at Manassas, by reason of its completeness and still more by reason of its spectacular accompaniments, gave peculiar force to all these arguments in favor of that European recognition of Southern independence which must have threatened the final disruption of the American Union, the breaking down of the most dangerous trade rival of those countries, the opening of the South to absolute free trade, with a distinct preference for English, French and German over "Yankee" goods, and the political weakening of that growing impulse to republicanism which resided in the glory and greatness of the American Republic. To dissolve and destroy the Union would have been once and for all time to make an end of the most potent influence that ever existed on earth in behalf of a "world without kings, and a people supreme."

When the battle of Manassas was done, and McDowell's army had fled in panic as a disorganized mob into Washington, and was manifestly prepared to flee farther if it should be pressed with vigor, as every foreign observer expected that it would be, there was every inducement and every

excuse for the recognition of the Southern Confederacy by European nations, and for their demand that the still ineffective blockade should be raised as an unjustifiable interference with international commerce. Such action on the part of France and England would undoubtedly have precipitated war between those countries and the United States, and in that war, knowing as we do the relations then existing between European nations, Austria, Italy and Prussia would very probably have joined. What the consequences would have been each reader must judge for himself, but at the very least it may be said with entire safety that such a circumstance would have added very greatly to the embarrassment of the United States Government, and to the chances of ultimate success on the part of the South.

The pretender who sat at that time upon the fraud-buttressed throne of France and called himself "Napoleon III" was ready and eager for such interference. But he dared not undertake it single handed. He sought the alliance and aid of England, and without doubt he would have secured both but for one fact. Whatever policies an English government may favor, there is always behind that government, as its master, the sentiment of the British people, and that sentiment was at that time unalterably and implacably hostile to human slavery.

It was the misfortune of the South that its contention for its own right of self-government was inseparably linked in the minds of men abroad with the cause of human bondage, against which British public sentiment revolted.

Great Britain is not a republic in our sense of the word, but under all its forms of monarchy, and with all its embarrassments of aristocratic privilege, its people actually and absolutely rule.

Its people strongly sympathized with the Southern claim of a right of autonomy. They still more strongly sympathized with themselves in their desire to cripple their greatest and most threatening commercial and industrial rival, and to get all the cotton they needed for their mills. They wanted the war to end quickly. They wanted the Southern ports opened to their ships, and the Southern cotton to be accessible again for their use. They wanted the American Union broken up. They wanted to trade with the Southern States upon equal terms or with a positive advantage over their

New England competitors. But even for such sake they were unwilling to lend the power of Great Britain to the perpetuation of human slavery anywhere upon earth.

There was the fatal miscalculation of the Southerners. They reckoned with British trade interests, with British and other European political prejudice, but they did not sufficiently reckon with that British hostility to slavery which—whatever the political or trade considerations might be—would not consent to any action on the part of a British government which should even seem to make Great Britain responsible for the perpetuation of human slavery anywhere.

Thus the British government was restrained by the all-dominating British sentiment from interfering, and France did not venture to interfere alone or even with the probability of Austrian or Prussian support.

There was Russia to be reckoned with, also, and as later official publications show, the Czar not only set his face against intervention in behalf of the South, but at one critical time actually sent his fleets to American waters to menace any and every power that might assume to interpose to the detriment of the United States.

At the time, however, the Manassas victory gave great and well-justified occasion for the fear at the North that Great Britain and France, backed by the other western European powers, might be persuaded to interpose in behalf of the Confederates. For a time, therefore, the outlook for the Union was a very gloomy one, but the youth of the country continued to enlist by tens and scores of thousands, and in spite of the hostility of a political party strongly opposed to the administration and to the war itself, Mr. Lincoln's government went on with its preparations for prosecuting the war with vigor, to its predestined end.

CHAPTER XVII

BORDER OPERATIONS

During the long period of strange inactivity in those parts of the country where the real seat of war lay, there was a good deal of active fighting elsewhere. Some of it was severe and gave rise to stirring events, including some stoutly contested battles. But with the exception of the operations upon the Southern coasts in aid of a more effective blockade none of these conflicts had any considerable strategic importance and the story of them may with propriety be briefly told.

In Missouri the contest was in effect a civil war, in the strict acceptation of that term. It is needless and it would be tedious to recount here the proclamations, the gubernatorial manifestos, the legislative resolutions and the so-called conventional action of that state. None of these had any undisputed legal sanction whatever, though each of them claimed all possible legality. The simple fact was that a part of Missouri's people adhered to the Union and another part equally clung to the cause of the Southern Confederacy. After much confusion the Unionists formed an army under General Lyon and the Confederates assembled a strong force under General Price. Let the lawyers quibble as they please over the technicalities involved, the fact remains as already stated, that the people of Missouri were divided in sentiment; that they arrayed themselves against each other in hostile armies; and that they fought each other in considerable battles—measured by the number of men engaged and by the slaughter involved. But these battles bore no influential relation to the contest between the Union and the Confederacy, except in so far as their conduct served to occupy troops on either side who might have been much more effectively employed at those more eastern points at which the issue was in fact to be fought out to a conclusion.

At Carthage, Missouri, where General Franz Sigel attacked the Confederates on July fifth, 1861, the Federals were beaten and forced to retreat. At Dug Spring, August third, Lyon defeated McCulloch, but a week later (August the tenth), the Federals were again defeated in a severely contested battle at Wilson's Creek, and General Lyon was killed.

On the fifth of March, 1862, the two armies west of the Mississippi met in a pitched battle at Pea Ridge, Arkansas. The contest was a fierce and bloody one, involving a heavy, though unascertained loss. The Federals had distinctly the better of it, but like the Confederates at Manassas, they utterly failed to follow up their victory or in any other way to give effect to it.

It is unnecessary to relate the story of these battles in detail. They were gallant and strenuous actions, reflecting the highest credit upon the courage of the officers and men engaged on either side. But they contributed nothing whatever to the ultimate result. They played no part in the solution of the war problem. Whether the actions so gallantly fought by Federals and Confederates alike were won by the one or by the other, made no difference in the ultimate outcome of a war which was clearly destined to be decided by other men and upon other fields of larger strategic significance.

The operations in Kentucky and Tennessee, though smaller in themselves, were of much greater importance. Those states lay within the strategic field. Kentucky had officially assumed an attitude of neutrality, as has already been related, to which neither side paid or could be expected to pay the smallest attention. That state lay between the North and the South. It was absolutely necessary that each should push armed forces into and across its domain in order to get at the forces of the adversary. Moreover, Kentucky's assumption of neutrality was a transparent absurdity in itself. If it could have commanded respect, it would have interposed a neutral ground, stretching for about four hundred miles from east to west between the contending armies, neither of which would have been privileged on any account to cross it or to enter it. Thus Kentucky, while retaining its place as a state in the Union, would have stood as a protective barrier to the seceding states, of even greater value than all the armies that could have been assembled within Kentucky's borders. It would at one and the same time have held the position of a state in the Union and the most potent of all states in aid of the Confederacy.

It is necessary to explain that this Kentucky resolution of neutrality never had the complete legal sanction of the state authorities, actual or pretended; but its effect was so small that it is scarcely worth while to discuss the technicalities. The simple fact was that Kentucky furnished men to both sides and that its legislative and its executive authorities were never at any time fully and legally agreed upon any policy whatever.

In a history that takes account of facts rather than of theories, of events rather than of resolutions, there seems no occasion to follow this subject further, except to say that both Federals and Confederates presently pushed their armies into Kentucky and tried conclusions there, with results that must form the subject of future pages in this history.

In Maryland the struggle ended in the adherence of the state to the Union, while a large part of its vigorous young manhood went South and enlisted in the Confederate army. It was this division of sentiment, this separation of families, this arraying of brother against brother, that constituted the tragedy of the Confederate war.

In North Carolina and in Tennessee there was a strong Union sentiment among the mountaineers. It could not control either state, but it resulted in the enlistment of a large number of hardy volunteers in the Union armies, and in the organization of an efficient "underground railroad," by means of which Northern soldiers escaping from Southern prisons were aided in their journey to the North.

In Virginia the anti-secession sentiment found expression in an act of secession from secession. The western half of that state had scarcely any property interest in slavery and scarcely any sympathy with the institution. The men of that region had accepted the teachings of Thomas Jefferson, and George Wythe, and a score of other Virginian statesmen, to the effect that slavery was a curse which it was their duty to extirpate as soon as might be. The secession of their state seemed to offer them an opportunity. If secession was to be the order of the day, why should not they, as representatives of the western and non-slave-holding half of their state, repudiate secession from the Union by themselves seceding from their seceding state?

Upon this hint they acted. They proceeded to set up the state of West Virginia under an autonomy granted by the National Government. It was in

direct violation of the Federal Constitution thus to divide a state without its own consent, but the thing was done in war time, and when war is on the rigid letter of the law is very apt to be disregarded in the interest of general results. At any rate the thing was done, and West Virginia has ever since 1863 held her place as one of the states of the Union.

Thus were the border states arrayed in the war. Thus was the issue made up. Thus were the lines drawn for the momentous conflict.

CHAPTER XVIII

THE BLOCKADE—THE CONQUEST OF THE COAST AND THE NEGLECT TO FOLLOW UP THE ADVANTAGE THUS GAINED

As soon as the fact was recognized that war existed between the Northern and the Southern states it was quite a matter of course and of common sense that the Federal Government should endeavor to shut in the Confederates by a blockade that should cut them off from all commerce with the outer world.

The South was almost exclusively an agricultural country. It had scanty means of supplying itself with any of those articles of manufacture which enable communities to live and to carry on war. It was sadly deficient not only in capacity to create arms, ammunition, and other fighting equipments, but also in factories capable of turning out clothing, shoes, medicines, and the like either for military or for non-military use.

For all these things the Confederates depended upon importation, and the obvious policy of the Federal Government was to prevent such importation.

If that could have been completely done, the war must of necessity have come to an early and merciful end. And there is no doubt that it might have been done during the first years of the struggle if practical common sense had been reinforced by executive ability commensurate with the demands of the occasion. As a matter of fact this was never completely accomplished until the war was in its last throes. To the very end the Confederate soldiers were clad in English-made cloth, shod with English-tanned leather, and largely fed upon Cincinnati bacon and corned beef

which had been shipped to Nassau in the Bahamas and thence carried into Confederate ports by the daring of the English captains and the English crews of English-built and English-owned blockade running steamers. Very naturally the Federal Government understood and appreciated all these conditions, and very naturally it sought to take advantage of them by blockading Southern ports and thus preventing or at least embarrassing those importations upon which the South must mainly depend for its powder, its bullets, its clothing, its shoes, its arms and its provisions.

Accordingly, one of the earliest acts of the Administration was the proclamation of a blockade of the Southern ports. This was issued as early as the nineteenth of April, 1861, two days after the Virginia Convention adopted an ordinance of secession and thus made war a certainty.

There is this peculiarity about the international law of blockade, that the ships of no nation are under obligation to respect a blockade until it shall be made effective. That is to say, until the nation proclaiming the blockade can put a sufficient naval force at the mouth of each blockaded harbor to prevent the entry of ships, no foreign shipmasters are bound to respect the proclamation of blockade, and their blockade-running ships are not subject to seizure in the attempt to pass the paper barriers erected.

At the first, of course, the blockade of Southern ports was technical rather than real. A foreign ship running in or out was not legally subject to seizure or destruction because the blockade was manifestly ineffective. But by impressing ferry-boats and every other craft that could carry guns into the naval service, the Federal Government was able presently to make its blockade so far effective that those ships which essayed to "run" it did so at risk of capture and with the certainty that capture must mean the confiscation of both ship and cargo.

But so profitable was this commerce that the merchants and shipmasters engaged in it were ready to take all the risks involved, for the sake of its enormous pecuniary returns. It was a matter of easy reckoning that a single cargo carried either way and successfully delivered, would pay for the loss of the ship and cargo on the return voyage, and leave a rich margin of profit besides.

Moreover a close blockade was simply impossible. Not one ship in a dozen that attempted to pass out or in, was in actual fact captured or driven

ashore. The number of ships engaged in blockade running was steadily reduced by the increasing dangers encountered, but the traffic continued, with no effective interruption, until near the end of the war, the chief effect of the blockade being to increase the profits of the English shipowners and shipmasters who engaged in the perilous commerce and enormously to enhance the market value of goods of every kind at the South.

An ounce of quinine that cost \$2.80 in Nassau was worth \$1,100 or \$1,200 in Charleston, while the Confederate money received for the quinine would buy cotton at ten cents a pound which had a value at the very least of half a dollar a pound in gold at Nassau. On such terms the human instinct of gain made it certain that the blockade, however legally effective it might be made, would be broken through by daring shipmasters so long as the war should last and precisely that is what in fact happened.

But in aid of the blockade, and in aid of the general policy of shutting the South in and compelling it to rely exclusively upon its own inadequate resources, the Federal Government promptly dispatched forces to the South, to capture the seacoast fortifications there and to make of the coast a Federal instead of a Confederate possession and stronghold. On the twenty-ninth of August, 1861, an expedition under command of General B. F. Butler, captured the forts at Cape Hatteras. On the seventh and eighth of November another expedition reduced the works at Port Royal and Hilton Head in South Carolina, thus making of the coast strongholds important strategic positions for the Northern arms. Later the whole coast, except the great harbor, was conquered.

It must always be a matter of astonishment to the historian that greater use was not made of the advantages thus gained at the beginning of the war. It is true that the geography of the Carolinian coast country specially lent itself to the defense of that region by small forces arrayed against greatly superior numbers. It is true, for example, that at Pocotatigo, on the twenty-second of October, 1862, two batteries of artillery and a company or two of dismounted cavalry numbering in all only 350 men, being reinforced late in the day by about four hundred more, succeeded in repelling the all-day assault of not less than three thousand and ended by driving the Federal force back to its ships. This was due in part to the peculiarly defensive nature of the ground and in part to the certainty that the Federal forces could not remain over night at Pocotatigo without finding nearly every man

among them stricken with that dire disease, "country fever," before morning.

But all day long at Pocotatigo the Federals had the Charleston and Savannah railroad on their left less than a mile away and with absolutely no obstacle whatsoever between them and its possession. Beyond the railroad line lay the high, healthful pine lands. In brief there was no reason whatever, aside from mere blundering, why they should not then and there have seized upon the Charleston and Savannah railroad, made themselves masters of the entire coast, and proceeded to the easy conquest or isolation of Charleston on the one hand and Savannah on the other.

This particular matter is here mentioned only because it serves to illustrate a larger truth. From the time when the Port Royal and the Hilton Head forts were captured there was never an hour when a capable and resolute general in command of 5,000 men—and 50,000 might easily have been sent to him—could not have made himself master of the main line of Southern communication, master of Charleston, master of Savannah and practically master of South Carolina and its neighboring states. An enterprising officer engaged in accomplishing this would, of course, have been reinforced to any desirable extent, and a campaign inland at that point and at that time would have promised results of the utmost consequence.

Here was another of the errors that served to prolong through four years a war that ought to have been brought to an end during its first campaign, and the needless and senseless prolongation of which inflicted almost incredible loss and suffering upon the South and subjected the North to financial burdens and human sacrifices of the most stupendous character.

The blockade was early made "effective" in that degree which international law requires—so effective that shipmasters trying to pass through it had no conceivable right of redress if their ships were captured, or blown to pieces, or run ashore by the blockading squadron. It was never, even unto the end, made so effective as to prevent British merchantmen from trafficking at uncertain intervals between Nassau and the Southern ports. It did not and could not put an end to the importation of the necessities of war into Southern ports; but it made such importation so enormously expensive, even if measured by the cotton exports on which the trade was based, as greatly to cripple the Confederacy in its finances. The

price of goods imported at such hazard and with such difficulty was made great enough to cover the easy contingency of capture upon the outward as well as upon the inward voyage.

He who would understand the events of that period must constantly bear in mind that during the first year or nearly that, of its duration this war of ours was conducted mainly by incapacity on both sides, by martinet captains and incapables in civil office who had been suddenly thrust into positions vastly too great for their abilities.

CHAPTER XIX

THE ERA OF INCAPACITY

This was the situation during the year 1861 and the early part of the year 1862. There were destined soon to come upon the scene two great masters of the military art—the one upon the one side and the other upon the other—Ulysses S. Grant and Robert E. Lee. But during the early part of the struggle neither of these great men was in a position of mastery or control. Grant was struggling against all the difficulties that technicality and official jealousy could plant in his pathway. He found it difficult to get into the service at all. He was a West Point graduate and he had served with distinction in the regular army, but he had long ago resigned his commission. He had thus forfeited all claim to command those who had remained in the service and who had been promoted by seniority. These, and not Grant, were made generals.

When Grant offered his services and asked for the privilege of fighting the country's adversaries his application was left absolutely unanswered. His only way into the army was "by the back door." He was elected by the men to be colonel of a regiment of Illinois volunteers, but was not commissioned in the regular army until after he had conducted a campaign to the first considerable success achieved by the national arms, and not even then without every embarrassment and humiliation which it was possible for his inferiors in superior place to inflict upon him. Indeed, as will be related later, his first great victory, the first of any importance that had been anywhere won for the Federal arms, was promptly punished by his suspension from command and by the refusal of his distinctly inferior superiors to let him follow up his success with other and obviously easy operations.

On the Confederate side the one masterful military mind was that of Robert E. Lee. As a matter of fact it was Lee who selected Manassas as the first point of resistance, and it was under his wise direction that Beauregard and Johnston were able to concentrate their forces there and to win the victory of July 21, 1861. But in the meanwhile Lee was not himself appointed to command any considerable army. He was sent to West Virginia to patch up a peace between the civilian brigadiers who commanded there and who had managed among themselves to lose every action that had occurred in that quarter. While Beauregard and Johnston were weakly throwing away the opportunity so conspicuously opened to them by the Manassas victory, this officer of commanding genius was set to the task of organizing a mountain defense against expeditions that had nothing of serious purpose in them except the prevention of Confederate enlistments west of the Alleghenies.

In the same way, after the Carolina coast forts were reduced, Lee was sent to a pestilential hole called Coosawhatchie, in South Carolina, to plan a defense of the railroad line between Charleston and Savannah, while Johnston and Beauregard were fortifying their victorious army against a foe that it had beaten into temporary helplessness.

These two—Grant and Lee—were destined in the end to fight the war out to a conclusion. But in those earlier months of it neither was permitted to exercise his genius in any effective way, or to show in action what stuff he was made of. Lee indeed held high rank from the beginning and was the military adviser of the Confederate Government, but for a time his genius was dissipated on minor matters, while lesser men were wasting time.

And as it was with the great captains so was it with their great lieutenants. William T. Sherman was an unconsidered, unconsulted lieutenant of McDowell. Stonewall Jackson and Ewell and Longstreet were the subordinates of Beauregard and Johnston. Grant and Sherman on the one side and Stonewall Jackson on the other, had lost caste in the military service by resigning from the regular army at a time when the service neither offered nor promised a career worthy of them. Inferior men therefore, who had been content with a meaningless routine, outranked and commanded these really great men after that code of military ethics and etiquette which assumes that the officer—even though he be a dullard—who has been longest in continuous service is fit to command the officer—

whatever his genius may be—who has served for a briefer time or who, finding the service to be a stupid and meaningless routine of camp duty in time of peace, has resigned from it in search of better opportunities for the exercise of his abilities, and has returned to it only when duty to his country has seemed to call him.

Thus the first year of the war was the period in which official incapacity ruled on both sides; the period in which technical rank overrode genius and trampled it to earth; the period in which the martinets were afflicted with victories which they were utterly incapable of turning to profitable account, and defeats which they knew not how to repair.

A better era was approaching, but it came slowly. For a time Grant was to be dominated by Halleck. For a time Stonewall Jackson was destined to have his carefully considered disposition of forces in the valley of Virginia overridden and canceled by an ignorant civilian in Richmond, who knew so little of military courtesy as to send his orders direct and not through Jackson's commander Johnston.

On the other side, Benjamin F. Butler, a criminal lawyer, who knew nothing whatever of the military art, was a major-general by virtue of political influence alone, and as such outranked and dominated officers immeasurably his superiors. Think of Lee banished to the coast of South Carolina, while Beauregard and Johnston were needlessly fortifying at Centreville against an absurdly impossible advance of McClellan's forces. Think of McClellan himself in command of the most important Union army, while Grant and Sherman and George H. Thomas remained in subordinate positions!

And in the navy a similar discrimination against demonstrated capacity and in favor of mere "rank" equally prevailed. Farragut, with all his already and abundantly proved capacity, waited for the best part of a year before he could get permission to bring his great powers into play, and when at last he got such permission from the ignorant and arrogant civilians who dominated the navy department at Washington, it came to him with an insulting suggestion of doubt as to his courage, his patriotism and his capacity. That is a sad story to be told hereafter. Our present purpose is merely to show how lamely and incompetently the war was carried on on both sides during the first year of its progress. He who considers the simple

facts is well nigh forced to the conclusion that had either side conducted its contest with half the brains and energy that came later into play it must have won at once.



CHAPTER XX

THE FIRST APPEARANCE OF GRANT

The "pepper box" policy of employing small bodies of troops everywhere for the accomplishment of ends of no strategic consequence prevailed at Washington during all those early months of the war. The results of that policy are the despair of the historian who would intelligently trace the progress of the conflict from its beginning to its end. In very truth there was no progress. So far as the outcome of the war was concerned those events had no part to play; so far as the history of the war is concerned, any attempt to relate their insignificant stories would serve only to confuse the reader's mind, and to distract his attention from events and operations that bore directly upon the ultimate outcome of a struggle which involved the fate of the nation. Let us leave them aside as inconsiderable incidents and trace instead those significant happenings that served to determine the ultimate results.

The outcome of all great wars is determined in the end by the personality of the men who conduct them to a conclusion. Circumstances and even accidents have their part to play, but in the main it is personality that determines the event.

So at this point it becomes necessary to consider General Grant as a factor in the war, "a stone rejected of the builders," but destined to become the chief cornerstone, nevertheless, of Federal success.

General Grant was a West Point graduate ranking low in his class at graduation. He served for a time in the regular army with such capacity as to reach the rank of captain. Then he resigned, as many other officers did—Stonewall Jackson and William T. Sherman among the number—because the police duty which seemed to constitute the only function of the regular

army offered no career to him. Captain Grant became first a farmer and later a clerk in his brother's business house at Galena, Illinois, upon a meager salary of \$800 a year, which was eked out by the earnings of his slaves in Missouri. When the war broke out he offered his services to his country, asking for a restoration to the regular army. His application was not deemed worthy even of a reply. But presently a regiment of Illinois volunteers, more appreciative than the Washington authorities, made him its colonel, and after a little while he was promoted to be a brigadier-general of volunteers, but still without even so much as a second lieutenant's commission in the regular army.

In this volunteer capacity he was sent first to Missouri and later to Cairo in Illinois to command a wide district. He fought the battle of Belmont and after a partial victory he lost it. A few months earlier, learning that the Confederates, who were masters of Columbus, twenty miles down the Mississippi, were planning to seize upon Paducah, fifty miles up the Ohio, Grant had undertaken without orders an expedition against that town. He promptly captured it and thus defeated the Confederate program.

After the battle of Belmont he planned and proposed a campaign which he hoped might reverse the existing situation at the West and give to the Union arms their first important and strategically significant victory.

Two great and practically navigable rivers, the Cumberland and the Tennessee, rise in the very heart of what was then the Southern Confederacy. Upon substantially parallel though vastly varying lines, they flow westward and northward till they debouch into the Ohio River within a few miles of each other.

At a point near the boundary between Kentucky and Tennessee where these two rivers flow within eleven miles of each other, the Confederates had erected two fortresses to command them—Fort Henry and Fort Donelson.

These fortresses gave to the South control of the two rivers. It was Grant's idea that by the reduction of these works he might reverse this condition of affairs, and make of the two rivers facile avenues of Federal access to the heart of the Confederacy, where now they served the Confederates as roadways of approach to positions of the utmost strategic importance to the side that should master and hold them.

But Grant was only a brigadier-general of volunteers, in no way entitled to plan campaigns or to make suggestions for campaigns. Halleck had command of the department, with headquarters at St. Louis. Halleck was a major-general in the regular army and Grant's "superior officer." Halleck disliked, distrusted and detested Grant, and so when Grant asked permission to move against and reduce the Confederate strongholds on the Tennessee and Cumberland rivers, Halleck's reply was in effect an injunction to the inferior officer to mind his own business.

Grant was so sure, however, of his ability to accomplish this vitally important task that he persisted in his entreaties and many weeks were consumed in fruitless negotiations for the privilege of doing great work in a great way. At last through the influence of Commodore Foote, commanding the naval forces in that quarter, the discredited volunteer general was graciously permitted by his martinet superior to undertake and execute the first operation of the war which crowned the Federal arms with a victory of strategic importance. This permission, though long solicited, did not come to Grant until the very end of January, 1862, and it was in February that the combined land and naval forces moved for the capture of the Confederate strongholds.

The expedition moved first up the Tennessee river. Grant had about 15,000 men, a force which was presently swelled by reinforcement to 27,000. But his advance was delayed and the fleet, with scarcely any assistance from him, captured Fort Henry on the sixth of February. Then the gunboats steamed down the river to its mouth and thence up the Cumberland to assail Fort Donelson. In the meanwhile Grant pushed across the narrow neck of land between the two fortresses and closely invested that fort. The fleet made a determined assault but was beaten off in a badly crippled condition. Grant continued to assail the enemy's works throughout three days of storm and sleet and suffering, and at the end of that time the fortress surrendered with about fourteen thousand men in addition to a Confederate loss in killed and wounded of about two thousand. The greater part of the garrison had previously escaped.

This was the first conspicuous victory achieved anywhere by the Federal arms. Its moral effect was incalculable and strategically it was of the utmost importance. It made an end for the time being of the war in Kentucky which had been going on for some time, involving actions of

some individual importance, though they had no vital bearing upon the strategic history of the war. It made Federal instead of Confederate highways of the two great rivers that in their course penetrated almost to the heart of the Confederacy. It made easy prey of Nashville as a vantage point from which the Federal forces might penetrate the South and assail its strongholds of resistance. Still further, as the event showed, it opened the way for that campaign which, as many critics think, resulted at Shiloh, or Pittsburg Landing, in the strategically decisive action of the war.

However that may be, by the accomplishment of his object in this campaign General Grant had achieved one of the most conspicuous and to the country one of the most enheartening victories that were accomplished by any general on either side from the beginning to the end of the war. He had every right to expect commendation. He had every right to expect permission to go on from conquest to conquering, and to have such forces placed at his command as might be necessary for the carrying out of his enterprises. But Grant was still only an officer of volunteers badly at outs with his department commander, and those were the days of red tape, the days in which achievement counted for nothing as against "rank" and "seniority."

It is true that Halleck, who had never risen above the grade of captain in the regular army, was at best only Grant's equal in "old army rank." But he had the favor of General Scott as Grant had not, and so, ex-captain that he was, he had been made a major-general in the regular service while Grant remained a mere brigadier-general of volunteers. It is true that Grant had captured two fortresses of enormous strength while Halleck had captured nothing whatsoever anywhere on earth. It is true that Grant had received the surrender of a powerful and important fort with fourteen thousand prisoners in addition to a loss on the part of his enemy of two thousand in killed and wounded, while Halleck had never received the surrender of anybody and never did to the end of the story. But Halleck was a major-general in the regular army in spite of his resignation during his captaincy—Grant also having been a captain when he resigned—and so Halleck as department commander was authorized not only to restrain Grant from this expedition, as he had done during two months of precious opportunity, but afterwards to suspend him for many weeks from command, to place him under virtual arrest and for weary weeks to restrain him from

carrying out those obviously easy supplementary enterprises with which he desired to glory-crown his achievement. Grant wanted to march on Nashville, which lay helpless before him and offered to the Federals a strategic position of incalculable value. Halleck ordered him to go to his tent and hammock instead.

What a wretched story it all is, to be sure! What a record of imbecility in control of genius, of incapacity in command of the highest ability, of small men in great places, and of great men restrained from action by the superior authority of other men immeasurably their inferiors, who by luck, or circumstance or official favor came into authority and position which they in no wise deserved, and which they were utterly incapable of using effectively in behalf of the cause they were set to serve! And what a price the country—North and South—was called upon to pay in blood and treasure and heartbreak, for all this misplacing of men!

But conditions and circumstances must be recognized, and due allowance must be made for them. The officers in the regular United States army were strictly professionals. Their first business in life was to secure all they could of rank and pay for themselves. Whether they remained in the regular army or resigned to accept Confederate service, their first concern was to secure all they could of personal preferment, rank, distinction, and recognition. Why should Beauregard or Johnston surrender aught of their advantages of regularity in behalf of the genius of Stonewall Jackson, who had long ago resigned to become a professor in a military institute? Why should McDowell, who had remained in the regular army, give place to Sherman, who had resigned to become a professor in a school? Why should Halleck, who by General Scott's favor had been raised from the rank of resigned captain to that of major-general, give place or favor to the ex-Captain Grant, now by mere popular selection a brigadier-general of volunteers, holding no place whatsoever in the regular army? Why should General Halleck permit this interloper Grant to go on winning victories? And why when the volunteer general had won them—as for example at Pittsburg Landing—should not Halleck come as he did and take command and thus assume to himself the credit due to another?

These were the ways of the early war. Moreover the administration on either side had no means of measuring men's capacities except by army rank or the favor of commanders. It was not until later that better counsels

prevailed, that demonstrated capacity was recognized, and that the military martinet learned that something more than seniority was required as a claim to command.

Stonewall Jackson, it is true, had been made a major-general in the Confederate service in reward for his conduct at Manassas, but there were lieutenant-generals and full generals still outranking him and his was an exceptional case. Grant did not share in the benefits of the example. He had won a great victory which gave fresh heart and courage to the country, but in his reports he had been careless of technical details and had given no special credit for his achievements to the department commander who had done all he could to prevent him from achieving anything at all. He had made himself "*persona non grata*" at department headquarters, though the people everywhere were acclaiming him as a victor to the sore annoyance of "headquarters." Why should "headquarters" let the interloper complete his work by seizing upon the vitally important positions which his victory had made easy of conquest? Who was Grant, anyhow? Ex-captain, ex-Galena clerk, and only a brigadier-general of volunteers! What right had he to the credit of any victories he had been graciously permitted to win?

CHAPTER XXI

THE SITUATION BEFORE SHILOH

During the autumn of 1861 the troops of both sides were pushed into the "neutral" state of Kentucky at various points and in considerable numbers. Two battles of some moment resulted. At a place called Paintville, on the Big Sandy river in the eastern part of the state, Humphrey Marshall established himself with about 2,000 or 2,500 Confederates. Colonel Garfield (afterwards General and still later President), in command of a substantially equal force of Federals, assailed Marshall there, pushed his columns back and on January 10, 1862, so far crippled him in a small but hotly contested pitched battle that Marshall was glad to retreat during the night with a loss of morale which at that period of the war was as important as the loss of guns.

In the meanwhile the Confederate General Zollicoffer, one of those amateurs in the military art who managed by political or other interest to push themselves into military command on either side, invaded eastern Kentucky, was defeated on October 21st, and fell back to Mill Springs on the upper waters of the Cumberland, where he fortified himself.

General Don Carlos Buell on the Federal side was in command of the department, and General George H. Thomas was in command of the column that immediately confronted Zollicoffer.

General Thomas was a Virginian by birth and was passionately devoted to his native state and its historic memories. He had been at the outbreak of the war a major in that specially selected regiment of which Robert E. Lee was colonel and in which the roster of his fellow officers included besides Lee Albert Sydney Johnston, William J. Hardee, Earl Van Dorn, E. Kirby Smith, John B. Hood and Fitzhugh Lee. All of these, Thomas's fellow

Southerners, resigned their commissions and accepted service in the Confederate army. Thomas, who had very remarkably distinguished himself in the service, might well have been strongly tempted, not only by the example of these his beloved comrades and by his sentimental affection for his native state, but additionally by the direct certainty of an exalted command in the Confederate army, to go with them into the Southern service. To him peculiarly came the perplexing problem of divided allegiance which presented itself to every old army officer of Southern birth, and it is said—whether truthfully or not the historian cannot determine—that for a time he seriously and painfully hesitated whether to cast in his lot with Virginia and the South, and thus join his most cherished comrades, or to retain his place in the service of the nation that had educated him as a soldier and that had so generously recognized and so richly rewarded his genius and his devotion in the past. In the end he decided to adhere to the Federal cause, and very early in the war he was offered that supreme command of the Federal armies which Robert E. Lee had refused. He too declined that honor and responsibility, remaining, however, in the Federal service and becoming one of the most brilliant commanders in the Northern armies.

At Mill Springs with seven regiments, two batteries, and a handful of cavalry, he assailed Zollicoffer—who was killed in action—overthrew him and his successor Crittenden, and in effect drove the Confederates across the river. This was the first considerable victory won by the Federal arms in any part of the country after the Manassas defeat and its moral effect was naturally very great. It antedated Grant's victories, but was of course insignificant in comparison with them.

In the meantime General Buell was busily organizing the Army of the Ohio, with headquarters at Louisville and very skilfully endeavoring to maneuver the Confederates out of Kentucky without a pitched battle, the results of which might have been for better or for worse in the then undisciplined condition of his troops. It was a period of the war in which orderly battles were imminently perilous to the Federal cause, because success in them would have accomplished little while failure in them—which might easily result from the rawness of the troops—would have made of every border state a Confederate possession and stronghold.

General Buell was afterwards bitterly censured for not having fought great battles. It seems a sounder judgment which awards him praise for having maneuvered the Confederates out of Kentucky and far into Tennessee, without risking all results upon the hazard of any single contest which, with his raw troops, he might or might not have won.

But when Grant and Foote succeeded in capturing Fort Henry and Fort Donelson, the situation was fundamentally changed. There was a large and rapidly increasing force at Louisville and near Bowling Green under General Buell. Grant had his victorious forces at the two strongholds of Fort Henry and Fort Donelson. It was obviously easy and obviously wise to move with the two armies upon Nashville and add the conquest of all the Tennessee strongholds to that already achieved of all positions that could by any possibility give to the Confederates a standing ground in Kentucky.

In brief Grant's idea was to employ all available forces in the quick reduction of important Confederate positions, the overthrow of all Confederate armed forces, and the breaking of Confederate resisting power before it could have time to strengthen itself with reinforcements or with fortifications, or still more important with the organization, disciplining and seasoning of its troops. Accordingly he notified General Halleck that he purposed to move at once upon Nashville and positions beyond, unless forbidden to do so.

He was promptly forbidden to do anything of the kind, and peremptorily called back from a career of easy and obvious victory. For who was this \$800 Galena clerk? What right had he to plan campaigns and carry them to a success that reflected no credit upon his regular army military superiors? It is true that he had captured Forts Henry and Donelson, with 14,623 men, 65 cannon, and 17,000 stands of small arms, with ammunition and accouterments in proportion. It is true that he had made Federal possessions of two important rivers reaching into the heart of the Confederacy and commanding its most important line of defense. It is true that he had won the first great inspiring success of the war for the Federal arms. It is true that he had broken that carefully constructed line of defense which the Confederates had established from the Atlantic to the Mississippi. It is true that he had placed the National forces in such a position within the heart of the Confederacy that a further and decisive advance into Alabama, Georgia and Mississippi was obvious and easy. But on the other hand he

was only a volunteer, possessing no rank or place in that regular army group which, at the North and at the South alike, stoutly asserted its claim to command by virtue of regularity and seniority of commission and wholly without regard to demonstrated genius or proved capacity.

Grant's achievements in the capture of Forts Henry and Donelson were so far recognized at Washington that he was presently raised from the rank of brigadier to that of major-general of *volunteers*. But he was still denied even a junior second lieutenant's place in the regular army, and in the meantime an officer in the regular army was authorized and entitled not only to order him to do things—a small matter to a man disposed and accustomed to do things but to forbid him to do things—a matter of much greater consequence to such a man.

General Halleck's official position was immeasurably superior to that of Grant—at best a mere major-general of volunteers—while his military capacity was in an equal degree inferior to Grant's. Grant habitually won battles. Halleck never did. Grant conducted campaigns to success. Did Halleck? It has already been shown for how long Halleck restrained Grant from undertaking his expedition against Fort Henry and Fort Donelson. When that campaign resulted in such a success as had not before been anywhere achieved by the Federal arms, Grant very naturally wanted to follow it up in ways calculated speedily to break the Confederate resistance, to occupy the commanding positions in the Confederacy and to push Federal columns southward through the seceding states, cutting them in twain and making an end of their unity. It seemed to him when Forts Henry and Donelson were in his possession quite a matter of course that he should move with his 27,000 men upon Nashville and other strategic points further south, and that all available forces, including Buell's strong and steadily increasing army, should be ordered to join him and assist him in the execution of this enterprise before the Confederates could organize effective resistance. In brief it seemed to Grant, simple soldier that he was, that the purpose of the organization of the Federal forces was to win the war as quickly as possible and with the smallest possible sacrifice of life and treasure. The shortest road to that end was to follow up his victory by the capture of other Confederate positions, the conquest of which was then easy and the possession of which seemed to promise that result.

But Grant had already offended his superior officer, not only by proposing operations which should have been suggested—as they were not—from "regular" headquarters, but still more by carrying such amateurish operations to a successful conclusion and by winning, without any sort of credit to headquarters, the first conspicuous and country-inspiring victory that the Federal arms could claim. The land was resounding with Grant's praises even while Halleck was putting him under virtual arrest, and not a word was said in extolment of the genius of Halleck who had so reluctantly consented to this volunteer officer's enterprise. Manifestly this ex-Galena clerk who had a genius for doing things must be restrained. Otherwise he would presently run away with all the glory that belonged by prescriptive right to his superiors in the regular army, and particularly to General Halleck, in his cushioned quarters at St. Louis.

Accordingly General Grant was censured for his unauthorized advance upon Nashville, and instead of proceeding against Confederate strongholds further South which were easily within his vigorous and resolute grasp, was peremptorily ordered to return to the forts which he had captured with such splendor of success and there to sit still till released from what amounted to arrest.

It was the story of Manassas over again, except that it was reversed in its application. As after Manassas Washington lay an easy prey to the Confederates, which by reason of incapacity they did not grasp, so, and in like measure, the central strongholds of the Confederacy lay, after the capture of Forts Henry and Donelson, within the easy grasp of Grant's army. The only difference was that in the one case it was the inexperience of the general in the field that forbade, while in the other it was the paralyzing prohibition of the general in a secure headquarters that stood in the way of achievement.

In the one case it was the predestined men of action who faltered and failed of their opportunity. In the other the man of action was restrained by "orders" which he dared not disobey.

Thus by the paralysis of Halleck's official hand, Grant was restrained from pushing the war to results—possibly even to a conclusion—prompt, certain and immediate.

General Halleck, who never in all his life commanded an army in battle, was by the pure unreason of military law and etiquette officially authorized to restrain the military impulse of Grant toward manifestly right ends.

Grant had neglected, or was accused of having neglected, some technical formality as to details in making his report of the actions which had made him master of the forts. To ordinary common-sense it would seem that the only important facts which he was called upon to report on that occasion were that he had certain forces under his command; that after three days of hard fighting in rain and sleet and indescribable mud his enemy had surrendered the forts with 14,623 men, 65 pieces of artillery and 17,000 stands of small arms; that he had made himself master of the two strongholds and now completely commanded both rivers, having thus opened a double river route into the heart of the Southern Confederacy, which he proposed to make still further available by an immediate advance upon Nashville and other strategic points the possession of which would give him an open pathway to the Gulf itself.

This was all that common-sense required Grant to report for the information of his superiors, and he reported precisely that. But those office-housed superiors held him guilty of neglect in that he had not given in detail the position of every regiment and brigade and battery that had helped to win the victory. In punishment of this neglect of infinitely petty detail—and also in emphasis of the fact that Grant was after all only a general of volunteers who had presumed to win unauthorized victories in no way assigned to him to win—Grant was called back from his advance for the conquest of those strategic points that lay so easily within his grasp and ordered instead to remain where he was and to let slip from his hands the ripe fruits of his victory.

Was there ever anything so absurd as this, outside of comic opera—this and the extraordinary reign of incapacity in the Confederate army and Government? That was of like kind and quality.

The simple fact, of which the historian is obliged to take account, is that if ordinary common-sense and the commonest forms of military sagacity had been in control on either side at the beginning of the war—if the men able to do things had been permitted to do them—the struggle must

almost certainly have ended within a few months after its beginning; tens, yes, scores and hundreds of thousands of lives must have been spared and multitudes of millions in expenditure and in the destruction of property would have been saved to the American people.

That however was not to be. It was written in the Book of Fate that for a time incapacity, self-seeking, narrow-minded, jealousy of rank, and other like forces of the coarse and the commonplace were to rule about equally on the one side and on the other, and that thus the war was to be prolonged at terrible cost of sorrow and suffering and slaughter.

This was the situation in the West at the time when McClellan was drilling his men around Washington, while Beauregard and Johnston were futilely fortifying at Centreville to meet an assault that only the writer of nonsense rhymes could at that time have regarded as possible, and the victorious Federal forces on the Carolina coasts were succumbing to the lassitude which that climate invites, making no vigorous efforts to conquer the exposed and indefensible Confederate lines of communication in that quarter.

Grant had a force of commanding numbers in the neighborhood of Forts Henry and Donelson. His army had been swelled to 27,000 men. Buell had as many more men—some of them battle-seasoned—at Louisville and south of that city. There were other forces in eastern Kentucky under capable commanders, which could easily have been brought to bear, forming an army of more than 100,000 men in support of any southward movement that might be undertaken. The movement which naturally suggested itself to an aggressive military mind was one against Nashville, with an eye to the penetration of the South from that point as a base of supplies. The "march to the sea" was as easy a possibility then as when Sherman made it years later.

This was Grant's idea, and it had behind it the eminent common-sense which usually inspired and informed that very practical general's plans. His purpose was to march with an overwhelming force, from Nashville to the Gulf. He could have done this easily and certainly, had he been permitted to undertake it with the forces then available. But, as we have seen, his purpose was brought to naught by the veto of General Halleck, whose

notion of strategy seems to have been to let his enemy determine where and when the fighting should occur.

Nevertheless the Southerners, seeing the strategic situation far more clearly than Halleck did, abandoned Nashville and Federal troops of Buell's army promptly occupied that city. Thus Grant's success was saved to the country in some small and insignificant measure, though Grant was himself suspended from command and compelled to wait in inglorious ease until the Confederates by ceaseless and heroic efforts got together a great army in northern Mississippi, to meet which General Halleck found it necessary to call upon his most capable lieutenant, Ulysses S. Grant.

CHAPTER XXII

BETWEEN MANASSAS AND SHILOH—THE SITUATION IN VIRGINIA

It is necessary now to record what had meanwhile been going on in Virginia and elsewhere. At the beginning of November General George B. McClellan was placed in supreme command subject only to the President—of all the armies of the United States. He was called "the young Napoleon," though upon what grounds of achievement that characterization was based it is difficult to conjecture. He was thirty-five years of age, and therefore young. He was a West Point graduate and an accomplished officer of engineers. He had been sent during the Crimean war to observe and report upon the organization and conduct of European armies. He had made a report admirable in its literary quality and expert in its observations. Later he had won distinction by his very capable conduct of that campaign in western Virginia which resulted in the division of the "pivotal" border state, and the arraying of its western half upon the Federal side. But neither in his deeds nor in the temper of his mind was there aught that could with propriety be called Napoleonic. He was given from first to last, as will appear hereafter, to the temperamental fault of exaggerating his enemy's strength and to a shrinking from conflict with a foe whose forces he thus overestimated.

Nevertheless, when McClellan was appointed to the supreme command of the Union armies after his months of organizing at Washington it was expected of him that he should at once advance upon Richmond and dictate terms of surrender in the Confederate capital itself.

He had found around Washington in the summer a state of affairs which must have hopelessly discouraged any commanding officer not altogether

given over to optimism. It sadly discouraged McClellan. In words of his own he found at Washington "no army to command—a mere collection of regiments cowering on the banks of the Potomac, some perfectly raw, others dispirited by recent defeat, some going home. There were," he added, "no defensive works on the southern approaches to the capital. Washington," he officially reported, "was crowded with straggling officers and men absent from their stations without authority." Is there any wonder that McClellan found it necessary to devote many months to the task of creating an effective army out of such stuff as this? Is there any escape from wonder that with the national capital thus hopelessly undefended, Beauregard and Johnston failed to advance upon and capture it?

This matter has been discussed in sufficient detail already in these pages. But it is worthy of note that the Confederate commanders who so strangely neglected their opportunities after the battle of Manassas, were not restrained by higher authority from the activity that was so obviously called for by the circumstances of the case, as Grant was after Donelson. They were free to act upon their own initiative, and had they been at that time, as they afterwards became, generals of fair military capacity they would have acted with vigor and promptitude and the future history of the war would very certainly have been quite other than it was.

The chief hope of the Confederates lay in the recognition of their independence by foreign governments and in a presumably probable alliance between themselves and the powerful nations of Europe. To promote that result they sent out two duly accredited ministers, the one to Great Britain and the other to France. The men selected for this service were James M. Mason of Virginia and John Slidell of Louisiana.

These envoys escaped through the blockade to Havana. There they embarked on the British mail steamer *Trent*. Captain Charles Wilkes, commanding the United States steam frigate *San Jacinto*, overhauled the *Trent* at sea, on November eight, and made prisoners of Mason and Slidell and their secretaries.

There is no doubt now that the act of Captain Wilkes was utterly lawless. But there is equally no doubt that it was dictated by a patriotic purpose. It was instantly and enthusiastically applauded throughout the North, and the Federal Congress, inattentive to international law or

consequences, voted thanks to Wilkes for his conduct in the matter. However, there was the offended British government still to be reckoned with, and that government was at that time not very reluctant to pick a quarrel with the United States or to find a substantial excuse for recognizing Southern independence, and perhaps lending aid to the Southern arms.

The act of Captain Wilkes was denounced by the British Government, as an outrage upon British neutrality and a wanton trespass upon British sovereignty as represented by the Union Jack afloat over a British mail steamer. A demand was promptly made for the surrender of Mason and Slidell, and for an apology. There is no possible room for doubt that that demand was justified under the laws of nations and peculiarly so by the precedents of American contention, for it was in protest against precisely such sea seizures that this country had made war in 1812. But the people of the North were tremendously excited over an incident in which they greatly rejoiced, and it was in an extreme degree dangerous for the administration to contravene popular sentiment and to undo Captain Wilkes's work, by yielding to Britain's demands for the surrender of Mason and Slidell.

From beginning to end of the war there was perhaps no problem so perplexing as that which this controversy presented to Mr. Lincoln's administration to solve. To refuse Britain's demands was to invite instant war with the greatest naval power in the world, with the certainty that France, already eager, would join forces with Great Britain in recognizing the Southern Confederacy and supporting it in its assertion of independence. In that case all that the United States had done toward the establishment of a blockade of Southern ports would have been quickly undone by the appearance of overmastering British and French fleets on the Southern coasts, and very probably by the landing of British and French forces to aid the Confederates in their war against the Union. For when war is on nations do not stop at technical interference. They are apt to furnish men and guns in aid of the cause they have espoused. In any case a declaration of war between Great Britain and the United States—a declaration of war which the capture of Mason and Slidell very narrowly threatened—would have resulted in the raising of the blockade of every Southern port and the opening of the South to that free traffic in arms, ammunition and supplies which chiefly the South needed in order to accomplish its purposes.

Should the Government, on the other hand, yield to the British demand, it must encounter that highly inflamed popular sentiment which had compelled a congressional resolution of thanks to Captain Wilkes, and which—sanely or insanelly—was disposed to twiddle its fingers at British or any other intervention in American affairs.

Mr. Seward, as Secretary of State, solved the matter by one of the most adroit diplomatic quibbles ever invented by an ingenious mind. He must surrender Mason and Slidell of course, otherwise war was on with England and France, the blockade was broken, the Confederacy was recognized and the establishment of a Southern Republic was an accomplished fact. On the other hand Mr. Seward must not without good and sufficient excuse yield one jot or tittle to English demands—even though those demands were supported by American precedents—lest he offend the "whip all creation" sentiment of the country.

Probably in all history no diplomat ever managed so delicate or so difficult a matter so skilfully as Mr. Seward did this. He carefully set forth the war rights of his country. He contended that Captain Wilkes had a right to capture the *Trent* as a vessel knowingly carrying contraband of war. But he explained that, as Captain Wilkes had released the vessel instead of bringing her into port as a prize, he had lost his rights and forfeited his claims. In summing up Mr. Seward said: "If I declare this case in favor of my own Government I must disavow its most cherished principles and reverse and forever abandon its most essential policy. We are asked to do to the British nation just what we have insisted all nations ought to do to us."

Mr. Seward's plea was a specious one, but it answered its purpose. It enabled him to avoid war with Great Britain and France without alienating from the administration the support of that sentiment of confident self-reliance in the country upon which enlistments and the success of the war depended. He surrendered Mason and Slidell, but he adroitly managed to represent his action rather as a new assertion of the old 1812 doctrine of American rights than as in any sense a surrender to a foreign nation's demand. Thus peace abroad was secured and popular sentiment at home was appeased; and after all the temporary detention of the two Confederate ministers had fully accomplished its purpose. By the time that they reached Europe official and public opinion in that quarter had so far changed that neither France nor England was any longer disposed to recognize the

independent nationality of the Confederacy which had so conspicuously neglected its easy opportunity to compel recognition by an advance upon Washington after Manassas.

One other event of importance remains to be recorded in this chapter. When the Confederates seized upon the Navy Yard at Portsmouth, opposite Norfolk, Virginia, the Federal forces there destroyed all they could of valuable materials and adjuncts of war. But there was left a ship, the *Merrimac*, burned in part and sunk. The Confederates raised this ship, cut her down and armored her with railroad iron. She was the first iron-clad ship that ever assailed other ships, the pioneer of all modern naval armaments. At the same time Captain John Ericsson at the North was experimenting upon somewhat similar lines and producing the *Monitor*, the first iron-clad, turreted ship ever built.

On the eighth of March the Confederate iron-clad ram the *Merrimac*—or the *Virginia* as the Confederates had newly named her—steamed out into Hampton Roads and promptly destroyed two United States ships of war, the *Congress* and the *Cumberland*. Her performance created the greatest consternation. It was obvious that no wooden ship could live in conflict with such a craft as this. With such guns as were then in use her sides were impenetrable by shot or shell. With her steel nose it was easily possible for her to ram and sink any ship of any type then in use without danger to herself.

It was the plan of the Confederates to have this ironclad destroy the wooden fleet in Hampton Roads, as it was obviously and easily possible for it to do, proceed at once to New York and work havoc there, and then steam south to raise the blockade by sinking, one after another, the wooden ships of the blockading fleet.

But just after the *Virginia's* first success was achieved, there steamed into Hampton Roads Captain Ericsson's iron-clad, turreted ship, the *Monitor*. The next day these two armored vessels tried conclusions with each other. At the end of the fight the *Virginia* retired to Portsmouth damaged and discredited. The *Monitor* had proved to be more than her match, and while it had not succeeded in destroying her it had demonstrated its own superiority as a marine fighting machine.

More important still was the fact that while the South had no shipyards in which new and improved *Virginias* could be built, the North was abundantly able to reproduce the *Monitor* in other ships of like kind without number or limit and to better her type and construction in the light of experience.

This conflict is historically interesting as the birth scene of modern naval armaments. It was the first direct conflict of armored ships. It was the first instance in history in which ironclad met ironclad. It marked the dawn of a new era in naval construction, the natal day of all modern navies. It was the beginning from which have sprung the battleship, the armored cruiser, the protected cruiser, the gunboat and the torpedo-boat destroyer, as we know them now.

The fight between the Southern ironclad and the ships it destroyed, and the contest next day between it and the *Monitor*, have been widely celebrated in song and story. But the real significance of those contests lies rather in that to which they gave birth than in that which in themselves they were.

CHAPTER XXIII

SHILOH

McClellan's advance upon Richmond, in its beginnings at least, antedated the great conflict at Shiloh. But its crisis did not come until much later, nor did it in its early progress involve aught that was of significance in its bearing upon the conduct and outcome of the war.

It seems proper therefore to discuss Shiloh and other operations in the Mississippi Valley first, leaving the campaign in Virginia for later consideration.

The Confederates, before the fall of Fort Donelson and Fort Henry, were maintaining a line of offensive defense in Kentucky. This line extended from the Big Sandy in the eastern part of the state to Columbus on the Mississippi river in the extreme west.

The line was in many respects defective. The Confederate center of operations was at Bowling Green, while the two ends of the defensive line lay much farther north than that. The line thus constituted what in military parlance is known as a reëntering angle. The enemy pushing into such an angle with forces greater than those that defended it or even with an inferior force, had easy choice to attack on either side as he pleased, concentrating at will, while compelling the Confederates to scatter their forces along the whole of an extensive line by way of defending all parts of it equally.

It was the original purpose of those who devised this defensive system to correct the fault by pushing their center forward from Bowling Green to Paducah on the Ohio river, nearly fifty miles above the mouth of that stream. Had this been accomplished, it would have made the angle of defense a salient instead of a reëntering one.

Let us explain the advantage of this for the benefit of the non-military reader. If the Confederates could have established themselves at Paducah with their lines trending off to the southeast on the one side and to the southwest on the other, they, instead of their enemies, would have had choice of positions in which to concentrate. Assailed at any point it would have been easy for them to throw all possible force quickly to the defense of the threatened position.

Grant interfered with all this planning when he moved up the Ohio, and seized upon Paducah, which was quickly fortified so strongly as to render the execution of the scheme thereafter impracticable. From that time forward it was clear that the Confederates must either maintain their line of defense by means of a vast and dangerously unmanageable reëntering angle, or they must withdraw from their two advanced wing points. To do this latter thing would have been to abandon Kentucky completely, and it was no part of the Confederate program to do that.

A second defect in this scheme of defense was that the line thus formed was traversed by two rivers, the Tennessee and the Cumberland, both practically navigable by steamboats. It was obvious to ordinary common-sense that should both or either of these rivers at any time fall under control of the enemy, with his multitudinous gunboats and other river craft which could easily be made to carry guns, the western half of the Confederate force must be completely and at once cut off from all but a very roundabout and slow communication with its allies on the east.

Here was a danger which must have presented itself obtrusively to the minds of those who formed and ordered this military arrangement. It is difficult for a military critic in this later day to understand or to conceive upon what principle of scientific warfare such a line was accepted as even tolerably judicious. Its adoption seems in fact to have been determined more by political than by military considerations.

In order to meet the difficulty the Confederates created the two great fortresses—Henry and Donelson—to defend the rivers. These forts were curiously misplaced. They were located one upon the one river, and the other upon the other, at a point near the dividing line between Kentucky and Tennessee. At that point the two rivers run within eleven miles of each other. But a little farther down the streams—that is to say a little farther

north—their course brings them within three miles of each other. Here obviously on all accounts was the point at which the defensive works should have been constructed. In that case the two forts would have been within easy supporting distance of each other and neither could have been assailed from the rear. Moreover, we have the authority of no less eminent an engineer than General Beauregard for saying that the ground at this point is well fitted by its natural conformation for purposes of defense, while at the point actually selected for the two fortresses it is peculiarly lacking in that advantage. But the more defensible position was in Kentucky and purely political considerations had weight in determining the choice of the less advantageous point of defense in Tennessee.

The defective character of this line of defense and the mistake underlying its acceptance were strongly emphasized after the overthrow of Zollicoffer at Mill Springs and the pushing forward of General Thomas's forces to more southerly points. This movement placed a threatening force on the right flank of the Confederate line of defense. Nevertheless, the Confederate War Department clung to its mistaken policy. It lived at that time in a fool's paradise in which facts counted for little in comparison with theories, and in which optimism was expected to serve the purpose of guns and brigades and defensive works.

When at the end of January, 1862, the War Department asked General Beauregard to go to that region as second in command under General Albert Sydney Johnston, it confidently assured him that the troops under General Johnston's command exceeded seventy thousand in number. On his arrival there General Beauregard found that in fact these widely and dangerously scattered forces numbered less than forty-five thousand and that the several parts could not possibly be made to support each other. He found also that the strength in fortification, in guns and in men, which should have been concentrated mainly in Forts Henry and Donelson, had been largely wasted at Columbus, a position naturally indefensible or defensible by a small as easily as by a large force. He found that vast quantities of precious stores had been warehoused there in face of the fact that Columbus was the most northerly and the most exposed point on the entire defensive line.

When General Beauregard joined General Johnston and made his study of conditions, he pointed out all these defects in the line and all the dangers they involved. General Beauregard had, since the battle of Manassas,

developed an aggressive tendency which he had strangely lacked in the earlier months of his career as a general. He had grown into a real general. He therefore proposed to General Johnston an instant offensive movement.

Here it is important for the reader clearly to understand the situation.

General Polk, commanding the Confederates at Columbus, was threatened by a superior force under General Pope in Missouri, on the other side of the river. General Johnston's position at Bowling Green was threatened by a distinctly superior army under General Buell which lay scarcely more than a two days' march to the north and east. Moreover the position of Bowling Green was already in effect turned by Thomas's advance from eastern Kentucky towards eastern Tennessee. In the meanwhile General Grant, supported by the gunboats, was in possession of Paducah and threatening to advance with 15,000 men for the reduction of Fort Henry and Fort Donelson.

The Confederate forces were scattered beyond all possibility of effective coöperation except by a concentration in advance involving a radical change in the scheme and line of defense. There were at that time about 14,000 Confederate effectives at Bowling Green; about 5,500 at Forts Henry and Donelson; about 8,000 near Clarksville; and about 15,000 at and near Columbus. Other detached forces at various points swelled the total of the Confederate forces in Kentucky and Tennessee to about 45,000 fighting men.

Grant was threatening the river forts with 15,000 men. Pope had 30,000 men or more in southeast Missouri, threatening Columbus. Buell had a large and rapidly increasing army, numbering from 40,000 to 60,000 men (overestimated by Beauregard at 75,000 or 80,000) at Bacon's Creek, within striking distance, forty miles, of Bowling Green.

It was obviously easy for Pope to occupy Polk at Columbus and for Buell to engage Johnston at Bowling Green with an overwhelming force, while Grant should advance to the assault of Forts Henry and Donelson.

Buell, with his army of 40,000 or 50,000 men, might easily have overwhelmed Johnston's 14,000 at Bowling Green. Pope could have so far engaged Polk at Columbus as to prevent the detachment even of a squad from that quarter for Johnston's reinforcement. Grant in the meanwhile

could make his advance with 15,000 men—to be reinforced presently to 27,000—and the gunboats, against Forts Henry and Donelson, defended as those works were by no more than 5,500 men.

It was Beauregard's urgent advice to withdraw all but garrison forces from Columbus, Bowling Green and Clarksville, and to concentrate an overmastering force for resistance to Grant in front of Fort Donelson.

This plan was in some degree acted upon. That is to say enough men were concentrated at the forts to swell the record of Grant's subsequent capture to about 15,000 men, but not enough to defend the position. The plan might have failed had an attempt been made to execute it in its full scope. Attempted by half measures as it was its failure was clearly foreordained. Grant captured the forts and their defending garrisons and made himself master of the two rivers which, next to the Mississippi, were of most vital importance to both sides. After the forts had fallen the occupation of Nashville was quite a matter of course, and equally so was the necessity of the Confederate evacuation of Kentucky and of practically all of Tennessee.

Presently after being "kept in" by Halleck Grant was restored to command—though still as a mere volunteer officer under censure and still subject to General Halleck's often paralyzing domination. Grant instantly began, after his habit, to plan a further campaign of damage to the enemies of the Union. One opportunity had been denied to him. He sought another.

In the meanwhile his capture of Forts Henry and Donelson had split the Confederate line of defense in two and rendered its further maintenance an utter impossibility. With the Tennessee and Cumberland rivers in Federal possession it was manifestly absurd to think of maintaining a line of defense which those rivers traversed. The success of Grant had completely ended all possibility of coöperation between the eastern and western wings of that defensive line. The forces west of the Tennessee and those east of that river must henceforth act independently and rather hopelessly, or else they must retire to a new line farther south upon which coöperation might be possible.

It was decided to retire. Bowling Green was evacuated and the Federal General Buell instantly occupied it. A little later Nashville was evacuated by the Confederates in behalf of a less exposed position. It was at the same

time determined to withdraw from Columbus all the forces assembled there except a garrison sufficient to work the guns, and to defend the point for a time with the aid of Commodore Hollins's gunboats in the Mississippi.

The new line of defense adopted by the Confederates was the Memphis and Charleston railroad, running through southern Tennessee and northern Mississippi, Alabama, etc. This line presented no natural advantages of defense, but it covered the most vitally important railroad communications of the Confederacy. Furthermore it will be observed that this line of defense lies almost exactly midway between the Ohio River and the Gulf of Mexico. In other words, under Grant's energetic aggressiveness, the Federal control had been pushed from the Ohio river nearly half way to the gulf. The process of "splitting the Confederacy in two," was already well advanced at the beginning of the spring of 1862.

It was always the keynote of Grant's policy to "press things," and after his period of suspension from command he began again to carry out that obviously wise policy.

As the dominant thought in General Grant's strategy from beginning to end of the war, he was strongly impressed with the fact that the North was vastly superior to the South in all military resources, and as a man of practical common sense it was his idea that this superiority in men, arms, ammunition, food supplies, and all else that tends to help military endeavor should be insistently and persistently utilized in the breaking of Confederate resistance within the briefest possible time. The ancient thought of divine arbitrament in arms had no place in his mind. The notion was incredible to him that two armies should stand still and do nothing while a David on the one side and a Goliath on the other should make a personal trial of conclusions. He was not lacking in chivalry or sentiment, as abundantly appeared on several conspicuous occasions, but he had besides an all-dominating common sense, and he used it. He fully agreed with the Confederate General Forrest in his definition of strategy as the art of "getting there first with the most men." He did not understand modern warfare to be in any wise akin to a medieval tournament in which equality of opportunity must be sought at all costs. Quite on the contrary he regarded war as a perfectly practical matter of business, to be carried on as such. He clearly saw it to be what it is and always must be, a cruel survival from

barbaric times, a measuring of brute strength in that last appeal of humanity, to the arbitrament of arms.

His common sense taught him that whatever of science there might be involved in the conduct of war, its results depended after all upon brute force. It was therefore his plan always to bring to bear all that he possessed of brute force for the solution of the problems at issue, and, wherever he could, to press his adversary with heavier battalions than that adversary could muster.

Having been set free again with permission to resume active warfare, Grant intuitively desired to push forward, pressing his adversary at every point, seizing upon every assailable position and making himself master of every place from which further war could be waged with hope of success.

As we have seen, he had been called back from this program of common sense after his capture of Forts Henry and Donelson, and until March 13 he was not again allowed to do anything whatever or to use his abilities in any manner in the public service.

By making himself master of the two rivers he had completely destroyed the Confederate line and scheme of defense. He had completely cut off that part of the Confederate force which had its headquarters at Bowling Green from that part of it whose chief seat was at Columbus. So complete was this severance, as a glance at a map will show, that General Albert Sydney Johnston sent General Beauregard at once to command the western force as a separate army with specific instructions to act upon his own judgment, bearing in mind that coöperation between the two forces was no longer possible.

It was surely a great strategic victory for Grant thus to break an elaborate line of defense and thus completely to divide an army already inferior to the armies opposing it in numbers, resources and equipments. But this was not all of it. By this division of the Confederate forces Grant was left free to attack either half of the Southern army at will, with overwhelming numbers—for in addition to his own 38,000 men—for his force had been swelled to that strength—he had Buell's much larger force within easy call, to say nothing of Thomas's command, now foot-loose for aggressive campaigning. It is safe to say that had Grant been permitted, he could and would have fallen upon and crushed the Confederates under

Johnston, with an absolutely overwhelming army. He could and would have conquered every remaining Confederate stronghold in Tennessee and northern Georgia and Alabama and he could and probably would have made within the first year of the war that "march to the sea," either at Mobile or at Savannah, which was left for Sherman to make years later.

On the other hand, with a strong detachment he could easily have destroyed the long and exceedingly vulnerable line of communication that connected Columbus, Kentucky, with the South.

At Jackson, Tennessee, the Mississippi Central railroad coming up from New Orleans and the Mobile and Ohio line running north from Mobile formed a junction. From that point north to Columbus, there was but one fragile line of single track, earth-ballasted railroad, serving as a connecting link between the South and its excessively advanced western position at Columbus. It is difficult to imagine a line of military communication more vulnerable than this little thread. The country between the Tennessee river and this railroad line was quite open and there was neither fortress nor force, except here and there an easily conquerable picket post to defend the communication. If Grant had been left with a free hand there is no doubt whatever that he would instantly have sent westward a force too small in itself for its detachment to weaken him, but large enough to make itself instantly and completely master of this railroad line. He would thus have cut off all communication between Columbus and the South. He would have made himself quickly master of all the forces and all the supplies and all the ordnance that had been foolishly concentrated at Columbus. He would without a battle have compelled the surrender of that stronghold, with all its preposterously numerous garrison, with all its great guns, and with all of the rich store of supplies and ammunition and other war material collected there.

It was another absurdity of the early war that Grant was forbidden to do any of these things, when the time for their doing was ripe. By orders of his "superior officer" Halleck, Grant was held idle at the forts that he had conquered while this opportunity slipped away. From the sixteenth of February to the thirteenth of March this only general who knew how to do things and how to get things done was condemned to idleness and inaction by the absurd order of a distinctly unfriendly martinet.

In the meantime the Confederates, not being fools, utilized the opportunity given them by this delay, to rescue themselves from their peculiarly perilous position. Johnston withdrew the eastern half of the Confederate army from Bowling Green to the line of the railroad that led from Memphis eastward. Beauregard, in command of the western half of the army which Grant had so completely sundered, clearly saw the situation and promptly retired his forces from Columbus to Corinth, Mississippi, on the line of the Memphis and Charleston railroad at its intersection of the Mobile and Ohio line. He had in the meantime transferred to New Madrid on the Mississippi, and to Island Number 10 in that stream, the best of the ordnance in Columbus, thus providing as effectually as he could for the defense of the great river and for its blockading against Federal gunboats and still more important Federal transports bearing troops and supplies to points below.

Corinth is a little village in the extreme north of Mississippi. It has no pronounced defensive advantages whatsoever. It lies in a region of nearly flat lands with no line of bold hills to protect it and no difficult stream to serve as a base of defense. But it lies upon that line of railroad which the Confederates must defend if they were to preserve their communications between the east and the west at the crossing of the north and south line.

At Corinth the Confederates concentrated all their forces. Against Corinth Grant instantly directed his operations as soon as he was restored to command and permitted by his superior officer to carry on the war for his country upon lines marked out by common-sense.

He moved at once to Pittsburg Landing on the Tennessee river. Pittsburg Landing lies about twenty miles north by east of Corinth and between the two there is no considerable stream, no important range of hills, nothing in the shape of physical conformation of the ground that could aid Confederate defense or facilitate Confederate aggression. On the contrary the streams near Pittsburg ministered exclusively to Federal purposes.

When Grant arrived at Pittsburg Landing he found the army encamped about equally upon the eastern and western sides of the river. He instantly and boldly ordered the whole of it to the western or Confederate bank of the stream.

This was a very daring thing to do. For with the Tennessee river behind him and with no means of easily crossing it in retreat, Grant must face the certain surrender of his army in case of an unsuccessful battle in that position. In such an event there could be no alternative. But it was not Grant's habit of mind to look for alternatives. He boldly took the risk as it was his custom to do. He threw his whole army across the river and there waited for the arrival of Buell's stronger force, which had been ordered by Halleck to join him and was marching in very leisurely fashion to do so. The army under Grant's own immediate command numbered now about 38,000 men, increased almost immediately to 45,000. That under Buell which was strolling westward to reinforce him numbered more than 40,000. He thus had prospect of an overwhelming force with which to assail the Confederates at Corinth, where under Beauregard's tireless activity they had succeeded in concentrating about 45,000 or 50,000 men, a large part of this force consisting of raw recruits unorganized, undrilled, undisciplined and extremely ill armed.

Whether Halleck planned this concentration of Grant's and Buell's armies for an advance upon Corinth as his partisans contend, or whether Grant planned it and Halleck merely accepted the plan as others stoutly assert, is a matter of no historical consequence, whatever biographical interest it may have. In either case the purpose of the concentration was to move upon Corinth in irresistible force, overthrow the Confederates there and seize upon the two important lines of railroad which intersect each other at that point. It was at any rate Halleck's purpose to command in this campaign in person. But it was not intended to advance upon Corinth until Grant's and Buell's armies should form a junction, and there was no thought or expectation that the Confederates would themselves assume the offensive. General Halleck planned to leave St. Louis not earlier than April 7, and perhaps several days later, for Pittsburg Landing. In the meanwhile General Grant had posted his army loosely and had thrown up no earthworks in the field. All his procedures indicated that he did not expect to be molested where he lay or to encounter the enemy until he should go in search of him. Indeed, he telegraphed Halleck on the fifth of April, the very day before the battle, saying, "The main force of the enemy is at Corinth, with troops at different points east.... I have scarcely the faintest idea of an attack (general one) being made upon us, but will be prepared should such a thing take place."

At the very moment when that dispatch was penned the Confederates with their entire strength were actually on march to assail an enemy who had "scarcely the faintest idea of an attack" being made upon him either then or later. In his memoirs General Grant said:

"When all reinforcements should have arrived I expected to take the initiative by marching on Corinth and had no expectation of needing fortifications.... The fact is I regarded the campaign we were engaged in as an offensive one and had no idea that the enemy would leave strong intrenchments to take the initiative when he knew he would be attacked where he was, if he remained."

It had been the purpose of General Johnston to deliver his blow on the morning of the fifth of April, overthrow Grant, and be prepared to fall upon Buell when he should arrive. But matters of detail went so far wrong that the Confederates, advancing from Corinth to attack, did not reach the neighborhood of Shiloh church, where Sherman was posted without fortifications, until nightfall of that day. They bivouacked very near the Federal lines, but strangely enough their presence in force was not discovered by the enemy they purposed to fall upon at daylight. In the meanwhile the head of Buell's column had come up and the rest of it was dangerously near at hand.

The Confederates made their assault with great impetuosity at dawn of April 6. The first that Sherman, who held the advance of Grant's position, knew of the impending battle was when the Confederates forty thousand strong rushed upon his camps and after a brief but stubborn struggle carried them, Sherman being driven back so hurriedly that he left his tents standing and the breakfasts of his men not yet cooked. The first that Grant knew of a tremendous attack of which he had had "scarcely the faintest idea," was when at his headquarters at Savannah several miles down the river he heard the guns at work at Shiloh.

There has been much and angry discussion of the question whether or not Grant and Sherman were "surprised," in the military acceptance of the term, by the Confederate onslaught at Shiloh. The point has little historical importance, but in the light of all the facts since disclosed by the records it is difficult to interpret what happened there otherwise than as a complete surprise, which but for the excellent discipline of the Federal troops and

their superb fighting quality might easily have ended in disaster. We have seen that Halleck in St. Louis did not intend to leave for the front, where he expected to command in person, until the next day or even later. We have seen how confident Grant was in his belief that the Confederates intended no general attack either then or later and how he planned himself to take the offensive. It is certain that Grant's forces were not disposed as they would have been if an assault by the enemy had been anticipated. The several advance corps were posted with little or no reference to coöperation between them to resist an enemy assaulting in force. No line of battle had been formed or in any way provided for. Sherman, who was first assailed, was resting quietly in camps which would very certainly have been stripped for action if an attack had been expected. Indeed, Sherman's very latest reports to Grant had expressed the utmost confidence that no attack was in contemplation, and that the Confederates would do nothing more than annoy the pickets. He reported to Grant that they "will not press our pickets far." In brief it is obvious that neither Halleck at St. Louis, nor Grant at Savannah, Tennessee, nor Sherman, holding the front at Shiloh meeting house, anticipated a battle in front of Pittsburg Landing. They expected to fight on the offensive at Corinth when they should be ready to advance, but the thought of having to defend themselves against a Confederate force assailing them at Shiloh seems never to have occurred to them until the Confederates fell upon Sherman's camp with their "yell," for a first warning of their presence.

Sherman with two brigades lay in front. The two brigades were widely separated, as they would not have been had an attack in force been regarded as even a possibility. McClelland's division lay far in rear of Sherman. Prentiss, Hurlbut, W. H. L. Wallace and the commander of C. F. Smith's force—that general being ill—with their several divisions were scattered about in the rear all the way to Pittsburg Landing, while Lew Wallace with about five thousand men was posted several miles farther down the river in complete isolation from the rest of the force.

General Van Horne, writing under the direct inspiration of General George H. Thomas and with all the orders and dispatches under his eye, says that the several divisions "were widely separated and did not sustain such relations to each other that it was possible to form quickly a connected defensive line; they had no defenses and no designated line for defense in

the event of a sudden attack, and there was no general on the field to take by special authority the command of the whole force in an emergency."

The ground in front of Pittsburg Landing was especially well adapted to defense. Flanked on either side by creeks difficult to cross, it compelled the assailants to depend almost entirely upon direct assault in front with little chance of success in any effort they might make to turn either flank.

There was as yet no officer authorized to take general command, General Grant being at Savannah, far from the field, but the division commanders, each acting upon his own responsibility, quickly responded to the need, and not long after Sherman's camps had been overrun there was a very tolerable line of battle contesting the Confederate advance with great obstinacy and determination.

In the meanwhile Grant had ordered up such reinforcements as were at hand and was himself hurrying to the scene to give personal direction to the battle.

He found multitudes of stragglers and skulkers cowering under the river bank, as is always the case during a battle when a place of refuge near at hand offers a tempting security to the cowardly. But apart from these spiritless ones he found the men of his army bearing themselves right gallantly and contesting every inch of the ground over which the Confederates were slowly beating them back towards the river.

The purpose of the Confederates was to break through the left of Grant's line and reach the river, thus placing themselves on their enemy's flank, threatening his rear and imperiling his entire army. General Albert Sydney Johnston had been mortally wounded early in the afternoon, but Beauregard, upon whom the Confederate command had devolved, adopted and sought to carry out the strategy determined upon. Late in the afternoon, he hurled the whole of Bragg's force upon the left of Grant's line with an impetuosity which must have achieved success had the tremendous assault been made an hour earlier. But fortunately for the Federals General Buell had come up with a part of his army. He quickly threw such regiments as he had with him into action at the point of danger, and the danger was really extreme. It was only necessary for the Confederates to push Grant's left wing back for about two hundred yards farther than it had been pushed already in order to seize upon the landing and completely cut Grant off

from his gunboats and transports acting as ferry-boats, and from all hope of further reinforcement.

In that case Grant's problem would have been to save his shattered army from complete overthrow, with surrender as the well-nigh inevitable result. There is little doubt that the left wing must have given way before Bragg's assault, as the Confederates expected it to do, but for the reinforcement which Buell sent into action at the critical moment. This reinforcement saved the left wing from the destruction intended for it.

This statement is made upon the very careful and trustworthy authority of General Van Horne, writing under direct inspiration of General Thomas. In his "Memoirs" General Grant repudiates the claim of Buell's having rendered important assistance at that time and insists that he rendered him no help of any consequence on the first day of the battle. But the memoirs were written from the memory of a very ill man many years after the event, and may therefore be erroneous. At any rate General Van Horne's account of what happened, supported as it is by copies of all the orders given, seems the more trustworthy authority on the point at issue.

Night was now near at hand. During a long day of continuous and desperate fighting Grant had been slowly beaten back to the neighborhood of the river bank. There he stood at bay with all his artillery and all his infantry massed in a commanding position, shattered and broken, and standing in desperate defense of a point from which he could retreat no farther without retreating into the river.

Across his front lay a deep ravine. This would have been difficult for his enemy to cross under the best of conditions. It was rendered the more difficult by the fact that it was in part filled with back water from the river. Still more important was the fact that it was completely commanded by a plunging fire from the Federal artillery which in spite of defeat stood resolutely to its guns.

Nevertheless the passage of that ravine was not quite impossible to a determined foe; more difficult tasks have been accomplished by generals of desperate courage commanding such an army as that under Beauregard had proved itself to be during that unflinching day of slaughter.

It was a critical moment of the war—we may almost say it was *the* critical moment of the war. If Beauregard could have forced that ravine he must have driven his adversary into the river or compelled the surrender of the Federal army with its complete destruction as the only alternative. On the other hand, if he failed to force the ravine that night it would be forever too late. For Buell's whole army was now within call and it was certain that on the following day, if Grant were not now destroyed, there would be a Federal force on the Confederate side of the river with which Beauregard could not reasonably hope to cope successfully.

It would perhaps be unjust to say that at this supreme crisis Beauregard faltered and failed. The peril of the attempt was so great and the certainty of slaughter so appalling that the very stoutest heart might well have shrunk from the desperate hazard.

Beauregard himself has told us in his official reports, and in Colonel Roman's inspired book, that he was unwilling to order a movement so desperate in its chances and so certain to involve a slaughter of brave men greater than any that has been anywhere recorded in the annals of modern war. He was satisfied with the day's work done and confident of complete victory on the morrow. So sure was he of this that he sent dispatches to Richmond that night announcing a victory of stupendous proportions and painting it in colors so glowing that President Davis was moved to send a congratulatory message to the Congress, and that body passed resolutions of the most enthusiastic kind.

During that night Buell's army, itself outnumbering what remained of Beauregard's, was hurrying to reinforce Grant who planned to renew the conflict at dawn with every prospect of reversing the first day's results and wresting victory from what had been so nearly a complete and disastrous defeat.

Early on the morning of the seventh of April Grant, reinforced by Buell's men and having now an overmastering superiority of numbers, took the offensive and assailed Beauregard's weakened army with a determination which under the circumstances could mean nothing less than victory.

But Beauregard was an obstinate fighter and a skilful one and his men were Americans of the same race and lineage and traditions as those they

were meeting in battle. There was terrible fighting, therefore, on that second day, and it was only after a very desperate and a very bloody struggle, hours long in duration, that Grant regained the ground lost on the day before.

But Beauregard's struggle on that second day was rendered hopeless from the outset by irresistible odds of numbers, and after a heroic resistance he withdrew his army and retired in good order and unmolested to his strongly fortified position at Corinth.

Thus ended one of the great and decisive battles of the war. The Federals had lost 13,047 men—killed, wounded and prisoners. The Confederate loss was officially reported at 10,699 men. They had captured the whole of Prentiss's division, 2,200 strong.

But the respective losses did not accurately measure the importance of the contest. The battle left the Confederates baffled in their attempt to overthrow Grant, but not less determined than ever to fight the matter out to that conclusion which they religiously believed to be their due of righteousness. On the other hand, it left the Federal army in overmastering force on the Confederate side of a river which constituted the last serious natural obstacle to Grant's purposed march to the gulf.

But Grant was again immediately superseded in the chief command and forbidden to press the Confederates with that tireless and ceaseless activity which was the dominant characteristic of his military methods. He had now an army of about 120,000 men. In front of him lay the enemy upon a weakly defensive line with an army reduced by battle losses to less than 40,000 effectives. It was obviously Grant's greatest opportunity, but he was not permitted to seize it and turn it to account. For no sooner was the battle completely won than General Halleck hurried down from St. Louis and himself assumed command.

His orders were paralyzing. Instead of pushing forward with his force, that outnumbered the Confederates by about three to one, and quickly making an end of their resistance, he fortified and proceeded to busy himself with the petty and nagging criticism of battle reports while the Confederates were doing all that remained possible to them to gather recruits, to strengthen their position at Corinth and to prepare means of resistance farther South.

When we shall come to consider in a future chapter, what else had happened, we shall see clearly that by his victory on the second day of the Shiloh battle, taken in connection with other occurrences, General Grant had made easily possible the immediate and complete conquest of the entire Mississippi Valley. It only required an immediate and determined advance such as General Grant naturally and eagerly desired to make, in order to complete that work at once. He says in his "Memoirs" that two days would have been ample for the conquest of Corinth. But General Grant was not in control of operations in the western department. General Halleck was. General Grant was no longer even in command of the army with which he had driven General Beauregard back to Corinth. General Halleck was, and instead of pressing forward at once as Grant desired to do and driving Beauregard still farther south while capturing all his stores or compelling him to destroy them, Halleck forbade all this and with three men to Beauregard's one, and with thrice or four times his resources in artillery, ammunition and everything else, he fortified at Shiloh and began a slowly scientific approach to works that Grant, in command of that army, would have run over as a schoolboy tramples down a pathway through a clover field. Halleck did not even begin this "scientific" advance against Corinth until the thirtieth of April—more than three weeks after the battle at Shiloh had opened the way. It took him, by his slow methods, a full month more to reach Corinth—less than twenty miles away—and when he got there at last he found the place already evacuated, the Confederates having made good use of the seven or eight weeks' time which his dilatoriness had thus allowed them in removing their guns, ammunition and stores to newly fortified positions farther south.

But Grant's achievement at Shiloh was too great to be ignored. Again, as after the capture of Forts Henry and Donelson, the land was resounding with the praises of this Galena clerk Ulysses S. Grant, and nobody outside the war department at Washington was even thinking of his superior officer, General Halleck.

But in order clearly to understand what and how much all this meant, it is necessary in another chapter to recount what else had happened of a nature calculated to contribute to the recovery of the Mississippi river and the Mississippi Valley, and to the severance of the Confederacy in twain.

CHAPTER XXIV

NEW MADRID AND ISLAND NUMBER 10

While the battle of Shiloh was in progress another strategically important struggle was fought out.

By way of defending the Mississippi and holding it within Confederate control the Southern generals had strongly fortified New Madrid Bend and Island Number 10.

Let us explain. The Mississippi river is exceedingly tortuous in its course. Some miles above New Madrid in Missouri, it suddenly turns northwardly and makes a great bend. At or near the northerly curve of that bend lies the village of New Madrid, Missouri. There the Confederates had fortified themselves and there General Pope with his army in Missouri was threatening them.

In the course of that vast bend lay Island Number 10, and here the Confederates had still more determinedly fortified themselves with a view of holding the great river. They had a strong force at Fort Pillow, on the Tennessee bank farther down the stream. They held Memphis on the Chickasaw bluffs 240 miles below Cairo. They had possession of Vicksburg and Port Hudson, but those positions had not yet been made strongholds by elaborate fortifications. They still held New Orleans and the defenses below that city, though they were destined soon to lose them. Thus they commanded the river and made of it a Confederate highway. It was the obvious policy of the Confederates to retain possession of that great river. It was the equally obvious policy of their adversaries to conquer control of it.

When Beauregard wisely, and indeed under strategic compulsion, withdrew the forces from Columbus, Kentucky, he sent some of the troops constituting the garrison and most of the guns that bristled from the useless

fortifications of that town to New Madrid and Island Number 10, where they were needed.

Early in March General Pope moved down the Mississippi on its western side, and began operations for the reduction of New Madrid. When he had got his siege guns into position and opened a serious bombardment, the works there were quickly abandoned.

Then began the assault upon Island Number 10, the one great northern stronghold of the Confederates in the Mississippi river, designed to hold that great waterway and forbid to the Federals its use as a thoroughfare into the heart of the South.

The Federal army cut a canal across the peninsula formed by the great bend in the river. All the naval force that the Federals could command in those waters was brought to bear not only for the reduction of the forts there but still more for the beating off of the Confederate gunboats under Commodore Hollins. On the other hand Commodore Foote ran the canal with his Federal gunboats and established himself in a commanding position in reverse of the forts while Pope crossed the stream and assailed the enemy in front with all his land forces.

The situation of the Confederates was a hopeless one and after an effort to escape they surrendered nearly 7,000 men and more than 150 guns, most of them of large caliber and formidable destructive force.

This occurred on the second day of the Shiloh battle, April 7, 1862, on which day, after a heroic effort to breast Grant's overwhelming numbers, Beauregard withdrew from Shiloh to Corinth. This capture of Island Number 10 opened the Mississippi to Memphis, except for the single and, as it afterwards proved to be, the utterly ineffective position at Fort Pillow.

General Halleck was fully informed of all that had happened. He knew that Pope's way was open down the Mississippi to Memphis, and that Memphis, scarcely at all defended, was within his easy grasp. He knew of course that Memphis was the westerly end of the new defensive line of the Confederates, and that its capture must compel them still further to retire toward the south, even should he fail or neglect to drive them from the Memphis and Charleston railroad line at Corinth, as he easily might have done with his utterly overwhelming force, and as Grant would undoubtedly

have done if that vigorously aggressive general had been left in control of that splendidly equipped army. But Halleck sat still and pottered over "reports" that annoyingly paid no tribute to his genius and suggested no credit to him for the victory that had been won.

Meanwhile Grant was losing time. The Confederates, foreseeing the inevitable loss of Memphis, which happened on the sixth of June, nearly two months after energy would easily have compelled it, were busily fortifying all defensible positions on the river below, especially at Vicksburg and Port Hudson, and thus making necessary one of the most strenuous and one of the bloodiest campaigns of the war, where scarcely any campaign at all would have been necessary but for the fact that a martinet officer, much too "scientific" and too "regular" for the practical purposes of war, was in authority over a man who knew not only how to plan campaigns but how to conduct them quickly to a successful conclusion.

CHAPTER XXV

FARRAGUT AT NEW ORLEANS

There was still another man of splendid genius and capacity who about this time came to the front as a winner of victories for the Federal arms, and above all, as a man like Grant, who knew how to do things when officialism permitted him to act. Like Grant on the one side, and Lee on the other, Farragut was at first treated as a negligible factor in the war.

David Glasgow Farragut was a man of Southern birth who had been twice married in Virginia, and all of whose kindred and connections and instinctive sympathies were Southern. He so far sympathized with the South indeed that he openly declared his purpose to go with the Confederacy if by any means the division of the country could be peacefully arranged and accomplished. But, living as he did at the outbreak of the war in a strongly secessionist Virginia town, he frankly declared his lack of faith in the peaceful accomplishment of secession, and his fixed purpose in the event of war to cast in his lot with the cause of the nation, which, all his long life—for he was sixty years old—he had served, and from which all his honors had come. This declaration quickly made Norfolk, in which city he was living, "too hot" for him in its popular sentiment, and accordingly he removed to the North to await events.

At that time Farragut was a captain in the navy. He was by all odds the officer in that service most distinguished for brilliant, daring and competently effective performance. He had entered the navy "through a port hole," as he said, at nine years of age. He had served with such distinction under Commodore Porter, that at twelve years of age he had been intrusted by the great seaman with the command of a richly laden prize ship, navigating her for fifteen hundred miles into the harbor of Valparaiso, and

there arranging for her condemnation. He had, while yet a mere boy, distinguished himself for courage in a severely-contested sea fight.

In brief, this Captain Farragut was obviously, and unquestionably, the very fittest man to undertake any difficult naval expedition that the Washington government might plan or contemplate.

But he had the taint of Southern birth and connections, and it was nearly a year after he offered himself unreservedly for any service that might be required of him when the politicians who controlled the Navy Department at Washington ventured to make use of his abilities.

And when at last these people in the Navy Department reconciled themselves to the thought of giving an important command to this brilliantly distinguished naval officer, who shared with Winfield Scott and George H. Thomas the suspicious disadvantage of Southern birth and connections, they did it in a way insultingly suggestive of their doubt as to his loyalty or courage or something else essential.

New Orleans was in every way—in population, exports, imports, and everything else—the chief city of the Southern Confederacy. Moreover its strategic position was one which commanded a vast system of inland waterways constituting the only effective link between the Confederate country west of the Mississippi and that part of the Confederacy that lay east of the great river.

The city lies about a hundred miles, to use round figures, above the multitudinous mouths of the Mississippi. It lies less than half a dozen miles west of the so-called Lake Pontchartrain, which is an inlet from the gulf, with two other bodies of water, Mississippi Sound and Lake Borgne, lying between.

But the passes into Lake Borgne and from that body of water into Lake Pontchartrain, are shallow and difficult, as the British discovered in 1814 in their attempt to approach New Orleans by the "back door," as it were.

On the other hand, the Mississippi has five principal mouths, with some others that carry less water. Thus it was, or seemed to be, impossible for any Federal fleet to blockade the entrances to that stream and cut off commerce between New Orleans and the outer world.

But above and beyond all these considerations, was the desire of the Federal authorities to conquer control of the Mississippi itself throughout its entire length. That would be not only to split the Confederacy into halves, cutting off a large part of its food resources, but also to make of the great river a convenient highway for the transportation of Federal food supplies, troops, ammunition and all else that is needful in war, to such points as might have need of them.

Thus the reduction of the defenses of New Orleans, and the conquest of that city became a matter of supreme strategic importance. To this task Farragut was assigned with a fleet that, in our time, could not possibly force its way past a single well-defended fort, or successfully meet an adversary afloat. He had in his fleet, first of all—in Navy Department estimation—twenty-one schooners, each carrying a mortar intended to throw shells high in air and drop them into the Confederate defensive works. These proved to be utterly useless, as Farragut had from the beginning believed that they would be. He had besides, six sloops of war, sixteen gunboats, and eight other ships. His flagship, the *Hartford*, was a wooden vessel, carrying twenty-two Dahlgren nine-inch guns besides howitzers in the tops. The others were similarly armed. All were under-powered, and could make only eight knots an hour where there was no current. In such a stream as the Mississippi four knots constituted the limit of their performance. There were transports also, carrying an army of about 15,000 men under command of General Benjamin F. Butler. This force was intended to occupy the city after Farragut should have captured it, but until he should do so it was only an incumbrance to his expedition. He got rid of it for a time by landing the troops on one of the islands that separate Mississippi Sound from the gulf, and leaving them there until such time as he should have need of them.

The civilians in control of the Navy Department had not in any adequate way consulted Farragut as to the composition or the armament of the fleet with which he was required to accomplish a task that was next to impossible. In making up the fleet they had accepted the suggestions of his subordinate, Commander David D. Porter, and in obedience to them had created the flotilla largely out of mortar schooners which Farragut regarded as practically useless, and which in the event proved to be altogether so. That is to say, after the manner of that time they had consulted with the less

experienced inferior instead of asking the advice of the thoroughly experienced superior. They had been guided by an officer who was not to command the expedition, instead of asking the advice of the officer who was to lead it. But Farragut was so anxious to proceed upon the country's business and in some way to serve it that he promptly accepted the command offered to him and expressed himself as "satisfied" with the ship force provided for him to command.

Expert as he was in all that pertained to Mexican Gulf geography and hydrography, he perfectly knew that one of the principal ships assigned to him could in no wise be dragged into the Mississippi because of her excessive draught of water. Expert as he was in all that pertained to naval warfare, he foresaw that the mortar fleet assigned to him could accomplish nothing, and that its presence in his squadron could be nothing other than an embarrassment. In the same way he saw clearly that General Butler's land force, carried upon transports, could not fail to be a weak spot in his armor. Yet he uncomplainingly accepted the conditions and set about the duty assigned him.

It was with this utterly inadequate and motley crew of serviceable and unserviceable and positively detrimental ships that Farragut was ordered to reduce the defenses of New Orleans, overthrow its naval resistance and conquer the city.

Farragut was fully aware of the utter inadequacy of the means given to him. He perfectly knew that the effective vessels at his disposal were far fewer and far less formidable than the task set him required. But it was his habit to undertake desperate enterprises with inadequate means, and he had waited a long time for any opportunity, however meager, to serve his country. So, in the great generosity of his mind, he expressed to the Navy Department his willingness to undertake the desperate enterprise with the obviously insufficient, and in part the absurdly worthless, force assigned to him to command.

Then came his orders from the civilians, who, without experience or knowledge, or skill, or any other recognizable qualification for command, controlled the Navy Department. These orders were insulting in their tone and manner. It was quite a matter of course that so old, so tried, so skilful an officer as David Glasgow Farragut would do the very best that was possible

with the means placed at his command. Yet the Navy Department people suggested doubt of this by the very terms of the orders they gave him.

These orders instructed him to reduce the defenses of the Mississippi and take possession of New Orleans. They took no account of difficulties. They reckoned not upon things in the way. They merely ordered a thing done as one might order a carpet cleaned or a load of wood sawed into stove lengths. Then those orders went on to say: "As you have expressed yourself perfectly satisfied with the force given to you, and as many more powerful vessels will be added before you can commence operations, *the department and the country require of you success.*"

Could there have been anything more impertinent than this, from a purely civilian department to an officer who for half a century had been accustomed to make success the keynote of all his reports of action? Could there have been anything more insolent or more insulting than the suggestion that David Glasgow Farragut might do less than lay within his power to do toward the accomplishment of any purpose to which he might be commissioned? Could anything be more insolent than the reminder that in consenting to undertake the expedition he had declined to criticise the composition of the fleet concerning which he had not been consulted and had expressed himself as "satisfied" to undertake the expedition with the means provided to his hand?

Now let us consider the terms and conditions of Farragut's problem, the nature of the work he had to do, the tools he had to do it with, and the difficulties he must overcome in order to achieve the success "required" of him.

The Mississippi river is the greatest waterway in the world. It is the middle thread of a system embracing more than sixteen thousand miles of practically navigable rivers, bayous and creeks. In its ramifications it drains no less than twenty-eight states of the Union. In its course it flows from the Rocky Mountains on the one side, the Alleghenies on the other, and the Cumberland, the Ozark, and the Missouri ranges, into a single great stream.

New Orleans lies in a bend of that tortuous stream within about one hundred miles from its mouth.

But this greatest of rivers, dividing the eastern from the western United States, and, in its great tributaries dividing the north from the south, instead of broadening in its course toward the sea after the usual manner of rivers, narrows itself below New Orleans to a width of half a mile or less.

Here the Confederates had established their defenses, or more properly speaking, here they had made themselves masters of defenses created by the National Government before a thought of civil war had arisen in any mind.

So far as the "back door" approach was concerned—the approach by way of Lake Borgne and the Rigolets and Lake Pontchartrain—New Orleans was adequately defended by the shallowness of the water at critical points. Unless a special fleet of shallow-draught gunboats should be built at Ship Island or elsewhere there was no possibility of reaching the chief city of the Confederacy by that route. Farragut's only hope lay, therefore, in ascending the Mississippi river.

His first obstacle was encountered in the mouth of the Mississippi itself. The great river carries with it to the sea a limitless quantity of mud which it deposits in whatever spot there may be ready to receive it. It is credited by the geologists with having created in this way all the low-lying lands from Cairo to the gulf, a distance of nearly twelve hundred miles by the river's course. At the several mouths of the stream it is still depositing mud and still pushing the land out into the gulf. Very naturally its mud deposits create bars at the several mouths. Long after the war was over, Captain Eads with his jetties undertook to compel the current to wash out channels in the principal mouths and thus to render easy the approach of ships to New Orleans. But nothing of that kind had been done in the early sixties, and the Federal fleet that was charged with the duty of reducing the forts and capturing the city must first force its way through shifting mud banks in order to get into the river. The useless mortar schooners entered easily by the Pass á l'Outre, but the vessels that were to do the effective fighting had far greater difficulty. It required three weeks of strenuous night and day exertion to force them through the Southwest Pass—the principal mouth of the river—and even then one of them, the *Colorado*, had to be left outside.

Having thus passed the first and purely natural defense of New Orleans, Farragut had next to encounter the artificial defenses of the river itself.

These consisted of two forts at the narrowest part of the stream, together with some adjunctive defenses presently to be mentioned.

These forts were two very imperfectly armed works—Fort St. Philip on the eastern bank, and Fort Jackson on the western. They mounted about 109 effective guns, some of them of obsolete pattern, only a few of which—estimated at fourteen—were protected by casemates. Captain Mahan, in his "Life of Farragut," tells us that these forts had been largely stripped of their armament, and were very imperfectly equipped for the defensive work required of them.

In the river above the forts lay a Confederate war fleet of fifteen vessels, including an iron-clad ram and an iron-clad floating battery, both carrying heavy guns. This fleet had been stupidly weakened by the withdrawal of Hollins's gunboats for inconsequent service at Memphis.

Below the forts was a great chain barrier stretched across the river and supported by hulks anchored in the stream for that purpose. For the protection of this barrier the shores were lined with Confederate sharpshooters—riflemen accustomed to hit whatever they might shoot at.

Having got his fleet into the river after weeks of toil—leaving one very important vessel behind—it was Farragut's task to assail and overcome these defenses and force his way through a strong fleet, up the narrow river to the city he was ordered to capture.

Farragut, as has been said already and as he had bluntly told the Navy Department, had no confidence whatever in the effectiveness of the mortar fleet, which was in charge of its originator, David D. Porter. He would have preferred to leave that part of his squadron behind as an entirely useless and embarrassing incumbrance; but he was a man of generous mind and never arrogantly opinionated. So he gave Porter the fullest possible opportunity to demonstrate the effectiveness of his mortar fleet.

There were twenty-one of the mortar schooners, each carrying a mortar of thirteen inches caliber, which threw shells weighing two hundred and eighty-five pounds each. These shells were filled with such charges of gunpowder as made them, in theory at least, terrible engines of destruction when they exploded. It was Porter's firm conviction that by their fire alone he could compel the Confederates to abandon their forts and leave the way

clear for the fleet to sail on up the river with only the Confederate war vessels to contest their passage. Farragut did not expect any such result, but he gave Porter every opportunity.

Securely anchored in a position of Porter's own selection, the mortar schooners opened fire on the eighteenth of April. For six consecutive days and nights they threw their fearful missiles, each in itself a mine, into the forts. They threw in all six thousand of these shells, weighing in the aggregate no less than eight hundred and fifty-five tons. They killed or wounded only fifty men—a picket guard in numbers—or, as Dr. Rossiter Johnson has curiously calculated, they killed or wounded about one man to every sixteen tons of iron hurled into the forts.

This was at the rate of only eight casualties a day, a bagatelle in war and very naturally a bombardment so slightly effective utterly failed to render the forts untenable or to drive out the brave men who were set to defend them. On the contrary the Confederate fire in response to the mortars sank one of the schooners and disabled one of the steamers.

Thus was again taught the familiar lesson of war, that the terrific is not necessarily the effective fire in battle.

So far from abandoning their forts under this fearful rain of metal and explosives the Confederates were busying themselves night and day in determined and intelligently directed efforts to destroy their adversary's fleet. They sent down the river a multitude of blazing fire-rafts, and it required not only all of Farragut's wonderful foresight and ingenuity but constant and very earnest exertions on the part of his crews to ward off this danger.

At last the mortar experiment was done. It had utterly failed to accomplish its intended purpose of reducing the forts or compelling their evacuation. Farragut was dealing with an enemy of his own determined kind, an enemy as resolute, as daring, and as patiently enduring as he himself was.

He decided at last to push his fleet past the forts at all hazards, and, leaving those works as an enemy in his rear, to try conclusions in a decisive battle with the Confederate fleet that lay in wait for him in the river above. It was a dangerous and a daring thing to do. Indeed, it was almost

desperately daring. But Farragut's habit of mind was daring. Moreover his orders on this occasion offensively and insultingly "required" success at his hands. It was his fixed purpose either to achieve that success or to sink beneath the muddy waters of the Mississippi in a determined effort to achieve it.

His first care was to sever the chain barrier across the river. To that end he sent a force up the stream which gallantly boarded one of the hulks, cut the chain, and rendered that defense useless.

On the morning of April 24, at 3.30 o'clock, the fighting part of the fleet advanced in full force, engaging the enemy to the right and left, but meanwhile pushing its way up the river without waiting for results at the point of obstruction.

The forts were quickly passed and then ensued one of the most picturesque water battles ever fought. The Confederates knew their business and they did it with a skill and determination which excited Farragut's admiration, as he was afterwards accustomed to testify in glowing words of recognition.

Captain Theodorus Bailey, with eight vessels, was the first to pass the forts. He immediately became involved in a desperate encounter with the Confederate fleet. His flagship, the *Cayuga*, was engaged at once by three Confederate vessels, each determinedly trying to board and capture her; for this was a battle of giants in which every officer and every man on either side was ready for any conceivable deed of "derring-do," and in which personal courage of the most dauntless sort was the one military equipment which both sides possessed in absolutely limitless supply.

Bailey destroyed one of his assailants with an eleven-inch shell. Has the reader any conception of what it means to have an eleven-inch shell penetrate the side of a vessel and explode within its wooden walls? In every eleven-inch shell there is a charge of gunpowder of positively earthquake-producing proportions, and when it explodes it wrecks everything within hundreds of feet of it. Exploding within a vessel it dismounts guns, kills men, rips up bulwarks and bulkheads, and renders the ship a helpless wreck, with fire everywhere to complete the destruction.

That is what happened to one of the ships that assailed Captain Bailey. Another was driven off, and before the third could accomplish its purpose the *Oneida* and the *Varuna* came to the rescue. The *Oneida* rammed one of the Confederate vessels, cutting it in two. The *Varuna* had worse fortune. She was successfully rammed by the Confederates, and running ashore, sank helplessly.

The *Pensacola* sustained a loss of thirty-seven men in passing the forts, a fact that eloquently testified to the vigor that abode in those works after Porter's six days' hail of great shells into their precincts.

The *Mississippi*, of Farragut's fleet, was rammed and disabled by the Confederate iron-clad *Manassas*. But, by way of revenge, the *Mississippi's* guns riddled the ram and destroyed it.

In the meanwhile the Confederates were sending down fire-rafts in great numbers, and in an attempt to avoid contact with two of these Farragut's flagship, the *Hartford*, ran aground upon a mud bank and for a time lay helpless in an exceedingly perilous position.

If the reader would fully understand the terror of this "river fight" he should remember that at the point where it occurred the Mississippi is only about half a mile wide. Everything done at all in such a stream must be done at close quarters, and it was at the very closest of quarters that the Northern and Southern Americans who contested that fight met each other on that terrible morning of April 24, 1862. The men who fought there in the river on the one side or upon the other, are mostly dead now; only a few of them survive in soldiers' homes or sailors' snug harbors. Surely we can do no better in this new century than pay all possible honor to the valor with which, on the one side and upon the other, they fought for their respective causes on that soft spring morning in the early sixties. They were heroes all, and right heroically did they acquit themselves in the brutal and bloody work they were set to do.

The net result of the contest was the destruction of the Confederate fleet. With that out of the way Farragut pushed on to New Orleans and with guns out for action, demanded the city's surrender.

Only one issue was possible, of course. The city was at Farragut's mercy. He could easily destroy it should it resist. It only remained for him

to hoist the National flag over it and to send for General Butler's land force to occupy and possess the chief city of the South, which he did on the first of May.

Butler's rule in the city, where the white population at that time consisted chiefly of women and children, was harsh and even brutal—so harsh and so brutal in its attitude toward women as to offend sentiment both North and South, and in Europe.

He issued one order which could not have come from the headquarters of any man of soldierly instincts or gentle associations. By way of resenting the attitude and conduct of women toward a conquering soldiery, he put forth a decree in these words:

General Orders No. 28

Headquarters, Dept. of the Gulf,
New Orleans, May 15, 1862.

As the officers and soldiers of the United States have been subject to repeated insults from the women (calling themselves ladies) of New Orleans in return for the most scrupulous non-interference and courtesy on our part, it is ordered that hereafter when any female shall by word, gesture or movement, insult or show contempt for any officer or soldier of the United States, she shall be regarded and held liable to be treated as a woman of the town plying her avocation.

By order of Major-General Butler.

GEORGE C. STRONG,
Assistant Adjutant General and
Chief of Staff.

It needs no argument and no exposition to show that in issuing this order Benjamin F. Butler deliberately gave license and authority to the most brutal impulses of the most degraded men under his command,—authorizing them to judge for themselves when they should choose to think themselves insulted "by word, gesture, or movement," and upon every such occasion, without further inquiry, and upon their own initiative, to treat

every woman who had occasion to venture into the streets as "a woman of the town plying her avocation."

With the cynicism that had equipped him for practice in the criminal courts of Boston, Butler afterwards explained his order by saying that the only right way to treat "a woman of the town plying her avocation," is to pass her by unnoticed. But he perfectly knew that that was not what his order meant to his soldiery or what he meant it to mean.

The rigor of Butler's rule in New Orleans was in some other respects salutary. He wantonly imprisoned many citizens—men and women indifferently—without warrant or just cause, but apart from that he ruled the city to its advantage. In mortal dread of yellow fever, he cleaned New Orleans as it had never been cleaned before, and throughout a hot summer he kept the city healthier than it had ever been in all its history.

Having thus completely achieved that "success" which the civilians of the Navy Department had "required" of him, Farragut was ambitious to accomplish more. He proposed further operations of like character against other Confederate ports from which commerce was being carried on in spite of the blockade. It was quite obvious that no blockade could stop this commerce on which the South so largely depended for its supplies. The only way in which the shutting in of the Confederacy could be made effective was to capture the defensive works of every Confederate port.

To that task Farragut earnestly desired to address himself. It was his purpose to make himself master of every Confederate seaport, relieve the blockading squadrons of their expensive, perilous, difficult, and ineffective work, and completely to seal the South against all outward or inward commerce with the world. His plan was to substitute the absolute possession of Confederate ports for their manifestly inefficient blockade. He asked permission, therefore, to proceed at once upon this mission, beginning with Mobile.

The civilians in control of the Navy Department promptly said him nay. They had other plans of a more spectacular character. So they ordered Farragut to proceed up the Mississippi river and waste precious time and still more precious lives, in a theatric but futile "running of the batteries" at Vicksburg and Port Hudson.

Farragut obeyed of course. It was the habit of his long life to obey. But he felt keenly the loss of opportunity which this order of a badly water-logged cabinet bureau imposed upon him. While he was thus, under compulsion of the incapables, wasting his time in the Mississippi, the Confederates were sending out precious cargoes of cotton and bringing in still more precious ship-loads of cloth, shoes, artillery harness, quinine, arms, ammunition and everything else that ministered to the maintenance of their armies in the field.

Here was another of those blunders of administration which helped to prolong the war to twice its necessary length and subjected the country, North and South, to needless and intolerable burdens. But how should a civilian Secretary of the Navy understand, as Farragut did, the ways in which the navy could be made most effectively to contribute to the ending of the war? A system that puts a Gideon Welles in control of a Farragut must take the consequences of incapacity on the part of its official head.

Welles forbade Farragut to proceed to the conquest and closing of the Confederate ports. He ordered him instead to waste time and energy and human life in futile and fruitless operations in front of Vicksburg, where even the most ordinary intelligence should have seen clearly that the effective work must be done by the land forces, and where Grant and Sherman were ready to do it well.

This judgment does not rest upon the opinion of the author of this history. It is supported in every detail by the skilled criticism of no less a naval authority than Captain Mahan. In his "Farragut," page 116 *et seq.*, that highest authority in naval criticism has written:

"The principal result of an effort undertaken without due consideration was to paralyze a large fraction of a navy too small in numbers to afford the detachment which was paraded gallantly, but uselessly, above New Orleans. Nor was this the worst. The time thus consumed in marching up the hill in order at once to march down again threw away the opportunity for reducing Mobile before its defenses were strengthened. Had the navy been large enough, both tasks might have been attempted; but it will appear in the sequel that its scanty numbers were the reason which postponed the attack on Mobile from month to month until it became the most formidable danger Farragut ever had to encounter."

In other words, the policy of setting a Gideon Welles to direct the naval operations of a Farragut, resulted in making a difficult task out of a very easy one. The fall of New Orleans served to warn the Confederates of the danger in which Mobile lay, and while Welles was keeping Farragut uselessly and against his will in the Mississippi, skilled Confederate engineers were strengthening the Mobile defenses and planting the harbor of that port with destructive mines and torpedoes, so that Farragut's task of closing that port, when months later he was reluctantly permitted to undertake it, was difficult and perilous in the extreme, where it had been simple, easy, and scarcely at all dangerous to ships or seamen at the time when he had asked permission to proceed to its accomplishment.

But the Pinafore practice of setting an untrained, inexperienced and ignorant politician to direct the scientific and strictly professional work of highly trained naval officers, is too firmly imbedded in our system of administration to be disturbed by considerations of mere common-sense. When war is on, the country pays the penalty of this folly.

CHAPTER XXVI

McCLELLAN'S PENINSULAR ADVANCE

We have already seen from his own reports what McClellan thought of the force he was called upon to command at and near Washington after the disastrous defeat of McDowell at Manassas. There was, he said, "no army to command—a mere collection of regiments, cowering on the banks of the Potomac, some perfectly raw, others dispirited by recent defeat, others going home.... Washington was crowded with straggling officers and men absent from their stations without authority."

Slowly, patiently, painfully, McClellan brought order out of this chaos of demoralization. Out of the broken and utterly dispirited fragments of McDowell's army and out of the new, raw levies sent to him he created that Army of the Potomac which fought the great campaigns of the war.

In the meantime an ignorant and impatient popular clamor and an unintelligent press "opinion"—for there is a certain type of newspaper editor who is apt to regard his own hasty and ill-informed judgment of things that he knows little or nothing about, as an "opinion"—hounded and persecuted the man who was expected to retrieve the Manassas defeat. Even Mr. Lincoln, with all his patience, became impatient of McClellan's inaction—which was excessive perhaps—and almost angrily urged him to action. He called the general's attention to the fact that he had under his command a force greatly superior in numbers to any that the Confederates could muster and that the country was impatient for an advance.

McClellan seems to have had no thought of making his way to Richmond by the route of Centreville and Manassas, where Johnston lay behind impregnable fortifications. He knew the easier road of approach up the James river from Fortress Monroe as a base of operations. But, at all

hazards, the Government, the press and the people insisted, Washington city must be covered and protected, and so McClellan's first care was to feel of the works at Centreville and Manassas before transferring his army down the Potomac and the Chesapeake to Fortress Monroe. Accordingly, on the tenth of March, 1862, he pushed a column forward toward Centreville and Manassas only to find those strongly fortified positions already abandoned. General Johnston had interpreted McClellan's plans aright, and was transferring his army to the Peninsula east of Richmond in order to meet his adversary's confidently-expected advance in that quarter.

There was nothing now, neither defended works nor an opposing army, to forbid McClellan's march upon Richmond by the Manassas route, while it was certain that Johnston was fortifying Williamsburg and other defensible points upon the other route and concentrating his forces there to meet McClellan's advance when it should come.

But McClellan was above all things a man of orderly and methodic mind, a man not to be turned from a pre-arranged plan of action by the offering of any opportunity, however advantageous it might be. So instead of pushing on towards Richmond by the route which his enemy had thus left undefended, he turned about, sent his army by water to Fortress Monroe, and confronted his adversary where that adversary was best prepared at all points to meet him.

In the meanwhile General Burnside had completed the occupation of the southern coast by the seizure of Beaufort, Roanoke, Newberne and Fort Macon, and another Federal force a little later, on the eleventh of April, captured Fort Pulaski, near the mouth of the Savannah river.

After great urgency on the part of Mr. Lincoln, who, in his homely phrase, feared that McClellan's army might "take root" around Washington, that officer at last transferred one hundred and twenty-one thousand men to the neighborhood of Fortress Monroe, with every adjunctive aid that an army could require or make useful. His force outnumbered the Confederates nearly two to one, but it was McClellan's habit of mind to exaggerate the strength of his enemy. It was also his bad habit, as it was Halleck's, to proceed with an exaggerated respect for military "regularity." So instead of pushing forward up the peninsula that lay between the James and the York rivers, and simply running over the vastly inferior forces of his enemy, as a

general of enterprising mind would have done, he advanced "scientifically" and with scientific slowness.

The first point of contact was at Yorktown, where General Magruder lay with 13,000 Confederates, McClellan's army of assault—i.e., his advance force—numbered no less than 58,000 men and 100 guns. According to his custom McClellan enormously overestimated the strength of his adversary, and instead of hurling his superior force upon the Confederate works, or using his fleet to pass them by, as General Johnston expected him to do, he sat down before Yorktown and instituted a regular siege approach by parallels.

Reinforcements came to him daily and even hourly, until he had nearly 120,000 men and more than a hundred guns with which to assail Magruder's scant 13,000 men and less than thirty guns.

But he did not make the assault. Instead he remained inactive for nearly a month before Yorktown with about nine men under his command to his adversary's one, doing nothing energetic or determined. When at last he advanced upon the works which he might have run over on the day of his arrival before them, he found no force defending them and only "dummy" guns in the shape of painted logs occupying their embrasures. Comic opera itself has few situations more ridiculous than was this of McClellan at the end of his month's "siege" of Yorktown, defended through a large part of the siege by less than one man to his nine, and at the last defended only by "quaker" guns, with no men at all behind them.

Finding that the position against which he had so elaborately provided siege appliances was vacated by his enemy, McClellan advanced to Williamsburg, where he encountered actual resistance on the fourth of May and the days following.

Here was one of those situations, of which the war presented so many, which it is difficult to reconcile with our accepted estimates of the military capacity of the generals on either side.

McClellan was moving up the Peninsula, threatening Richmond with about 120,000 men—official reports say 119,965. He had left 70,000 men at or near Washington to protect the capital, and the authorities there had detained 10,000 or 15,000 more for safety. McDowell, with 40,000 men of

this force had been pushed forward to Fredericksburg on the Potomac, with the intent that he should make a junction with McClellan before Richmond, swelling that general's force to about 160,000 men. Jackson having been driven back in the valley of Virginia the danger to Washington seemed for the moment past, and Franklin's division had been sent to strengthen McClellan's main column.

In brief, McClellan had almost exactly 120,000 men immediately with him, while 40,000 more under McDowell were moving unopposed from Fredericksburg to join him and swell his army to about 160,000. As McDowell was presently called back for the defense of Washington, in view of the renewal of "Stonewall" Jackson's threatening operations in the Shenandoah Valley, it is only fair to reckon McClellan's force at the 120,000, which his morning reports showed that he had with him below Richmond. Johnston in command at Richmond had rather less than 50,000 men with which to oppose this force.

Deeply feeling his responsibility and the enormous disadvantage at which he was placed, the Confederate general asked for reinforcements. He proposed that all the troops in the Carolinas, where they were in no wise needed, and all in the valley of Virginia, and all at Norfolk and other points from which they could be spared, should be concentrated under his command in front of Richmond, in order that with an adequate force he might assail McClellan, who was in a vulnerable position, and, overcoming him, turn about and crush McDowell.

A council of war, of which General Robert E. Lee was the dominant member, overruled this apparently wise proposal, for reasons that have never been made clear. Thus Johnston, with 50,000 men, was left to defend Richmond against the double advance of McClellan's 120,000 from the east and McDowell's 40,000 from the north.

To do that successfully he must, of course, fall back to the neighborhood of the city and concentrate his force behind the strongest earthworks he could construct. The aggressive measures which he desired to take were wholly out of the question for the time at least.

Nevertheless Magruder made a stubborn stand at Williamsburg, giving Johnston time to fortify. It was only after two days of very severe fighting, and with a loss of 2,200 men against a Confederate loss of 1,800 that

McClellan at last forced the Confederate detachment—for it was only a detachment and not a very strong one at that—to fall back from Williamsburg to the main line of defense and join itself to Johnston's army, of which it was a part.

The battle of Williamsburg was strategically of no consequence except as a part of a campaign of delay. It would be an idle waste of space, a needless taxing of the reader's attention, to recount its strategy in detail. It is sufficient to say that after delaying McClellan's advance for two days and inflicting a heavy loss upon him, the Confederates withdrew in good order to the main defenses of Richmond.

McClellan now sent Franklin's division on transports to the White House at the head of the York river, to establish there a secure base of supplies. The whole army followed and by the sixteenth of May it was concentrated there.

This was then the situation. McClellan lay at the White House within twenty-four miles of Richmond. He had more nearly three than two men to his adversary's one under his immediate command and he had an army nearly equal to his enemy's, within two or three days' march ready to reinforce him, or better still, to assail his adversary in flank.

A general of such enterprise as General Sheridan, or General Sherman, or General Grant, or General Thomas, placed in such circumstances, would unquestionably have pressed forward to the assault.

But McClellan's timid imagination swelled Johnston's force of 50,000 or less to 120,000 or more and he hesitated. Instead of pushing forward by the shortest roads to Richmond he scientifically "developed" his force along the Chickahominy river to the north of Richmond, and, after fortifying, made a requisition for reinforcements.

In the meanwhile "Stonewall" Jackson had achieved some brilliant successes in the Shenandoah Valley which so far seemed to threaten Washington with assault, that McDowell's force of 40,000 men was recalled from its march to reinforce McClellan and sent to ward off the danger of an advance upon the Federal capital by that peculiarly energetic and enterprising commander.

But even without McDowell's expected reinforcement, McClellan had greatly more than twice his adversary's force. It is impossible to doubt that if he had been moved by anything like Grant's habitual and determined impulse to "press things" he would promptly have hurled his overwhelming force against his adversary's defensive lines.

McClellan, however, was not Grant nor such as he. He had a superior skill in the theoretical science of war but an immeasurably inferior capacity for war's practical work.

North of Richmond and from five to seven miles distant the Chickahominy river runs in a course almost due east from its source. McClellan placed his main force north of that erratic and uncertain stream and there awaited the reinforcements for which he was clamorously calling. But he threw his left wing across the river to the Richmond side of it. Unless he were prepared to advance at once with all his force and assail the Confederate works this was an exceedingly dangerous thing to do, for the Chickahominy is a phenomenally uncertain and erratic river. In dry weather it is scarcely more than a brook, but in periods of rain—and spring in Virginia is a rainy season—it swells suddenly and quickly to almost impassable proportions, while the swamps that form its banks become morasses in which it is difficult to find even a foothold, and impossible to discover a fit camping place for troops. When McClellan established his left wing south of the river the stream presented no obstacle to its prompt reinforcement from the other side in case of need. But presently the windows of heaven were opened and the fountains of the great deep were broken up. The floods came, and this isolated left wing was cut off and left mainly to its own devices for self-maintenance.

The Confederate General Johnston was quick to see and seize this opportunity. On the morning of the thirty-first of May, he assailed the detached left wing and there resulted the two-days' battle called Fair Oaks at the North, and Seven Pines at the South.

Johnston's force scarcely, if at all, outnumbered the detached left wing of McClellan's army, but his hope was, by determined fighting to cut off that part of McClellan's army from the main body that lay north of the river, and to crush and destroy it before it could be reinforced.

In his first assaults he was conspicuously successful, and had his expectation been realized that McClellan would be unable to reinforce his detached left wing from the other side of the river it is probable that Johnston's operation would have made prisoners of that wing of McClellan's army which lay south of the turbulent river. But two events stood in the way. One of the many frail bridges across the Chickahominy remained, in spite of the floods, as an available means of crossing. Some of its supports had given way under pressure of the waters and it was manifestly tottering to its fall. But General Sumner, ordered to support the imperiled force south of the river, heroically disregarded the danger and pushed his force across the frail and tottering structure, ordering his men to "break step" in the passage in order that the swing of the cadenced step might not cause the bridge to sway and fall. Thus perilously, he crossed, just in time to meet and defeat a Confederate effort to gain control of the bridge and destroy it, thus completely cutting off communication between the two wings of the Union Army.

The second event of importance in this battle was the very serious wounding of General Johnston. He received in his body a bullet, which incapacitated him for months to come for any active service. This was only one of thirteen wounds that Johnston had received during his military career. General Scott had described him as "a most capable officer, who has the bad habit of getting himself wounded," and here again he had indulged in that bad habit to the serious detriment of the cause he served. For when he was wounded the command passed into the hands of General Gustavus W. Smith, ex-Street Commissioner of New York City, whose fitness for so high a command was, to say the very least, problematical. Under his direction the movement by which Johnston had hoped to achieve so much came to naught.

Two days later Robert E. Lee assumed direct command of the Confederate Army at Richmond, and from that hour forth the war took on a new character. One of the two great master minds—Lee and Grant—was at last in control of the means with which the struggle was to be fought out to a finish. The other of those two great master minds was still under the control of distinctly inferior "superiors."

With the advent of Lee to direct command, the terms of the war problem were set anew. He made of the Virginia army such a fighting

machine as has rarely been known in the history of the world. It was not until nearly two years later that Grant was permitted to act upon his conviction, repeatedly formulated, that the strength of the Confederacy and the danger to the Union lay, not in the possession of strategic positions, but in the fighting force of that Army of Northern Virginia which responded to every demand of Lee for heroic self-sacrifice, as the needle responds to the attraction of the pole. In the meanwhile Lee and his army were a ceaseless menace to the Federal capital and the Federal cause. From the moment of his accession to command until the hour in which he met Grant at the Wilderness, Lee dictated the course and conduct of the war, and in an extraordinary degree dominated its events.

CHAPTER XXVII

JACKSON'S VALLEY CAMPAIGN

No sooner had Lee come into command than he set out to change and reverse the existing conditions of the war. He was determined to drive McClellan away from Richmond, to put an end to siege operations that, if persisted in, must ultimately result in the capture of that city, and to transfer to some more distant point the scene of active hostilities. In other words, it was Lee's purpose to change a dispiriting defense into an all-inspiring offense, to raise McClellan's siege of Richmond and to institute in its stead operations that should put Washington upon the defensive.

To that end he began by strengthening his army. He deemed the time now ripe to adopt the plan which he had negatived as premature when Johnston had suggested it. He called to Richmond all the available forces that could be spared from the Southern coasts and elsewhere, swelling his army to 70,000 or 80,000 men.

This reinforcement did not indeed give him an army equal to McClellan's in numbers or in equipment, but it materially reduced the disparity between the two opposing forces and opened the way to a hopeful trial of conclusions in the field.

But there was, as already stated, a strong Federal force marching by way of Fredericksburg to join McClellan. It numbered more than 40,000 men and was under the very capable command of General McDowell. If that force should form a junction with McClellan the odds against Lee, in spite of reinforcement, would be decisive, and any attempt he might make to save the Confederate capital by offensive defense must fail.

Lee's first necessity, therefore, was to prevent McDowell's army of 40,000 men from joining McClellan before Richmond; his second purpose

was to bring all his own forces to bear at that crucial point for a supreme effort to overthrow his adversary there.

He knew the excessive apprehension felt at the North for the safety of Washington city, and he played upon it with masterly skill. Ever since November, 1861, Stonewall Jackson had been in the Valley of the Shenandoah trying with a totally inadequate force to hold that region and upon occasion to inflict what damage he could upon the foe, especially by destroying a section of the Baltimore and Ohio railroad and of the Chesapeake and Ohio canal, upon which the Federal communications between the forces in West Virginia and the headquarters at Washington depended. Jackson had done some brilliant things in that quarter and had succeeded in detaining there a Federal force much greater than his own, which if set free to join McClellan would have made the Federal army before Richmond irresistible in its strength.

But inferiority of force was by no means the sorest difficulty that Jackson had contended with during all those months of winter marchings and fightings amid snowstorms. On the Southern as on the Northern side every really capable general was embarrassed by the ignorant and intrusive dictation of men in place above him. As Grant was paralyzingly dominated by Halleck's interference at every critical moment in his western campaigns, and as Farragut was restrained from obviously easy and supremely desirable achievement by the hand of ignorant authority in the Navy Department at Washington, so Jackson, in the Valley, found his military plans brought to naught by the interference of a civilian Secretary of War who, having authority, chose to use it in giving orders to Jackson's troops in the field without so much as consulting Jackson as to his reasons for posting them as he had done. Beauregard and Johnston at Manassas had encountered a like difficulty and had several times been upon the point of resigning their commissions in despair of achieving any worthy results under such conditions of ignorant and arbitrary control. Jackson was driven further and on the thirty-first of January, 1862, he wrote in despair to Governor Letcher of Virginia, asking that he be ordered back to his professor's chair in the Virginia Military Institute, and tendering his resignation as a major-general if such an order could not be given.

The circumstances were these. With great difficulty, at serious risk of defeat and by exacting a positively heroic endurance on the part of his men

in marches through snow and sleet and mud, Jackson had conquered the strategic control of the region under his command from an enemy greatly outnumbering him. The strategic key to the position thus conquered was Romney and there Jackson had stationed Loring with a force strong enough to hold the place while keeping in touch with Jackson himself. This disposition rendered the valley, with all its strategic advantages, a secure Confederate possession and a military base from which it was easy to threaten or with reinforcements to assail Washington and the country north of the Potomac.

No sooner had Jackson by genius and heroic endeavor secured this advantage for the Confederate arms than the lawyer at the head of the War Department at Richmond assumed to undo his work by an order which Jackson obeyed as a soldier, but bitterly resented as a strategist baffled by the ignorance and arrogant assumption of his civilian superior officer. His letter to Governor Letcher which follows sufficiently explains the matter:

Winchester, January 31, 1862

Governor:—This morning I received an order from the Secretary of War to order General Loring and his command to fall back from Romney to this place immediately. The order was promptly complied with; but as the order was given without consulting me and is abandoning to the enemy what has cost much preparation, expense and exposure to secure, and is in direct conflict with my military plans, and implies a want of confidence in my capacity to judge when General Loring's troops should fall back, and *is an attempt to control military operations in detail from the Secretary's desk at a distance,*⁵ I have, for the reasons set forth in the accompanying paper, requested to be ordered back to the Institute and if this is denied me, then to have my resignation accepted. I ask as a special favor that you will have me ordered back to the Institute.

As a single order like that of the Secretary may destroy the entire fruits of a campaign I cannot reasonably expect if my operations are thus to be interfered with to be of much service in the field.... If I have ever acquired by the blessing of Providence any

influence over troops this undoing of my work by the Secretary may greatly diminish that influence.

* * * * *

I desire to say nothing against the Secretary of War. I take it for granted that he has done what he believed to be best, but I regard such a policy as ruinous.

Very truly your friend,

T. J. JACKSON

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The italics are inserted by the author of this history. They are intended to direct attention to the marrow of the matter.

Let the reader imagine if he can, a lawyer utterly unskilled in military affairs and completely unacquainted with even the topography of the valley, sitting in Richmond, and undertaking not only to direct the movements of troops in that region but to cancel and reverse the orders of Stonewall Jackson without so much as asking his opinion of a situation which that Napoleonic commander had painfully wrought out with inadequate means and in face of difficulties that might well have appalled even his resolute spirit. Such imagining will help to a comprehension of the peculiar difficulties at that time needlessly thrown in the way of the men to whom was assigned the task of conducting the war to a successful conclusion. The like thing was a familiar story on both sides at that period of the war, and it cost both sides many thousands of human lives and many millions of treasure.

These are not pleasant facts for the historian to record, but they must be set down if the story of the war is to be told with truth and in a fashion to be understood.

Not only did Judah P. Benjamin, the unmilitary lawyer who held the post of Secretary of War, assume to interfere with Jackson's dispositions of his troops without consulting Jackson; his arrogance had an even more astounding manifestation. Jackson was acting in the valley under the command of his superior officer, General Joseph E. Johnston, who had sent

him thither, who trusted him implicitly, and who very wisely and properly left to his trained skill and well-approved judgment every detail of a campaign, the general purport of which was all that even Johnston, as commanding general, responsible for results, assumed the right to dictate to such a man as Jackson. Benjamin, the lawyer Secretary of War, was so far ignorant or negligent of those forms and courtesies of military life upon which military success very largely depends that he sent his order directly to Jackson, instead of sending it, as common courtesy and all military usage properly required, through Jackson's commander, General Johnston. This seriously endangered results and it was an affront to Johnston which that officer would have been fully justified in resenting with his own resignation. It was something far worse than an affront. It was an impertinent interference with Johnston's military plans as well as with Jackson's—an interference of ignorance with the activities of knowledge which might easily have defeated operations of the utmost consequence.

It seems incredible, but it is a fact, that General Johnston, the officer at that time charged with the supreme command in Virginia, never knew or heard of the order of the Secretary of War to Stonewall Jackson, utterly disorganizing his plans and directing him to surrender all that he had painfully achieved of strategic advantage, until Jackson's letter to Governor Letcher, tendering his resignation in righteous resentment of the interference and in despair of accomplishing worthy results under such conditions, came to General Johnston in the regular course. For Jackson was far too well educated a soldier to send his letter, even though it was personal and was addressed to the Governor of Virginia, otherwise than through his regular military superiors.

Upon reading that letter and its inclosed communication to the Secretary of War and learning for the first time of Benjamin's interference with Jackson's operations, General Johnston sought to save to the Confederacy the inestimable services of his great lieutenant. He wrote to Jackson as follows:

My Dear Friend:—I have just read with profound regret your letter to the Secretary of War asking to be relieved from your present command, either by an order to the Virginia Military Institute or the acceptance of your resignation. Let me beg you to

reconsider this matter. Under ordinary circumstances a due sense of one's own dignity, as well as care for professional character and official rights, would demand such a course as yours. But the character of the war, the great energy exhibited by the government of the United States, the danger in which our very existence as an independent people lies, require sacrifices from us all who have been educated as soldiers. *I receive my information of the order of which you have such cause to complain from your letter. Is not that as great an official wrong to me as the order itself to you?* Let us dispassionately reason with the government on this subject of command, and if we fail to influence its practice, then ask to be relieved from positions *the authority of which is exercised by the War Department while the responsibilities are left to us.*⁶

I have taken the liberty to detain your letter, to make this appeal to your patriotism, not merely from warm feelings of personal regard but from the official opinion which makes me regard you as necessary to the service of your country in your present position.

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The italics are inserted by the author of this work to emphasize the peculiar stupidity that on both sides in the war permitted ignorance to overrule knowledge and self-assumption to dominate skill. This particular interference came near depriving Lee of the superb genius of Stonewall Jackson as Halleck's interference well nigh lost Grant to the Federal army.

General Johnston's appeal to Jackson to continue in the service in spite of the ignorant, embarrassing, and grossly ill-mannered interference with his operations by the Secretary of War, was supported by a multitude of letters and appeals from statesmen, citizens, generals and common soldiers—many of the latter being men of high social and political distinction who had enlisted in the ranks in a war that all regarded as their own, but whose enlistment had in no wise invalidated their right to speak with authority as representative citizens.

Governor Letcher went at once to the War Department to plead with Secretary Benjamin for the saving of Stonewall Jackson's genius and devotion to the Confederate cause. Benjamin so far yielded as to hold open the question of Jackson's resignation. He had not intended to provoke that.

It is doubtful that he would have dared it. He had not intended anything, indeed, except to impress his own authority upon the army. When he understood how great a loss Jackson would be to the cause, and how narrowly his own grossly irregular interference with Jackson had missed compelling the resignations of Beauregard, Johnston, and a host of others in high and low position, Mr. Benjamin became placative in an extreme degree.

In the meanwhile he had sacrificed all that Jackson's energy and genius had accomplished in the Valley and had discouraged the army in a degree and to an extent for which no later efficiency could by any possibility atone. Until Benjamin interfered with him Jackson was master of the Valley, and of all that its possession signified, by virtue of his painful endeavors to achieve that highly desirable result by means of arduous campaigns in snow and sleet and slush and mud. If he had been let alone Jackson would have been in undisputed command of the upper Potomac country; he would have had Maryland and southern Pennsylvania thenceforth always at his mercy; and with reinforcements that might at any moment have been sent to him he would have been in position to threaten Washington in a way possibly to compel the instant withdrawal of McClellan's army from Richmond and the recall of McDowell's from Fredericksburg.

As it was, it was left to Lee to achieve those purposes in much more arduous ways and at cost of great and otherwise needless battles, involving the loss of human lives by tens of thousands, where but for ignorant interference no considerable loss at all would have been necessary.

Let us make this matter clear. If Jackson had been let alone in the Valley, of which he had made himself complete master, his way would have been easily open to the region in rear of Washington. With the opening of the spring of 1862 practically the whole of Johnston's army, then still at Manassas and Centreville, together with the troops at Richmond reinforced from the seaboard and the South, could have been pushed by the valley route into Maryland, threatening Washington, Baltimore, Philadelphia and the North. If that had been done McClellan would not have been permitted by his government to advance up the Peninsula. His entire force would have been held at Washington or sent northward and westward to meet the Confederate advance. It would have been Washington, the Federal capital, and not Richmond, the seat of Confederate government, that was besieged.

But the interference of a civilian war department spoiled the program and made a mess of the campaign. It resulted in a siege of Richmond which sorely discouraged not only the Confederates but also their friends in Europe who were struggling to secure the South's recognition as an independent power. It rendered necessary the Seven Days' battles presently to be considered, and the campaign against Pope, as damaging and depleting preliminaries to a campaign of aggression which, but for the War Department's interference, would have been undertaken with the full force of the Confederate army, unimpaired by the losses of nearly a dozen battle conflicts.

Jackson's services were fortunately saved to the Confederates. His position in the valley was impaired by the order of the Secretary of War, which he obeyed in spite of its destructiveness, and the results of his arduous campaign there were largely sacrificed to the fetish of official authority. But at any rate Jackson's energy and genius were not lost to the cause to which he was so ardently devoted. Johnston's appeal and a multitude of others that poured in upon him overcame the great general's reluctance to continue longer in a service in which crass ignorance was permitted to interfere with and destroy the results of military skill and heroic endeavor.

A week after his resignation was written Jackson, overwhelmed by appeals to remain in the service, wrote to Governor Letcher as follows:

February 6, 1862

Governor:—Your letter of the 4th inst. was received this morning. If my retiring from the army would produce the effect upon our country that you have named in your letter, I, of course, could not desire to leave the service, and if, upon receipt of this note, your opinion remains unchanged, you are authorized to withdraw my resignation unless the Secretary of War desires that it should be accepted. My reasons for resigning were set forth in my letter of the 31st ult. and my views remain unchanged; and *if the Secretary persists in the ruinous policy complained of I feel that no officer can serve his country better than by making his strongest possible protest against it, which, in my opinion, is done by*

tendering his resignation, rather than be a willing instrument in prosecuting the war upon a ruinous principle.

This then was the situation. Stonewall Jackson, with a miserably inferior force, was holding the Valley throughout a long winter, and detaining there a Federal army, which, if it had been added to the main Federal force, would have made that force irresistible in numbers of men and guns. Toilsomely, and at cost of desperately hard marching and fighting, he had made himself master of the strategic position. He could now hold the Valley secure even with his inadequate force, and in the event of reinforcement he could threaten Washington in ways that must compel the diversion of decisive Federal forces from the march upon Richmond. His strategy had been masterly, his enterprise matchless, and his achievements astonishing in their completeness.

Just as these results were achieved a lawyer who happened to be Secretary of War, without any adequate knowledge of the military situation, without any skill in the art of war, without consultation with Jackson and even without sending his orders through Jackson's commanding officer, Johnston, assumed to order Jackson to undo all his work and withdraw his forces from points of commanding importance which had been won with difficulty and at cost of positively heroic sacrifice.

Is it any wonder that a war so blunderingly conducted by ignorant civilians on both sides was prolonged to four times the length it ought properly to have endured? Is it any wonder that under such ignorant direction the war cost scores of thousands of lives needlessly sacrificed by mismanagement, and hundreds of millions of needlessly expended treasure?

These details, which seem at first glance, to belong rather to biography than to history, are set forth here, precisely as those touching Grant's restraint from activity by Halleck and Farragut's embarrassment by a civilian Navy Department, are set forth in other chapters of this history, because they serve to show how the war was conducted on both sides in those early years. As influences that caused the prolongation of the struggle and added enormously to its cost both in precious treasure and in more precious human life, they have a historical meaning wholly out of proportion to their biographical significance.

Jackson remained in command in the Valley. He had a meager force,—usually less than one fourth that of his adversary,—and in spite of his activity in battle at Kernstown, Romney and the rest—his original plans having been brought to naught by the interference of the Secretary of War—he was slowly beaten back into positions that seemed to make of the Valley a Federal possession.

Then he turned about and by one of the most brilliant campaigns of all the war, reversed conditions, and made himself again master where he had seemed to be almost hopelessly on the defensive.

In preparation for that campaign he earnestly begged Lee for reinforcements—Lee being then in general command of the Confederate forces—and all that Lee could do was to assign to his command the little force under Edward Johnson west of Staunton, with the privilege of calling to his aid such troops as General Ewell had with him on the line of the Rappahannock, east of the Blue Ridge. His own immediate command, together with Ewell's and Edward Johnson's, amounted in all to a little less than 17,000 men, divided into three widely separated columns with the Blue Ridge and a whole day's march between his own position and that of his chief lieutenant. Opposed to him were Banks at Harrisonburg with 19,000 men,—or more than Jackson's total possible strength—Milroy and Schenck lying to the west of Staunton with 6,000 men and Fremont advancing from West Virginia with 9,000 more.

In brief, by concentrating all his widely scattered forces, Jackson could bring to bear upon his problem no more than 17,000 men at the very most, while he stood beleaguered by no less than 34,000, under generals who already held the greater part of the valley and seemed easily able to occupy the rest of it, including Staunton and the chief railroad lines, at will.

When Jackson definitely learned that he could have no other help than that of Ewell and Edward Johnson, he boldly planned to concentrate his 17,000 men and with them make war upon his 34,000 adversaries. His hope lay in secrecy and celerity of operation. His plan was to bring the three widely separated parts of his army together without the enemy's knowledge, and to hurl the whole like a thunderbolt against one after another of his enemy's divisions.

The largest of those divisions,—that under Banks's personal command at Harrisonburg—outnumbered Jackson's total force by all of 2,000 men, while the other two divisions were nearly enough equal to his own to make an assault upon either of them perilous. Moreover the geographical problem was such that Jackson could at no point bring all his inferior force to bear at once. He must always keep a considerable part of it detached and out of action, lest his adversary seize upon a position of commanding importance.

Nevertheless, this truly Napoleonic commander planned a campaign in which, with his 17,000 men, he should defend Staunton and destroy in detail his adversary's double numbers.

Thus began that campaign whose strategy has been called by a historian "massive thimble-rigging," because its success depended upon Jackson's ability to conceal his movements and make sudden appearances in quite unexpected places.

The season was highly unfavorable for rapid marchings. The roads were quagmires and the fields on either side of the highways were morasses. Sometimes it was impossible, even by the most heroic endeavors, to move the guns more than five miles in a day. Rain and mud offered obstacles immeasurably more obstinate than hostile battalions, but in spite of all, Jackson persisted.

His first purpose was to unite the force under his own immediate command at Swift Run Gap, with the troops under Edward Johnson at West View, west of Staunton and forty miles or more away. He began by ordering Ewell, with his 8,000 men, to cross the Blue Ridge from the east, and occupy Swift Run Gap. While Ewell was executing this movement Jackson, with his 6,000 men and with the purpose of deceiving his enemy, moved northward down the valley, turned eastward, crossed the mountains to their eastern side, and then by a circuitous route made his way back again westward across the mountains to join Edward Johnson west of Staunton. His purpose in all this was to convince his enemy that he was abandoning and evacuating the Valley and marching to join the Confederate forces defending Richmond.

He accomplished that deception perfectly, and so secretly was his return to the Valley conducted that the pushing of his column into Staunton

astonished the Confederates there quite as much as it would have astonished the Federals if they had known of it, as they did not.

Ewell, had in the meanwhile, crossed the Blue Ridge and occupied the position left by Jackson in the Elk Run valley. Unfortunately for Jackson, that position must be held at all hazards, and so it was impossible for him, for the present at least, to add Ewell's 8,000 men to the meager forces with which he intended to assail the Federals farther west.

Thus Jackson's campaign was begun with only Edward Johnson's force, numbering a scant 3,000 men, and his own battalions, amounting to 6,000, or somewhat less. He had in all a force of about 8,500 men or perhaps a trifle more, with which to deal with Milroy and Schenck, who had 6,000 men at McDowell, the much larger forces of Fremont advancing from the west, and such reinforcements as Banks might choose to send to them from his army of 19,000 men at Harrisonburg.

A glance at a map of the Valley will show the reader clearly that in assailing Milroy and Schenck, Jackson in fact invited battle with all of Fremont's and Banks's forces—in other words, that with 9,000 men he risked and boldly challenged a conflict with no less than 34,000. But so careful and so masterly had his dispositions been that the chance of such a concentration against him amounted to scarcely more than zero. For Ewell with his 8,000 men was at Elk Run, and Ewell was an enterprising officer, greatly given to fighting upon the smallest provocation. Had Banks detached any considerable part of his force from the Harrisonburg position to aid Milroy and Schenck, Ewell would very certainly have moved to the conquest of Harrisonburg, and the success of such a movement would have meant of necessity the quick reconquering of the whole valley by the Confederates.

Reckoning upon this Jackson joined Johnson and together they fell upon the Federals at McDowell, where a small but severe battle ensued on the eighth of May, in which after four hours of determined fighting the Federals were driven from the field and compelled, during the succeeding night, to withdraw from their position at McDowell, and fall back, the Confederates closely pursuing them. The retreat lasted for several days and was marked by some picturesque incidents.

Schenck, though beaten in battle and driven into retreat, was still formidable and the fighting quality of his men had not been impaired. Jackson feared that the force retreating before him might be reinforced from Banks's strong army at Harrisonburg. In that case it would turn again and rend him. But the reinforcements, if sent at all, must be sent through certain narrow and heavily-wooded defiles, and to check their advance Jackson sent out detachments to obstruct those passageways by felling timber across them. He also asked the aid of the farmers in such work and right willingly they responded.

In the meanwhile Schenck protected his retreat from too close a pursuit by setting fire to the dense woods and literally stifling his enemy with smoke. Jackson's men found it sometimes impossible to go forward without actual suffocation and so Schenck gained time in which to effect his retreat.

The destruction of superb timber, the growth of fifty or a hundred years, which the operations of both the contestants involved, was only a small part of that waste which makes war the most costly of all human arbitraments.

Human lives are of course more precious in many ways than forest growths, but human life is easily and quickly reproduced, while a forest destroyed upon steep mountain sides is so much of God's good gift to man forever taken away.

Jackson had now completely accomplished his purpose of driving Schenck back upon Fremont. He had no desire to press on and bring about a battle with the united forces of the two in the difficult mountain country. He had effectually prevented a junction of Fremont or Schenck with Banks's army at Harrisonburg. He had prevented the capture of Staunton by the Federals, thus protecting the railroad connections of the Confederates, and he had kept between thirty and forty thousand Federal troops busy in the Valley, who might otherwise have been sent to reinforce McClellan.

Still more important, his operations had compelled the Federal Government to stop the advance of McDowell's army by way of Fredericksburg and thus to deprive McClellan, assailing Richmond, of a reinforcement which might have rendered his assault absolutely irresistible.

Jackson's next necessity was to unite his meager force with the column of Ewell which was posted at Elk Run for the double purpose of threatening Banks at Harrisonburg and standing ready to march at a moment's warning to the assistance of the beleaguered garrison at Richmond. It was the grandest of grand strategy that Jackson was engaged in, and it was directed by the masterful genius of Robert E. Lee, acting through and by the genius of Stonewall Jackson.

Milroy and Schenck had been dislodged from the positions that threatened Staunton. They had been driven westward. They had also been effectually cut off for the time at least from a possible junction with Banks. So Jackson decided to effect the speediest possible junction between his own force in the field and Ewell's command of 8,000 men at Elk Run valley, and with the force thus concentrated to assail Banks at Harrisonburg. He hoped by a precipitate movement to defeat Banks before Fremont, whose plans of campaign he had so greatly interfered with, could come to that general's assistance.

But Banks did not wait for Jackson. In face of the fact that his 19,000 men at Harrisonburg outnumbered the whole of Jackson's widely scattered forces, Banks retreated northward down the Valley as soon as Jackson began his campaign. On the first of May he evacuated Harrisonburg and slowly retired to Newmarket. There he lost more than half his force by the detachment of Shields with 11,000 men, who moved on May 12, by way of Luray and Front Royal to join the force at Fredericksburg, thus emphasizing that threat to Richmond which it was Jackson's function to divert.

So far Jackson's strategy was unsuccessful. He had defeated Schenck and Milroy. He had prevented a junction of their forces with those of Banks; but he had not prevented Banks from sending 11,000 men and a proportionate number of guns to strengthen the column at Fredericksburg which was intended to join McClellan before Richmond and to render him irresistible.

From Newmarket Banks continued his retreat down the valley—northward—until he rested at Strasburg and Front Royal.

In the meanwhile the administration at Washington, nervously and even absurdly apprehensive as it was, plucked up courage enough to order McDowell, with the army at Fredericksburg, reinforced by Shields with

11,000 men, to march on the twenty-sixth across country by way of the Richmond and Fredericksburg railroad, and join McClellan's right wing before Richmond.

Timidity itself could not have hesitated to consent to this movement. It placed an army of more than 40,000 men in front of Washington and between that capital and the Confederate forces of 60,000 men or less, that McClellan was already beleaguering at Richmond with 120,000 men, while it left Banks in the Valley with 8,000 and the easy support of Fremont's 15,000 men to check any movement that Jackson might make upon Washington with his force of not more than 15,000 or 16,000.

Yet so great was the apprehension felt at Washington for the safety of that city that when the time came, Lee played upon it with success and by his play upon it deprived McClellan of reinforcements from McDowell, Banks and Fremont, aggregating nearly 65,000 men.

Turning about, after his pursuit of Schenck, Jackson quickly formed a junction of his own force with Ewell's, and with 16,000 or 17,000 men turned upon Banks, who was now retreating down the Valley toward Strasburg. He struck first at a detachment at Front Royal which he surprised and almost completely destroyed on the twenty-third of May.

On the twenty-fourth Banks decided to abandon Strasburg and retreat to Winchester, destroying his stores and such wagons of his train as he could not save from capture. Jackson's cavalry destroyed a multitude more of them on march, throwing the Federal trains into the utmost confusion. Jackson now had a much stronger force than Banks—about three men indeed to Banks's one.

With his vastly superior force Jackson set out to obey his orders, which were to "clear the valley and threaten Washington," so as to compel the diversion of McDowell's army from McClellan's reinforcement before Richmond.

The task was an inviting one and Jackson accomplished it promptly. Marching tirelessly, by night as well as by day, he quickly drove Banks from Strasburg to Middletown and from Middletown to Winchester. At Winchester he broke Banks's force into bits in a hotly contested battle, and having cut off the Federal general's retreat to Harper's Ferry, sent him flying

in confusion by way of Martinsburg to Williamsport on the upper Potomac. Banks fought stubbornly against such odds as no commander could hope to overcome, but finding himself beaten and his columns disintegrated he skilfully retreated over the space of thirty-four miles in a single day, and successfully placed himself behind the Potomac where his force could threaten Jackson's flank, if the great Confederate should move upon Washington by way of Harper's Ferry.

Apart from its brilliant incidents which cannot be here related in detail Jackson's Valley campaign had thus far completely accomplished its strategic purpose. It had detained Fremont and Schenck with 15,000 men in the mountains when McClellan needed them before Richmond. It had kept Banks busy and finally had driven him out of the Valley and into a position from which he could render no assistance to the Federal armies anywhere. Finally it had so greatly alarmed the authorities at Washington that they completely diverted McDowell's 40,000 men from McClellan's reinforcement, sending the major part of that force upon the fruitless errand of destroying Jackson and employing the rest of it in the direct defense of Washington.

All this was precisely what Robert E. Lee had planned and intended, and it was perfectly accomplished. If larger space is here given to an account of this campaign than the size and direct importance of its battles would seem to justify, it is because of the tremendous strategic consequences of the operations involved. Jackson's activity made possible not only Lee's superb campaign of dislodgment against McClellan, but all the stupendous campaigning that followed, including the overthrow of Pope at Manassas, the invasion of Maryland, the battle of Antietam, the Fredericksburg battle and the later Chancellorsville and Gettysburg.

The story of all that will follow in later chapters. In the meanwhile, it is pleasant to record here one step forward in civilization which was made during this campaign and the author of which, Dr. Hunter McGuire, deserves remembrance for his humanity. Until that time, and indeed for long afterwards, surgeons in charge of hospitals full of wounded men, upon falling into the enemy's hands, were treated as prisoners of war. After every battle, therefore, the surgeons of a retiring army, in charge of wounded men from both sides, must make a hard choice. They must either abandon their patients—many of whom were in desperate need of immediate surgical

attention, or they must submit themselves to the rigors and sufferings of a military imprisonment, precisely as if they had been taken in battle. As a result of this peculiar barbarism of war the wounded—by the flight of their surgeons—were often left unattended at the critical moment that meant to them the difference between life and death. Many precious lives were needlessly sacrificed to this barbaric military practice.

At the battle of Winchester Jackson captured all the Federal surgeons in charge of the field hospitals there, but instead of sending them to Belle Isle or Andersonville or Libby Prison, he acted upon the suggestion of his medical director, Dr. Hunter McGuire, and released the doctors unconditionally upon the rational and humane ground that surgeons do not make war, and ought not to be subjected to war's pains and penalties, and upon the still more rational and humane ground that it is needful for the care of the wounded on both sides that surgeons shall be permitted to remain at their posts until surgeons on the other side can replace them, regardless of army movements and without fear of being sent to a loathsome prison as a punishment for their faithfulness to their merciful duty.

This step forward in the amelioration of war's horrors was not generally followed up until two years later when, during the tremendous struggle of 1864, General Lee and General Grant, acting upon their own humane impulses and with no authority except the confidence of each that his acts would be approved, agreed that surgeons in charge of wounded men should not be made prisoners of war, but should be subject only to such temporary detention as might be necessary to prevent them from carrying tidings of strategic importance across the lines.

It was Dr. Hunter McGuire who first offered this suggestion in behalf of humanity, and it was Stonewall Jackson who first took the responsibility of acting upon it. To their memory history should accord honor for it.

Jackson's Valley campaign had completely accomplished its chief purpose. It had thrown the War Department at Washington into a panic which is reflected in the dispatches of President Lincoln and Secretary Stanton sent about that time. Neither McClellan nor McDowell regarded the situation in any such serious light as that in which it was viewed by Mr. Lincoln and Mr. Stanton. McClellan and McDowell were trained and

educated soldiers, Mr. Lincoln and Mr. Stanton were civilians. The two soldiers perfectly understood that while Jackson had driven Fremont back into the West Virginia mountains and had chased Banks to and across the Potomac, he could not with his meager force—now reduced to less than 15,000 men—sanely cross into Maryland or without madness undertake a serious campaign against Washington. They knew Jackson to be a perfectly sane man, and hence they did not expect him to undertake either of those crazy operations. They were agreed in thinking that the proper course was for McDowell to push on to Richmond and join McClellan there before Jackson could add his force to Lee's.

If they had been permitted to do this, McClellan's force before the Confederate capital would have been sufficient, within three or four days, to overpower all conceivable opposition and to capture Richmond.

But Lee knew how almost insanely the administration at Washington dreaded every threat against that city or the country north of it, and he had successfully counted upon that absurd nervousness to enable Jackson, with 16,000 or 17,000 men, to neutralize McDowell's army of 40,000 in the great game then being played for the possession of Richmond. He had made a zero of Fremont and Schenck in the problem. He had converted Banks's army into a Potomac river-picket guard, and he had compelled McDowell's 40,000 men to remain inactive as a garrison defending Washington.

Never in all the war was so small a force as Jackson's made to neutralize so large a force. By the simple virtue of Lee's masterful strategy and Jackson's extraordinary capacity in execution, 17,000 men occupied 65,000 and kept them completely out of the decisive struggle. And as if to add emphasis to the situation, the 17,000 who had thus paralyzed three or four times their number, were themselves brought upon the field before Richmond in time to play their full part in the critical and decisive actions from which their previous activity had excluded so great a number of their opponents.

But the story of the Valley campaign is not yet fully told. Having driven Fremont back into West Virginia and Banks beyond the Potomac at Williamsport, Jackson was ordered by Lee to make a demonstration threatening an invasion of Maryland and seeming to threaten an assault

upon Washington, by way of still further disarranging the Federal plans and diverting Federal forces from the assault upon Richmond.

Jackson moved at once upon Harper's Ferry and for a time seemed not only determined but quite easily able to cross the Potomac there and push forward into Maryland and Pennsylvania or to sweep with enthusiastic fury upon Washington itself.

The result was what Lee had planned that it should be. Fremont, whose force ought to have been moved to McClellan's reinforcement, was ordered to advance from the fastnesses of the West Virginia mountains into the Valley, there to assail Jackson. Banks, driven to cover at Williamsport on the Potomac above Harper's Ferry, was ordered to hold the crossings there against a possible advance of Jackson by that route and presently to return to the Valley and assail Jackson. Saxton, with 7,000 or 8,000 men, withdrawn from McDowell's army, was sent to hold the heights about Harper's Ferry and at the proper time to advance. McDowell's carefully planned march upon Richmond was suspended and the greater part of his force was ordered to the Valley. The purpose was by concurrent action on the part of Fremont moving from West Virginia, Banks moving back up the Valley from Williamsport, Saxton's advancing from the neighborhood of Harper's Ferry, and McDowell's strong column crossing the Blue Ridge from Fredericksburg, completely to surround, overwhelm and destroy Jackson, whose total force was now reduced to a scant 15,000, while the forces thus set to the task of making an end of him, aggregated not less than 55,000 or 60,000 men. It was his task, with 15,000 men not only to meet and destroy these forces in detail, so far as that might be done, but in any case to escape from the trap set for him and unite his army with that of Lee before Richmond in time to lend his enthusiasm and his strength to that assault upon McClellan which was planned for the immediate future.

If the reader will look at a map he will see almost at a glance how perilous a problem Jackson had to solve. With less than 15,000 men he was threatening Harper's Ferry and the strongholds round about, held by Saxton with 7,000 men and eighteen pieces of artillery. Banks with about 9,000 men was now advancing from Williamsport to assail him in flank and rear, and cut off his retreat. Fremont with 10,000 or 15,000 men was advancing from West Virginia and had by telegraph promised Mr. Lincoln that he would be in Strasburg—seventeen miles south of Winchester and

commanding Jackson's route of retreat—on Saturday, May 31. In the meanwhile Shields, commanding 20,000 men from McDowell's army and followed by McDowell himself with the rest of it, was hurrying from Fredericksburg into the Valley and was due at Strasburg by noon of the thirty-first.

In other words four armies, numbering in the aggregate more than 50,000 men, were threatening to envelop and overwhelm Jackson. Of these forces no less than 35,000 men were rapidly concentrating in Jackson's rear upon the lines over which he must march in order to escape from the trap set for him and add his force to Lee's in time for the impending battle before Richmond.

It was Jackson's problem not only to escape from these forces, rapidly concentrating to destroy him, but so far to defeat them in detail with his little army as to keep them where they were, while moving his own army to Lee's assistance.

This required grand strategy on a grand scale, and Jackson responded to the demand with a brilliancy wholly unmatched in any other operation of the war. Putting aside details that would only serve to confuse the reader's mind, let us tell in outline the story of what the great commander of the "foot cavalry" did in this complex emergency.

First of all, he withdrew his troops hurriedly from the neighborhood of Harper's Ferry to Winchester. When he got there he found that McDowell's force was in possession of Front Royal, only twelve miles from Strasburg, and Fremont was at Wardensville, only twenty miles away, while the head of his own column was eighteen miles distant from the crucial point, and its rear forty-three miles away. A large part of his force was footsore and exhausted after a hurried march of twenty-five miles in a single day, with frequent skirmishings to punctuate their progress.

Nevertheless Jackson determined to reach and occupy Strasburg before his enemies could get there. He had eighteen miles to go while one of the enemy's columns had twenty and the other only twelve to travel. Their combined forces outnumbered his own about three to one, to say nothing of the 15,000 men of Banks and Saxton who had been pressing his rear all day. But he believed it possible for him, reckoning upon the extraordinary marching qualities of his men, to reach Strasburg before the enemy's

columns could concentrate there. If he could do that he counted upon the superb fighting spirit of his men to overcome the enemy's three detachments by striking them separately in spite of the fact that one of those detachments outnumbered him by thirty-three per cent while each of the others nearly or quite equaled him in numbers.

He acted instantly. His march was incumbered by 2,300 Federal prisoners and an embarrassingly large train consisting in its major part of wagons loaded with precious stores which he had captured from the enemy. But in spite of all he marched all the way to Strasburg on the 31st of May, while his rear guard succeeded in passing well beyond Winchester, some parts of it having covered thirty-five miles since the morning. The Federals pursuing under Saxton had stopped at Charlestown, their commander afterwards reporting that their exhaustion was such as to forbid a further advance.

Having thus eluded his pursuers, Banks and Saxton, Jackson pushed his foot cavalry into Strasburg in advance of both Fremont and Shields, though each of them had had a much shorter line of march than his own in order to reach that place. He had shaken off Banks and Saxton for a time at least, but he had pushed his small force in between Fremont's equal army on the one hand and Shields's superior one, which was now supported by additional troops under McDowell's own command, on the other. His problem was to prevent the junction of these two armies sent to crush him, to escape them and—if possible—to defeat them separately. One of these armies outnumbered his own in the proportion of four men to three while the other equaled his force. But if he could keep them separated and attack them in positions of his own choosing, where they could not both fight him at once, he did not despair of beating them.

McDowell, reckoning upon the easy superiority of his force, sent detachments hither and yon, to "head off" Jackson, and prevent his escape, that seeming now to be the only thing to be done with a fleeing general whose army was beset on every side, outnumbered, and hopelessly entangled.

In execution of these orders a whole day was wasted by Shields, through mistakes as to routes, and Jackson slipped out of Strasburg on his

way to Harrisonburg, Cross Keys and Port Republic, points at which he planned to turn upon his enemy and fight him in detail.

By the burning of bridges and the adroit disposition of troops in a region broken by mountain ranges and laced by streams at that time of year unfordable, Jackson managed to keep the divisions of his adversary separated as they severally pursued his retreat, intent upon capturing or destroying him.

So greatly overwhelming were the Federal numbers that General Shields urgently protested to General McDowell against the sending of any more men to his assistance. Says General McDowell in an official utterance:

He [Shields] had been in that country before and his command had suffered somewhat. He wrote me a letter stating his apprehensions, saying that if troops instead of supplies kept coming over, the troops would starve, and asking why I should bring so many there; that he had enough men to clear the Valley out and for God's sake not to send him any more men.

McDowell reassured Shields as to the abundance of supplies and that commander, with his superabundance of men, cheerfully undertook the task of "clearing out the Valley" which seemed to him easy. He had not adequately reckoned upon the genius of Stonewall Jackson—that was all.

The "foot cavalry" had now retreated with splendid success, as far as Jackson intended that they should. He was pursued by the two armies, but he had succeeded in keeping them separated by an unfordable river, while divesting himself of his embarrassing supply train and his still more embarrassing company of Federal prisoners. These, together with his own sick and wounded, he had sent under escort to Staunton.

Thus, stripped for action, he turned upon his pursuers to rend them. Fremont's force and that under Shields were separated by a river. Jackson had destroyed every bridge that crossed that stream except the one at Port Republic, which he securely held for his own use in the contemplated operations. He had about 13,000 men of all arms available for battle uses. Fremont, who was hotly pursuing him, had about 11,500, while Shields's

force—weakened by detachments—marching down the other side of the river, was much smaller, not over three or four thousand effectives. Exact figures are unattainable.

Jackson had effectually prevented the union of these two armies. He decided to fight them now, one at a time.

On the eighth of June, at Cross Keys, a few miles north of Port Republic, he turned upon Fremont. He was forced to reduce his firing line heavily by detaching a part of his little army to hold Shields in check on the other side of the river, and another part to hold Port Republic and the bridge which constituted his communication. He posted the remainder of his troops in a position of his own choosing and there awaited Fremont's attack.

That attack was made on the eighth of June and was repulsed with so much ease and so much completeness, that Jackson at once decided to assail his other adversary, Shields, in the hope of defeating him in his turn. Leaving a sufficient force on Fremont's side of the river to hold that general in check, or, if need be to destroy the bridge and prevent his crossing, he withdrew his battalions and precipitately assailed Shields, falling upon him in Napoleonic fashion with the head of his own column and trusting to expeditious marching for the coming up of reinforcements in time to prevent a possible failure from maturing into a disaster.

Shields resisted so valiantly and so stubbornly that Jackson's advance corps was very nearly overthrown, but in the end the Confederate commander brought a superior force to bear and completely crushed Shields's defense.

Immediately Fremont and Shields gave up the contest and retreated northward down the Valley, while Jackson rested his army preparatory to a hurried march to join Lee before Richmond while the fear of him should continue to hold Fremont's and McDowell's and Banks's, and what had been Saxton's, forces in the Valley.

For that march and junction Lee had fully prepared. He secretly sent instructions to Jackson to march at once to Ashland, a dozen miles from Richmond, and thence sweep down between the Pamunkey and Chickahominy rivers, in aid of Lee's own movement against McClellan. Then he ordered two divisions ostentatiously detached from the army

before Richmond, to go to Jackson's reinforcement in the Valley, and directed Jackson to do all he could to impress the enemy with the belief that he was planning, with a strongly reinforced army, to sweep down the Valley again and press on into Maryland, threatening Washington and Baltimore. Pains were taken to impress the fact of Jackson's strong reinforcement upon Federal officers who, as prisoners, were about to be paroled and sent north and they carried the news, as it was meant that they should do. The deception was so complete that even while Jackson was actively assailing McClellan's rear on the Chickahominy a few days later, General Banks was sending from the Valley dispatches warning the Washington authorities that Stonewall Jackson was preparing immediately to sweep down the Valley at the head of a reinforced and now quite irresistible army.

The result was that Jackson and the divisions sent ostensibly to reinforce him, joined Lee in front of Richmond in time to aid in the Seven Days' battles for McClellan's dislodgment.

CHAPTER XXVIII

THE SEVEN DAYS' BATTLES

It was explained in the last chapter that Lee's first object when he took personal charge of the army defending Richmond was to raise McClellan's siege of the Confederate capital, drive him away, and transfer the scene of active operations to some more distant field.

To that end, first of all, he had strengthened the army at Richmond by calling to it every man that could be spared from coast defense and from the regions farther south. Next he had set Jackson at work in the Valley, to occupy the forces there and in West Virginia, and by threatening Washington to divert from McClellan's reinforcement an additional army of 40,000 men which had been intended to strengthen him into irresistibility.

When Jackson, beset by four armies, had escaped from two of them and had defeated the other two, Lee sent strong reinforcements to him in a conspicuous way, so that he might seem about to advance down the Valley, cross the Potomac and in strong force occupy the region north of the Potomac and threaten the capture of Washington itself.

By this strategy Lee had managed to detain 65,000 Federals in the Valley, and 20,000 or 30,000 more in and around Washington, whose fighting force must otherwise have been added to McClellan's already superior army before Richmond. Then he had managed to have Jackson suddenly and secretly quit the Valley, with the force that had there achieved such spectacular results, together with the troops that had been ostensibly sent to reinforce him for an aggressive campaign and by a rapid movement to join the army at Richmond and assist it in a supreme endeavor to dislodge McClellan.

The situation then was this: Relying upon a reinforcement of 40,000 men under McDowell, McClellan had dangerously divided his army, keeping about half of it north and about half of it south of the Chickahominy river. His desire was to press forward his siege operations on the east of the Confederate capital and at the same time to maintain a threatening force north of the city. It was his purpose so soon as McDowell should add his 40,000 men to this army on the north, to sweep forward with the combined forces and irresistibly to push a conquering column into Richmond.

But Lee had baffled all these plans by his masterful strategy. He had compelled the diversion of McDowell to the Valley, and while the authorities at Washington were nervously expecting Jackson to swoop down upon that city, Jackson with his whole force, which had slipped out of the Valley, suddenly appeared at Ashland, about a dozen miles northwest of Richmond and immediately upon McClellan's right flank.

In the meanwhile Lee had sent Stuart—perhaps the most daring and enterprising of the Southern cavalry leaders—with a body of 1,200 or 1,500 horsemen and two guns, to the rear of McClellan's position, there to find out the disposition of troops, the condition of the roads and bridges, and whatever else might open the way to that gigantic operation of offensive defense which Lee intended presently to undertake.

Stuart moved promptly into McClellan's rear and swept around it like a whirlwind. Finding that a tardy resistance was taking the form of an organized effort to cut off his retreat by the route over which he had come, the gaily enterprising cavalier of the South, instead of turning back and trying to retrace his steps as his enemy expected him to do, decided to ride on all the way around McClellan's army and thus spectacularly to emphasize the imperfection of McClellan's precaution for the protection of that rear which Lee was planning presently to assail tempestuously. He rode completely around McClellan, crossing his line of communications, rebuilding a bridge which had been destroyed for the purpose of cutting him off and entrapping him, and returning to Richmond with a loss so small as to be scarcely worthy of mention in an official report.

This raid was made on the twelfth and thirteenth of June, and equipped with the detailed information secured by it Lee planned to assail McClellan

on the twenty-sixth of June with a force sufficient to dislodge him from his besieging positions, to break his line of communication and supply by way of the White House on the York river, and to compel his retreat from the front of the Confederate capital to some point on the James river, where his gunboats could afford him needed protection.

For the purposes of this operation Lee had a force somewhat inferior in men and guns to McClellan's, but not greatly inferior. On the other hand McClellan's army was badly placed, with half of it on the north and half of it on the south of the Chickahominy, neither half being within easy supporting distance of the other, while the line of communication and supply by way of the White House was peculiarly vulnerable in case of an attack from the rear.

Reckoning upon these advantages, it was Lee's plan to have Jackson move down from Ashland, assail McClellan's right wing in flank and rear, drive back his forces and thus open the crossings of the river to the other Confederate corps, which were to cross one after the other and assail the enemy in front while Jackson should attack him in rear and flank.

The plan miscarried in part. For once Jackson was not on time, and, after waiting for him until the afternoon of the twenty-seventh of June A. P. Hill grew impatient of the delay, and pushed his corps across the river at Meadow Bridge and, after a strenuous fight, drove the Federals out of Mechanicsville, without any help from Jackson. Longstreet and D. H. Hill at the lower crossings also grew impatient of delay, and without waiting for orders crossed and engaged the enemy. On the next morning Jackson was with them and he led the advance.

The plan of battle was that Jackson, with D. H. Hill for support, and keeping well in rear of McClellan's fortified positions, should push rapidly forward towards the York-river railroad, which constituted McClellan's sole line of communication and supply, while A. P. Hill and Longstreet, advancing upon Jackson's right, should attack McClellan in flank, front and rear whenever he might seriously oppose Jackson's movement.

There was some further miscarriage of plans, and in consequence of a delay in Jackson's advance Longstreet and Hill fell upon the right wing of McClellan's army posted in a strong strategic position at Gaines's Mills before the advance under Jackson was ready to strike its blow.

The Confederates here encountered a very obstinate resistance and they were not able to force the position until Jackson came up and joined in the assault. It was a critical moment of the war. Had McClellan been able to hold this position the Confederate campaign of offense must have completely collapsed, and with a superior force, the Federal general would have been free to conquer Richmond at that leisure which his engineering soul so greatly loved.

But with Jackson's force added to the commands of Longstreet and Hill, the Confederates, after a very determined and bloody contest, drove the Federals from their position and made themselves prospective masters of McClellan's sole line of communication with his only depot of supplies at the White House.

There was nothing now for McClellan to do but retreat as best he could to the James river at Harrison's Landing and make that, instead of the White House, a base of supplies. To do that was exceedingly difficult, as McClellan had open to him only one road and that a very bad one, while the Confederates on his flank had many roads by which to intercept and annoy his retreat.

During the course of that retreat, which was attended at every step by bloody contests, McClellan wrote in great bitterness of spirit to the Secretary of War in Washington (Mr. Stanton) on the twenty-eighth of June: "If I save this army now, I tell you plainly that I owe no thanks to you or to any other persons in Washington [obviously meaning Mr. Lincoln]. You have done your best to sacrifice this army."

McClellan, with an overwhelmingly superior force, had invested Richmond on the east and north. There he had strongly fortified himself. He had pushed his advance to within four miles of the Confederate capital. He had brought up tremendous siege guns and had apparently made himself complete master of the situation. Then Jackson, the two Hills, Longstreet and Ewell, under direction of Robert E. Lee, had fallen upon his flank and rear and had driven him out of one position after another with fearful slaughter, until his White House communication was cut off, and nothing remained to him but retreat to a new base on James river. The Confederates confidently calculated upon cutting off that retreat also and compelling the

surrender of an army superior to their own in numbers, arms, resources and everything else except fighting ability.

This they would very probably have accomplished if McClellan had not developed in answer to a pressing need a fighting quality which he had not before shown, and his army a resolute determination to endure punishment such as none but the best of veterans are expected to show.

McClellan's one hope, one purpose, was to march his army out of the swamps and escape from the ceaseless Confederate assaults to a point on James river where the resistless fire of the gunboats might protect his men from further attack and give them a chance to rest. To that end, he retreated night and day, standing at bay now and then as the hunted stag does, and fighting desperately for the poor privilege of running away.

And the splendid fighting of his men was a tribute to the skill and genius with which he had created an effective army out of what he had described as "regiments cowering upon the banks of the Potomac, some perfectly raw, others dispirited by recent defeat, others going home." Out of a demoralized and disorganized mass reinforced by utterly untrained civilians, McClellan had within a few months created an army capable of stubbornly contesting every inch of ground even while effecting a retreat the very thought of which might well have disorganized an army. For soldiers in retreat do not usually fight as soldiers do when advancing upon an enemy. They are apt to be filled with the sentiment of hopelessness which retreat suggests and to hesitate to risk their lives in contests that seem to offer no adequate return for sacrifice.

If McClellan conspicuously failed as an energetic commander, in this his first important campaign, he succeeded at any rate in demonstrating the perfection of that work of organization by means of which he had created the splendid Army of the Potomac out of raw recruits and panic-stricken fugitives from battle.

At Gaines's Mill they gallantly endured a loss of no less than 9,000 men, and while they were driven from their position at last, they lost nothing of their morale, but were ready two days later to fight an equally determined battle, though it was the battle of a beaten and broken army which had been driven by force out of a supremely advantageous position and was now seeking safety in a flight that knew no ceasing night or day,

except now and then a pause to offer a sullen resistance to an ever-present and pressing foe, and to ward off complete destruction by the offer of battle wherever the ground gave opportunity for resistance.

Here was McClellan's reward; here was his glory. This army of his a few months earlier under such a succession of defeats would have broken into panic-stricken rout. Thanks solely to his discipline and his dominant influence, it now endured compulsory and disastrous retreat with fortitude and stubbornly contested every inch of the blood-soaked ground.

It outnumbered Lee's force and its equipment was immeasurably superior to his. Under a commander of high gift for field work it might perhaps have beaten Lee and forced its triumphant way into Richmond. Under the commander it had it did itself great honor by retreating in good order and stubbornly resisting the Confederate advance wherever it was permitted to do so.

McClellan being now in full retreat and considering only those problems which related to escape, abandoned the position at Fair Oaks and posted Sumner and Heintzelman at Savage's Station. Their sole function was to guard the flank of the hurriedly retreating Federal army. To that end they were ordered to defend the position at Savage's Station until nightfall, or, in other words, until McClellan's retreating army should have passed that point in its hurried flight.

Here the Confederates under Magruder attacked with fury and the Federal general Heintzelman was driven into retreat. But Sumner heroically held his ground until nightfall, thus accomplishing McClellan's purpose, though at cost of a fearful loss in killed and wounded. He was so hard pressed indeed that when he retired at nightfall, he was forced to leave all his wounded in the enemy's hands and make a precipitate retreat to avoid the capture of his entire force.

Fortunately his enemy was a civilized one, so that his wounded men, left in their hands, were as tenderly cared for as if Federal surgeons had had them in charge. The only difference was that Federal surgeons had all possible medicaments and surgical appliances, while the Confederates, by reason of the blockade, lacked many life-saving agents, particularly the quinine which men wounded after long campaigning in the Chickahominy and White Oak swamps needed as imperatively as a shipwrecked crew

needs life-lines and breeches-buoys. The war was so far civilized that the surgeons on either side eagerly did their best for such of the enemy's wounded as might fall into their hands. But it was still so far savage,—and it remained so to the end—that the side which possessed a navy shut out from the other as contraband of war the medicines necessary to the saving of human life and the rescue of the wounded from a needless death, as resolutely as it shut out gunpowder itself. In other words, the blockade was to this extent a part of that savagery which makes war upon the sick and wounded and other non-combatants as determinedly as it does upon stalwart men with guns in their hands and cartridge boxes strapped around their waists. There is cruelly no room for doubt that during the Seven Days' battles thousands of gallant fellows on both sides were buried in the fetid mud of those swamps, who might have been saved, had the world then been civilized enough for the Federals to let the Confederates have the quinine, the calomel and the opium they needed for the salvation of the lives of those who could fight no more, whether Federal or Confederate in their allegiance.

No nation is even yet civilized enough for this. "War is all Hell," said General Sherman, and its hellishness is nowhere so aggressively manifest as when it denies to a hard-pressed adversary the medicines necessary to the salvation of human life, the rescue from death of those who are already incapacitated, either by wounds or by disease, from further fighting. It is quite legitimate and logical to forbid the sending of food supplies to your enemy, because food is the foundation of every army's resisting power. But when a starving army surrenders, as Lee's did at Appomattox, the first care of its conqueror is to issue rations to the men who have ceased to fight, as Grant issued them on that historic occasion, even before the terms of capitulation could be written out. But it is a very different and a very much more barbarous thing to deny to surgeons in the field the means of saving human life whether the subjects of such life-saving happen to belong to the one army or to the other. The people of the United States are to-day paying princely sums as pensions to the families of those who died under Confederate surgeons' hands simply because the laws and usages of war forbade to those surgeons the medicines necessary to their life-saving work, and treated life-saving appliances as they treated gunpowder and arms, as contraband of war. Why should this hideous wrong have existed after the middle of the nineteenth century? Why should it continue to exist at the

dawn of the twentieth? Are we, after all, only savages under a thin veneer of pretended civilization?

On the thirtieth of June the Confederates again assailed McClellan's retreating columns at Frazier's farm. A fearful contest ensued, for so superbly had McClellan organized and disciplined his army that even after days of disaster and depressing retreat it stood ready still to resist and to fight for every inch of ground.

Here the Confederates confidently expected to overwhelm and capture McClellan's army, compelling its surrender. And there is small doubt that such must have been the outcome of the action had Lee's lieutenants accomplished that which he had set them to do. But Magruder and Huger failed Lee at the crisis. It was his plan that they should assail the Federals in flank with all possible vigor, while Jackson, Longstreet and A. P. Hill should press them upon the rear of their retreat which now became their front for purposes of battle. The destruction of McClellan's army seemed a certainty. But neither Magruder nor Huger arrived in time to make Lee's plan of assault successful. There was a bloody battle, but by reason of the delay of these two lieutenants it was an abortive one, failing utterly to accomplish that final and decisive overthrow and capture of McClellan's army upon which Lee had reckoned as the crowning achievement of this Seven Days' campaign.

The failure of these two generals to fulfil their obligations—a failure which resulted in the baffling of Lee's supreme purpose at the very moment when their presence must have given him quite all that he desired of victory—might well have been made the subject of an inquest by court martial or by a court of inquiry. But as Lee in the exceeding gentleness of his nature omitted to order any such inquest, the matter presents no authoritative basis of fact on which the historian may rest an award of blame. This much, however, seems to be certain—that if Huger and Magruder had done what Lee had ordered them to do, and what they might easily have done, McClellan's army must have been destroyed or captured on that thirtieth day of June, 1862.

As it was, McClellan fought all day and at night resumed his retreat, still doggedly intent upon that one difficult problem of "saving this army,"

concerning which he had written so doubtfully and so despairingly and so bitterly in his heart-wrung protest to Secretary Stanton.

After a fearfully bloody struggle the Federal army was able during the night to retire toward Malvern Hill, a position which the Confederates could not assail without exposing themselves to the destructive cross fire of the Federal fleet in the James river.

McClellan had now been completely dislodged from his position on the east and north of Richmond. He had been defeated in battle day after day, and driven out of his fortifications into a helpless retreat to the cover of his gunboats in the James river. His base of supplies at White House had been utterly broken up. He had lost in this series of battles no less than 15,249 men. The Confederates, being the assailants, had suffered even greater losses.

The Confederates at this point made one disastrous mistake. They had believed that McClellan would retreat by the route by which he had come, and in that belief they had remained where they were for twenty-four hours. During that precious time McClellan had moved his enormous wagon train and his great herd of 2,500 cattle towards his new base.

At White House General Casey loaded all the supplies he could upon transports and sent them to the new base. But he was obliged to burn millions of pounds of food and destroy hundreds of tons of ammunition which he could not remove. Trains of freight cars were loaded with food and ammunition and deliberately switched off the railroad tracks and into the river to prevent them from falling into the possession of the Confederates.

In brief McClellan's defeat was disastrous in the extreme; but by reason of the failure of Lee's lieutenants to do their proper part at the critical time the Federal commander was spared the humiliation of a surrender. He escaped instead to Malvern Hill after a succession of bloody defeats and after sacrificing the greater part of his reserve stores of food and ammunition at what he had established as a secure base of supplies.

It is not easy to imagine a completer or more disastrous defeat than this of the Seven Days, or an enforced retreat more humiliating. Yet at the last moment McClellan was enabled, by the mistake or the misconduct of Lee's

lieutenants, to escape to Malvern Hill, under cover of his gunboats, and there Lee mistakenly assailed him, thus giving him, at the end of a series of conspicuous defeats, the appearance at least of a compensating victory.

Malvern Hill is rather a high plateau than a hill in the proper sense of the term. It lies about sixty feet above the surrounding country. It is a mile wide and a mile and a half long. At its base is a network of streams and impassable swamp lands, constituting a natural fortification practically impassable to any army in the field except at one point where a narrow road leads up the hill. The plateau lies so close to the James river that gunboats anchored in that stream can command its one approach with deadly certainty.

Here McClellan stood at bay. Here a wise direction should have made an end of the Confederate pursuit of him. To assail him there was to invite needless slaughter with no hope of any result commensurate with the inevitable sacrifice of human life.

But the Confederates were flushed with a week of continuous victories, and they hurled themselves recklessly upon Malvern Hill, hoping there to retrieve their lost opportunity of destroying or capturing the army that a week earlier had besieged and threatened Richmond.

The assault upon such a position ought not to have been made at all. Still worse, it was blunderingly made. The Confederates were not ready to bring their whole force into action when the first advance occurred, or in any wise to support the assailing force. Seven thousand men, with six guns, charged up the slope. There were thirty guns in position to sweep them away as with a broom, and many times seven thousand men to resist their advance. There was also the terrific fire of the gunboats to tear their columns into shreds and to throw their men into confusion. Still more important perhaps was the fact that the Confederate artillery had not yet been organized as a separate arm of the service. Each brigade had its battery, but there was nowhere any authority to bring these scattered batteries together and make them effective by massing them. Six guns in the presence of thirty were quickly put out of action, and throughout the day there was a like disproportion, due to the mistaken system which assigned batteries to brigades instead of organizing the whole artillery force into a

single arm of the service and placing each corps of it under a commander of its own who could mass it at will and make it effective by concentration.

McClellan had massed his artillery; Lee had not massed his. The result was that McClellan's artillery fire quickly dismounted Lee's guns and rendered them useless.

After this first fruitless assault was repelled, there was nothing but artillery dueling for some hours. It was not until late in the afternoon of July 1 that Lee was ready to assail his enemy with his entire force. Then there was a strange lack of concert. One division after another attacked without support and was beaten back for want of it. At no time did the Confederates hurl their whole force upon their enemies. They fought gallantly, but in detail, and therefore without effect.

The fighting was continued till nine o'clock in the evening. Its net result was that the Confederates had failed to dislodge McClellan from his strong position. But they had so nearly accomplished that object that McClellan dared not risk another day's trial of the issue, even in his supremely advantageous position. He withdrew during the night to Harrison's Landing under cover of his gunboats, and the Seven Days' battles were done.

No military operation was ever more dramatic than this. At the beginning of that fateful week McClellan, with about 120,000 men, was closely besieging the Confederate capital. His heavy guns were almost within shelling distance of the city, and an army of 40,000 men or more, was marching to his reinforcement. At the end of that week's fighting the broken remnant of his army was thankfully cowering under cover of a resistless gunboat fire, with siege abandoned, works deserted, millions of dollars worth of stores destroyed, and such a record of daily defeats as falls to the lot of few armies in the field.

But one thing had been demonstrated, McClellan had made an army out of the exceedingly raw material furnished to his hand. He had converted "a mere collection of regiments cowering on the banks of the Potomac, some perfectly raw, others dispirited by recent defeat, some going home," into an army capable of meeting and fighting Lee at Mechanicsville, Frazier's Farm, Gaines's Mills, Savage's Station and Malvern Hill.

Henceforth the war was to be fought out by armies of seasoned soldiers and not by raw recruits and panic-stricken volunteers.

This great series of battles had cost the Confederates about 19,000 men and the Federals 15,249. It had made an end of the second attempt to conquer Richmond and in that way to finish the war. It had left the Confederates as conspicuously victorious in the east as they were conspicuously defeated in the west.

CHAPTER XXIX

THE SECOND MANASSAS CAMPAIGN

Lee had now accomplished the first of his two purposes. He had raised McClellan's siege of Richmond. He had not succeeded in capturing or destroying McClellan's army as he had hoped to do, but he had completely baffled its endeavor. He had driven it out of its strongly fortified positions. He had kept it in an enforced and continuous retreat for a whole week. He had compelled it to fight losing battles by day, and to spend the nights in painful and exhausting efforts to escape, which McClellan himself, as his grieved and angry official reports clearly showed, regarded as efforts of extremely doubtful outcome.

McClellan's campaign against Richmond had disastrously failed. He had saved his army indeed without a repetition of the Manassas panic, but he had been baffled in all his purposes and driven for seven days and nights like a hunted stag seeking safety in flight. All his combinations had come to naught, all his elaborately constructed earthworks had failed him even as means of holding his position as an assailant. All his siege guns had proved of no avail.

But he had organized a great army so well disciplined that it could fight with determination, lose with a calm mind, and retreat before a pursuing enemy without losing cohesion or falling into panic. That service of his was emphasized during all the brilliant future history of the Army of the Potomac. It made itself manifest at Antietam, at Fredericksburg, at Chancellorsville, at Gettysburg, and later at the Wilderness, Spottsylvania, Cold Harbor and Petersburg. But with all his splendid ability as an engineer, and his still more conspicuous gifts as an organizer of raw material into an effective force, McClellan was manifestly unfit to command an expedition in which he must try his wits against the genius of Robert E. Lee and

Stonewall Jackson. A historian most friendly to him, Dr. Rossiter Johnson, has written: "He was an accomplished engineer and a gigantic adjutant, but hardly the general to be sent against an army that could move and a commander that could think."

Lee had driven a splendid army, nearly double his own in numbers, to a position where it lay cowering on the river-bank, under protection of the gunboats and no longer depending upon its own prowess even for self-defense.

But Lee had not destroyed McClellan's army, or captured it, or even weakened it in any conspicuous degree. That army, splendidly organized, superbly equipped, and strengthened rather than weakened in morale, lay securely at rest on the James river, within easy striking distance of Richmond. There was no knowing at what moment McClellan might hurl it again upon Richmond or upon that commanding key to Richmond—the Petersburg position. In the hands of a capable commander McClellan's army would at this time have been a more serious menace than ever to the Confederate capital, for it now had an absolutely secure and unassailable base of operations, while its fighting quality had been improved rather than impaired by its seven days of battling.

Thus the second part of Lee's military problem remained still to be solved, and it was very greatly the more difficult part—the part that most imperatively called for the exercise of strategic genius of a high order. He must prevent a junction between Pope's army, which was now advancing by way of Manassas Junction, and McClellan's force on the James river. He must overthrow Pope on the one hand and compel McClellan to retire on the other.

For the accomplishment of this Lee relied confidently upon the positively morbid dread of the loss of Washington which at that time filled the Northern mind and inspired every order given at the Federal capital. His problem was to put Washington in peril without losing Richmond, and thus to compel the withdrawal of McClellan's army for the defense of the Federal capital and to meet a threatened invasion of the North.

To that end Lee boldly risked a division of his force as he afterwards did on several occasions in presence of an enemy who already outnumbered him.

On the thirteenth of July he detached Jackson, with his own and Ewell's commands, to operate against Pope in northern Virginia, himself holding Richmond with the rather scant remainder of his army.

Jackson moved at once to Orange Court House, confronting Pope. This movement threatened Washington only in a rather remote way and not very seriously, but it had the desired effect. A part of McClellan's force was at once withdrawn from the position at Harrison's Landing and sent by water to the national capital as a reserve and reinforcement for Pope in case that general should be beaten in the field.

Promptly—near the end of July—Lee sent A. P. Hill's corps to Jackson, and, thus strengthened, Jackson pushed his column across the Rapidan river and encountered a part of Pope's forces at Cedar Mountain on the ninth of August. The action was not a decisive one, but it served Lee's purpose of compelling the early and complete withdrawal of McClellan from his threatening position below Richmond.

Two days after the battle at Cedar Mountain Jackson retired to the south bank of the river to await the reinforcements which Lee was sending to him as rapidly as McClellan's withdrawal rendered it measurably prudent for him to deplete the army defending Richmond.

By August 14, Lee had transferred practically all of his army from Richmond to the line of the Rapidan, leaving only a meager garrison at the Confederate capital. On that day he joined the army and assumed direct personal command.

Pope was a good and active officer, unfortunately given to vainglorious boasting. He dated his orders "Headquarters in the saddle, Army in the field," and set forth in them the assertion that he had so far seen only the backs of the rebels. He announced his policy in the phrase, "bayonets to the front, spades to the rear." In brief, he jauntily and with ridiculous boastings, undertook to meet one of the finest fighting forces that had ever been organized in the world, commanded by the most brilliant and the ablest general of the South. He thus prepared for himself a peculiar humiliation in the event of defeat, stripping himself in advance of all excuses and all pleas in abatement of failure, and in advance minimizing the glory of victory should he succeed in overcoming Lee.

There was no more ridiculous spectacle seen from beginning to end of the war than this. It invited all the wits of the newspapers to facile jestings, and when Pope's failure was complete, one of them said, in reference to his "headquarters in the saddle" phrase, that he had "placed his headquarters where his hind-quarters ought to have been."

Nevertheless, General John Pope was a very able and a very enterprising officer, as he had demonstrated at the West. He knew how to handle an army effectively, and he had an army of great effectiveness under his command, with seasoned and battle-trained reinforcements coming to him every hour from McClellan's splendidly behaving force. He boldly challenged Lee's advance and baffled it for a time. He had all that could be imagined of equipment and of limitless supplies. Had he been even in a measurable degree the commanding military genius that he confidently believed himself to be, he must have hammered Lee's forces into confusion at the first encounter and driven the great Confederate back to his half-hopeless task of defending Richmond behind a barrier of earthworks. The result of the encounter was quite other than this, as we shall see.

Having at last brought up a force slightly superior to Pope's, Lee's plan was to attack as quickly as possible and before Pope should be strengthened by the heavy columns of reinforcements that were hurrying to his support from McClellan's army and from every other quarter whence reinforcements could be drawn. But before Lee's dispositions for attack could be completed, Pope penetrated his design and fell back to the stronger line of the Rappahannock.

The two armies confronted each other with that river between. Lee moved by his left flank up the river while Pope kept pace with him, alertly meeting him at every available point of crossing, with his army in discouragingly strong positions, and prepared to resist to the utmost any attempt the Confederate general might make to force a crossing.

To Lee this was a lamentable waste of time, while to Pope it was a matter of hourly gain in strength. For while Lee already had with him all the forces that he could hope to concentrate in that quarter, regiments and brigades and divisions were constantly pouring forward from Washington to strengthen Pope's command.

Finally Lee succeeded in outwitting his adversary. At a place near Warrenton Springs he came to a halt and made ostentatious demonstrations of an intention to force a crossing of the river at that point. Pope stood ready to meet him, with all his army strongly posted, and with hourly strengthening field works to make the assault of the Confederates the more difficult and the more perilous.

But Lee in fact had no intention of joining battle on such unequal conditions and risking the fate of his campaign upon his ability to carry such a position, so strongly defended. While occupying Pope's attention there with a simulated purpose of forcing the fords he resorted to that tactical device which served him so often and so well later in the war. He detached Jackson, sending him with a strong force to march around Bull Run Mountain, cross through Thoroughfare Gap, and threaten Pope's depots at Manassas and his lines of communication north and south of that now historic point.

Jackson's movement was completely concealed and altogether successful. On the twenty-sixth of August he fell like a thunderbolt upon Pope's depots at Manassas and captured them. Meanwhile, under Lee's orders, Longstreet was following Jackson, and on the twenty-ninth he formed a junction with him at or near the point where the first important battle of the war had been fought.

But Pope had not been idle or inattentive during these pregnant days. As soon as Jackson's descent upon his supply depots was made known to him, he abandoned his position on the Rappahannock and fell back to try conclusions on the historic field of Manassas. Having received still further reinforcement from McClellan, his army now slightly exceeded Lee's in numbers and considerably exceeded it in other elements of strength. Accordingly, being a commander of great enterprise and vigor, he at once assailed Lee at Manassas in full force. For two days he hurled his heavy battalions upon the Confederates, severely taxing and testing their resisting power. For these were armies of veteran, battle-seasoned soldiers that were fighting each other now, and not the raw levies of a year before. They fought with order and system and their minds were open to no such panic impulses as those that had put McDowell to rout and reduced what had been placed under his command as an army to the condition of an insanely frightened mob.

But on the other hand the Southerners were commanded now not by a pair of inexperienced ex-captains of the Engineer Corps, but by Robert E. Lee himself, with Stonewall Jackson and James Longstreet and R. S. Ewell and the two Hills for his lieutenants.

The attack was determined; the defense obstinate; the fighting heroic; the result bloody in an extreme degree.

The field was contested for two days with a heroic stubbornness on either side which showed clearly how great a change had been wrought in the conditions of the war by the disciplining of the troops, by their experience in the brutally bloody work of war, and by the training such experience had given to their officers.

The end of it was that Lee drove Pope across Bull Run and back to Centreville. Immediately he followed up his victory as Johnston and Beauregard had not done a year before on the same field. He turned the position at Centreville and compelled Pope to retreat hurriedly, but in tolerably good order, upon Washington.

It was in this conflict that a gallant and hard-fighting Federal general, Fitz-John Porter, had the ill luck to encounter criticism which resulted in his trial by court martial and his dismissal from the army in disgrace. It was not until many years afterwards that the actual facts of the fighting were clearly and convincingly made known with the result of relieving General Porter of the stigma he had so long unjustly borne, and rehabilitating his high reputation in the minds of his countrymen.

The story of it all is one of pitiable and long-continued suffering under misapprehension and falsehood. It is fully told in other publications than this, and it has no proper place except that of casual mention, in a simple chronicle of events such as the present work is.

CHAPTER XXX

LEE'S FIRST INVASION OF MARYLAND

Lee seemed now to be master of the situation so far at least as determining when and where the fighting should be done. Within the brief space of two months he had raised the siege of Richmond, maneuvered McClellan completely out of Virginia, and overthrown Pope in a two-days' battle compelling that commander to retire behind the defenses of Washington.

There remained no Federal army in Virginia. There was no further defensive campaigning to be done there. Lee decided at once upon an aggressive operation of the utmost boldness. He determined to transfer the seat of war to the regions north of the Potomac, to threaten and if possible to capture the Federal capital, either by direct approach or by the conquest of Baltimore, which would isolate Washington and compel its abandonment.

In order to understand the importance of the issues of such a campaign as Lee now planned, the reader must bear in mind that Mr. Lincoln's government was at that time subject to a "fire from the rear;" that a very large part of the Northern people sympathized with the South; that a still larger part disapproved of the war on other grounds than sympathy—grounds of commercial interest, political prejudice and the like. The cost of carrying on the struggle had already become appalling to those who must meet it by the payment of taxes. The desire to end it, and the conviction that it was hopeless of the results proposed, were widespread.

Under such conditions it is easily obvious that if Lee could at that time have made himself master of Washington or Baltimore or both, all that had gone before either of victory or of defeat would have been as dust in the

balance. It would have been next to impossible, under such circumstances for Mr. Lincoln's administration to prosecute the struggle further. The national credit, already seriously impaired, would have been destroyed. Neither men nor the material necessities of war would have been at all adequately forthcoming. A great cry must in that case have arisen for the ending of the struggle by the recognition of Southern independence. With the Confederates in possession of Washington and Baltimore every foreign power would have joined its voice to that of the doubters and malcontents at home in a clamorous demand for an immediate "peace at any price" with a triumphant foe.

To make an end of the war in this way was the stupendous task that Lee set himself to accomplish. His means were scanty and his grounds of hope for success were small. But "war is a hazard of possibilities, probabilities, luck and ill luck," and Lee was a commander given to the taking of stupendous risks.

He had but 45,000 men with whom to undertake a task for which a quarter of a million would not have been an excessive or even a certainly sufficient force. But those 45,000 men were soldiers of the very best quality imaginable. They had been seasoned by severe campaigning. They had accustomed themselves to win in battle against heavy odds. They believed in their leader and in themselves and were ready to undertake any task that Lee might assign them. They were stubborn men and stalwart, and experience on march and in battle had made them as nearly perfect soldiers as the world has anywhere or at any time known.

On such an expedition as that which Lee planned, they were certain to be opposed by armies greatly exceeding themselves in numbers and immeasurably superior in equipment and supplies. But they were soldiers of that sort that can march on a diet of hard tack and fight on no diet at all.

So with this slender force Lee crossed the Potomac, on the fifth of September, abandoning his base of supplies and his communications and depending for the support of his army upon such foodstuffs as he could secure in his enemy's country. As for reinforcements, he perfectly knew that there were none who could come to him.

It was a desperate hazard, conspicuously Napoleonic in its daring.

Crossing the Potomac on the fifth of September, Lee established himself on the eighth near Frederick, Maryland, a point at which his presence threatened Washington and Baltimore about equally. And both those cities must be guarded against his advance, the direction of which was of course uncertain. The capture of either city would mean the speedy surrender of the other.

To meet this danger the Federal Administration hurriedly called to Washington every regiment and brigade it could in any wise command. It united the armies of McClellan and Pope and reinforced them with every regiment that could be drawn from other quarters. It restored McClellan to command—for he had been temporarily removed in consequence of his disastrous defeat at Richmond—and set him the task of defending the National capital by meeting and crushing Lee in the field. If Lee had commanded an army of half a million men instead of the meager 45,000 actually under his orders, the alarm could scarcely have been greater or the preparations to meet him more elaborate.

President Lincoln visited McClellan in person and asked him to resume command of the combined armies. McClellan accepted the commission.

Accomplished soldier that he was, he saw clearly that the "objective" of his campaign must be the crushing of Lee and the enforced retreat of the Confederates to the southern side of the Potomac. To that end McClellan desired to employ the utmost force within call. He had about 70,000 men against Lee's 45,000, but he urgently asked for the 11,000 additional men who were guarding Harper's Ferry and Martinsburg. He asked that those untenable positions should be abandoned and their defenders added to the already superior force with which he was to try conclusions again with the masterful adversary who had so conspicuously defeated him before Richmond.

But General Halleck was now in chief command and he refused this request.

His refusal to order the evacuation of the two untenable positions and to add their important garrisons to McClellan's force, seriously embarrassed Lee and contributed, in an indirect but effective way, to the defeat of those purposes with which the Confederate chieftain had undertaken his hazardous campaign.

Lee had assumed, quite as a matter of course, that upon his passage of the Potomac, Martinsburg and Harper's Ferry would be evacuated, being obviously untenable. But in fact they were not abandoned. So Lee was compelled to pause and to send Jackson back to the south side of the river to secure control of positions that commanded his own only secure line of retreat in case of disaster.

This caused a very serious delay in Lee's operations, and in such a campaign of aggression, promptitude and swiftness are all important to the accomplishment of desired results.

Jackson went back across the river to assail Harper's Ferry from the South. In the meanwhile McLaws, Walker and D. H. Hill seized and held respectively Maryland Heights, Loudon Heights and Boonesboro Pass, while Lee with the remainder of his now dangerously divided army advanced to Hagerstown in search of food supplies.

Jackson did his part of the work perfectly, as it was his custom to do. He drove his enemy out of Martinsburg and captured Harper's Ferry with 11,500 prisoners, seventy-three serviceable guns and important stores.

But in the meanwhile Lee's army had been scattered in a very perilous way, and in his anxiety for its reconcentration, he wrote out an order, giving in detail his instructions to his several subordinates.

A copy of this order somehow fell into McClellan's hands. It clearly revealed to him Lee's divided and scattered condition, and for once in his life McClellan hurried. If he, with 70,000 men, could manage to attack in detail the several widely separated fragments of Lee's army which had now been reduced by casualties to less than a total of 40,000, surely he must win.

Accordingly he hurriedly pushed forward, hoping to carry Turner's and Crampton's Gaps in the South Mountain before Lee could concentrate for their defense.

He was a trifle too late, however, and a stubborn defense was made there on the fourteenth, giving Lee time to bring up the remainder of his forces for the decisive battle at Sharpsburg or Antietam, as the action is variously called at the South and at the North. McClellan finally carried the gaps at cost of a loss of 2,000 men—the Confederates losing a like number.

But in the meanwhile McClellan had lost all the strategic advantage that he was striving for. It had been his hope to push his columns through the gaps—as he might have done twenty-four hours earlier without serious resistance—and to occupy commanding positions between Lee's widely scattered forces, from which, with his vastly superior numbers he might conquer them in detail, probably compelling Lee's surrender as a part of the price exacted.

But McClellan was twenty-four hours late. He therefore had to fight all day in order to force his way through passes that a day earlier had been practically open to him.

These actions were fought on the fourteenth of September, 1862. They were quite separate in their strategy and action, but they are classed together in history as the Battle of South Mountain. The struggle at both points was a fierce one and the casualties were heavy on either side. At the end of it all McClellan held the passes and was free to push his army through them. To that extent he had won a victory. But by his stout defense Lee had gained the time he so badly needed in which to bring his scattered forces together for the decisive struggle, and as that was his sole object at the time, he justly felt that he had accomplished the purpose with which he had undertaken the battle.

Lee promptly prepared himself for the decisive struggle. Retiring behind Antietam Creek, he took up a strong position and awaited McClellan's assault. He had by this time an army of less than 38,000 men with which to meet McClellan's 70,000 or 75,000—for reinforcements were hourly coming to the Federal commander, and none to the Confederate.

This defensive battle was not at all what the Confederate general had hoped for or intended. He had been baffled of his purposes by adverse circumstances. Had his enemy promptly evacuated Harper's Ferry as he had expected and as McClellan had urged, Lee would have pushed on towards Washington or Baltimore, giving battle as the assailant wherever his march might have been opposed. The necessity of pausing to reduce Harper's Ferry had delayed him during precious days, during which McClellan's advance had completely changed the aspect of the campaign. Instead of advancing to conquer Washington or Baltimore, Lee fell back into a defensive position, there to meet an army nearly or quite twice as large as

his own. In the meanwhile the necessity of living upon the country had completely demoralized those "lewd fellows of the baser sort," who constitute a pestilently important contingent in every fighting force. Men were away raiding chicken coops when they should have been in line with guns in their hands. Straggling was general beyond precedent, so that Lee declared that his army was "ruined" by it, while D. H. Hill said in his report of operations that "Had all our stragglers been up McClellan's army would have been completely crushed or annihilated. Thousands of thievish poltroons had kept away from sheer cowardice."

But the fact stares us in the face that McClellan had under his command quite all of 70,000 men and probably more, while Lee had at most considerably less than 40,000,—and as both armies were composed of seasoned soldiers who had fought before, it is by no means safe to say that if this or if that had been changed the result would have been other than it was. With an "if," it is easy to demonstrate anything.

The simple facts are that on the seventeenth of September, 1862, the two armies met on Antietam Creek in front of Sharpsburg, that they fought all day with high courage and desperate determination on both sides; that the Federals lost, by official report, 12,469 men, while the Confederate loss, never accurately reported, was estimated at between 9,000 and 10,000 men; that at the end of the struggle each army held the position it had occupied at the beginning, neither having yielded position to the other.

So far were both reluctant to renew the struggle that they lay still, facing each other during the whole of the next day, neither side firing a gun, and neither undertaking a maneuver of any kind.

That was what is technically called a drawn battle, a battle in which neither army can claim advantage over the other. And in fact that was the exact situation. Lee's men prided themselves upon the fact that they had held their own against nearly or quite twice their numbers, McClellan's men were proud to think that they had not been beaten as other armies had been by this phenomenal fighting machine of Robert E. Lee's; that they had not been flanked or caught in the rear, or in any other way outmaneuvered or outfought, but had been able to hold their own throughout the day and to maintain their ground when the day was done.

Considered by itself this was in fact a drawn battle. But considered more broadly in its relation to the general course of the war, it was very clearly a defeat for Lee, and a victory for his adversary. It made a final end of the Confederate general's scheme of invasion. It baffled all of his cherished purposes. It rendered utterly futile the plans in pursuit of which he had crossed the Potomac. It ended his hope of winning the war by the conquest of Washington or Baltimore, or both. It referred military operations again to Virginia, relieving all states north of the Potomac of their share in the sufferings incident to battles and campaigning.

Lee, being too badly crippled to continue his campaign, retired after a day's rest, to Virginia. McClellan, being too badly hurt to risk another contest, declined to follow him or in any way to interfere with his purposes.

The net results of Lee's campaign were that he had captured 11,500 prisoners at Harper's Ferry together with seventy-three guns and a vast store of food and munitions. He had inflicted upon his enemy in battle a loss of 12,469 men. On the other hand he had suffered a loss of 9,000 or 10,000 men; his army was reduced to 30,000 or less, and the strategic purpose of the campaign had utterly failed. He had encountered no disaster, but the expedition undertaken with high hopes and positively Napoleonic purposes had come to naught.

Then occurred one of those prolonged and unexplainable pauses in the war to which wondering reference has been made in an earlier chapter of this work. With all the superb autumn weather before them—the very best campaigning weather known to Virginia—neither side did anything or tried to do anything. Lee remained in the neighborhood of Winchester for a month, at once inactive and unmolested. Then he slowly retired to Fredericksburg, where he fortified himself to meet the advance which Burnside, who had succeeded McClellan, seemed to threaten by taking up a position at Acquia Creek, seven miles or so in Fredericksburg's front.

But the battle at Sharpsburg or Antietam, had occurred on the seventeenth of September and it was not until near the middle of December that either of these two armies again challenged the other to a contest of arms.

END OF VOL. I.

Transcribers' Note

Punctuation, hyphenation, and spelling were made consistent when a predominant preference was found in this book; otherwise they were not changed.

Simple typographical errors, including occasional unpaired quotation marks, were corrected.

Ambiguous hyphens at the ends of lines were retained.

Page [340](#): "Pass á l'Outre" was printed with that accent mark.

*** END OF THE PROJECT GUTENBERG EBOOK THE HISTORY OF
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